DU LL.B. · PAPER LB-301 · EXAM COMPENDIUM

makelaweasy.in

▸ FLAGSHIP LEGAL ACADEMIC SERIES

LAW CRUX SERIES

LAW · CRUX

STATUTORY PRECISION · LANDMARK RATIO · EXAMINATION MASTERY

▸ NEURAL-STRUCTURED DOCTRINAL & CASE-LAW EDITION

CONSTITUTIONAL LAW — I
STATE ORGANS & FEDERALISM

A high-density, exam-engineered synthesis of constitutional architecture, federal distribution of powers, Union and State institutions, all **71 prescribed DU LL.B. landmark judgments** in structured detail, and topic-wise Previous Year Questions.

10
CORE MODULES
Complete Constitutional Law — I (LB-301) DU syllabus

71
LANDMARK CASES
Detailed Facts, Issues, Contentions, Holdings & Ratio

PYQs
EXAM QUESTION BANK
Authentic DU semester questions organized topic-wise

COMPILED & CURATED
by Ankur R. Upadhyay

CONTACT ON WHATSAPP
+91 7021726891

OFFICIAL PORTAL & DETAILED NOTES
makelaweasy.in

INTELLECTUAL PROPERTY, ATTRIBUTION & LEGAL NOTICE // MAKE LAW EASY

Copyright, Publication Rights & Academic Disclaimer

COPYRIGHT NOTICE · INDIA & INTERNATIONAL

© 2026 Ankur R. Upadhyay · Make Law Easy (makelaweasy.in). All Rights Reserved.

All intellectual property rights, moral rights, and editorial rights in this publication vest exclusively in **Ankur R. Upadhyay** under the **Copyright Act, 1957 (Act 14 of 1957)** and applicable international copyright conventions. Except for personal, non-commercial study or brief attributed quotations in bona fide academic review as permitted under **Section 52(1)(a) (Fair Dealing)** of the Copyright Act, 1957, no part of the original editorial work in this compendium — including its doctrinal synthesis, analytical frameworks, comparative tables, case-law distillation structure, or visual design — may be reproduced, stored in any retrieval or automated training system, mirrored, sold, or transmitted in any form or by any means without prior written permission from the copyright holder.

PUBLICATION & CATALOGUING METADATA	
SERIES	**LAW CRUX** — Flagship Legal Academic Compendium Series
TITLE OF WORK	**Constitutional Law — I: State Organs & Federalism** — Comprehensive Doctrinal Notes, Landmark Case Laws & PYQ Compendium
AUTHOR & COMPILER	**Ankur R. Upadhyay**
PORTAL & CONTACT	http://makelaweasy.in | **WhatsApp:** +91 7021726891
ACADEMIC ALIGNMENT	LL.B. Degree Examination — Faculty of Law, University of Delhi (Paper LB-301: Constitutional Law — I)
EDITION & YEAR	Consolidated Examination Edition · 2026
GOVERNING LAW	Laws of the Republic of India · Exclusive Jurisdiction of Competent Courts at Delhi

▸ PERMITTED PERSONAL & ACADEMIC USE

- Individual students may download, view, and print **a single personal copy** strictly for self-study, classroom reference, and university examination preparation.
- Short, properly attributed references in academic research or scholarly discussion are permitted with explicit credit to **Ankur R. Upadhyay** and makelaweasy.in.

▸ PROHIBITED COMMERCIAL & BULK DISTRIBUTION

- Commercial printing, coaching-institute circulation, resale, bulk photocopying, or unauthorized re-uploading to Telegram channels, WhatsApp groups, cloud drives, or third-party websites is strictly prohibited.
- Tampering with, cropping, or removing author attributions, headers (**makelaweasy.in**), footers, or watermarks (**by Ankur R. Upadhyay**) is actionable under **Sections 55, 63 & 65B of the Copyright Act, 1957**.

Constitutional Text, Judicial Decisions & University Papers — Section 52(1)(q) Acknowledgment

Provisions of *The Constitution of India*, related parliamentary enactments, Constituent Assembly records, verbatim extracts from judgments of the Supreme Court of India, High Courts, Federal Court, and Privy Council, and past examination questions of the University of Delhi constitute public/official records under **Section 52(1)(q) of the Copyright Act, 1957**. Original copyright subsists strictly in the **editorial selection, arrangement, doctrinal analysis, element-wise analytical breakdown, comparative matrices, and pedagogical presentation** authored and compiled by **Ankur R. Upadhyay**.

Academic Disclaimer & Non-Solicitation Notice

This compendium is published solely for legal education and examination preparation. Nothing herein constitutes formal legal advice, professional opinion, or solicitation, nor does reliance upon this publication create an advocate-client relationship. While rigorous care has been exercised to ensure constitutional and doctrinal fidelity, readers are advised to verify official constitutional amendments, bare statutes, and authoritative law reports (*SCC, AIR, SCR*). For updated study modules, detailed PYQ solutions, queries, and errata, visit makelaweasy.in or contact on WhatsApp: +91 7021726891.

RIGHTS HOLDER & AUTHOR
by Ankur R. Upadhyay

WHATSAPP CONTACT
+91 7021726891

OFFICIAL PORTAL & UPDATES
makelaweasy.in

ARCHITECTURE & SYLLABUS MATRIX // DU LL.B. PAPER LB-301

Comprehensive Table of Modules & Landmark Case Directory

PART I // CONSTITUTIONAL FOUNDATIONS, FEDERALISM & TERRITORY (MODULES 01 - 02 · CASES #01 - #13)

MOD.	SYLLABUS HEAD	TOPIC & CONSTITUTIONAL SCOPE	CASE LAWS	PAGE
CH.01	TOPIC 1 · GENERAL	**Constitutionalism, Basic Structure Doctrine & Nature of Indian Federalism** Preamble · Articles 1–4, 244, 245–263 & 368 · Fifth, Sixth, Seventh & Ninth Schedules	Cases #01–#07	p. 4
CH.02	TOPIC 2 · UNION & TERRITORY	**The Union and its Territory: Admission, Reorganisation of States & Cession Doctrine** Part I · Articles 1, 2, 3 & 4 · Article 368 · First Schedule	Cases #08–#13	p. 17

PART II // ORGANS OF STATE: EXECUTIVE, LEGISLATURE & JUDICIARY (MODULES 03 - 07 · CASES #14 - #50)

MOD.	SYLLABUS HEAD	TOPIC & CONSTITUTIONAL SCOPE	CASE LAWS	PAGE
CH.03	TOPIC 3 · EXECUTIVES	**The Union and State Executives: President, Governor, Aid & Advice, Discretion & Clemency** Articles 52–78, 111, 153–167, 239AA & 361	Cases #14–#20	p. 26
CH.04	TOPIC 4 · LEGISLATURES	**Parliament and State Legislatures: Composition, Disqualifications, Legislative Process & Privileges** Articles 79–122 & 168–212 · Tenth Schedule · Representation of the People Act, 1951	Cases #21–#30	p. 38
CH.05	TOPIC 5 · ORDINANCES	**Legislative Power of the Executive: Ordinances, Re-promulgation Fraud & Enduring Effects** Articles 123, 213 & 13(3) · Articles 85 & 174	Cases #31–#33	p. 56
CH.06	TOPIC 6 (I) · JUDICIARY	**The Union and State Judiciary: Collegium, Jurisdictions, Tribunals, Curative Petition & Writs** Articles 32, 71, 124–147, 214–231, 226–227, 323A & 323B	Cases #34–#45	p. 65
CH.07	TOPIC 6 (II) · WRIT DOCTRINES & PIL	**Procedural Requirements & Judicial Innovations: Locus Standi, Laches, Res Judicata, PIL & Compensation** Articles 32, 142 & 226 · Epistolary Jurisdiction & Compensatory Jurisprudence	Cases #46–#50	p. 78

PART III // LEGISLATIVE RELATIONS, TRADE FREEDOM & EMERGENCIES (MODULES 08 - 10 · CASES #51 - #71)

MOD.	SYLLABUS HEAD	TOPIC & CONSTITUTIONAL SCOPE	CASE LAWS	PAGE
CH.08	TOPIC 7 · LEGISLATIVE RELATIONS	**Distribution of Legislative Powers: Territorial Nexus, Pith & Substance, Colourable Legislation, Residuary Power & Repugnancy** Part XI (Chapter I) · Articles 245–255 · Seventh Schedule (Lists I, II & III)	Cases #51–#65	p. 88
CH.09	TOPIC 8 · TRADE & COMMERCE	**Freedom of Trade, Commerce and Intercourse: Fiscal Measures, Compensatory Tax Reset & State Monopoly** Part XIII · Articles 301–307 · Articles 19(1)(g) & 19(6)(ii)	Cases #66–#68	p. 108
CH.10	TOPIC 9 · EMERGENCY PROVISIONS	**Emergency Provisions: National Emergency, Union Directions, President's Rule & Financial Emergency** Part XVIII · Articles 352, 355–360 · Articles 256–257 & 365	Cases #69–#71	p. 116

by Ankur R. Upadhyay

PART I // MODULES 01 TO 02 · PRESCRIBED CASES #01 TO #13

CONSTITUTIONAL FOUNDATIONS, FEDERALISM & UNION TERRITORY

MODULE 01 // TOPIC 1 · GENERAL

Cases #01–#07

Constitutionalism, Basic Structure Doctrine & Nature of Indian Federalism

Preamble · Articles 1-4, 244, 245-263 & 368 · Fifth, Sixth, Seventh & Ninth Schedules

Section 1 · Constitution – Fundamental Law of the Land

"Government without a Constitution is a power without a right." — Thomas Paine (quoted in the DU reading on Constitution & Constitutionalism)

1.1 Meaning, Definition and Etymology

Etymology: The word *Constitution* comes from the Latin *constitutio* (in classical usage, imperial laws/decrees) and, more broadly, from *con-stare* — "to stand together / to set up". In political usage it denotes the arrangement of organs of government and the principles according which the state is governed. (Core sense: "constiture → binding together / joining / building").

- **Aristotle (350 BC):** constitution is "the way of life the state has chosen for itself"; he pioneered the distinction between ordinary law and constitutional (fundamental) law — the seed of "constitutionalism".
- **C.F. Strong:** "the collection of principles according to which the powers of the government, the rights of the governed, and their relationships are balanced."
- **A.V. Dicey:** the father of modern constitutionalism; located sovereignty in Parliament in UK, but described conventions that limit its exercise.
- **Marshall, C.J. (U.S.):** "It is a Constitution we are expounding" — a Constitution is an instrument of government to be read in light of the life of the people (*quoted by H.R. Khanna, J. in Kesavananda*).
- **Thomas Paine:** "Government without a Constitution is a power without a right."

Definition for exam

A **Constitution** is the **fundamental law of the land** which (i) establishes the principal organs of the State and distributes their powers; (ii) defines and limits governmental power; (iii) guarantees rights of citizens; and (iv) is the **source of all powers and limitations** on the legislature, executive and judiciary. "No action of the State would be valid unless it is permissible under the Constitution." (DU LB-301 – Objectives)

Functions of a Constitution

- Enables government **instruments** to be constituted and their powers limited;
- Expresses **fundamental values** (liberty, equality, dignity);
- Specifies **territory, membership (citizenship) and identity**;
- Provides **legitimacy** and a source of law's authority;
- Acts as a **focal point of political identification** and a framework for resolving conflict.

Kinds of Constitutions

- **Written** (USA, India) vs **Unwritten** (UK — cumulative documents + conventions);
- **Rigid** vs **Flexible** (terms coined by **Lord Bryce**, popularised by **Dicey** — see Kesavananda, Palekar J.);
- **Federal** vs **Unitary** vs **Quasi-federal**;
- **Executive** vs **Parliamentary** constitution;
- **Sovereign** vs **Colonial** constitution (Govt. of India Act, 1935 was colonial).

1.2 Constitution vs Constitutionalism vs Constitutional Law

Aspect	Constitution	Constitutionalism	Constitutional Law
Meaning	The document itself — the fundamental legal framework	The **philosophy/practice of limiting government power** through that framework	The body of law (statute + case law + conventions) interpreting and applying the Constitution
Question it answers	What is the structure of government?	Is government bound by law, or arbitrary?	How do courts resolve disputes about the framework?
Core idea	"Government with a Constitution"	"Government under a Constitution — limited power"	Rule of law made operational: Arts. 13, 32, 136, 141, 143, 226
Indian expression	Constitution of India, 1950	Constitutional supremacy, judicial review, separation of powers, checks & balances, FRs	SC/HC judgments; e.g., Kesavananda, S.R. Bommai

"While the Constitution provides the legal framework, Constitutionalism is the philosophy that ensures government power is limited by law... constitutionalism is shown through the rule of law, separation of powers, checks and balances, judicial review and protection of fundamental rights."

1.3 Rule of Law and the Essential Elements of Constitutionalism

As per the **class notes** , three essential elements underlie constitutionalism — every one of them is textually protected in the Constitution:

(1) Absence of Arbitrariness

Executive/legislative action must be reasoned, non-arbitrary and reviewable.
Art. 14 (equality before law + arbitrary action struck down — *E.P. Royappa*; *Navtej Singh Johar*); **Art. 21** (due process).

(2) Equality

Equality before law (**Art. 14** limb 1) + equal protection of laws (limb 2); non-discrimination (**Arts. 15–16**), abolishing untouchability (**Art. 17**), equality in public employment (**Art. 16**).

(3) Individual Liberty

Art. 19 freedoms (speech, assembly, association, movement, residence, profession), **Art. 20** (protection against conviction), **Art. 21** (life & personal liberty), **Art. 22** (against arrest & detention).

Rule of Law → Constitutionalism (Dicey's triad)

1. **Discretion of arbitrary power is unknown** — reflected in *Audi alteram partem* (Art. 14 / Art. 300A procedural fairness; Art. 21 post-*Maneka Gandhi*);
2. **Equality before the law** — no one is above law; *Reminisce: "no special treatment"* — Art. 14, 151, 16, 17, 18;
3. **Law arises from customs/courts, not the Ruler** — courts determine rights (judicial review: Arts. 32, 226, 136, 137, 141, 143, 227).

Separation of Powers & Checks — Institutional Matrix

- **Montesquieu**: legislative, executive, judicial organs; **Art. 50** (DPSP — separation of judiciary from executive);
- **Checks & balances:** Arts. 124, 217, 222 (judges' appointment/ removal) vs Arts. 61, 157 (President's impeachment / Governor's qualifications); Art. 74(2) & 163 limits; privileges under Arts. 361, 105, 194; judicial writs under Arts. 32, 226, 227;
- **Constitutional immunities:** constitutional functionaries cannot be tried like ordinary persons (immunities) — Art. 361.

Section 2 · Making of the Indian Constitution

From colonial charters to a sovereign democratic republic — the constitutional history that the DU readings place before every LB-301 student.

2.2 The Constituent Assembly and the Objectives Resolution

Constituent Assembly — key facts

- Constituted under the Cabinet Mission Plan (1946); 299 members at independence (originally 389); indirectly elected; adopted the Constitution in 2 years, 11 months, 18 days;
- Served as the **Provisional Parliament** under Art. 379 until the first general elections (1952) — a fact noted in Kuldip Nayar;
- Key functionaries: Dr. Rajendra Prasad (President), Dr. B.R. Ambedkar (Drafting Committee), Jawaharlal Nehru (Objectives Resolution), Sardar Patel (integration of States), B.N. Rau (Constitutional Adviser).

Why the Assembly was "unfettered"

> *"The Constituent Assembly was unfettered by any previous commitment in evolving a constitutional pattern 'suitable to the genius and requirements of the Indian people as a whole'. The Assembly had before it the experience of the working of the Government of India Act, 1935, several features of which could be accepted for the new Constitution."*

The Objectives Resolution (adopted 22 January 1947) — reproduced in DU case material (Kesavananda, Sikri C.J., paras 90–91)

> *"(1) THIS CONSTITUENT ASSEMBLY declares its firm and solemn resolve to proclaim India as an Independent Sovereign Republic and to draw up for her future governance a Constitution; (2) wherein the territories that now comprise British India, the territories that now form the Indian States… shall be a Union of them all; (3) wherein the said territories… shall possess and retain the status of autonomous units, together with residuary powers…; (4) wherein all power and authority of the Sovereign Independent India… are derived from the people; (5) wherein shall be guaranteed and secured to all the people of India justice, social, economic and political; equality of status, of opportunity, and before the law; freedom of thought, expression, belief, faith, worship…; (6) wherein adequate safeguards shall be provided for minorities, backward and tribal areas, and depressed and other backward classes; (7) whereby shall be maintained the integrity of the territory of the Republic and its sovereign rights…; (8) this ancient land attains its rightful and honoured place in the world…"*

Why it matters for Topic 1: every head of the syllabus — *aims & objectives* (justice-liberty-equality-fraternity), *federalism* (autonomous units with residuary powers), *scheduled/tribal areas* (clause 6), *basic structure* (integrity of territory, democratic institutions) — is foreshadowed in this Resolution. The Preamble and Parts III–IV are its enacted form.

2.3 Enforcement, Amendment Procedure & Borrowed Sources

Structure of the document

- **Preamble + 25 Parts + 448 Articles + 12 Schedules** (as amended; originally 395 Articles, 22 Parts, 8 Schedules);
- Part III — Fundamental Rights (Arts. 12–35); Part IV — DPSPs (Arts. 36–51); Part IVA — Fundamental Duties (Art. 51A, added by 42nd A., 1976);
- Part V (Union) & Part VI (States); Part XI (Union–State relations: legislative, administrative, financial); Part XII Finance; Part XVI special provisions; Part XX amendment (Art. 368); Part XXI temporary/transitional.

How the Constitution can be amended

- **Simple majority** (like ordinary law): e.g., creation of new States (Art. 3), changes in salaries, Second/Fifth/Sixth Schedule provisions in some cases;
- **Special majority** — majority of total membership + ⅔ of members present & voting (Art. 368(2));
- **Special majority + ratification** by legislatures of ≥½ the States (Art. 368 proviso) for matters affecting: distribution of legislative powers (Arts. 73, 162, Sch. VII), List I/II entries, High Courts, Art. 32, 5th & 6th Schedules, etc.

Borrowed from	Institution / concept borrowed
United Kingdom	Parliamentary form, rule of law, single citizenship, equality before law, legislative privileges (Arts. 105, 194)
USA	Fundamental rights, judicial review, impeachment of President, federation with strong Centre, Preamble style
Ireland	DPSPs, nomination of Rajya Sabha members, method of election of President (idea of directive principles)
Canada	Federation with a strong Centre, residuary powers with Centre, distribution of powers by enumeration
Australia	Concurrent list, freedom of trade/commerce (Part XIII), joint sitting procedure
Germany (Weimar)	Emergency provisions, suspension of FRs during emergency
South Africa	Procedure for amendment of Constitution (Art. 368), election of Rajya Sabha members
Soviet USSR (USSR)	Idea of fundamental duties, ideals of social justice, Panchayati Raj inspiration
Canada / Switzerland	Additional features as noted in Kesavananda (Shelat & Grover JJ: "UK, Canada, Australia, Ireland, USA and Switzerland")
Govt. of India Act, 1935	**Framework of federation, distribution of legislative powers, executive–legislature relations, judiciary, emergency, Part on states** — "erected on the foundations of the Government of India Act, 1935" (State of W.B. v. UOI para 25)

Section 3 · Aims and Objectives of the Indian Constitution

The Preamble is the "soul" of the Constitution — it states the aims; Parts III & IV are their operational machinery; the basic structure doctrine protects them from destruction.

> *"WE, THE PEOPLE OF INDIA, having solemnly resolved to constitute India into a SOVEREIGN SOCIALIST SECULAR DEMOCRATIC REPUBLIC and to secure to all its citizens: JUSTICE, social, economic and political; LIBERTY of thought, expression, belief, faith and worship; EQUALITY of status and of opportunity; and to promote among them all FRATERNITY assuring the dignity of the individual and the unity and integrity of the Nation…"*

Keyword	What it secures	Enabling provisions / cases
Sovereign	India is independent internally & externally; no external control; legal sovereignty lies in the people (State of W.B. v. UOI para 27: "Legal sovereignty of the Indian nation is vested in the people of India")	Arts. 1–4; Art. 73; Art. 51 (foreign policy)
Socialist	Democratic socialism — mixed economy, equitable distribution, DPSPs; not totalitarian state socialism	Arts. 38, 39(b),(c), 39A, 41–43, 43A, 48A

Keyword	What it secures	Enabling provisions / cases
Secular	Religious neutrality + equal respect; **part of basic structure** — a State cannot impose religion or allow communal policies	Arts. 25–28; S.R. Bommai (secularism as basic feature — upheld proclamations in MP, Rajasthan, HP)
Democratic	Representative democracy + adult franchise; free & fair elections	Arts. 324–329; Kuldip Nayar (multi-party democracy is part of basic structure); *Indira Gandhi v. Raj Narain*
Republic	Head of State elected (President — Art. 52); no hereditary ruler	Arts. 52–70
Justice	Social, economic, political — via equality of status/opportunity and removal of privilege	Arts. 14–19 (civil), 38–39 (economic), 330–342 (social) — Preamble read with *Re Kerala Education Bill*
Liberty	Thought, expression, belief, faith, worship — subject to public order/morality limits	Arts. 19–22, 25–28
Equality	Status, opportunity, before law; affirmative action to make equality real	Arts. 14–18, 46, 15(4), 16(4), 340–342
Fraternity	Dignity of individual + unity & integrity of nation; single citizenship	Arts. 5–11 (citizenship), 19(2)–(3) limits, Art. 355–356

Aims — stated in the DU "Objectives" note

- Constitution contains the **fundamental law of the land**;
- It is the **source of all powers of, and limitations on, the three organs** of State;
- No State action is valid unless permitted by the Constitution → hence a clear understanding of its nature & working is imperative;
- The course develops an **analytical approach through case law**.

Aims — through the judgments

- Kesavananda: Constitution = "vehicle of the life of a nation"; Parts III & IV are "the conscience of the Constitution"; built on the "dignity and freedom of the individual";
- S.R. Bommai (Ahmadi J.): "What is paramount is the unity and integrity of the nation";
- Kuldip Nayar: "multi-party democracy is a necessary part of the basic structure"; *Indira Gandhi*: democracy is a basic feature — "not a dogmatic doctrine".

Section 4 · Essential Features of the Constitution of India

A feature becomes "essential" when its removal would change the identity of the Constitution — that is the bridge between this section and Basic Structure (§5).

1 · Written & Longest Constitution

Preamble + 448 Articles + 25 Parts + 12 Schedules + numerous amendments; detailed because it must govern a continental, plural society and absorb the 1935 Act's machinery. "Our Constitution is unique, apart from being the longest in the world" (Shelat & Grover JJ., *Kesavananda*).

2 · Drawn from Many Sources

Borrowed from UK, USA, Ireland, Canada, Australia, Switzerland etc. — yet sui generis; designed "suitable to the genius and requirements of the Indian people".

3

O
sp
pr
st

Exam tip: "Essential features" ≠ "basic structure". **Features** describe what the Constitution *is*; the **basic structure** is the *irreducible core* that even a constitutional amendment cannot destroy (§5). Some features (federalism, secularism, democracy, judicial review) are both.

Section 5 · Theory of Basic Structure

"Every provision of the Constitution can be amended provided in the result the basic foundation and structure of the Constitution remains the same." — Sikri C.J., Kesavananda Bharati (DU material, para 302)

5.1 Evolution — the Doctrine Chain

The three doctrinal ingredients of the theory (as synthesised from the DU material):

1. **The Constituent Power is distinct from the legislative power.** Art. 368 confers the amending power; it is subject to implied limitations because one generation cannot destroy the Constitution for the next (*Mathew J.'s Jeffersonian passage*, DU material).
2. **Amend ≠ Destroy.** Hegde & Mukherjea JJ.: "one cannot legally use the Constitution to destroy itself… If one or more of the basic features are taken away, to that extent the Constitution is abrogated or repealed. The personality of the Constitution must remain unchanged."
3. **Judicial review is preserved.** A provision purporting to exclude judicial review of a constitutional amendment (or give blanket immunity to laws) is itself destructive of the basic structure (Kesavananda; Minerva Mills; I.R. Coelho).

========== CASE 1: KESAVANANDA ========== ========== CASE 7: IR COELHO ==========

Section 6 · Principles of Federalism

"Federalism is a political contrivance for a body of States which desire Union but not unity." — Dicey (quoted by A.M. Ahmadi, J. in S.R. Bommai, DU material)

6.1 Concept, Meaning and Classical Features

Federalism = a system of government in which **sovereign legislative & executive authority is divided** between a **Union/Centre** and **constituent States/units** by the Constitution itself, each acting within its assigned sphere, with a supreme written Constitution, an independent judiciary to interpret the division, and a mechanism to resolve conflicts.

> *"The essence of a federation is the existence of the Union and the States and the distribution of powers between them. Federalism, therefore, essentially implies demarcation of powers in a federal compact."*

> *"The basic principle of federalism is that the legislative and executive authority is partitioned between the Centre and the States not by any law to be made by the Centre but the Constitution itself. The States… are in no way dependent upon the Centre… The Centre and the States are co-equal in this matter."*

> *"…the important point is whether the powers of the Government are divided between coordinate independent authorities or not… the systems of government embody predominantly a division of powers between Centre and regional authority, each of which in its own sphere is co-ordinating with the other independent… and if so is that Government federal?"*

Classical (Lockean/Diceyan) features of a federation	How India satisfies them (with provisions)
(1) Compact between sovereign units — independent States surrender part of sovereignty	**Modified:** Indian States were NOT sovereign before the Constitution — they are **creatures of the Constitution** (Arts. 1–4); there was no "pact". State of W.B. v. UOI: characteristic (a) "absent". Yet the federal choice was made in the Constituent Assembly (Ambedkar: "the Indian Constitution… is not a league of States").
(2) Supremacy of the Constitution (not of Parliament)	Written Constitution; Art. 13; judicial review; Art. 368 procedure; Kesavananda basic-structure limit. State of W.B.: "Our Constitution is undoubtedly supreme" though alterable by Union Parliament alone.
(3) Distribution of powers — legislative/ executive/financial	Arts. 245–255 + Seventh Schedule (Union/State/Concurrent Lists); Arts. 73 & 162 (executive); Arts. 268–281 (finance); residuary power to Centre (Art. 248 + Entry 97).
(4) Supreme authority of courts to interpret the Constitution (judicial review; conflict-resolution)	Integrated judiciary (Arts. 124–231); Art. 32 & 226 writs; Art. 131 original jurisdiction; Art. 141/143; Art. 142. State of W.B.: characteristic (d) "found in full force".
(5) Rigid amendment process	Art. 368 proviso — ratification by ≥½ State legislatures for federal provisions (a "federal safeguard").
(6) Dual citizenship & dual judiciary (classic models)	**Absent in India:** single citizenship (Arts. 5–11); one integrated judiciary — indicators of quasi-federalism (Ahmadi J., Bommai para 23).

6.3 USA vs India — the Federal Comparison (from Bommai, DU material)

Feature	USA	India
Origin of federation	Sovereign States voluntarily formed a Confederation (1781) then Federation (1789); "indestructible States… indestructible Union"	No sovereign units; States **created by Art. 1**; Constitution itself is the source (Berubari: units "had no organic roots in the past")
Amendment	Ratification by ¾ of States (special convention)	Art. 368: special majority + ≥½ States (only some subjects)
Legislative lists	Single list of federal powers; residuary **with States**	Three lists; **residuary with Centre** (Art. 248 + Entry 97)
Citizenship	**Dual** citizenship (14th Amendment — of the U.S. and of the State)	**Single** citizenship (Arts. 5–11)
Judiciary	Dual court system — federal courts & State courts	**Integrated** judiciary — one hierarchy; SC at apex; no federal/state divide (Art. 247 power never used)
Territorial integrity of units	State boundaries federally protected	**No guarantee** — Art. 3 lets Parliament redraw/abolish States (read with States Reorganisation Act, 1956)
Emergency powers	Substantially limited	Comprehensive (Arts. 352–360); Centre can legislate on State subjects during emergency (Art. 250)
Executive–legislature link	Separate (Presidential)	Fused — parliamentary system; Council of Ministers responsible to legislature (Arts. 74/75/163/164)
Language of federalism	"Federal/federation" in text	**The words "federal/federation" are absent** from the constitutional vocabulary (Ahmadi J.) — hence the debate over labels

Section 7 · Nature of the Indian Constitution — Federal, Unitary or Quasi-Federal?

"What is there in a name?" — A.M. Ahmadi J. in Bommai, after holding that the Indian Constitution is "more appropriately described as quasi-federal… a mixture of the federal and unitary elements."

(1) Federal Theory

Says: India is federal — written Constitution, division of powers (Sch. VII), independent judiciary, Art. 131 dispute resolution, federal guarantee of the legislative field.

Justices: Sawant & Kuldip Singh JJ. (Bommai, para 97 — following **constitutional critique**: "the federal principle is dominant in our Constitution and has not been watered down", giving reasons (a)–(k)); Ambedkar in CA ("Chief mark of federalism lies in the partition of legislative & executive authority by the Constitution").

(2) Unitary Theory

Says: Unitary in operation — strong Centre; residuary power with Centre; single citizenship; integrated judiciary; Art. 3 power over States; Art. 356 takeover; States dependent financially; emergency overrides.

Justices: Beg C.J. in State of Rajasthan v. Union of India (AIR 1977): "whatever appearance of a federal structure… its operations are certainly… more unitary than federal"; "amphibian" Union that moves on federal or unitary plane; *M. Karunanidhi v. UOI* (Mad.) in Bommai.

(3) Quasi-Federal Theory

Says: A hybrid — "federal in form but unitary in substance/leaning to centre". Term popularised by **K.C. Wheare** (on Australian Constitution: "quasi-federal"), applied to India by **Palekar J. in Kesavananda** ("broadly speaking, a quasi-federal constitution") and **Untwalia J. in State of Karnataka v. Union of India (1978)**.

Jeevan Reddy J. (Bommai): "our Constitution has certainly a bias towards Centre… but within the sphere allotted to them, States are supreme."

The modern synthesis — write this in exams

The Constitution is **federal by structure, unitary in leaning, quasi-federal in operation**: the "division of powers" is real and judicially protected (Bommai, ITC, Kesoram), yet the Centre has overriding levers (Arts. 3, 248, 249–253, 256–258, 352–360) deployed only in extraordinary situations — "The exceptions are not a rule" (Sawant J., para 99). Federalism itself is a **basic feature** (Bommai; Kuldip Nayar; Art. 370 judgment: "asymmetric federalism… is part of the basic structure, as is federalism").

========== CASE 3: STATE OF WEST BENGAL ========== ========== CASE 4: RAM JAWAYA KAPUR ========== ========== CASE 2: S.R. BOMMAI ========== ========== CASE 5: KULDIP NAYAR ==========

Section 8 · Cooperative and Competitive Federalism

"The States… are neither satellites nor agents of the Centre." — Sawant J., S.R. Bommai · Cooperative federalism = governance by collaboration; Competitive federalism = governance by race-to-the-top.

8.1 Cooperative Federalism

Meaning: A system in which the **Union and the States work as partners** in a common enterprise — sharing information, decisions, finances and responsibility for outcomes, with institutions that institutionalise consultation instead of command. It is the practical working of the "co-ordinating" federalism Sawant J. described: emergencies aside, "the exceptions are not a rule."

Constitutional / statutory mechanism	Provision	How it works (with real examples)
Inter-State Council	Art. 263 (established by Presidential Order, 1991)	Investigates & advises on Centre-State/inter-State disputes; permanent forum of CMs & Union Ministers — e.g., deliberations on GST rollout, Bommai-era recommendations, law & order
GST Council	Art. 279A (101st Amendment Act, 2016; CGST/SGST Acts, 2017)	**Classic cooperative federalism:** Union Finance Minister chairs; Union + States vote together (Centre ⅓, States ⅔); ¾ majority needed — *Mohit Minerals v. GST Council* (2022, 9 JJ): recommendations are not binding — States retain legislative choice (federal balance preserved)
Zonal Councils	States Reorganisation Act, 1956 (ss. 14–22), 5 zones	Chief Ministers + Lt. Governors + Union Ministers — e.g., North Zone Council reviewing border & drug issues
Finance Commission	Art. 280 (15th FC, 2021–26)	Vertical/horizontal tax devolution recommendations — resource federalism
Union directions & entrustment	Arts. 256, 257, 258, 258-A	Union may entrust its functions to States (with Governor's consent) and vice-versa — cooperative execution (e.g., use of State machinery for central schemes)
Emergency & protection duties	Arts. 355, 356, 352	Union's duty to protect every State — *obverse* of cooperation (Bommai upheld proclamations in MP/Rajasthan/HP on this footing)
NITI Aayog	Executive creation (2015, replacing Planning Commission) — Art. 263 sibling	"Cooperative and Competitive Federalism" as its stated mandate: grassroots upscaling, "Aspirational Districts/Blocks" rankings
Disaster & pandemic management	Disaster Management Act, 2005 (NDRF/NDMA)	Joint command: Centre funds, States execute (e.g., COVID-19: Disaster Management Act directions + State unlock zones)
All-India Services & joint cadres	Art. 312; IAS/IPS/IFS	Officers on deputation to Centre/States — human-resource federalism
Article 371-series & Asymmetric arrangements	Arts. 371A–371J	Special accommodation for States (Nagaland/Mizoram land & customary law; Gujarat/Delhi-specific provisions) = "asymmetric federalism… part of the basic structure" (Art. 370 judgment, para 164)

Real example — cooperative federalism at work: During the 2016 demonetisation/2017 GST roll-out and the COVID-19 lockdowns, the Empowered Group of CMs + Union Ministers model under Art. 263/Disaster Management Act operationalised cooperation; the **GST Council's decision to cut rates** on pandemic essentials (masks, PPE: 2020) required ¾ majority of Union + States — federal consensus in action.

8.2 Competitive Federalism

Meaning: States are treated as **competitors in a marketplace of governance** — ranking, rewarding and benchmarking induces them to improve policy. Mechanisms:

- **Conditional grants & rankings:** Smart City Mission, Aspirational Districts Programme (NITI Aayog), Swachh Bharat rankings, PMAY-Gramin performance grants (evidence-based incentives);
- **Vertical-horizontal devolution competition:** Finance Commission awards reward good governance/population need;
- **Policy experimentation:** "laboratories of democracy" — e.g., Kerala's health model, Gujarat industrial policy, Delhi education model, Goa/Tripura startup policies being copied across States;
- **Judicial endorsement:** the phrase was applied in *Y.S. Jagan Mohan Reddy v. NTPC* (2019) — "competitive federalism" as a legitimate operating principle (States competing for investment while the Union sets the floor of fair competition); also *UOK v. Mohit Minerals* (2022) — "cooperative federalism has to be fostering… not binding".
- **Caution — competition must not become conflict:** interstate water disputes (Cauvery, SYL — Case 6), "freight/operator" policy clashes, and uncooperative tax competition invite Art. 131/262 intervention.

Cooperative vs Competitive — quick contrast

	Cooperative	Competitive
Logic	Shared problem-solving	Race to the top
Forums	ISC, GST Council, Zonal Councils, FC	NITI rankings, grants, benchmarks
Watchword	Consensus (GST: ¾)	Performance (conditional finance)
Risk	Centre's dominance	"Bottoms-down" neglect of poor States

Doctrinal status

Both are **operational species of the federal basic structure** recognised in Bommai (federalism basic feature), Kuldip Nayar (federal principle dominant but Centre-leaning) and the **Art. 370 judgment (2023)**: "This set-up has been described as quasi-federal, asymmetric federalism or cooperative federalism… the existence of federal elements… is a cornerstone of the polity" (para 481), relying on *Bommai, Kuldip Nayar, State (NCT of Delhi) v. UOI, Swaraj Abhiyan*.

========== CASE 6: HARYANA v PUNJAB ==========

Section 9 · Scheduled and Tribal Areas

Clause (6) of the Objectives Resolution promised "adequate safeguards… for minorities, backward and tribal areas" — the Fifth and Sixth Schedules are that promise's constitutional form.

9.1 Constitutional Architecture

Dimension	FIFTH SCHEDULE (Art. 244(1))	SIXTH SCHEDULE (Art. 244(2))
Applies to	Scheduled Areas in States other than Assam, Meghalaya, Tripura & Mizoram (presently 10 States: AP, Telangana, Jharkhand, Chhattisgarh, MP, Maharashtra, Gujarat, Rajasthan, Odisha, WB — as notified)	Tribal areas in **Assam, Meghalaya, Tripura, Mizoram** (currently 10 Autonomous District Councils in Assam; 3 in Meghalaya; 3 in Tripura; 3 in Mizoram)
Administered by	**Governor of the State** (special responsibility; report to President under para 3)	**Governor** creates Regional/District Councils (paras 1–4) — quasi-legislative bodies

Dimension	FIFTH SCHEDULE (Art. 244(1))	SIXTH SCHEDULE (Art. 244(2))
Governing bodies	**Tribes Advisory Council** (para 5) — advise Governor on welfare/ advancement of STs; Governor may make rules (para 5)	**Autonomous District Council + Regional Council** — make laws (made/enforced Acts) on land, forest, agriculture, village heads, local taxation, licensing etc. (Sch. VI paras 3–4); laws assented by Governor; some subjects require Governor's sanction
Restrictions on land	**Para 5:** Governor may prohibit transfer of land from STs; regulate conditions of allotment of land to STs by outsiders — **anti-alienation powers**	Land/forest regulation through District Council legislation (e.g., Meghalaya Transfer of Land Act)
Laws applicable	Para 5(2): Parliament/State may restrict non-tribals from owning land in Scheduled Areas; para 6: Parliament may regulate money-lending; **Parliamental/State laws apply subject to modifications the President/Governor directs** (paras 5(1)(a),(b))	Council Acts require Governor's assent; Acts of Parliament (e.g., CrPC, IPC) may be extended with modifications by Parliament (para 6)
Participation of tribal members	Art. 332(3): reservation of seats in State Assembly for STs of Scheduled Areas (and SC/ST of Telangana…); SC/ST Commission etc.	Art. 332; separate representation framework in Councils (AC/ RC elected seats for tribal areas)
Key implementing laws	Panchayats (Extension to Scheduled Areas) Act — **PESA, 1996** (Arts. 243M read with State enactment); Scheduled Castes and Scheduled Tribes (Prevention of Atrocities) Act, 1989; Forest (Conservation) Act, 1980; SC/ST (Regulation of Transferring of Scheduled Areas Land) rules of respective States	Tripura Tribal Areas Autonomous District Council (created under the Sixth Schedule); Assam Autonomous District Councils Act, 1972; The Scheduled Tribes and Other Traditional Forest Dwellers (Recognition of Forest Rights) Act, **2006**

Other constitutional anchors

- **Art. 244:** administration of Scheduled Areas & tribal areas (the gateway to both Schedules);
- **Art. 275:** grants-in-aid for administration of welfare of STs (President may make grants to any State "for the purpose of promoting the welfare of the Scheduled Tribes");
- **Art. 339:** Commission to study ST welfare (339(1)); President may direct executive power of Union re: welfare of STs (339(2)) — mentioned by Ramaswami J. in Bommai as a Union-direction power;
- **Art. 340:** Commission for backward classes (B.P. Mandal, 1979; Justice G. Rohini Commission, 2017);
- **Art. 341/342:** Presidential notification of SCs/STs (and Art. 342A — SEBCs, 102nd A.);
- **Art. 332(3):** reservations in Legislative Assemblies of Scheduled Areas;
- **Arts. 15(4)/(5)/(6), 16(4)/(4A):** reservation in education/jobs; **Art. 164(4)** ministership quotas; **Art. 243D** reservation in Panchayats; **Art. 275** finance;
- **Arts. 371A (Nagaland), 371G (Mizoram), 371C (Manipur Hills), 371H (Arunachal), 371J (Karnataka-Hyderabad-Karnataka), 371B (Assam):** special regional protections — the textual face of **asymmetric federalism** ("Articles 371A to 371J are examples of special arrangements… nothing but a feature of asymmetric federalism" — Art. 370 judgment, para 164);
- **Fifth Schedule para 3 & para 4:** Tribes Advisory Council + Governor's power to modify application of central/general laws to Scheduled Areas (made-to-fit governance);
- **Directions Order:** the President's orders deciding which districts are "Scheduled Areas" (Scheduled Areas (Increase of Reserved Seats)? — the Constitution (Scheduled Areas) Orders, 1950, as amended; for Assam, the Assam (Scheduled Districts) Order — later the Sixth Schedule territories).

Related Acts/Orders to name in exams: Scheduled Castes and Scheduled Tribes (Prevention of Atrocities) Act, 1989 (amended 2015, 2018); PESA Act, 1996; Forest Rights Act, 2006; Forest (Conservation) Act, 1980; PESA Act, 1996; Forest Rights Act, 2006; Forest (Conservation) Act, 1980; State-level anti-alienation laws (e.g., Gujarat Scheduled Areas (Control of Transfer of Land) Rules; Madhya Pradesh & Maharashtra Scheduled Areas land-transfer rules); Provisions of Panchayats (Extension to Scheduled Areas) Rules framed by States; Constitution (Scheduled Areas) Orders, 1950 (as amended by successive Presidential Orders adding/removing districts); Tribes Advisory Council rules under para 5 of the Fifth Schedule; National Commission for Scheduled Tribes (Art. 338A — 89th Amendment, 2003); SC/ST (Prevention of Atrocities) Rules, 1996.

Prescribed Landmark Case Laws — Detailed Analysis

CASES #01–#07

CASE #01 DU LL.B. PRESCRIBED AUTHORITY

His Holiness Kesavananda Bharati Sripadagalvaru v. State of Kerala

AIR 1973 SC 1461 · 1973 (4) SCC 225 · Decided 24 April 1973 · Bench: · 13 Judges · (largest ever) – S.M. Sikri C.J., J.M. Shelat, K.S. Hegde, A.N. Grover, A.N. Ray, P. Jaganmohan Reddy, D.G. Palekar, H.R. Khanna, K.K. Mathew, M.H. Beg, S.N. Dwivedi, A.K. Mukherjea, Y.V. Chandrachud, JJ. · Split: · 7: 6 · Lead counsel for petitioners: · Nani Palkhivala

Background & Facts

The trigger: The **Kerala Land Reforms Acts (1963 & 1969)** and the Kerala Agrarian Relations Act, 1970 imposed ceilings on landholdings — including lands held by religious and charitable institutions. **Swami Kesavananda Bharati**, the head of the **Edneer Mutt** (Edneer, Kasaragod, Kerala), filed writ petitions under **Art. 32** challenging the legislation as violating his fundamental rights (Arts. 14, 19, 25, 26, 31 — right to property was then a fundamental right).

The constitutional counter-attack: In the meantime, Parliament had reacted to Golak Nath v. State of Punjab (1967) by enacting:

- **Constitution (24th Amendment) Act, 1971** — inserted in Art. 13 "nothing in this article shall apply to any amendment made under Article 368", and in Art. 368 the words "may… amend by way of addition, variation or repeal any provision….";
- **Constitution (25th Amendment) Act, 1971** — curtailed Art. 31 (compensation clauses) and inserted **Art. 31C** (laws implementing Arts. 39(b),(c) not to be void for violating Arts. 14, 19, 31 + the "no court can question the declaration" clause);
- **Constitution (29th Amendment) Act, 1971** — placed two Kerala land-reform Acts in the **Ninth Schedule**.

The validity of the **24th, 25th and 29th Amendments** — and the **totality of Parliament's amending power under Art. 368** — was the "main question" (DU material). The case was heard for **68 days** (31 Oct 1972 – 23 Mar 1973) and produced a 703-page judgment with 11 separate opinions.

Issues

Q1. Is Golak Nath (FRs beyond Parliament's amending power) correct — i.e., is Art. 368 subject to Art. 13(2)?
Q2. What is the **nature, extent and scope** of Parliament's power to amend the Constitution under Art. 368 — is it plenary, or limited by implied/ express restraints?
Q3. Are the 24th, 25th and 29th Amendments (Art. 31C, Art. 31A-type protections, Ninth Schedule insertion) valid?
Q4. Can the Constitution confer on Parliament power to exclude judicial review of its own amendments?

Arguments

For the Petitioners (Kesavananda Bharati & others — Palkhivala):

- Art. 368 prescribes only the **procedure**; the **power** of amendment is subject to Art. 13(2) — a "law" abridging FRs is void (Golak Nath logic);
- The word "amend" means **improvement, not destruction** — the Constitution cannot be destroyed by using its own provisions; the identity ("personality") of the Constitution must survive;
- The Preamble (which speaks of justice, liberty, equality, fraternity and the People's sovereignty) is part of the Constitution and limits amendment; certain features — supremacy of the Constitution, republican & democratic government, secular character, separation of powers, federal character — form the **basic structure**;
- 24th Amendment's ouster of Art. 13 destroys judicial review; Art. 31C's non-justiciability clause and 29th Amendment's Ninth Schedule device are tools to evade fundamental rights;
- If the amending power is unlimited, Parliament can take away the amending power itself from future generations (Palkhivala's "foreclosure" argument).

For the Respondents (State of Kerala, other States & Union of India):

- Constituent sovereignty rests in **Parliament**; the Constitution-makers deliberately conferred a plenary amending power in Art. 368 — otherwise the Constitution could not meet changing needs;
- **Attorney-General:** "every provision of the Constitution is essential; otherwise it would not have been put in the Constitution" — no provision is more "basic" than another;
- Art. 368 as amended is complete in itself; Art. 13 expressly excludes amendments from its operation after the 24th Amendment;
- **Mathew J.'s Jeffersonian view (for the pro-amendment side):** "A Constitution is not an end in itself, rather a means for ordering the life of a nation… if yesterday is not to paralyse today, it seems best to permit each generation to take care of itself"; every generation has the right by majority will to determine its constitutional structure; Dr. Ambedkar "could not have conceived of any limitation upon the amending power";
- Land-reform/DPSP legislation must not be held hostage to property rights — Art. 31C and the Ninth Schedule are legitimate agrarian-reform devices; the 29th Amendment merely kept the Kerala laws alive pending examination.

Decision — "The View by the Majority" (5 propositions, DU material p.1)

1. I.C. Golak Nath v. State of Punjab (AIR 1967 SC 1643) — that fundamental rights were beyond Parliament's amending powers — **was overruled**;
2. The **Constitution (24th Amendment) Act, 1971** (empowering Parliament to amend any part of the Constitution, and taking amendments out of Art. 13) **was valid**;
3. **Article 368 (as amended) was valid — but it did not confer power on Parliament to alter the basic structure or framework of the Constitution.** The Court did not spell out an exhaustive catalogue; individual judges gave illustrations;
4. The attempt to **exclude judicial review of a constitutional amendment** was unconstitutional;
5. The offending limb of **Art. 31C** — "and no law containing a declaration that it is for giving effect to such policy shall be called in question in any court on the ground that it does not give effect to such policy" — **was held invalid** (it destroyed judicial review). [Rest of Art. 31C first limb upheld.]

Vote mathematics: 7: 6. For the basic-structure limitation — Sikri C.J., Shelat, Hegde, Grover, Jaganmohan Reddy, Mukherjea, Khanna, JJ. For unlimited amending power — Ray, Palekar, Mathew, Beg, Dwivedi, Chandrachud, JJ. **Khanna J.'s separate opinion was pivotal**, making the 7-member side possible.

Key passages from the DU case material (memory-points)

- **Sikri C.J. (para 302–303):** basic structure may be said to include "(1) Supremacy of the Constitution; (2) Republican and Democratic forms of Government; (3) Secular character of the Constitution; (4) Separation of powers between the legislature, the executive and the judiciary; (5) Federal character of the Constitution" — built on the "basic foundation… the dignity and freedom of the individual", which "cannot by any form of amendment be destroyed".
- **Shelat & Grover JJ. (para 499, 503):** the Constitution is an *organic document* which must grow; Parts III & IV are "the conscience of the Constitution"; the federal essence = distribution of powers; written & controlled Constitution; parliamentary system grafted on a federal structure.
- **Hegde & Mukherjea JJ. (para 667):** "a Constitution like ours contains certain features which are so essential that they cannot be changed or destroyed… one cannot legally use the Constitution to destroy itself… The personality of the Constitution must remain unchanged."
- **Palekar J. (para 1219):** India's is "broadly speaking, a **quasi-federal constitution** which adopted the Parliamentary system of Government based on adult franchise" — key authority for §7.
- **Khanna J. (para 1448):** "a Constitution is not a gate but a road… not a document for fastidious dialectics but the means of ordering the life of a people"; "It is a Constitution we are expounding" (Marshall).
- **Mathew J. (para 1563):** living-Constitution view: "A Constitution is an experiment as all life is an experiment" — no limitation on amending power (minority view).

Principles evolved

1. **Basic Structure Doctrine:** Parliament's constituent power under Art. 368 is wide but not unlimited; amendments violating the basic structure are void.
2. **Amendment ≠ Law under Art. 13(2)** (Golak Nath overruled) — but subject to the basic-structure limitation, preserving judicial review.
3. **Integral parts of the Constitution** (Preamble, fundamental rights, federal structure) are protected in substance even if their text is varied.
4. **Judicial review** is the mechanism that makes the limitation enforceable — hence any ouster clause is unconstitutional.
5. Follow-ups: Indira Gandhi v. Raj Narain (1975), Minerva Mills (1980), Waman Rao (1981), I.R. Coelho (2007), NJAC case (2015).

CASE #02 DU LL.B. PRESCRIBED AUTHORITY

S. R. Bommai & Ors. v. Union of India & Ors.

1994 (3) SCC 1 · AIR 1994 SC 1918 · Decided · 11 March 1994 · Bench: · 9 Judges · — S. Ratnavel Pandian, A.M. Ahmadi, Kuldip Singh, J.S. Verma, P.B. Sawant, K. Ramaswamy, S.C. Agrawal, Yogeshwar Dayal, B.P. Jeevan Reddy, JJ. · Subject-head: · President's Rule under Art. 356 — grounds and scope of judicial review · (also listed under Topic 9)

Facts — the two clusters of proclamations

A. The Karnataka episode (Bommai's own appeal):

- 5-3-1985 assembly elections: Janata Dal 139/225; R.K. Hegde CM; he resigned 12-8-1988 → **S.R. Bommai** became CM.
- Position on 1-2-1989: Janata Dal 111, Congress 65, Janata Party 27. After a cabinet reshuffle, **Kalyan Molakery** & others defected; on 17-18-4-1989 he wrote to the **Governor** with letters of 19 others expressing want of confidence in Bommai.

- 19–4–1989: Governor sent report to President. 20–4–1989: **7 of the 19** MLAs wrote back saying their signatures were obtained by misrepresentation and reaffirmed support to Bommai; cabinet decided to convene the House on **27–4–1989 for a floor test**; Bommai met Governor requesting a floor test (even advancing the date).
- In that situation the Governor sent a **second report**; on **21–4–1989 the President issued the Art. 356 Proclamation** — dismissing the Bommai government, **dissolving the Assembly** and assuming State administration.
- Karnataka HC (3-judge bench) dismissed the writ petition (*S.R. Bommai v. UOI*, AIR 1990 Kant 5) holding floor test not mandatory/pre-requisite. Appeal to SC.

B. The Ayodhya/Babri Masjid cluster (1992): BJP formed governments in UP, MP, Rajasthan & HP (Feb 1990) with the Ram temple in its manifesto. The Ram Janmabhoomi-Babri Masjid structure was demolished by karsevaks on **6–12–1992** despite assurances to the Supreme Court; UP government resigned; the President dissolved the UP legislature by proclamation dated 6–12–1992. On **15–12–1992**, the President dismissed the governments and dissolved the assemblies of **Rajasthan, Madhya Pradesh and Himachal Pradesh**. The Court examined these along with **Meghalaya** and **Nagaland** proclamations (1988–91).

Also relevant: *State of Karnataka v. Union of India* (AIR 1978 SC 68) and *State of Rajasthan v. Union of India* (AIR 1977 SC 1361) — Commissions of Inquiry cases — were cited for Beg C.J.'s "amphibian Union" observations.

Issues

Q1. What is the **nature of the Indian Constitution** — federal, quasi-federal, unitary — and what does that mean for Centre-State relations?
Q2. Under what circumstances could **President's Rule** under Art. 356 be justified — and what are the **limits**?
Q3. Is the **President's satisfaction** in issuing the proclamation subject to **judicial review**? Does Art. 74(2) bar scrutiny of the aid-and-advice material?
Q4. Effect of **dissolution of the State Assembly** — before parliamentary approval; and its effect if the proclamation is later disapproved/struck down?
Q5. Must a **floor test** precede the report? Can defection-driven letters substitute for the floor?
Q6. Whether governments can be dismissed for conduct **impairing secularism** (the Babri cluster)?

Arguments (as reflected in the DU material)

For the challenge (Bommai & States — invalidity of proclamations):

- Art. 356 is a **fail-safe for genuine breakdown**, not a political weapon; the material must be **relevant, real and bona fide**;
- Where the CM demands a floor test, dismissal without one offends Arts. 14, 163, 356 read with Art. 355 — "the exceptions are not a rule";
- Art. 74(2) ("question not to be enquired into by any court") does not bar scrutiny of whether *any* material existed; Bommai itself proceeded on records;
- Dissolution of the assembly before parliamentary sanction is impermissible; if disapproved/lapsed, the house must revive;
- Secularism: a government that abandons constitutional secularism can be replaced — but each case needs its own material (MP/Rajasthan/HP challenged on this count too).

For the Union (upholding proclamations):

- Art. 356 rests on the **President's satisfaction** formed on the Governor's/CM's reports — a **political question** (borrowing the American doctrine) not justiciable;
- Art. 74(2) absolutely excludes judicial inquiry into aid & advice;
- Once Parliament approves within 2 months (Art. 356(3)) and the Assembly is dissolved, courts cannot restore anything;
- Emergency-type powers are inherent in every polity (US Art. IV §4 analogy) — the Constitution's unitary features make such powers consistent with federalism;
- In the Babri cluster: communal polarisation, breakdown of law & order and the state's failure to protect a structure under this Court's directions furnished live material.

Decision — holdings of the 9-judge Bench

1. **Art. 356 IS subject to judicial review.** The Court may examine whether the proclamation issued (i) on **any material at all**, (ii) on **relevant** material, (iii) in **good faith/purpose**, and (iv) whether the power was exercised for the object for which it is conferred. *Sawant J. (para 106):* "the federal principle, social pluralism and pluralist democracy which form the basic structure… demand that the judicial review of the Proclamation issued under Article 356(1) is not only an imperative necessity but a stringent duty."
2. **Art. 74(2) is not a bar** to examining the existence/relevance of material — it bars inquiry into the *contents of advice*, not whether the constitutional machinery failed.
3. **Floor test is the touchstone:** where the CM's majority is challenged, the proper course is to let the House decide. Karnataka proclamation (21–4–1989) **held unconstitutional** — the Governor acted in haste on untested, partly retracted letters; the demand for a floor test was ignored.
4. **Post-decisional approval:** if Parliament does not approve within 2 months, the proclamation lapses; the dismissed government **revives** and the dissolved assembly **cannot remain dead** — dissolution before approval is invalid; the assembly stands restored (prospectively).
5. **Outcomes State-wise:** proclamations in **Karnataka, Meghalaya and Nagaland held unconstitutional** (no floor test/defective material — Meghalaya becoming partly academic after elections); **Madhya Pradesh, Rajasthan and Himachal Pradesh upheld** — in the wake of the 6–12–1992 demolition and communal conflagration, a genuine situation had arisen in which the government could not be carried on in accordance with the Constitution (Arts. 355–356), and secularism was engaged.
6. **Secularism & federalism declared basic features** — a government pursuing anti-secular policies furnishes a legitimate ground for Art. 356.
7. **Dissolution effects:** once the proclamation is approved and subsists, neither the dismissed government nor the dissolved house revives; if struck down, relief is calibrated (courts often direct elections — as eventually happened in Karnataka 1994).

The great federalism discourse in Bommai

Ahmadi J. — "Quasi-federal" reading (paras 13–24)

- Founding fathers "leaned in favour of a strong Centre"; essential features showing non-federal strictness: **absence of "federal/federation" in the text; Arts. 2–3; emergency powers; residuary power with Union (Art. 248 + Entry 97); power to amend; power to issue directions; single citizenship; integrated judiciary**;
- "the Constitution of India is differently described, more appropriately as **'quasi-federal' because it is a mixture of the federal and unitary elements, leaning more towards the latter** — but then what is there in a name… what is important… is the thrust and implications of the various provisions bearing on… Article 356."

Sawant J. (+ Kuldip Singh J.) — "Federal" reading (paras 97–106)

- Follows **Ten-point federal rebuttal in Bommai (a)–(k)**: non-sovereign origin is no objection; boundary-alterations forced by agitation; residuary power irrelevant to federal character (US/Australia give residuary to States yet are federal); emergency powers exist even in "indisputably federal" constitutions; Art. 356 modelled on US Const. Art. IV §4; directions to States = US enforcement power; Art. 254 conflict rule is federal;
- **"The States have an independent constitutional existence… They are neither satellites nor agents of the Centre."** Emergency invasions are "exceptions… not a rule";

Ram

- "
- F
- F

Ankur R. Upadhyay

- Quoted *State of W.B. v. UOI*: "powers of the States are not co-ordinate with the Union…"; Beg C.J. in *State of Rajasthan*: "more unitary than federal… amphibian".

- Label irrelevant: "It is not the theoretical label given to the Constitution but the **practical implications**… whether the powers under Article 356(1) can be exercised… arbitrarily."

Principles evolved

1. **Judicial review of Art. 356 proclamation — materials, mala fides, relevance, and propriety;**
2. **Floor of the House is decisive** — Governor cannot act on unverified letters when a floor test is demanded;
3. **Post-decisional parliamentary approval within 2 months** (Art. 356(3)) — non-approval ⇒ lapse & revival;
4. **Dissolution requires sanction** — no irreversible action before parliamentary approval; if struck down, restoration/elections;
5. **Art. 74(2) is not an absolute bar;**
6. **Secularism & federalism = basic structure;** failure of constitutional machinery includes governance impairing secularism;
7. **Federalism as the organising principle** — States are constitutional potentates in their sphere; label (federal/quasi/unitary) doesn't dilute the review standards.

CASE #03 DU LL.B. PRESCRIBED AUTHORITY

State of West Bengal v. Union of India

AIR 1963 SC 1241 · (1963) Supp 1 SCR 371 · Bench: B.P. Sinha C.J., S.J. Imam, K. Subba Rao, J.C. Shah, Rajagopala Ayyangar, J.R. Mudholkar, JJ. · Suit under Art. 131 · Nature of Indian Constitution — Federal / Unitary / Quasi-federal; power of Union to acquire State property

Facts

Parliament enacted the **Coal Bearing Areas (Acquisition and Development) Act, 1957** (entries 52 & 54 Union List read with entry 42 Concurrent List) to acquire unworked coal-bearing lands and lessees' rights across India. Central notifications dated **21-9-1959 and 8-1-1960** took over coal-bearing areas **within West Bengal**.

The **State of West Bengal filed a suit under Art. 131** against the Union of India, seeking a declaration that Parliament was **not competent** to authorise acquisition of land/rights **belonging to a State**, and that the Act and the two notifications were **unconstitutional**. Other States (Punjab, etc.) intervened.

Statement of Objects & Reasons said the Centre "does not intend to acquire the proprietary rights vested in the States" — but the Court held SoR cannot be used to cut down the statute's generality (para 13).

Issues (as framed in the DU material)

(1) Whether Parliament had legislative competence to enact a law for compulsory acquisition by the Union of land and properties vested in/owned by the State?
(2) Whether the State of West Bengal was a **sovereign authority**?
(3) Assuming it was sovereign, was Parliament still entitled to legislate for compulsory acquisition of its lands/properties?
(4) Whether the Act or any of its provisions were *ultra vires* Parliament's competence? (5) Whether the plaintiff was entitled to any relief?

Arguments

Plaintiff-State of West Bengal (and supporting States):

- The Constitution adopts the **federal principle** — States **share sovereignty** with the Union; therefore Entry 42 (List III) must be read as implying a restriction against acquiring **State-owned** property;
- Property vested under **Art. 294(1)** cannot be diverted to Union purposes by compulsion of legislation;
- The **Govt. of India Act, 1935, s. 127** allowed acquisition of provincial land only by **negotiation/arbitration, not compulsion** — the absence of a similar proviso in the Constitution implies continued immunity;
- The **Australian Constitution expressly** empowers acquisition of State property — its absence in India is exclusionary (expressio unius);
- If Parliament could acquire State property under Entry 42, States could reciprocally "re-acquire" from the Union — an absurd loop making the entry a dead letter;
- Individuals & corporations enjoy Art. 31(2) protection (public purpose + compensation) — States cannot be left **worse off** than private owners;
- Unless a law expressly or by necessary implication binds a State, it does not — a general rule of interpretation;
- *Illustration (Advocate-General of Bengal):* Union could otherwise acquire Writer's Building and stop the State Secretariat.

Defendant-Union of India:

- Entry 42 of List III + Art. 246(2) confers **plenary** power to legislate for acquisition of **all property**, State-owned included; no textual interdict exists;
- Parliament's powers under List I entries (22 Railways, 23 national highways, 52 industries, 54 mines, 56 inter-State rivers, etc.) already allow legislation directly affecting State-situate property — excluding it under Entry 42 would make constitutional machinery unworkable;
- Historical: under the 1935 Act too the Centre could **require provinces to acquire/transfer land** (s. 127); provincial autonomy was never thought breached by that;
- A Constitution that lets Parliament **destroy a State** (Arts. 2-3) cannot logically bar it from merely acquiring a State's property;
- Ability of a power to be abused ≠ absence of the power ("if the Union did so, it would be abusing, not using, its power — but abuse is no reason for denying existence").

Decision (findings recorded — DU material para 69)

Issue 1 — in the affirmative: the Act applied to State lands; Parliament was competent. **Issue 2:** whatever sovereignty the State possessed did not "disentitle the Union Parliament to exercise its legislative power under Entry 42, List III". **Issue 3:** covered by answer to Issue 2. **Issue 4 — negative** (Act not ultra vires). **Issue 5 — negative**; additional issue answered in the affirmative. **The suit was DISMISSED.**

The constitutional analysis (paras 26-37) — the heart of the case for Topic 1:

- **(a) Compact:** "Our Constitution was not the result of any such compact or agreement: Units constituting a unitary State which were non-sovereign were transformed by abdication of power into a Union" — absent
- **(b) Supremacy alterable only by units:** "Our Constitution is undoubtedly supreme, but it is liable to be altered by the Union Parliament alone and the units have no power to alter it" — absent
- **(c) Distribution of powers:** present — "but distribution of powers is not always an index of political sovereignty. The exercise of powers legislative and executive in the allotted fields is **hedged in by numerous restrictions**, so that the powers of the States are **not coordinate** with the Union and are in many respects not independent" — partially present
- **(d) Supreme authority of courts:** "in our Constitution characteristic (d) is to be found **in full force**" — single integrated judiciary; SC at apex; Arts. 226-227 — present

Ankur R. Upadhyay

- **Legal vs political sovereignty:** "Legal sovereignty of the Indian nation is vested in the **people of India**… Political sovereignty is **distributed between the Union and the States with greater weightage in favour of the Union**."
- **The destroy-a-State argument:** "Parliament which is competent to **destroy a State** is [not] on account of some assumption as to absolute sovereignty of the State incompetent effectively to acquire by legislation… the property owned by the State."

Principles evolved

1. **Test of a 'truly federal' Constitution** (four characteristics (a)-(d)) — India satisfies (c) & (d) but not (a) & (b) → not a "traditional/true" federation; authority flowed from *the people*, not from a compact of sovereigns.
2. **State property is not immune** from valid Union legislation — legislative competence under Entry 42 is plenary; sovereignty of States is not absolute.
3. **Political sovereignty is distributed with a Union tilt** — the foundational statement of India's quasi-federal design, relied on later in Bommai & Kuldip Nayar.
4. **Interpretive canons:** Statement of Objects & Reasons ≠ statute; Preamble of an Act can aid but not override enacting words; a power capable of abuse still exists.
5. Also settled: legislation affecting State boundaries/existence moved on the President's recommendation (Art. 3) — Parliament's paramountcy over States' territorial existence.

CASE #04 DU LL.B. PRESCRIBED AUTHORITY

Rai Sahib Ram Jawaya Kapur & Ors. v. State of Punjab

AIR 1955 SC 549 · Bench: B.K. Mukherjea C.J., Vivian Bose, B. Jagannadhadas, T.L. Venkatarama Ayyar, Syed Jafar Imam, JJ. · Writ petition under · Art. 32 · Subject-heads: · Theory of Separation of Powers; Arts. 73 & 162; State monopoly of trade/business and Art. 19(6)

Facts

Six persons carrying on the business of **preparing, printing, publishing and selling school textbooks** (primary & middle classes) as "**Uttar Chand Kapur & Sons**" filed a writ petition under Art. 32. The Punjab Education Department, pursuant to a "so-called policy of **nationalisation of textbooks**", issued a series of **notifications from 1950** that (i) restricted and (ii) in substance ousted private publishers from the business — alleged violation of **Art. 19(1)(g)** imposed **without authority of law** (hence not saved by Art. 19(6)); and also an Art. 31 claim (deprivation of business/property without law/compensation).

The State carried on printing/publishing **through its executive** without any specific statute authorising trade — the constitutional crux.

Issues

Q1 (leading): Can the **executive Government** of a State engage in trade/business (here, textbook nationalisation) **without legislative sanction**? Is there a rigid doctrine of separation of powers under the Indian Constitution requiring the legislature to first enact a law?
Q2: Assuming a monopoly can be created, must it be by "proper legislation" conforming to Art. 19(6)?
Q3: Can the Government deprive publishers of a business/undisputed interest = "property" without authority of law and compensation under Art. 31?
Q4 (factual): Were the petitioners' Art. 19(1)(g) rights infringed by the policy?

Arguments

For the petitioners (Mr Pathak):

- The Constitution recognises a **tripartite division** of governmental functions — legislative, judicial, executive — and the executive can only **execute laws passed by the legislature**;
- **Arts. 73 & 162** distribute executive power along legislative lines → executive may act only where the legislature has legislated;
- Relied on **Australian High Court** decisions: *Commonwealth v. Central Wool Committee* (agreements without statutory authority void — s. 61 Australian Constitution) and *Attorney-General for Victoria v. Commonwealth* (Starke J.'s dissent — no govt. factory absent law);
- *Motilal v. State of U.P.* (AIR 1951 All 257): Agarwala J. — no power to run bus service without an Act;
- Any monopoly must be by legislation meeting Art. 19(6); deprivation of business = Art. 31 compensation needed.

For the State of Punjab:

- Arts. 73 & 162 concern **distribution** of executive power between Centre & States — they do **not** define the *content* of executive function and do not say the executive can act only after legislation;
- Executive power extends to matters on which the legislature **is competent** to legislate, not merely matters already legislated (Art. 154; corresponding Art. 73);
- Expenses were sanctioned through the annual financial statement (Art. 202), demands for grants (Art. 203) and **Appropriation Acts (Arts. 204 & 266(3))** — "in accordance with law";
- Power to contract under **Art. 298**; no additional powers needed; the Australian cases are distinguishable (no s. 61-type provision; no tax/licence-fee appropriation here).

Decision

1. **No absolute separation of powers.** "The Indian Constitution has not indeed recognised the doctrine of separation of powers in its absolute rigidity but the functions of the different parts or branches of the Government have been sufficiently differentiated and consequently it can very well be said that our Constitution does not contemplate assumption, by one organ or part of the State, of functions that essentially belong to another." **(para 12 — THE classic statement)**
2. **Executive power ≠ power only to execute laws.** "Ordinarily the executive power connotes the **residue of governmental functions** that remain after legislative and judicial functions are taken away"; the executive may do departmental/subordinate legislation when delegated and limited judicial functions when empowered — "it does not follow… that in order to enable the executive to function there must be a law already in existence."
3. **Parliamentary executive:** "Our Constitution, though federal in its structure, is modelled on the British parliamentary system where the executive is deemed to have the primary responsibility for the formulation of governmental policy and its transmission into law… the condition precedent… is its retaining the confidence of the legislative branch." The Cabinet is "a hyphen which joins, a buckle which fastens the legislative part of the State to the executive part" (para 13-14).
4. **Trade/business by Government without specific statute — permissible**, provided (i) expenditure is authorised by Appropriation Acts, (ii) policy enjoys the tacit support of the legislative majority, (iii) no encroachment on private rights requiring specific legislation, (iv) no constitutional/fundamental-rights violation (paras 15-18).
5. **Art. 73/162 construed:** they distribute executive powers Union-vs-State on the same analogy as legislative lists (analogous to ss. 8 & 49(2) of the Govt. of India Act, 1935) — they do not make executive action contingent on prior legislation.

6. **On the petitioners' rights (para 19–21):** even if executive acts lacked legislative sanction, petitioners succeed only if a **fundamental right** is infringed. There was **no fundamental right** in publishers that their books be prescribed as textbooks — "merely a chance or prospect"; Government's choice of textbook-selection method is policy (criticisable politically, not justiciable under Art. 19(1)(g)). Art. 19(6)/Art. 31 points did not arise. **Petition dismissed.**

Principles evolved

1. **Soft separation of powers:** functional differentiation without rigid compartments — the seed of the modern "checks & balances" and "basic structure — separation of powers" jurisprudence (Sikri C.J. listed it in Kesavananda).
2. **Existence of 'executive power' independent of legislation:** the Union/State executives may act in their spheres without prior statute (but never contrary to Constitution/law — Art. 154).
3. **Financial route = legality:** Appropriation Acts sanction public expenditure "in accordance with law" (Arts. 202–204, 266(3)) — constitutional basis of government trading.
4. **Art. 19(1)(g) is not a guarantee of a market** — "chance or prospect" of customers/approvals ≠ fundamental right; relevant to Art. 19(6) & monopoly debates.
5. Relied ever since for: parliamentary government, executive "residue" theory, and the limits of Art. 32 claims against policy decisions.

CASE #05 DU LL.B. PRESCRIBED AUTHORITY

Kuldip Nayar & Ors. v. Union of India & Ors.

(2006) 7 SCC 1 · W.P. (C) 217/2004 + connected petitions · Decided · 22 August 2006 · Bench: Y.K. Sabharwal C.J., K.G. Balakrishnan, S.H. Kapadia, C.K. Thakker, P.K. Balasubramanyan, JJ. · Challenge to · Representation of People (Amendment) Act, 2003 · — deletion of · domicile · for Rajya Sabha + · open ballot

Facts & Statutory Background

Before 2003: s. 3 of the **Representation of the People Act, 1951** required a Rajya Sabha candidate to be "an elector for a Parliamentary constituency **in that State or territory**" — i.e., an ordinary-resident/domicile link (traced through Adaptation Order 1956 and Act 47 of 1966). Sections 59, 94 & 128 guaranteed **secret ballot** ("votes shall be given by ballot"; secrecy not to be infringed; penalty for violating secrecy).

Representation of People (Amendment) Act, 2003 (Act 40 of 2003), in force from **28-8-2003**: (i) in s. 3, substituted "**in India**" for "in that State or territory" (domicile deleted); (ii) inserted provisos to ss. 59, 94 & 128 introducing **open ballot** for Council of States elections (vote to be disclosed to the party's authorised representative).

The petitioner **Kuldip Nayar** (veteran journalist) and others challenged both sets of amendments under Art. 32.

Issues

Q1 (domicile): Does deletion of the residence/domicile requirement for Rajya Sabha members **offend the principle of federalism — a basic feature** — or any provision (Arts. 80, 84)?
Q2 (secrecy): Does introduction of the **open ballot** for Rajya Sabha elections violate the **secrecy of the ballot** — an essential feature of free & fair elections — and the voter's Art. 19(1)(a) freedom?
Q3 (ancillary): Can the **basic structure doctrine** be used to strike down an **ordinary statute** (as opposed to a constitutional amendment)?

Arguments

Petitioners (Shri Sachar, Shri Nariman & counsel):

- The impugned amendment "offends the principle of **Federalism, the basic feature** of the Constitution; it seeks to change the character of the republic… and distorts the balance of power between the Union and the States";
- The nomenclature "**Council of States**" indicates the federal character — a representative who is not ordinarily resident of the State cannot effectively represent it; members must know their State's problems;
- The scheme of Arts. 80 & 84 + ss. 17–19 of the RP Act, 1950 + s. 3 RP Act, 1951 guaranteed the representative federal character; deleting "domicile" destroys "the basic requirement of the representative federal body"; the upper House becomes an "alter ego" of the lower House; Rajya Sabha Rules emphasise residence;
- On secrecy: secret ballot is the essence of free & fair elections and of Art. 19(1)(a) expression; open ballot enables coercion, destroys independence of MLAs and multi-party democracy (basic structure);
- Basic structure can invalidate any law/constitutional mechanism that destroys essential features (relying on Kesavananda, Indira Gandhi, Bommai).

Union of India (Shri Vahanvati, Ld. Solicitor General):

- The amendments were necessitated by deficiencies in working of the RP Act, 1951; they do not alter/distort the Council's character;
- **Residence/domicile is a "qualification" under Art. 84(c)** to be prescribed by Parliament — unlike the US Constitution, India's Constitution does not constitutionally mandate residence for Rajya Sabha members;
- MLAs are best placed to decide who represents them in the Council; broad-basing the qualification ensures representation of unrepresented interests;
- Open ballot is a regulatory measure against cross-voting, horse-trading and corruption — reasonably restricted under Art. 19(2) (assuming voting = expression); indirect election by party-sponsored MLAs can be regulated by party discipline; Constitution nowhere guarantees secret ballot for Council of States elections;
- Legislative competence: Arts. 84, 327 + Entry 72 Union List (elections to Parliament).

Decision

ALL WRIT PETITIONS DISMISSED — both amendments upheld. Key reasoning:

1. **Residence was never a constitutional requirement.** Legislative history (GI Acts 1915/1919/1935; First Draft Constitution para 6 of Part I of Fourth Schedule — **deleted by the Drafting Committee on 11-2-1948**) shows residence was considered and consciously dropped; "residence was never the constitutional requirement… never treated as an essential ingredient of the structure of the Council of States."
2. **On federalism:** "The nature of Federalism in Indian Constitution is no longer *res integra*"; Indian model broadly federal; Ambedkar's CA test (partition of legislative/executive authority *by the Constitution*) is satisfied; "**federalism under Indian Constitution leans in favour of a strong centre**"; features like Art. 3, single citizenship, Art. 249, Art. 356 militate against "strong federalism". Since domicile is not an essential attribute, its deletion does not damage federalism. "The principle of federalism is **not territory related**" — the Rajya Sabha still represents States through their elected Assemblies under Art. 80(4).
3. **On basic structure vs statute:** the Court examined whether basic-structure review is available against ordinary laws — and held the challenge fails on merits anyway: the law is within legislative competence, doesn't violate any constitutional provision or Part III.

4. **Open ballot upheld:** Rajya Sabha members are elected by MLAs under **proportional representation by single transferable vote (Art. 80(4))** — an *indirect, party-based* election, unlike constituency-based direct elections where secrecy is the basis. "In constituency-based representation, 'secrecy' is the basis whereas in… proportional representation… the basis can be 'open ballot' and it would not violate… 'free and fair elections'." Cross-voting by party-sponsored MLAs distorts proportionality; Parliament may regulate to purify elections. Every vote inside the House is by open ballot anyway (division, Speakers' elections).
5. **Secrecy is not absolute:** "The principle of secrecy is not an absolute principle… The higher principle, however, is **free and fair elections and purity of elections**. If secrecy becomes a source for corruption then sunlight and transparency have the capacity to remove it." Quoting *Indira Gandhi*: democracy is not dogmatic; adjustments that leave not "the mere husk of a popular rule" are permissible — "multi-party democracy is a necessary part of the basic structure."
6. **Art. 19(1)(a) argument rejected:** even assuming voting is expression, open ballot is a reasonable restriction under Art. 19(2) (purity of elections, corruption, cross-voting); an MLA faces no disqualification for how he votes — at most party action, which is legitimate party discipline.
7. **Competence:** amendments made under Art. 246 read with Arts. 84 & 327 and **Entry 72, Union List**; no Constitutional provision infringed.

Principles evolved

1. **Federalism is a basic feature, but not every federal embellishment is sacrosanct** — the core is the *constitutional partition of powers*, not domicile of representatives;
2. **Rajya Sabha = federal representation without territorial residence** — federal principle "not territory-related" in India's scheme;
3. **Indian federalism leans to a strong Centre** — a restatement (with Bommai) examiners expect verbatim;
4. **Secreecy of ballot is qualified, not absolute**; in indirect (list/proportional) elections, open ballot is permissible to ensure purity & party discipline;
5. **Basic structure & multi-party democracy constrain legislation** — laws must not destroy democratic fairness; but courts won't strike down merely because "another view is possible";
6. Statutory line: **RP (Amendment) Act 2003** — s. 3 (domicile), ss. 59/94/128 (open ballot) upheld.

CASE #06 DU LL.B. PRESCRIBED AUTHORITY

State of Haryana v. State of Punjab & Anr.

(2002) 2 SCC 507 · AIR 2002 SC 685 · Decided · 15 January 2002 · Bench: G.B. Pattanaik & Ruma Pal, JJ. (Constitution Bench) · Suit under · Art. 131 · SYL Canal · Cooperative federalism in inter-State water relations

Facts

- **1960 Indus Waters Treaty** allocated the three Eastern rivers (Sutlej, Beas, Ravi) to India; post-partition, allocation of Ravi-Beas waters among Punjab, Haryana & Rajasthan was settled by **Centre's 1955 decision** and ad-hoc 1966 decision (35% Haryana: 65% Punjab).
- Haryana (not a riparian State for the relevant drawal point) needed a carrier; **s. 78, Punjab Reorganisation Act, 1966** governed successor States' water rights/liabilities; Government of India Order **24-3-1976** allocated **3.50 MAF** of Ravi-Beas surplus water to Haryana.
- **31-12-1981 Agreement** (Punjab Settlement): net surplus 17.17 MAF — Punjab 4.22, Haryana 3.50, Rajasthan 8.60, Delhi 0.20, J&K 0.65 MAF; construction of the **Sutlej-Yamuna Link (SYL) Canal** — 214 km (122 km in Punjab, 92 km in Haryana), design capacity 6500 cusecs, to be completed within 2 years; both sides were to withdraw their suits. **Para 9.3 of the 1985 Punjab Settlement** also dealt with sharing.
- **Punjab stalled construction** of its 122-km leg (over ₹600 crore spent by Punjab, ₹250 crore by Haryana; Centre gave ₹499.12 crore to Punjab till 3-1994). The Ravi-Beas Tribunal's **interim report (30-1-1987)** called the SYL "the lifeline for the farmers of Haryana".
- After **Punjab's White Paper** declaring it would not dig the canal, **Haryana filed a suit under Art. 131 (2001)** against Punjab & the Union seeking a decree that the agreements bind Punjab and a **mandatory injunction** to complete the canal.

Issues

Q1. Is the Supreme Court's Art. 131 jurisdiction **ousted** by Art. 262 read with s. 11 of the Inter-State Water Disputes Act, 1956 (matter should go to the Ravi-Beas Tribunal)?
Q2. Is the dispute a "water dispute" under **s. 2(c) ISWDA** (use, distribution or control of inter-state waters) — or a dispute about **performance of an agreement to construct a canal**?
Q3. Are the 1981 Agreement & para 9.3 of the Punjab Settlement binding on **successive governments** of Punjab? Is limitation applicable?
Q4. Should a mandatory injunction issue against Punjab and the Union?

Arguments

Plaintiff — State of Haryana (Shri Bobde; Dr Dhawan):

- The matter is **not a "water dispute"** — it centres on Punjab's **obligation to construct** the canal portion within its territory so Haryana can draw water *already allocated*; hence Art. 262/s. 11 do not bar Art. 131;
- Allocation made under s. 78 of the Punjab Reorganisation Act, 1966 + 1976 Order + 1981 Agreement + para 9.3 Settlement = vested entitlement; SYL is the "lifeline";
- Denial of allocated water affects citizens' Art. 21; the Union has failed its constitutional obligation to persuade/direct Punjab;
- Agreements negotiated with central oversight bind successor governments (no "political philosophy" involved).

Defendant 1 — State of Punjab:

- Combined reading of **s. 11 ISWDA + Art. 262** ousts this Court's jurisdiction; only the Ravi-Beas Tribunal may decide (its s. 5(3) application pending → tribunal's findings not final);
- The suit is barred by limitation and by Order 23 Rule 1 CPC (earlier suit withdrawn) / Order 2 Rule XXXII SC Rules;
- Para 9.3 was a "unilateral concession" by Sant Harchand Singh Longowal — never a binding legal obligation; Punjab Settlement "a piece of paper without any sanctity";
- Haryana already gets 1.62 MAF via Bhakra Main Line/Narwana Branch — no SYL needed; 3.50 MAF claim would deprive Punjab's irrigated acreage; Ravi water not covered by Beas Project schemes; s. 78 does not mention River Ravi;
- Haryana has no legal right to invoke Art. 131.

Defendant 2 — Union of India: no obligation on the Union; it has already discharged its role by persuading Punjab and funding the canal; relief, if any, can only be against Punjab.

Decision

1. **Jurisdiction upheld:** Art. 131 suit maintainable. Interpreting **s. 2(c) ISWDA**, a "water dispute" = disagreement about the **use, distribution or control** of inter-state waters or interpretation of agreements relating thereto — the present averments concern **construction/obligation to complete the canal** (a carrier for water already allocated), not use/distribution. Hence **Art. 262 and s. 11 do not bar** the Court.
2. **Agreements binding;** apprehension that Haryana would over-draw unfounded (water can flow only if Punjab opens head-regulators; drawal is from the allocated share). The Tribunal's observation that SYL is Haryana's "lifeline" accepted.
3. **Mandatory injunction granted:** Punjab directed to **complete the remaining portion of the SYL Canal within one year**; the Union directed to discharge its constitutional obligation and, if Punjab failed, **get it executed through its own agencies**.
4. **Successor-government doctrine & anti "vote-bank" observations:** "The decision taken at the governmental level should not be so easily nullified by a change of Government… particularly when such a decision affects some other State and the interest of the nation as a whole." When "political authority becomes dogmatic, unreasonable and… irresponsible… that is when the Court has to step in and represent the will of people."
5. Limitation/withdrawal objections rejected (Punjab did not press limitation hard).

Principles evolved

1. **Art. 131 vs Art. 262 delineation:** water-allocation merits → tribunal; constitutional/contractual compliance issues → Supreme Court. Article 262 bars adjudication of allocation disputes, not suits for performance of inter-State obligations.
2. **Cooperative federalism is enforceable:** States must honour bargains struck with each other under central auspices — unilateral termination/ stalling offends the federal principle (later: the **Punjab Termination of Water Agreements Act, 2004** was struck down by a 5-Judge Bench — *Punjab State v. Haryana*, (2004) 12 SCC 736 — and the 2004 Presidential Reference upheld that reading).
3. **Continuity of governance:** inter-State agreements survive changes of party in power; vote-bank politics cannot undo inter-State entitlements.
4. **Union's positive duty:** Art. 355-type obligation to ensure compliance of constitutional arrangements (Centre directed to execute if the defaulting State fails).

CASE #07 DU LL.B. PRESCRIBED AUTHORITY

I. R. Coelho (Dead) by LRs v. State of Tamil Nadu & Ors.

(2007) 2 SCC 1 · AIR 2007 SC 861 · Decided · 11 January 2007 · Bench: · 9 Judges (unanimous) · – Y.K. Sabharwal C.J., C.K. Thakker, B.P. Singh, S.H. Kapadia, D.K. Jain, P.K. Balasubramanyan, S.B. Sinha, Altamas Kabir, J.R. Lodha, JJ.

Background & Facts

The **Ninth Schedule** (inserted by the **Constitution (First Amendment) Act, 1951** along with **Art. 31B**) shelters listed laws from attack under fundamental rights — originally to protect **agrarian/zamindari abolition** laws. By the 2000s it contained ~284 laws, many inserted in the 1970s–90s for various States.

The lead petitioner, **I.R. Coelho** (a retired judicial officer), and other petitioners challenged, through a batch of references pending since a 1999 Constitution Bench order, the validity of several **Ninth Schedule insertions made after 24 April 1973** — including Tamil Nadu land-reform/estate-abolition amendments and reservation laws — on the ground that they violated **Arts. 14, 19, 21 and destroy the basic structure** notwithstanding Art. 31B.

The reference questions: (i) what is the scope of Art. 31B & the Ninth Schedule; (ii) whether laws inserted **after the Kesavananda date (24-4-1973)** enjoy total immunity from judicial review; (iii) whether Waman Rao (1981) needs clarification/overruling.

Issues

Q1. Does the inclusion of a law in the Ninth Schedule give it **absolute immunity** from judicial review — even if the law destroys the basic structure?
Q2. What is the effect of the **24-4-1973 cut-off** laid down in Waman Rao v. Union of India (1981)?
Q3. What is the **test** to examine a Ninth Schedule law — "rights test" vs "essence of rights test"?

Arguments

Petitioners:

- Parliament cannot use the Ninth Schedule as a device to **exclude judicial review altogether** — that would destroy the supremacy of the Constitution and the basic structure (Kesavananda);
- The amending power including an Art. 368 amendment inserting a law into the Ninth Schedule is itself subject to basic-structure limits;
- Laws after 24-4-1973 that abrogate Arts. 14, 19, 21 (whose essence is part of basic structure) must be struck down — "rights test + essence of rights test";
- Art. 31B cannot place any law "above the Constitution".

Respondents (Union of India, States):

- Art. 31B is itself a constitutional provision; its whole purpose was to give **finality** to land-reform legislation by removing it from judicial scrutiny — reading a basic-structure exception destroys that finality;
- Placement in the Ninth Schedule is an exercise of constituent power with full effect; "an appeal on merits" against Parliament is unknown;
- Waman Rao already protected pre-1973 insertions; post-1973 entries should equally stand unless the entire amendment itself is violative ab initio;
- Policy questions of agrarian reform are for the political wing, not courts.

Decision (unanimous)

1. **Laws placed in the Ninth Schedule after 24-4-1973 are NOT immune from judicial review.** The insertion is an amendment of the Constitution under Art. 368 — it must satisfy the basic-structure test evolved in Kesavananda.
2. **Test laid down (sequential):** (a) does the Ninth Schedule law abrogate/abridge a **fundamental right**? (b) if yes, is that right (or its essence) part of the **basic structure**? (c) if yes, does the violation **destroy or damage** that essential feature? Only if all three are answered affirmatively is the law struck down.
3. **Articles 14, 19 and 21 in combination** embody principles — rule of law, separation of powers, judicial review — forming the constitutional core; laws destroying their *essence* lose Art. 31B protection.
4. **Waman Rao** was not overruled but affirmed and elaborated; the 24-4-1973 dividing line stands: pre-1973 insertions retain near-absolute Art. 31B immunity; post-1973 insertions are open to challenge on basic-structure grounds.

5. **Judicial review is a basic feature** — the Ninth Schedule cannot be used to destroy it. (No specific statute was struck down in this judgment; the batch was to be tested case-by-case.)

Principles evolved

1. **"Ninth Schedule ≠ constitutional black-hole"** — no legislative device can take a law beyond the basic structure;
2. **Impact-based review:** technical infringement is not enough — the court examines the *nature, extent and impact* of the violation (rights test + essence of rights test);
3. Constitutional supremacy over parliamentary supremacy re-affirmed; Art. 31B is "under" the Constitution, not above it;
4. Cements the chain: Kesavananda (1973) → Minerva Mills (1980) → Waman Rao (1981) → **Coelho (2007)**.

PYQ ARCHIVE // CH.01 **Previous Year Questions (DU LL.B. Examinations)**

Q.1 LL.B. Centenary Chance Examinations · Constitutional Law-I (LB-301) · Q4 · 20 marks "What are the core features of a Federal Constitution? Considering these features, examine whether or not the Indian Constitution can be described as a federal Constitution." (The original paper also carried the struck-through continuation: "Indicate the distinct features of the Constitution of India which show that it is not a federal Constitution in the real sense but point towards semi-federal Constitution and judicial interpretation on the federalism".)

▸ Refer website for detailed notes — makelaweasy.in · WhatsApp: +91 7021726891

Q.2 LL.B. Centenary Chance Examinations · Constitutional Law-I (LB-301) · Q7 · 20 marks "Elaborate the safeguards against the misuse of Article 356 of the Constitution of India with the help of judicial pronouncements."

Q.3 LL.B. III Semester Examination, · December 2024 · LB-301 · Q2 · 20 marks (problem question) The Republic of Dakshin is a federal polity whose Constitution imbues the principle of asymmetric federalism; the State of Kailash holds special privileges. After a change of government at the Centre, the ruling party revoked Kailash's special privilege by constitutional amendment; protests followed; the President then issued an Article 356 Proclamation citing failure of constitutional machinery. Kailash challenges it. "In light of the aforementioned facts, argue on behalf of the State of Kailash. Your arguments must discuss the jurisprudence of federalism, Article 356, as well as the extent and limits of judicial review." (Law in pari materia with India.)

Q.4 LL.B. III Semester Examination, December 2024 · LB-301 · Q6(b) · 10 marks (short note) Write a short note on: Theory of Separation of Powers.

MODULE 02 // TOPIC 2 · UNION & TERRITORY Cases #08–#13

The Union and its Territory: Admission, Reorganisation of States & Cession Doctrine

Part I · Articles 1, 2, 3 & 4 · Article 368 · First Schedule

Section 1 · Article 1 · Name and Territory of the Union — Article 1(1)–(3)

"India, that is Bharat, shall be a Union of States" — a phrase chosen deliberately over "Federation", and the reason the Union is called *indestructible*.

1.1 Text

Art. 1. (1) India, that is Bharat, shall be a Union of States.
(2) The territory of India shall comprise—
(a) the territories of the States;
(b) the Union territories specified in the First Schedule; and
(c) such other territories as may be acquired.

1.2 "Union of States" vs "Federation" — why the word matters

Deliberate drafting choice

The Drafting Committee (Dr. Ambedkar) rejected the expression "Federation of India". As Ambedkar explained in the Constituent Assembly, the phrase "Union of States" carries two implications: (i) the Union is **indestructible** — no State has the right to secede; and (ii) the constituent units are alterable in **territory** (via Arts. 2–4) though the Union itself is not.

The DU case material states the point squarely: **Article 1 is a recognition of the history that the Union of India's territorial limits are unalterable and the States are creatures of the Constitution** — territorially alterable constituents, with a single citizenship for all, and **no right of secession**.

States ≠ mere administrative units

> *"…dual polity under the proposed Constitution will consist of the Union at the Centre and the States at the periphery each endowed with sovereign powers to be exercised in the field assigned to them respectively by the Constitution. … the Indian Constitution proposed in the Draft Constitution is not a league of States nor are the States administrative units or agencies of the Union Government."*

The 2019 *Art. 370* judgment builds its Article-3 analysis on this: **Art. 1(1) indicates that the States are essential and indispensable — "the Union cannot exist without the existence of the States"** (para 483). Democracy + federalism are basic features (para 481).

1.3 Clause (3): the three-layered territory — and the sovereignty clause

1(3)(a) States

Territories of the 28 States listed in the First Schedule. Altered only through Arts. 3–4 machinery or constitutional amendment.

1(3)(b) Union Territories

The UTs specified in the First Schedule (e.g., Delhi, Puducherry, J&K, Ladakh, Andaman & Nicobar). Administered by the Union (Arts. 239–241).

1(3)(c) "such other territories as may be acquired"

The **open door for sovereignty**: foreign territory acquired by India *automatically* becomes part of India. Berubari (para 30): Art. 1(3)(c) **does not confer** the power to acquire — it *formally provides for absorption/integration* of territory acquired by virtue of India's **inherent sovereign right**.

The symmetry point examiners love: the Constitution expressly accommodates **acquisition** (1(3)(c)) but is **silent on cession**. In *Berubari* Chatterjee argued from this silence (*expressio unius est exclusio alterius*) that India can never cede. The Court rejected it — cession, like acquisition, is an

attribute of sovereignty outside the Constitution, exercisable in India only through the constitutional route of **Art. 368 amendment of Art. 1 + First Schedule** (paras 27–30, 46).

Section 2 · Article 2 · Admission or Establishment of New States

Art. 2. Parliament may by law admit into the Union, or establish, new States on such terms and conditions as it thinks fit.

2.1 Anatomy of the power

- **Two modes:** (i) *admit* a territory already existing as a political unit into the Union (e.g., Sikkim, Goa), or (ii) *establish* a new State that did not previously exist as such (e.g., carving a State out of acquired/union territory).
- **"On such terms and conditions as it thinks fit"** — widest legislative discretion: Parliament can attach special conditions (special representation, protective clauses, transitional provisions). *Berubari* para 34: Art. 2 enables foreign territory acquired under 1(3)(c) to be **assimilated by law** — "admitted into the Union or constituted into new States".
- **Constitutional limit (R.C. Poudyal):** the "terms and conditions" must be **consistent with the basic structure of the Constitution** — DU's Additional-Reading note states this as the operative proposition of case 12 (AIR 1993 SC 1804).
- **Route:** a law under Art. 2 is **not a constitutional amendment** (Art. 4) — but when admission also changes Art. 1/First Schedule membership of the Union itself (Sikkim, 1975), Parliament has used the **Art. 368** route: Constitution (Thirty-Sixth Amendment) Act, 1975.

Art. 2 in action — Sikkim (1975)

Sikkim, a protectorate with the 36th Amendment: admitted as the 22nd State; **Art. 371F** inserted (special safeguards — capacity of the Assembly to protect backward classes, representation, laws prevailing at admission). Upheld in **R.C. Poudyal** — challenges to the admission (reservations in the Assembly for Bhutia-Lepchas/Sangha) *unsuccessfully* attacked the 36th Amendment.

Art. 2 vs Art. 3 — the classic distinction

Art. 2 → deals with territory **outside** the existing States (admission of new units; establishment of brand-new States). **Art. 3** → deals with the **internal** re-arrangement *inter se* the existing constituents ("broadly stated it deals with the internal adjustment inter se of the territories of the constituent States of India" — *Berubari*, para 38). Territory acquired abroad enters by 1(3)(c) *automatically*, then is *assimilated* by law under Art. 2 or Art. 3(a)/(b).

Section 3 · Articles 3 & 4 · Alteration of Areas, Boundaries & Names — Procedure and Machinery

Article 3 is the most used — and most litigated — provision of Part I: it is the engine of every reorganisation since 1950.

3.1 Text of Article 3 (current), with the 1966 Explanations

Art. 3. Formation of new States and alteration of areas, boundaries or names of existing States. — Parliament may by law—
(a) form a new State by separation of territory from any State or by uniting two or more States or parts of States or by uniting any territory to a part of any State;
(b) increase the area of any State;
(c) diminish the area of any State;
(d) alter the boundaries of any State;
(e) alter the name of any State:
Provided that no Bill for the purpose shall be introduced in either House of Parliament except on the recommendation of the President and unless, where the proposal contained in the Bill affects the area, boundaries or name of any of the States, the Bill has been referred by the President to the Legislature of that State for expressing its views thereon within such period as may be specified in the reference or within such further period as the President may allow and the period so specified or allowed has expired.
Explanation I. —In this article, in clauses (a) to (e), "State" includes a Union territory, but in the proviso, "State" does not include a Union territory.
Explanation II. —The power conferred on Parliament by clause (a) includes the power to form a new State or Union territory by uniting a part of any State or Union territory to any other State or Union territory.

Clause-wise coverage

Clause	Operation
3(a)	Form new State: by separation from a State; by uniting 2+ States/parts; by uniting any territory to part of a State. *Explanation II* extends this to uniting parts of **UTs** too (e.g., Dadra & Nagar Haveli + Daman & Diu merged as one UT, 2020).
3(b)	Increase area — from another State *or* from Art. 1(3)(c) territory absorbed into a State (*Berubari* para 39; Chandernagore added to West Bengal).
3(c)	Diminish area — postulates the diminished area **continues in India**; **not** cession abroad (*Berubari* paras 41–42).
3(d)	Alter boundaries — consequence of adjustments under (a)/(b)/(c) (West Bengal's boundary changed for Chandernagore: *Berubari* para 35).
3(e)	Alter name — Mysore→Karnataka, Madras→Tamil Nadu, Uttaranchal→Uttarakhand, Orissa→Odisha (Art. 370 Judgment, para 498).
Explanation I	In clauses (a)–(e), "State" **includes** UTs (so UTs can be altered/formed); in the **proviso**, "State" **excludes** UTs (so no reference of the Bill to a UT legislature).

The proviso — two conditions only

1. **Presidential recommendation** is a condition precedent for introducing *any* Bill under Art. 3 (in either House).
2. If the proposal affects the **area, boundaries or name** of a State, the President must **refer the Bill to that State's Legislature** to express its views within the specified/further period.

Babulal Parate (case 13): (i) views of the State Legislature are **recommendatory, not binding**; (ii) a **fresh reference is not required** if Parliament subsequently modifies the Bill — only "the proposal contained in the Bill" at the time of reference is to be sent; requiring re-reference for every amendment would create an "interminable process". **No veto for the State.**

3.2 Article 4 — why Art. 3 is "ordinary legislation"

Art. 4. (1) Laws made under Article 2 or Article 3 shall not be deemed to be amendments of the Constitution for the purposes of Article 368 notwithstanding that any such law amends the First Schedule or the Fourth Schedule.
(2) Such laws may also make such consequential amendments (e.g., in Articles 4(1), 366…) as may be necessary or proper.

- **Effect (Berubari para 36):** "laws relatable to Article 2 or Article 3 are not to be treated as constitutional amendments for the purpose of Article 368 — which means that if legislation is competent under Article 3 … it would be unnecessary to invoke Article 368. On the other hand … if legislation … is not competent under Article 3, Article 368 would inevitably apply."

- **Mechanics:** simple majority of each House (not "special majority" of Art. 368), no ratification by State Legislatures — *Berubari* para 48: neither Art. 1 nor Art. 3 is in the **entrenched list** in the proviso to Art. 368 (so even an Art. 368 amendment altering the First Schedule for cession needs **no state ratification**).
- **Art. 368's special majorities** do apply when Art. 368 itself is used (as in cession): majority of total membership of each House + ⅔ of members present & voting — the "safeguard" noted in *Berubari* para 47.

3.3 Procedure flowchart — Article 3 Bill to Act

Doctrinal guard-rails on Article 3

- **Internal adjustment only** — Art. 3 broadly deals with internal adjustment inter se of constituents; **no power to cede** abroad (*Berubari* paras 38, 41–44).
- **UTs outside the proviso** — pre-1966, *Berubari* para 40 noted Art. 3 "in terms does not refer to the Union territories", so cession of a UT's part anyway had to use Art. 368; **Explanation I** later clarified UTs are included in clauses (a)–(e) but not in the proviso.
- **Art. 3 cannot re-arrange the Seventh Schedule** — "under Article 3, Parliament cannot take away the powers of the State executive or the State legislature in respect of matters enumerated in List II" (*State of Himachal Pradesh v. UOI*, 2011 (13) SCC 344, quoted in Art. 370 Judgment para 501). Altering Union–State division of powers needs Art. 368 **with ratification** by half the States (Art. 368(2), para 502).
- **Extinguishing statehood?** — "A constituent unit loses its character as a State only if it is converted into a Union territory in full, with no part of it retaining statehood" (para 499). Whether Parliament may do **that** under Art. 3 was **left open** in the Art. 370 case (para 504) — a live question (see §5).

Section 4 · Cession Doctrine · Power to Cede Indian Territory to a Foreign Nation

The single most important proposition of Topic 2 — **In re Berubari Union** (DU case 8): cession of Indian territory to a foreign State requires a **constitutional amendment under Article 368**; executive action alone is unconstitutional, and an ordinary law under Article 3 is incompetent.

4.1 Cession in international law — the concept

"Cession of national territory in law amounts to the transfer of sovereignty over the said territory by the owner State in favour of another State. … a sovereign State can exercise its right to cede a part of its territory to a foreign State. This power … is subject to the limitations which the Constitution of the State may either expressly or by necessary implication impose … the treaty-making power would have to be exercised in the manner contemplated by the Constitution."

- Two **essential attributes of sovereignty** under international law: power to **acquire** foreign territory and power to **cede** national territory (Berubari para 30).
- Hardship of cession — inhabitants lose old citizenship "whether they like it or not"; mitigable by an option to emigrate (Oppenheim, ibid., cited in para 31). *Later rejected as compensation-claim basis in Ram Kishore Sen (see case 9).*
- In India, sovereignty-attributes are exercised **through the Constitution**: acquisition automatically integrates (1(3)(c)); cession runs only via **Art. 368**.

4.2 The Berubari ruling in one board

The wrong routes (rejected)

- **Executive agreement alone** — rejected: the agreement itself is a cession; implementation needs legislation (Q1: "Yes"); the Court did not even reach the AG's "executive power" defence once cession was found (para 26).
- **Art. 3 law** — rejected: 3(c) "diminution" postulates the area **stays in India** (para 41); anomaly — cession of a UT would need 368 anyway (para 42); Assam–Bhutan instance (Act 47 of 1951) is no legislative practice (para 43). Q2(a): **incompetent**.
- **Preamble / 1(3)(c) prohibition** (Chatterjee) — rejected: Preamble is not a source of substantive power or *prohibition*; 1(3)(c) recognizes acquisition, and Art. 368's power to amend includes Art. 1, hence the power to cede exists (paras 27–30).

The right route (upheld)

- **Art. 368 constitutional amendment** altering **Art. 1 + First Schedule** (entry for West Bengal), passed by special majority — Q2(b): **competent and necessary**.
- **Alternative:** Parliament may first amend Art. 3 (by Art. 368) to expressly cover cession, then pass the implementing law under the amended Art. 3 — Q2(c)/Q3(c): both laws only in that sequence.
- **Actually done:** Constitution (**Ninth Amendment**) Act, 1960 — the canonical cession instrument.

Section 5 · Creation & Extinction of States · Power to Create or Extinguish a State

States are "creatures of the Constitution" — they can be born (Art. 2/3(a)), divided, merged, renamed, and (possibly) extinguished; but their *statehood character* and the Seventh-Schedule distribution are protected by higher thresholds.

5.1 Modes of creating a State

Mode A — Art. 2 (new unit enters)
Admission/establishment "on such terms and conditions as it thinks fit". Classic: **Sikkim (1975)** admitted via 36th Amendment; terms tested for basic-structure compatibility in *Poudyal*.

Mode B — Art. 3(a) (internal carving)
(i) separation of territory from a State (Telangana from AP); (ii) uniting two or more States or parts of States (the composite Bombay State assembled in 1956; Punjab reorganisation 1966); (iii) uniting any territory to part of a State (Chandernagore to West Bengal, 1954).

Mode C — 1(3)(c) + assimilation
Acquired foreign territory enters India automatically, then a law under Art. 2/3(a) constitutes it as a State or merges it (Berubari paras 34–35; Goa: UT 1961 → State 1987).

5.2 Modes of extinguishing a State

Extinction in fact
A State "ceases to exist" when it is **divided to create two or more new States** — e.g., **Bombay** divided into Gujarat & Maharashtra (Bombay Reorganisation Act, 1960); the old composite **Hyderabad State** dissolved in 1956 (its territories shared among Andhra, Maharashtra and Karnataka under the States Reorganisation Act, 1956); the original **Part A/B/C States** themselves (1956). The entity's name disappears — but **statehood as a character of the polity** survives in the successors.

Extinction of the character of statehood
"A constituent unit can be said to lose its character as a State only if it is **converted into a Union territory in full**, with no part of it retaining statehood. A change in boundaries or name does not change that character — it derives not from name/boundaries but from the **relationship with the Union**" (Art. 370 Judgment, **para 499**). Conversion of a State wholly into UTs: **J&K 2019 — question whether Art. 3 permits it was expressly LEFT OPEN (para 504)**.

Three constitutional speed-bumps:

1. **Seventh Schedule entrenchment** — Art. 3 cannot strip a State's List II powers (State of Himachal Pradesh v. UOI, quoted at para 501); division of powers changes require Art. 368 + ratification by half the States (Art. 368(2), para 502).
2. **Federalism & representative democracy are basic features** (paras 481–484; Bommai, Kuldip Nayar, Delhi, Swaraj Abhiyan cited) — animate any reading of Art. 3's outer limits.
3. **Art. 2 terms must fit the basic structure** (Poudyal) — Parliament's discretion is wide but not unreviewable.

5.3 The J&K laboratory (2019) — Art. 3 at its most stressed

- **Proclamation under Art. 356** (19 Dec 2018) vested the State Legislature's powers in Parliament and **suspended both provisos to Art. 3** as applied to J&K (para 505).
- **Second proviso to Art. 3 (as applied to J&K)** — inserted by **CO 48 of 1954**: no Bill to increase/diminish J&K's area or alter its name/boundary could be introduced **without the consent of the J&K legislature** (para 512) — an asymmetry unique to J&K.
- **First proviso compliance:** President referred the Reorganisation Bill to **Lok Sabha & Rajya Sabha** themselves (5 Aug 2019) because Parliament exercised the State Legislature's powers under the Proclamation; both Houses "resolved to accept" the Bill (paras 507, 510–511 — *Babulal Parate*: views are recommendatory, so Parliament substituting its views was **valid, not mala fide**).
- **CO 272 (5 Aug 2019)** — Art. 370 rendered inoperative: all "exceptions and modifications" (including CO 48's second proviso) ceased the moment the Bill was introduced; the second-proviso issue became **spent** (para 513).
- **Held:** Ladakh UT upheld — **Art. 3(a) read with Explanation I permits forming a UT by separation of territory from a State** (para 503); elections directed by 30 Sep 2024; restoration of J&K statehood promised "at the earliest"; the deeper question (may Parliament extinguish statehood altogether?) **left open**.

Section 6 · Name, Area & Boundary · Alteration of Name, Area and Boundary of Existing States — Procedure

The bread-and-butter of Article 3: renaming States, adjusting areas, redrawing boundaries — always by ordinary law, always with the proviso's procedural choreography.

6.1 The three-step procedure in detail

Step 1 — Presidential recommendation

"No Bill for the purpose shall be introduced in either House … except on the recommendation of the President." A Bill introduced without it is constitutionally dead on arrival (proviso, first limb). The recommendation is an executive act of the Union (Art. 74 — aid & advice).

Step 2 — Reference & views

If the proposal affects the **area, boundaries or name** of a State → President refers the Bill to **that State's Legislature** for expressing views within the period specified/allowed. **Explanations I:** a UT legislature gets **no** reference. Failure to respond within time does not block Parliament (implied; views advisory — *Parate*).

Step 3 — Passage & aftermath

Simple majority in both Houses; Presidential assent; under **Art. 4** the law amends the First Schedule (territorial descriptions, names) and makes consequential amendments — **without** being an Art. 368 amendment and **without** state ratification (Berubari para 48).

Prescribed Landmark Case Laws — Detailed Analysis

CASES #08–#13

CASE #08 DU LL.B. PRESCRIBED AUTHORITY

In re Berubari Union and Exchange of Enclaves — AIR 1960 SC 845

(B.P. Sinha C.J., S.K. Das, P.B. Gajendragadkar, A.K. Sarkar, K. Subba Rao, M. Hidayatullah, K.C. Das Gupta and J.C. Shah JJ.) · Decided 14 March 1960 · Core Issue: " · Power to cede away Indian territory in favour of a foreign country — whether permissible; Procedure · "

1. Facts & Background

The Reference. With a view to removing causes of tension between India and Pakistan on account of the boundary dispute, the Prime Ministers of both countries entered into the Indo-Pakistan Agreement (10–9–1958) settling the boundary dispute. A doubt arose whether *implementation of the Agreement relating to Berubari Union required legislative action — a law under Article 3, or an amendment under Article 368, or both* — and a similar doubt arose about the Agreement relating to the *exchange of Enclaves*. The President, in exercise of powers under **Article 143(1)**, referred three questions to the Supreme Court for advice (verbatim from DU material):

1. **Is any legislative action necessary** for the implementation of the Agreement relating to Berubari Union?
2. If so, is a **law of Parliament relatable to Article 3** sufficient, or is an **amendment under Article 368** necessary, in addition or in the alternative?
3. Is a law under **Article 3 sufficient for the Exchange of Enclaves** agreement, or is an Art. 368 amendment necessary, in addition or in the alternative?

The two agreement items in dispute (quoted in DU material):

- **Item 3 (para 2 of the Agreement):** "Berubari Union 12: This will be so divided as to give half the area to Pakistan, the other half adjacent to India being retained by India. The Division … will be horizontal, starting from the north east corner of Debiganj Thana. The Division should be made in such a manner that the Cooch-Behar Enclaves between Pachagar Thana of East Pakistan and Berubari Union 12 of Jalpaiguri Thana … will remain connected as at present with Indian territory and will remain with India. The Cooch-Behar Enclaves lower down between Boda Thana of East Pakistan and Berubari Union 12 will be exchanged along with the general exchange of enclaves and will go to Pakistan."
- **Item 10:** "Exchange of old Cooch-Behar Enclaves in Pakistan and Pakistan Enclaves in India without claim to compensation for extra area going to Pakistan, is agreed to."

Historical facts (paras 4–13): Berubari Union No. 12 — area **8.75 sq. miles**, part of Jalpaiguri district — stayed with India after the **Radcliffe Award** (1947); the award's map (Annexure B) and description (Annexure A) diverged, but the Chairman directed that the **description prevails over the map** (para 21). Boundary disputes went to the **Indo-Pakistan Boundaries Disputes Tribunal (Lord Justice Bagge)**, whose Award (26–1–1950) never touched Berubari (para 8). **Pakistan first raised the Berubari claim in 1952**; correspondence continued until the **Nehru–Noon Agreement of 10–9–1958** (para 9).

Enclave background through colonial legislation (paras 10–13 — the GoI Act 1935 chain):

- **s. 290, Government of India Act, 1935** — His Majesty may by Order-in-Council increase or diminish the area of any Province or alter its boundary (prescribed procedure). The GoI was authorised to exercise such powers through the **Extra-Provincial Jurisdiction Act, 1947**.
- **12–1–1949** — GoI Act 1935 amended: **ss. 290-A and 290-B inserted**. *s. 290-A*: where full and exclusive authority for governance of any Indian State/Group is exercisable by the Dominion Government, the Governor-General may order the State(s) to be administered **as a Chief Commissioner's Province** or as part of a Governor's/Chief Commissioner's Province. *s. 290-B(1)*: Governor-General may direct that an acceding area within a Province be administered by a **neighbouring acceding State** as if it formed part of that State.

- **States Merger (Governors' Provinces) Order, 1949** (27–7–1949); merger agreement with the Ruler of **Cooch-Behar** (28–8–1949), takeover 12–9–1949 (Cooch-Behar = Part C State No. 4); **States Merger (West Bengal) Order, 1949** (31–12–1949) → from 1–1–1950 Cooch-Behar administered as part of West Bengal; First Schedule entry for West Bengal amended accordingly.
- Post-partition, former Cooch-Behar areas became **enclaves in Pakistan** and vice-versa — a constant source of tension → Item 10's exchange (para 13).

2. Issues

Q1. Is legislative action necessary to implement the Berubari Agreement?
Q2. If so — (a) is a law relatable to **Article 3** sufficient; or (b) is an **Article 368 amendment** necessary (in addition or alternatively)?
Q3. Same question for the **Exchange of Enclaves** agreement.
Underlying wider issues: (i) does the Agreement amount to *cession* or mere *ascertainment of boundary*? (ii) can the **Union executive** implement it alone? (iii) does the **Preamble / Art. 1(3)(c)** bar cession altogether (Mr. Chatterjee's extreme plea)?

3. Arguments — Attorney-General (for the Union of India)

1. **No legislative action needed — "ascertainment, not cession" (paras 14–16):** the Agreement merely ascertains/delineates the exact boundary already fixed by the Radcliffe Award; yielding possession of some land to Pakistan is "merely a mode of settling the boundary", not alienation or cession; no alteration of West Bengal's First Schedule entry follows. Similarly, the enclave exchange is incidental to the broader settlement (para 15). Settlement of a boundary dispute by agreement in light of a binding award "cannot be treated as cession" — and can be effected by **executive action alone** (para 16).
2. **Legislative & executive toolkit (paras 17–18):** Entry 14, List I (treaties & implementing them); **Art. 253** (Parliament may legislate to implement treaties); Arts. 245(1)–(2), 246, **248** (residuary); executive power under **Arts. 53(1), 73(1)(a)–(b), 74** is co-extensive with legislative power — relying on *Rai Sahib Ram Jawaya Kapur v. State of Punjab* AIR 1955 SC 549 (Mukherjea C.J.: executive function includes "the direction of foreign policy").
3. **Art. 3 wide enough (para 41):** the words of Art. 3(c) ("diminish the area of any State") are wide enough to cover cession of national territory causing diminution of a State's area.
4. **"Special features" argument (para 32):** India's basic structure mirrors the GoI Act 1935; constituent units were created without organic roots; emphasis on territorial integrity of States is *absent*; Art. 3 was designed exactly for redistribution after integration of princely States — so reading Art. 3 broadly is consistent with the Constitution's design.
5. **No First Schedule change (para 24):** Berubari was never *legally* included in West Bengal's territorial description, so implementation needs no Schedule change.
6. **Assam–Bhutan precedent (para 43):** Parliament itself passed **Act 47 of 1951** under Art. 3 to cede ~32 sq. miles of Dewangiri (Kamrup district, Assam) to Bhutan — s. 2 ceded the strip & altered boundaries, s. 3 amended the First Schedule.
7. **Art. 3 proviso benefit (para 47):** using Art. 368 would deprive the West Bengal Legislature of its chance to express views — an argument for the Art. 3 route.

4. Arguments — Mr. Chatterjee (intervener) & reply of the Court

Chatterjee's "even Parliament cannot cede" plea (para 27): neither ordinary legislation nor even constitutional amendment can cede Indian territory; the Agreement is *void* absolutely. Grounds: (i) the **Preamble** ("sovereign democratic republic") makes India's territory inviolable & eternally democratic-republican — Parliament cannot touch it; (ii) **Art. 1(3)(c)** expressly provides for *acquisition* but is silent on cession → *expressio unius est exclusio alterius* bars cession.

Court's rejection (paras 28–30):

- Preamble is "a key to open the mind of the makers" (Story) but **not a source of substantive power** — nor of prohibitions/limitations (Willoughby); at most an aid where articles are ambiguous. No limitation on the sovereign attribute of cession is imported.
- Art. 1(3)(c) **does not confer** the power to acquire — it formally provides for absorption/integration of territory acquired by India's inherent right. Acquisition and cession are both essential attributes of sovereignty *outside* the text.
- **Art. 368 answers the silence:** "The power to amend the Constitution must inevitably include the power to amend Article 1, and that logically would include the power to cede national territory." Hence no constitutional impossibility — but also no route short of Art. 368.

5. Decision — the Court's reasoning (paras 19–49)

1. **The Agreement is a cession, not boundary-ascertainment (paras 19–23):** "There is no trace in the Agreement of any attempt to interpret the award… it had been decided that India should give half the area to Pakistan"; the agreement was "reached independently of the award and for reasons and considerations which appeared to the parties to be wise and expedient." → "It is an Agreement by which **a part of the territory of India has been ceded to Pakistan**" (para 22); the enclave exchange is *a fortiori* cession (para 23).
2. **First Schedule is affected (para 24):** Berubari was in Indian possession and treated as part of West Bengal → it falls within the territories comprised in the Province of West Bengal immediately before the Constitution → implementation alters West Bengal's boundary and **Entry 13 in the First Schedule**.
3. **Executive-power defence not reached (para 26):** since the Agreement is cession, it is unnecessary to examine whether the Union executive could have acted alone — the AG conceded that argument only on the "mere ascertainment" assumption.
4. **Article 4 sets the frame (para 36):** laws under Arts. 2/3 are not Art. 368 amendments — so if competent under Art. 3, no Art. 368 needed; if *not* competent under Art. 3, "Article 368 would inevitably apply." Crux: *can Parliament legislate on the Agreement under Art. 3?*
5. **Article 3 = internal adjustment (paras 38–40):** Art. 3 "broadly … deals with the internal adjustment inter se of the territories of the constituent States of India"; 3(a) modes include uniting any territory (thus acquired foreign territory) to part of a State; 3(b) increase may come from 1(3)(c) territory; 3(d) consequential boundary alteration; 3(e) name — "no material bearing". Art. 3 *in terms* did not refer to Union territories → UTs outside 3(b)–(e)'s purview (para 40).
6. **Article 3(c) cannot bear cession (paras 41–42):** "The diminution of the area of any State to which it refers **postulates that the area diminished … should and must continue to be a part of the territory of India**." Attributes of sovereignty (acquire & cede) are outside the Constitution; reading cession into 3(c) is "unduly straining the language". **Anomaly test:** cession of a *Union territory's* part would need Art. 368 anyway — illogical to allow cession of *State* territory by Art. 3 law.
7. **Assam–Bhutan instance rejected (para 43):** a single statute is not "legislative practice"; cannot illuminate Art. 3's scope.
8. **Conclusion (para 44) + AG's concession:** "it would not be competent to Parliament to make a law relatable to Article 3 … for … implementing the Agreement. It is conceded by the learned Attorney-General that this conclusion must inevitably mean that the law necessary … has to be passed under **Article 368**."
9. **The two lawful paths (para 46):** (i) Parliament may make a law **under Art. 368** altering Art. 1 & the First Schedule (diminution of Union territory); or (ii) Parliament may *first* amend Art. 3 (via Art. 368) to cover cession, then pass the implementing law under the **amended Art. 3**.
10. **Proviso-to-Art. 368 safeguard & its limits (paras 47–48):** Art. 368 route demands special majority in each House — "the consent of the major part of the parties … a safeguard". But the **state-ratification proviso does not apply**: neither Art. 1 nor Art. 3 is in the entrenched list — "It is not for us to enquire … whether it would be appropriate to include the said two articles … That is a matter for Parliament to consider and decide."

11. **Answers (para 49): Q1: Yes** (legislative action necessary). **Q2(a): Art. 3 law incompetent; Q2(b): Art. 368 law competent and necessary; Q2(c): laws under both only if Parliament first amends Art. 3. Q3: same as Q2(a)–(c)** (exchange of enclaves likewise).

Principles evolved

1. **Cession = transfer of sovereignty**; an agreement of cession cannot be consummated by executive action — legislative action is indispensable (Q1).
2. **Art. 3 is for internal adjustment only**; its "diminution" postulates the area remaining in India — Parliament cannot cede national territory by an Art. 3 law (paras 41–44).
3. **Cession requires an Art. 368 amendment of Art. 1 + First Schedule** (Q2(b)); route used: **Ninth Amendment, 1960**.
4. **Preamble & Art. 1(3)(c) impose no absolute bar** on cession — sovereignty includes cession; Art. 368's amending power includes amending Art. 1 (paras 27–30).
5. **Acquisition is automatic** under 1(3)(c); Art. 2/3 *assimilates* acquired territory by law (paras 30, 34–35) — Chandernagore illustration.
6. **Art. 1/3 lie outside Art. 368's ratification proviso** — no State gets a veto over territorial diminution (para 48).
7. Facts control characterization: **a political half-and-half settlement is cession, not "ascertainment"** (paras 19–22).

CASE #09 DU LL.B. PRESCRIBED AUTHORITY

Ram Kishore Sen v. Union of India — AIR 1966 SC 644: (1966) 1 SCR 430

Constitution Bench · P.B. Gajendragadkar C.J. speaking for the Court · Articles 1, 3, 368, 141 · Challenge to the Ninth Amendment, 1960

1. Facts

- After the Berubari advisory opinion (1960), Parliament passed the **Ninth Amendment Act, 1960**: its Second Schedule divided Berubari Union No. 12 (half to Pakistan, half retained by India — division "horizontal, starting from the north east corner of Debiganj Thana") and also dealt with transfer of the village of **Chilahati** (~512 acres, part of Debiganj Thana, allotted to Pakistan under the Radcliffe Award but not then physically transferred).
- Aggrieved residents of the affected belt moved litigation (starting in the Calcutta High Court, carried to the Supreme Court) seeking to **restrain survey, demarcation and transfer** — arguing that (i) the Amendment Act's language re Berubari Union No. 12 was **confusing and incapable of implementation** (no mathematically "horizontal" line possible), (ii) official maps were withheld/suppressed and a "wall map" showed a different position, (iii) the transfer would **deprive citizens of citizenship and property without compensation**, (iv) the Berubari advisory opinion was **not binding** (advisory jurisdiction opinions bind nobody), and (v) adverse possession of the land by Indian residents.
- Respondents (Union/State) urged: the relevant portions of the Ninth Amendment are clear and implementable; "horizontal" division is not a mathematical line but a direction to divide half-and-half beginning from the NE corner of Debiganj Thana; Chilahati lies within Thana Debiganj per the Radcliffe Award and was always due to Pakistan; onus to show implementability lay on them — and they discharged it with official maps/records.

2. Issues

(i) Is the advisory opinion in *In re Berubari* **binding** on courts — or merely advice with no precedential force?
(ii) Is the Ninth Amendment's provision for division of Berubari Union No. 12 **capable of implementation**, or so vague as to be a nullity?
(iii) Can transfer be stopped on the ground of **deprivation of citizenship/property without compensation**, or on **adverse possession**?

3. Arguments

Appellants: Art. 143 opinions are consultative only — they do not bind anybody; the Ninth Amendment's wording ("horizontal … north east corner of Debiganj Thana") demands a mathematically exact division which is impossible on the ground; official maps deliberately withheld; the taking-away of land and citizenship without compensation is unconstitutional; adverse possession over the villages; mandamus should restrain respondents from any survey/demarcation/transfer of Berubari Union No. 12 and Chilahati.

Respondents (UOI/State): *Berubari* was decided by eight Judges and Parliament legislated precisely in terms of it — the opinion is binding as the constitutional position (Art. 141); "horizontal" denotes direction (east–west division beginning at the NE corner), not geometric precision; the amendment means "half-and-half", starting from the stated corner; Chilahati is part of Debiganj Thana per the award and had always been meant for Pakistan; the onus of proving unimplementability is on the challengers — official records/maps displace the private "wall map"; adverse possession has no place in international law.

4. Decision

- **Appeal dismissed** — Gajendragadkar C.J. speaking for the Court (5-Judge Bench): the **advisory opinion in In re Berubari is binding** (DU note); it states the constitutional position on cession and was the express foundation of the Ninth Amendment.
- The relevant portions of the Ninth Amendment (Second Schedule) are **clear and capable of implementation**: Berubari Union No. 12 to be divided **half-and-half**, starting from the north-east corner of Debiganj Thana — a **substantive, not mathematical, direction**; "horizontal" does not require a precise geometric line (the division runs as stated from the east/west directions agreed).
- **Chilahati transfer upheld** — part of Debiganj Thana allotted to Pakistan under the Radcliffe Award; ~512 acres due for transfer; no valid objection (private wall map rejected against official maps/records).
- **Deprivation of citizenship/property without compensation — rejected**; **adverse possession — no defence under international law**; theory that maps were "deliberately withdrawn" not accepted.
- Respondents were entitled to proceed with survey/demarcation and implementation of the transfer; prayer for mandamus refused.

Principle evolved

1. A Presidential Reference opinion under Art. 143(1) on the Constitution's meaning **binds courts** and grounds legislative action — the Ninth Amendment's validity is tested against it, not re-opened.
2. Constitutional-amendment language implementing an international settlement is read **purposively and practically** — "half-and-half" is workable; mere difficulty of demarcation doesn't invalidate cession legislation.
3. Reaffirms **Berubari's cession doctrine** and closes the door on Preamble-based impossibility arguments: citizenship/property consequences of cession do not render the amendment unconstitutional.

CASE #10 DU LL.B. PRESCRIBED AUTHORITY

Union of India v. Sukumar Sengupta — AIR 1990 SC 1692: 1990 Supp SCC 545

Judges (per report): K. Jagannatha Shetty, K.N. Saikia and S.C. Agrawal JJ. · Articles 1(3)(c), 3, 368 · Tin Bigha corridor – "lease in perpetuity" to Bangladesh

1. Facts

- The **Ninth Amendment's enclave-exchange was never fully given effect**: old Cooch-Behar enclaves (Dahagram-Angarpota and others) remained as Pakistani/Bangladeshi pockets; after 1971, East Pakistan became **Bangladesh**.
- To connect the Bangladeshi enclave of **Dahagram–Panbari Mouja** to Bangladesh proper, the two Governments signed the **Agreement of 16 May 1974**, by which India agreed to **lease in perpetuity** the area at **Tin Bigha** (Indian territory); the **Agreement of 1982** spelled out the terms: Bangladesh would have **undisturbed possession and use** of the leased area for the stated purposes — but **sovereignty over the area would remain with India**; Bangladesh's rights were expressly restricted.
- Challengers invoked the Berubari template and obtained directions from the **Calcutta High Court** — including a direction that the Constitution be amended before giving effect to the arrangements (and further legislative steps regarding Berubari-type transfers). The **Union of India appealed** to the Supreme Court.

2. Issues

(i) Does implementation of the 1974/1982 agreements — labelled "lease in perpetuity" — amount to **cessation of Indian territory** requiring a constitutional amendment (Berubari)?
(ii) Does the arrangement transfer **sovereignty** (in whole or part) to Bangladesh?
(iii) Is mere **executive action** sufficient to implement it — or is parliamentary legislation needed?

3. Arguments

Respondents (challengers): the Tin Bigha area is Indian territory; handing "perpetual" possession and use to a foreign State is cession or at least transfer of sovereignty in substance; on the Berubari reasoning, any diminution of Indian territory's availability demands Art. 368 amendment; the High Court was right to insist on constitutional/legislative action.

Union of India: the agreements expressly retain **sovereignty with India**; Bangladesh gets only defined rights of access/use for specified purposes (clause 3 of the 1982 Agreement is purpose-limited); no territory is "given away"; the Ninth Amendment itself was premised on exchange arrangements never consummated for these enclaves; therefore no cession and no amendment is required — executive implementation is lawful.

4. Decision

- **Implementation of the 1974 and 1982 agreements "did not amount to cession of any Indian territory which would require any constitutional amendment"** (headnote) — the High Court's directions requiring amendment/legislation were modified/reversed.
- "There was **no question of transfer of sovereignty, wholly or partially**, in respect of the said area. What had merely been done was to enable the Government of Bangladesh and its nationals to exercise certain rights … which otherwise they would not have been entitled to do" (paras 5–6).
- The "lease in perpetuity" does **not** amount to a lease or surrender of sovereignty *as understood in international law* (para 25): India's rights are merely **restricted** to serve Bangladesh's interests → in international-law terms this is a **"servitude"** — not cession.
- Therefore the agreements could be implemented by **mere executive action** — no parliamentary law, no Art. 368 amendment.

Principle evolved

1. **The sovereignty test, not the label:** everything turns on whether sovereignty is transferred. "Perpetual lease" on paper ≠ cession if sovereignty is retained — **servitudes** (access, use, corridor rights) may be created by executive agreement.
2. **Berubari confined but not shaken:** Berubari applies to transfers of sovereignty; arrangements short of that (Tin Bigha corridor; border-access packages) need no constitutional amendment.
3. Provides the constitutional template for India's cross-border **corridor/enclave arrangements** — the very logic later used for the 2015 Land Boundary Agreement (implemented by the Hundredth Amendment where the First Schedule did change).

CASE #11 DU LL.B. PRESCRIBED AUTHORITY

N.M. Sahib v. Chief Commissioner, Pondicherry — AIR 1962 SC 797

Constitution Bench (majority; Sarkar and Das Gupta JJ. contra) · Article 1(3)(c) "territories as may be acquired" · French India's integration

1. Facts

- France's Indian Establishments (**Pondicherry, Karaikal, Mahe, Yanam**) were **de facto transferred** to Indian administration under the **Agreement of 21 October 1954** between the French Republic and the Government of the Indian Union; Indian authorities exercised full administrative control thereafter (a **Chief Commissioner** administered the territory), and Indian laws were extended to the Establishments by executive notifications — the **Foreign Jurisdiction Act, 1947** route used for Chandernagore (Berubari, para 35).
- Residents of Pondicherry faced enforcement/action under Indian laws (including preventive-detention style actions by the Chief Commissioner's administration); litigation reached the Supreme Court by way of appeals and writ petitions.
- Critically, the **treaty of cession had not yet been ratified** (French parliamentary ratification came only in 1962); the Constitution had **not yet** listed Pondicherry in the First Schedule (that came with the Constitution (Fourteenth Amendment) Act, 1962).
- The Supreme Court, exercising powers under Art. 142 (and having regard to Evidence Act, s. 57(10)), **forwarded a question to the Union Government** about the status of Pondicherry; the **answer received was treated as binding on the Court** — the Government's position was that only administrative control had passed, not territory.

2. Issues

(i) Is Pondicherry part of the "territory of India" — is it territory **"acquired" within Article 1(3)(c)**?
(ii) Does the **Indian Constitution apply automatically** to a territory taken over de facto under an international agreement, without formal legal steps?
(iii) Consequently, do **appeals/writ petitions** from Pondicherry lie to the Supreme Court?

3. Arguments

Appellants/petitioners: Indian administration, laws and courts have been operating in Pondicherry since 1954; the territory is part of India; Indian fundamental rights and constitutional machinery apply; the Supreme Court should entertain appeals/writs from there.

Union Government (via the forwarded reply) & respondents: the 1954 Agreement transferred **power of Government/administration**, not territory — the common intention of the parties was not to transfer territory at that stage; unless and until the treaty is **ratified** there is legally no transfer of territory; without transfer of territory there can be no **"acquisition of territory"** under Art. 1(3)(c); formal constitutional steps (First Schedule integration) are still awaited.

4. Decision

- **Majority (Sarkar and Das Gupta JJ. contra):** where the exercise of power/administration "is referable to an agreement between two States", whether the territory has integrated depends **wholly on the terms** on which the new Government is invited to exercise control (para 13).
- Under the Agreement dated 21–10–1954, though complete administrative control passed to India over the French Establishments, "this transfer of control **cannot be equated to a transfer of territory**, that being the common intention of the parties" (para 13).
- "Unless a ratification takes place there will legally be no transfer of territory and without a transfer of territory there will not be … an 'acquisition of territory', with the consequence that **at present Pondicherry has to be treated as not part of the territory of India**" (para 13).
- Hence the Supreme Court **had no jurisdiction to entertain the appeals**, and (per the majority) the writ petitions also could not be entertained (para 15) — while reaffirming that once a fundamental right to a writ is established, the Court has no discretion to refuse it *ex debito justitiae* (the general principle stated in the judgment).

Principle evolved

1. **De facto ≠ de jure:** administrative takeover under an international agreement does not, by itself, integrate territory into India. Constitutional integration requires **formal legal steps** — ratification of the cession treaty and/or constitutional action (First Schedule).
2. **Art. 1(3)(c) is not self-executing for negotiated takeovers:** "acquisition" presupposes a completed transfer under the agreement's terms; the Constitution does not automatically stretch over newly administered lands.
3. **Practical consequence:** Parliament cured the gap through the **Constitution (Fourteenth Amendment) Act, 1962**, adding the four French Establishments to the First Schedule as Union territories (Art. 240 framework) — after which Indian laws, courts and fundamental rights applied fully. *(Compare Chandernagore: de facto 1950 → treaty ratified 9–6–1952 → Merger Act 1954.)*

CASE #12 DU LL.B. PRESCRIBED AUTHORITY

R.C. Poudyal v. Union of India — AIR 1993 SC 1804: 1994 Supp (1) SCC 324

Five-Judge Constitution Bench (leading opinion of Venkatachaliah J.,) · Article 2 · Constitution (Thirty-Sixth Amendment) Act, 1975 · Article 371F

1. Facts

- **Sikkim** (monarchy under the Chogyal) was admitted into India in 1975 following a referendum, through the **Constitution (Thirty-Sixth Amendment) Act, 1975** — which added Sikkim as a State in the First Schedule and inserted **Art. 371F** (special provisions for Sikkim in view of its unique history, including savings for laws prevailing at admission and Assembly provisions protecting backward classes).
- The **Sikkim Legislative Assembly (32 seats)** had special arrangements: **12 seats reserved for Bhutia-Lepchas**, **1 seat for Buddhist Sanghas** (elected by a separate roll of monastery representatives), 2 for Scheduled Castes, 17 general.
- The petitioner — a **Nepali Sikkimese** — challenged the reservation scheme and the conditions of Sikkim's admission: the Bhutia-Lepcha and Sangha reservations were based on **ethnicity/religion**, violated Arts. 14, 15(1), 325 (no religion-based electoral distinctions), the one-person-one-vote and secular-democratic basic structure, and produced disproportion (e.g., ~38% of seats for ~20% of the population); Parliament's "terms and conditions" power under Art. 2 could not license such departures; the Courts could review admission terms.
- The Union defended the scheme as necessary to preserve Sikkim's distinctive demographic-cultural identity and polity — the basis on which admission was negotiated.

2. Issues

(i) What is the **scope of "such terms and conditions as it thinks fit"** in Art. 2 — are they justiciable?
(ii) May Parliament **reserve seats on ethnic/religious criteria** while creating/admitting a State — violative of Arts. 14/15/325 and secularism?
(iii) Are the special provisions of **Art. 371F** and the 36th Amendment contrary to the **basic structure** (democracy, secularism, equality)?

3. Arguments

Petitioners: reservations for Bhutia-Lepchas (12) and Sangha (1) discriminate against the Nepali Sikkimese majority; ethnic/religion-based seats violate Art. 15(1) and the secular common roll of Art. 325; the ratio between seats and population (as in Arts. 330(2), 332(3)) is the constitutional norm — "excessive representation" creates unequal status; the conditions attached to admission under Art. 2 cannot exceed permissible constitutional limits; courts must be able to review terms of admission, else Parliament's discretion is absolute.

Respondents (Union & State of Sikkim): Sikkim's unique history and the need to protect its indigenous minorities justified the arrangement; Art. 2 expressly lets Parliament impose "terms and conditions as it thinks fit"; Art. 371F itself is a constitutional affirmation of the special settlement; the classifications rest on intelligible differences tied to Sikkim's social reality, furthering political stability and genuine representation — a legitimate objective; conditions of a newly admitted State may legitimately differ from those of other States.

4. Decision

- **DU's operative proposition (must quote):** "Under Article 2, Parliament has power to admit into the Union or establish new States **on such terms and conditions as it thinks fit**. The terms and conditions **must be consistent with the basic structure of the Constitution**. The admission of Sikkim by Constitution (Thirty-Sixth Amendment) Act, 1975 was **unsuccessfully challenged**."
- The Court treated Art. 2's power as **flexible but reviewable**: Parliament's admission terms are subject to judicial review against the basic-structure standard — but the terms here passed that test.
- **Art. 371F upheld**: the special provisions (and the reservation scheme) rest on historical and demographic classifications amounting to **intelligible differentia**, serving Sikkim's integration; they do not destroy democracy or secularism.
- A newly **admitted State may differ** from pre-existing States in its internal arrangements, provided the arrangement is not incompatible with the constitutional institutions the Constitution envisages.

Principle evolved

1. **Article 2 discretion is wide, not unlimited:** "terms and conditions" are subject to **basic-structure review** — the admission of a State is a justiciable constitutional act.
2. Parliament may craft **special safeguards for vulnerable regional communities** as part of admission terms; such schemes are protected if reasonably related to the State's unique history (intelligible differentia).

3. The **36th Amendment (Sikkim)** is valid — completing the trilogy: *Berubari* (territory out: no cession without 368) · *Poudyal* (territory/state in: terms within basic structure) · *Parate* (internal changes: advisory procedure).

CASE #13 DU LL.B. PRESCRIBED AUTHORITY

Babulal Parate v. State of Bombay — AIR 1960 SC 51: (1960) SCR 605

Five-Judge Bench · Article 3 proviso · States Reorganisation Act, 1956 · Art. 226 writ

1. Facts

1. The **States Reorganisation Bill, 1956**, introduced on the **President's recommendation** under the proviso to Art. 3, proposed **three separate units**: (i) a Union Territory of Bombay, (ii) State of Maharashtra (including Marathwada & Vidarbha), (iii) State of Gujarat (including Saurashtra & Cutch).
2. The Bill was **referred to the Legislature of Bombay** for expressing its views (proviso requirement satisfied on the original Bill), and also to a **Joint Select Committee** of both Houses.
3. The Joint Select Committee recommended a **composite State of Bombay** instead of three units; the amended Bill was passed by both Houses and received assent → **States Reorganisation Act, 1956**, s. 8(1) formed a single (Part A) State of Bombay.
4. **Babulal Parate** filed a petition under **Art. 226** in the Bombay High Court contending that the composite-State formation violated the **proviso to Art. 3**: the Bombay Legislature had expressed views only on the *original* three-unit Bill, not on the changed proposal — a fresh referral was mandatory. The High Court dismissed the petition.
5. He carried the matter to the Supreme Court.

2. Issues

(i) Does the proviso to Art. 3 require the **modified Bill** (composite Bombay instead of three units) to be **referred afresh** to the State Legislature?
(ii) Does "the Bill" in the proviso include subsequent **substantial amendments** made by Parliament?
(iii) Are the views of the State Legislature **binding** on Parliament?

3. Arguments

Appellant (Parate): "State" in Art. 3 means not merely a territory but the people living in it; the proviso embodies a democratic-process safeguard — a change as fundamental as converting a three-unit scheme into one composite State is a "new proposal" affecting the area/boundaries of the State; justice and fair play demand the altered proposal go back to the Bombay Legislature; otherwise the referral right is illusory.

State/Union: the proviso's plain words require referring **"the Bill"** — the proposal contained in the Bill at the time of reference; there is no textual warrant for re-referencing amendments; the views are consultative only; requiring fresh referrals for every amendment would produce an "interminable process" (different Legislatures giving divergent views, endless re-referencing); the composite-State change was germane to, and discussed in, the Bill's subject-matter of reorganisation.

4. Decision

- The Court set out **two conditions in the proviso**: (1) introduction only on the **President's recommendation**; (2) where the proposal affects area/boundaries/name of a State, the President must refer **the proposal contained in the Bill** to that State's Legislature for its views within the prescribed period.
- "On a true construction, the proviso does not contemplate that if Parliament subsequently modifies that proposal, there must be a fresh Bill or a fresh reference" — what the President must refer under the second condition is **the proposal contained in the Bill**, not later modifications. **(DU note: "A Bill referred by the President … need not be referred again … if changes are made by Parliament in the original Bill.")**
- **Views are recommendatory, not binding:** "Nor is there anything in the proviso to indicate that Parliament must accept or act upon the views of the State Legislature. Indeed, two State Legislatures may express totally divergent views …" (para 5 of the judgment, quoted in the Art. 370 Judgment, para 510); a contrary construction would create an "interminable process".
- No "special or recondite doctrine of 'democratic process'" is embedded in the proviso; "State" means the States in the First Schedule — the provision is about legislative consultation, not about the populace at large.
- **Appeal dismissed:** formation of the composite State of Bombay under s. 8(1) of the States Reorganisation Act, 1956 did **not contravene Art. 3**; the Act stands.

Principle evolved

1. **One-shot reference:** the Art. 3 proviso requires an **initial** reference of the original Bill; Parliament may amend the Bill thereafter — even substantially — without re-referral (changes must remain germane to the Bill's subject of state-reorganisation).
2. **Consultation ≠ veto:** State legislatures have no binding say over Art. 3 reorganisation — Parliament is supreme in the internal rearrangement of the Union's constituents.
3. Applied repeatedly since — most visibly in **2014 (AP Reorganisation Act: views sought, not awaited)** and **2019 (J&K: Parliament itself furnished the "views" under the first proviso during President's Rule — upheld in the Art. 370 Judgment, paras 505–511, relying on this case)**.

PYQ ARCHIVE // CH.02 Previous Year Questions (DU LL.B. Examinations)

Q.1 LL.B. III Semester Examination, December 2024 · Paper Code LB-301 · Q1 · 20 marks · (compulsory question) "On the basis of an agreement between two sovereign nations, the Republic of Warli and the Republic of Banasthali, it was decided that 1000 square kilometres of territory belonging to Warli would be transferred to Banasthali. This transfer of territory was implemented through an executive action by the Republic of Warli. Discuss the constitutionality of this executive action. The constitution and laws of the Republic of Warli are in pari materia with the Constitution and laws of India. You are required to rely on relevant legal provision and judgments to support your answer."

► Refer website for detailed notes — makelaweasy.in · WhatsApp: +91 7021726891

Q.2 Centenary Chance Examination (Jan 2023) · Q8(a) – answer any two of Q8(a)-(c) "Procedure for creation of new State in India"

PART II // MODULES 03 TO 07 · PRESCRIBED CASES #14 TO #50

ORGANS OF STATE: EXECUTIVE, LEGISLATURE & JUDICIARY

MODULE 03 // TOPIC 3 · EXECUTIVES
Cases #14–#20

The Union and State Executives: President, Governor, Aid & Advice, Discretion & Clemency

Articles 52–78, 111, 153–167, 239AA & 361

Section 1 · Part V, Chapter I — Articles 52 to 72 · The President and the Vice-President

"There shall be a President of India" (Art 52) — a mandatory office, but not a personal ruler: Art 53(1) vests executive power in him *to be exercised "in accordance with this Constitution"*, and Art 74 routes that exercise through the Council of Ministers.

1.1 The office and its constitutional limits — Arts 52 & 53

Art 52. There shall be a President of India.
Art 53(1). The executive power of the Union shall be vested in the President and shall be exercised by him either directly or through officers subordinate to him in accordance with this Constitution.
Art 53(2). Without prejudice to the generality of the foregoing provision, the supreme command of the Defence Forces of the Union shall be vested in the President and the exercise thereof shall be regulated by law.
Art 53(3). Nothing in this article shall— (a) be deemed to transfer to the President any functions conferred by any existing law on the Government of any State or other authority; or (b) prevent Parliament from conferring by law functions on authorities other than the President.

- **The last five words of Art 53(1) are the whole case.** In U.N.R. Rao (DU excerpt, para 6): *"The last five words are important inasmuch as they control the President's action under Article 53(1). Any exercise of the executive power not in accordance with the Constitution will be liable to be set aside."* — i.e., **judicial review of Presidential action is written into the vesting clause itself.**
- **Formal head, real authority elsewhere.** Ram Jawaya Kapur (Topic 1) and Samsher Singh establish that the President is a constitutional/formal head; the government is "the President aided by his Ministers".
- **Art 53(2)** — supreme command of the armed forces vests in the President but **"regulated by law"**: e.g., the Army Act 1950, Navy Act 1957, Air Force Act 1950 — the President exercises command through the civilian political executive (defence minister/Cabinet), consistent with Samsher (no personal exercise).
- **Art 53(3)** — saves existing-law functions and Parliament's power to confer functions on others (basis for statutory authorities/tribunals exercising "executive" functions).

1.2 Election, qualifications, conditions, term — Arts 54–59, 62, 70–71

Electoral college & manner — Arts 54–55

- **Art 54**: elected members of **both Houses of Parliament** + elected members of the **State Legislative Assemblies**. Explanation: "State" includes **NCT of Delhi** and **Puducherry** (added by the Constitution (Seventieth Amendment) Act, 1991).
- **Excluded**: nominated members of Parliament (Rajya Sabha's 12 nominated members; LS's 2 Anglo-Indian nominees — nomination to LS abolished by 104th Amdt 2020), nominated members of Assemblies, and members of UT legislatures other than Delhi & Puducherry (which have Assemblies).
- **Art 55**: (1) uniformity of scale of representation of the States; (2) value of an MLA's vote = (State population ÷ total elected MLAs) ÷ 1000, plus 1 if the remainder ≥ 500; value of an MP's vote = total value of all States' MLA votes ÷ total elected MPs; (3) **proportional representation by single transferable vote, secret ballot**. Census proviso: 1971 census till the first census after 2026 is published.
- **Mini-example** (worked): if a State has 10,00,000 population and 200 MLAs → 10,00,000/200 = 5,000 → /1000 = **5 votes per MLA**. The design gives weight to States (MLAs) while keeping parity States ↔ Union.

Qualifications & conditions — Arts 58–59

- **Art 58**: (a) citizen of India; (b) completed **35 years**; (c) qualified for election as a member of the **House of the People**; (2) not holding any office of profit (exception: President/VP/Governor/Minister are not deemed to hold an office of profit by reason only of those offices).
- **Art 59**: (1) shall not be a member of either House of Parliament/State Legislature — vacates seat on entering office; (2) no other office of profit; (3) official residence + emoluments fixed by Parliament (until then Second Schedule); (4) **emoluments shall not be diminished during term**.
- **Art 56**: 5-year term from entry; resignation to the **VP** (who forthwith communicates it to the Speaker, proviso (a) + Art 56(2)); removal only by **impeachment for violation of the Constitution** (Art 61); **holdover** until successor enters (no caretaker gap).
- **Art 57**: eligible for re-election (unlimited times). **Art 62**: election for full-term vacancy completed **before expiry**; casual vacancy — as soon as possible, **within 6 months**; elected person serves full 5 years.
- **Art 70**: Parliament may provide for discharge of President's functions in contingencies not covered by the Chapter (gap-filler for "any other contingency").
- **Art 71**: all doubts/disputes about Presidential/VP election → **Supreme Court, final**; if election void, prior acts not invalidated (71(2)); Parliament may regulate by law (71(3)); vacancy among electors no bar (71(4)) — invoked in *Rameshwar Prasad v. Union of India* (2006) 2 SCC 1 (Bihar HC dissolution case) where a member's election was set down but Art 71(4) protected his acts.

Oath of the President (Third Schedule, Art 60): sworn before the Chief Justice of India (or, in his absence, the senior-most available SC Judge): "...I will faithfully execute the office of President ... and will to the best of my ability preserve, protect and defend the Constitution and the law and that I will devote myself to the service and well-being of the people of India."

1.3 Impeachment of the President — Article 61 (and how it differs from removal of the VP)

Art 61 — the only mode of removing a President before expiry of term (besides resignation):

1. **Charge** "for violation of the Constitution" preferred by **either House**.
2. Not less than **14 days' written notice**, signed by **not less than 1/4 of the total membership** of that House, with the proposal to move the resolution.
3. The charge must be passed by **majority of not less than 2/3 of the total membership** of the House in which it is preferred.
4. Then the **other House investigates** (or causes the charge to be investigated) — the President has **the right to appear and to be represented**.
5. If that House passes a resolution by **2/3 of total membership** declaring the charge sustained → **removal from office** with effect from that date.

- **Ground is limited**: "violation of the Constitution" — not policy, not loss of majority (a President has no political majority to lose). No impeachment has ever been moved in India.
- **Art 361(1) proviso 1**: the President's conduct may be brought under review by any court/tribunal appointed by either House for Art 61 investigation — the single exception to immunity.
- **Contrast VP removal — Art 67(b)**: a resolution of the **Council of States** passed by majority of **all the then members** and agreed to by the House of the People, after **14 days' notice**; ground not specified (any ground); emoluments cannot be reduced (67 read with 97). Never used either.

1.5 Powers of the President — an organised map

1.5.1 Clemency — Article 72 (vs Governor's Art 161)

> *Art 72(1). The President shall have the power to grant pardons, reprieves, respites or remissions of punishment or to suspend, remit or commute the sentence of any person convicted of any offence—*
> *(a) in all cases where the punishment or sentence is by a Court Martial;*
> *(b) in all cases where the punishment or sentence is for an offence against any law relating to a matter to which the executive power of the Union extends;*
> *(c) in all cases where the sentence is a sentence of death.*
> *Art 72(3): nothing in (c) affects power to suspend/remit/commute death sentences exercisable by the Governor under any law for the time being in force (i.e., CrPC remission provisions).*

- **Scope differences**: President = court-martial + Union-law matters + **all** death sentences; Governor = matters of State executive power (including death sentences under State/central laws applicable in the State, via CrPC s.432/433 powers) but **never court-martial**.
- **Judicial review of mercy**: Epuru Sudhakar (case 20) — limited review on mala fide, extraneous considerations, non-application of mind, suppression of relevant material (worked out in §6.7).
- **Art 72 vs statutory remission**: *Maru Ram v. Union of India* (1981) 1 SCC 385 and *Kehri Lal* line — remission schemes (CrPC 432/433) must be exercised reasonably, on notice to the State/public prosecutor where the convict's release affects victims (see Epuru — the victims' sons were the petitioners).

Section 2 · Part VI, Chapter II — Articles 153 to 161 (+ Article 361) · The Governor of a State

The Governor mirrors the President — same constitutional-head logic, same pleasure-tenure, same clemency chapter — but with three twists: (i) he is **appointed by the President** (Art 155), (ii) he alone has a constitutionally carved-out **discretion** channel (Art 163), and (iii) **no impeachment** — only "pleasure" removal (Art 156(1)), policed in B.P. Singhal.

2.1 Text and structure — Arts 153–160

> *Art 153. There shall be a Governor for each State: Provided that nothing in this article shall prevent the appointment of the same person as Governor for two or more States.*
> *Art 154. (1) The executive power of the State shall be vested in the Governor and shall be exercised by him either directly or through officers subordinate to him in accordance with this Constitution. …*
> *Art 155. The Governor of a State shall be appointed by the President by warrant under his hand and seal.*
> *Art 156. (1) The Governor shall hold office during the pleasure of the President. (2) May resign by writing addressed to the President. (3) Otherwise a term of five years, with holdover until successor enters.*
> *Art 157. No person shall be eligible … unless he is a citizen of India and has completed the age of thirty-five years.*
> *Art 159. Oath before the Chief Justice of the High Court of the State (or senior-most available Judge) — same oath-substance as the President's (preserve, protect and defend).*
> *Art 160. The President may make provision for discharge of the Governor's functions in any contingency not provided for in the Chapter.*

Art 158 — Conditions of office

- (1) Governor shall **not be a member of either House of Parliament or of a House of the Legislature of any State** — a legislator appointed Governor vacates the seat on entering office.
- (2) Shall not hold **any other office of profit**.
- (3) Official residence rent-free + emoluments/allowances/privileges determined by Parliament by law (until then Second Schedule).
- (3A) Same person as Governor of 2+ States → emoluments allocated as the President may by order determine.
- (4) Emoluments **shall not be diminished** during term.

Appointment & removal — the practical law

- **Who appoints**: the President (Art 155) — i.e., on the **Union CoM's advice**; in practice, the Prime Minister's Cabinet chooses the Governor (the Constitution has no election, no fixed eligibility pool, no residency/State-connection requirement — unlike the US state governors).
- **Removed how?**: only "during the pleasure of the President" (156(1)) — **no impeachment procedure exists for Governors**; resignation is the only personal exit (156(2)).
- **Term**: 5 years (156(3)) — but pleasure can cut it short at any time: B.P. Singhal — remove without reason/notice, but **not arbitrarily**; "loss of confidence/out of sync with Union policy" is no ground.
- **Convention check**: Art 157 + political convention — an outsider/retired figure of the ruling party is usually picked; the Sarkaria & Punchhi Commissions recommended consultation with the CM and fixed tenure in practice (recommendations, not law).

2.2 Article 161 — Governor's clemency (the Epuru power)

> *Art 161. The Governor of a State shall have the power to grant pardons, reprieves, respites or remissions of punishment or to suspend, remit or commute the sentence of any person convicted of any offence against any law relating to a matter to which the executive power of the State extends.*

- **Coverage**: offences under State laws (and central laws applied in the State) within the State's executive power — including death sentences (subject to Art 72(3) saving & CrPC ss. 431–434), but **not** court-martial matters (exclusive to the President).
- **Reviewability**: Epuru Sudhakar (2006) — Art 161 clemency is subject to **limited judicial review** for mala fide/extraneous grounds/no application of mind/suppression of material; quashed G.O.Ms. No. 170 (2005) and **remitted** the matter for fresh consideration. Full facts in §6.7.
- **Delay as illegality**: *Maru Ram* guidelines; in *Perarivalan v. State of Tamil Nadu* (2022) 9 SCC 1 the Supreme Court, noting inordinate delay in deciding the mercy petition (filed 1998, pardon petition pending), used Art 142 to commute the death sentence — a reminder that executive clemency is answerable to constitutional delay-doctrine as well as mala fide.
- **Who advises the Governor**: normally the State CoM through the Home Department; the "satisfaction" is the constitutional satisfaction of the Council (Samsher, para 30: Arts 123, 213, 311(2), 317, 352(1), 356, 360 — all cabinet satisfaction; Art 161 falls in the same family of executive acts).

2.3 Article 361 — Immunity of the President and Governors

> *Art 361(1): The President, or the Governor … shall not be answerable to any court for the exercise and performance of the powers and duties of his office or for any act done or purporting to be done … — proviso 1: conduct of the President may be brought under review for an Art 61 impeachment investigation; proviso 2: nothing restricts the right of any person to bring appropriate proceedings against the Government of India or the Government of a State.*
> *361(2): No criminal proceedings shall be instituted or continued against the President/Governor during his term.*
> *361(3): No process for arrest or imprisonment during term.*

by Ankur R. Upadhyay

361(4): No personal-capacity civil proceedings during term until two months after written notice stating nature of proceedings, cause of action and relief.

- **Why suits are against the Union/State, never the office-holder**: Samsher (argument adopted, extract lines on Arts 300 & 361) — "Articles 300 and 361 indicate that neither the President nor the Governor can be sued for any executive action of the State" — hence writs/claims lie against the **Union/State Government** (the "Government" in the name of whom business is transacted under Arts 77(1)/166(1)).
- **Immunity is personal, not institutional**: B.R. Kapur — Art 361 did **not** bar *quo warranto* against the person **appointed** Chief Minister (the appointee, not the Governor, was the respondent); "the Governor cannot be made immune from the consequence of an unconstitutional appointment".
- **But the action is still reviewable**: immunity from being a party ≠ immunity of the order: orders are challenged against the State/Union, and courts examine them for malafide/arbitrariness (Epuru: G.O. quashed though issued by the Governor — relief ran against the order/Government).

Exam trap — "Can a Governor be removed by impeachment?" No. Art 61 is for the President only; Governors hold "during the pleasure of the President" (156(1)). The real question examiners want is *what limits the pleasure* → B.P. Singhal: valid constitutional grounds + no arbitrariness + limited judicial review. And there is **no fixed 5-year immunity** — the term in 156(3) is "subject to the foregoing provisions" (i.e., subject to pleasure).

Section 3 · Articles 73, 162, 77 & 166 · Executive Powers of the Union and the States

Arts 73/162 allocate the *subject-matter reach* of executive power in a federation built on the three Lists; Arts 77/166 provide the *form* in which government acts — and the doctrinal key that everything in the President's/Governor's name is really the government's act.

3.1 Article 73 — extent of the Union's executive power

Art 73(1). Subject to the provisions of this Constitution, the executive power of the Union shall extend—
(a) to the matters with respect to which Parliament has power to make laws; and
(b) to the exercise of such rights, authority and jurisdiction as are exercisable by the Government of India by virtue of any treaty or agreement:
Provided that the executive power referred to in sub-clause (a) shall not, save as expressly provided in this Constitution or in any law made by Parliament, extend in any State to matters with respect to which the Legislature of the State has also power to make laws.
Art 73(2). Until otherwise provided by Parliament, a State … may continue to exercise … such executive power or functions as the State … could exercise immediately before the commencement of this Constitution.

- **Follows legislation**: Union executive power tracks the **Union List + residuary** matters (Parliament's legislative competence) — "executive power follows legislative power" as the default federal rule.
- **The proviso is the federal brake**: on **Concurrent List** subjects inside a State, the Union's executive power does **not** extend unless expressly conferred by the Constitution (e.g., Art 258A? — no: Art 258 is Union→State delegation; express conferments e.g. Arts 249/250 emergency, 253 treaties, Entry 14 Union List treaties) **or by a law of Parliament** (e.g., a law conferring powers on Union officers). Practical illustration: **CBI investigations in States** depend on State consent under **s. 6 of the Delhi Special Police Establishment Act, 1946** (police being State List Entry 2) — the classic tug-of-war over "consent" (blanket vs case-specific) that shows Art 73's proviso at work.
- **Art 73(2)**: preserves pre-1950 State executive functions over matters later made Union-legislative until Parliament provides — a transitional federal compromise.
- **Art 73(1)(b)**: treaty/executive-agreement rights — e.g., obligations under treaties (passport/extradition/consular functions), dovetailing with Entry 14 Union List (discussed in Topic 2 for cession).

3.2 Article 162 — extent of the State's executive power

Art 162. Subject to the provisions of this Constitution, the executive power of a State shall extend to the matters with respect to which the Legislature of the State has power to make laws:
Provided that in any matter with respect to which the Legislature of a State and Parliament have power to make laws, the executive power of the State shall be subject to, and limited by, the executive power expressly conferred by this Constitution or by any law made by Parliament upon the Union or authorities thereof.

- **Mirror image of Art 73**: State executive power = State List + (concurrently) legislative competence, but on Concurrent matters it yields to the Union's *express* executive power.
- **Federal overlap**: in a Concurrent field with no express Union conferment, both governments may act — until repugnancy rules (Art 254) or a law of Parliament displaces State action; executive conflict is resolved by the same priority the provision states.
- **"Conterminous" idea**: NCT Delhi (para 204) applied the structure by analogy — the NCT's executive power is **conterminous with the legislative power of the Delhi Assembly** under Art 239AA(3) (all State-List subjects except Entries 1, 2, 18 — public order, police, land — plus all Concurrent subjects): a ready-made sentence for any question on the shape of executive power.
- **All executive power may partake of legislative/judicial character**: Samsher (para 29) — "executive power may also partake of legislative or judicial actions. All powers and functions of the President except his legislative powers … are executive powers" — hence removal of a probationer, sanction to prosecute, etc., are executive acts even when statute-styled.

3.3 Articles 77 & 166 — conduct of government business

Art 77 (Union) — text

- **(1)** All executive action of the Government of India shall be **expressed to be taken in the name of the President**.
- **(2)** Orders authenticated as per presidential rules — validity of a so-authenticated order **shall not be called in question on the ground that it is not an order made or executed by the President** (an *authentication* bar only — the order's legality on other grounds remains reviewable).
- **(3)** The President shall make rules for convenient transaction of business **and for allocation among Ministers** → **Government of India (Transaction of Business) Rules, 1961** + Allocation of Business Rules 1961 (§7).
- **Not delegation**: Samsher para 30 — "Neither Article 77(3) nor 166(3) provides for any delegation … the decision of any Minister or officer under the Rules … is the decision of the President or the Governor respectively."

Art 166 (State) — mirror

- **(1)** All executive action of the State Government expressed in the name of the **Governor**.
- **(2)** Same authentication bar.
- **(3)** Rules for transaction of business + allocation among Ministers — **except** business in which the Governor is required to act in his discretion (the Art 163 carve-out written into the business-rules power).
- Implemented by each State's **Transaction of Business Rules**; NCT Delhi has its own — **Transaction of Business of the Government of NCTD Rules, 1993** (Chapter V on difference of opinion — central to NCT Delhi 2018).

- **Art 78 / Art 167** — the PM's/CM's duties to the President/Governor: (a) communicate all CoM decisions and legislative proposals; (b) furnish information called for; (c) submit for CoM consideration any matter decided by a Minister alone if the head so requires. U.N.R. Rao (para 10): with Arts 74(1), 75(2)-(3) read harmoniously, "other articles of the Constitution also have full play, e.g. Article 77(3) … and Article 78". These are the **information**

lifelines that make the ceremonial head's office workable — usually enforced politically, but cited by courts as part of the constitutional scheme (see §5 matrix).

- **Consequences of the "name of" rule**: every gazette notification, ordinance, appointment, sanction and mercy order legally runs through the President/Governor; yet **responsibility** lies with the Council (Ram Jawaya: "the Governor is the Government, aided by Ministers"; Sanjeevi Naidu quoted in U.N.R. Rao: "the Cabinet is responsible to the Legislature for every action taken in any of the ministries. That is the essence of joint responsibility").

Real-world anchor: When the Delhi Government's file says " Lieutenant Governor's despatch/communication", or when a Governor's Order under Art 200 "reserves" a Bill, the citizen is seeing Arts 77/166 + 200 machinery — the government acting in the head's name. The 2015–2018 Delhi tussle (§8) was, at bottom, a fight over *whose* "aid and advice" controlled that machinery under Art 239AA.

Section 4 · Articles 74–75 (Union) & 163–164 (States) · The Council of Ministers — Composition, Appointment & Responsibility

The CoM is the *real* executive. Arts 74/163 make it mandatory and binding ("aid and advise"); Arts 75/164 govern its composition, tenure and responsibility. Almost every case in §6 turns on how these clauses interact with the ceremonial head's residual roles.

4.1 Article 74 — aid and advise (the spine of the executive)

Art 74(1). There shall be a Council of Ministers with the Prime Minister at the head to aid and advise the President who shall, in the exercise of his functions, act in accordance with such advice:
Provided that the President may require the Council of Ministers to reconsider such advice, either generally or otherwise, and the President shall act in accordance with the advice tendered after such reconsideration.
Art 74(2). The question whether any, and if so what, advice was tendered by Ministers to the President shall not be inquired into in any court.

- **Mandatory**: U.N.R. Rao — "Article 74(1) is mandatory in form … we must read the word 'shall' as meaning 'shall' and not 'may'. The Constituent Assembly did not choose the Presidential system of Government." (full holding in §6.2).
- **One reconsideration, then binding**: the proviso gives the President a *single* constitutional courtesy — return advice for reconsideration; after reconsideration the advice is **final** (no second refusal). (Compare the Governor: **no such proviso** exists in Art 163(1) — S.P. Anand, para 12.)
- **Art 74(2) is a shield for** *advice*, **not for** *action*: courts cannot ask "what did the Ministers advise?" — but they can and do review the **resulting order** for legality, mala fide, extraneous grounds and arbitrariness (Epuru, B.P. Singhal, M.P. SPE; and even for Art 356 proclamations — S.R. Bommai line: judicial review of the action survives the 74(2) bar). Working formula for exams: **review of the act yes, review of the advice's content no — unless the advice's vice is inferable from the act's own record (malafide/extraneous)**.
- **Textual history (memory aid)**: the mandatory clause + 74(2) bar came with the Constitution (Forty-second Amendment) Act, 1976; the **reconsideration proviso** was added by the Constitution (Forty-fourth Amendment) Act, 1978. Quote only "as it stands today".

4.2 Article 75 — other provisions as to Ministers

Clause	Rule	Case-hook / detail
75(1)	**PM appointed by the President**; other Ministers appointed by the President **on the advice of the PM**.	"Chosen" PM = the person likely to command LS majority (S.P. Anand, para 16: President appoints the person he thinks commands confidence).
75(1A)	Total Ministers incl. PM ≤ **15% of total LS members** (91st Amdt 2003; PM counted in the 552? — 15% of 550 elected+? — of "total number of members of the House of the People" → currently cap = 15% of 550/552 ≈ 82).	Anti-defection ministry-size cap; mirrors 164(1A) (min 12 in States).
75(1B)	Member of either House disqualified under **para 2, Tenth Schedule** (defection) is **also disqualified to be a Minister** for the disqualification period.	Also Art **361B** (10th Schedule disqualificationee cannot hold any remunerative political post).
75(2)	Ministers hold office **during the pleasure of the President**.	Practised on PM's advice; in U.N.R. Rao: "The President has not said that it is his pleasure that the respondent shall not hold office."
75(3)	CoM **collectively responsible to the House of the People**.	Harmonised with dissolution in U.N.R. Rao: full operation when the LS is not dissolved/prorogued; collective responsibility = the engine of responsible government (Ram Jawaya).
75(4)	Oath of office **and secrecy** (Third Schedule) before entering office.	Same form for PM and Ministers (S.P. Anand, para 16).
75(5)	Minister not a member of either House for **6 consecutive months** → ceases to be Minister.	**The non-legislator door**: S.P. Anand — non-members MAY be appointed (incl. as PM) for ≤ 6 months (§6.3).
75(6)	Salaries/allowances of Ministers as Parliament may determine (until then Second Schedule).	Ministers' Salaries and Allowances Act framework; distinct from MPs' own salaries.

4.3 Articles 163 & 164 — the State mirror, with differences

Art 163(1). There shall be a Council of Ministers with the Chief Minister at the head to aid and advise the Governor in the exercise of his functions, except in so far as he is by or under this Constitution required to exercise his functions or any of them in his discretion.
Art 163(2). If any question arises whether any matter is or is not a matter as respects which the Governor is … required to act in his discretion, the decision of the Governor in his discretion shall be final, and the validity of anything done by the Governor shall not be called in question on the ground that he ought or ought not to have acted in his discretion.
Art 163(3). The question whether any, and if so what, advice was tendered by Ministers to the Governor shall not be inquired into in any court.

Point of difference	Union — Arts 74–75	State — Arts 163–164
Discretion clause	**Absent** in Art 74(1) — the President has no general "except … discretion" savings clause.	**Present** in Art 163(1) — "except in so far as … discretion" + 163(2) finality on what is discretionary. (S.P. Anand, para 12; Samsher, paras 16–17.)
Reconsideration proviso	Art 74(1) proviso — President may require reconsideration.	**No counterpart** in 163(1). (S.P. Anand, para 12.)
Discretion-finality clause	Absent (no Art 74 counterpart of 163(2)).	163(2) — corollary to the 163(1) exception (S.P. Anand, para 12).
Advice-bar	74(2)	163(3) — **verbatim identical** (S.P. Anand, para 12).
Appointment	PM by President; Ministers by President on PM's advice (75(1)).	**CM by the Governor**; Ministers by the Governor **on the CM's advice** (164(1)) — note CM not "appointed on advice of anyone": the Governor's choice, in practice the majority leader.

Point of difference	Union — Arts 74–75	State — Arts 163–164
Ministry size	75(1A): ≤15% of LS.	164(1A): ≤15% of Assembly, **min. 12** incl. CM (91st Amdt 2003); 164(1) proviso: **Minister for Tribal Welfare** in Chhattisgarh, Jharkhand, Madhya Pradesh, Odisha.
Collective responsibility	To the **House of the People** (75(3)).	To the **Legislative Assembly** (164(2)).
Non-legislator window	75(5): 6 months.	164(4): 6 months (same rule — S.P. Anand read them together with Har Sharan Verma line).
Oath / Salaries	75(4), (6): President; Parliament.	164(3), (5): Governor; State Legislature.

Section 5 · The doctrinal core — syllabus item (c), part 2 · President/Governor–Council Relationship & Scope of Judicial Review of Executive Actions

Nine articles are named in the syllabus: **74, 75, 77, 78, 111, 102, 103(2), 217(3), 163**. The examinable skill: for each, say what the courts **can** and **cannot** look at — and why "the advice is unreviewable" does **not** mean "the action is unreviewable".

5.2 Article-by-article judicial-review matrix (the syllabus nine)

Article	What it does	COURTS CAN examine…	COURTS CANNOT / will not examine…
Art 74	(1) mandatory aid & advise + one reconsideration; (2) advice-bar.	Whether the Constitution was complied with at all (U.N.R. Rao: "shall" is "shall" — acting without any CoM = reviewable); legality/mala fide of the **resulting order** (Epuru, Singhal); whether reconsideration procedure was abused.	The **content** of advice tendered (74(2) express bar); compelling a *particular* advice (no mandamus to advise).
Art 75	Appointment/tenure/ responsibility of Ministers.	Appointment of a **disqualified** person (B.R. Kapur — quo warranto vs appointee); non-member within 6 months (S.P. Anand); 15% cap; Tenth-Schedule bar (75(1B)); whether PM/CoM exists at all (74 read with 75).	Policy choice of *which* persons to advise as Ministers (political question); ordinary "pleasure" dismissals once constitutional minimums met.
Art 77	(1) action in President's name; (2) authentication; (3) business rules.	Substantive legality of the order (fraud, malafide, excess of jurisdiction, arbitrariness); whether act was done at all (74(1) logic); use of 77(3) rules as evidence of who really decided (Samsher: minister's decision = President's decision — so the **Government** is answerable under Art 14/226).	The narrow 77(2) point: an authenticated order's validity "shall not be called in question **on the ground that it is not an order made or executed by the President**" — authentication form is unimpeachable; other grounds remain open.
Art 78	PM's duties: communicate decisions, furnish information, submit matters for CoM consideration.	Courts note non-compliance as part of the **constitutional scheme** when examining an impugned action (e.g., whether the President acted on information — U.N.R. Rao uses 77(3)/78 as showing why the machinery works post-dissolution).	No freestanding mandamus compelling the PM to inform the President — internal executive relation, remedied politically (confidence of the House); courts avoid supervising daily information-flow.
Art 111	Assent / withhold / return-with-message; mandatory assent after reconsideration.	Post-return withholding → clearly unconstitutional (text says "shall not withhold"); *State of T.N. v. Governor* (2023): Art 200/111 discretion **justiciable** — assent cannot be kept in abeyance indefinitely; courts can direct time-limits where inaction destroys the democratic purpose (read across: assent-refusal must follow constitutional propriety — de Smith rule quoted in Samsher-154).	Original decision to withhold assent or reserve a Bill (Art 200) — a political discretion; courts historically reluctant to direct assent (pre-2023 judicial restraint), though 2023 now polices **delay** and **arbitrariness**.
Art 102	Disqualifications for Parliament membership (office of profit; unsound mind; insolvent; citizenship; law-made; 102(2) Tenth Schedule).	Whether an office is an "office of profit" (exemptions by law — Parliament (Prevention of Disqualification) Act 1959); whether Art 102(1)(e) law is valid; citizenship/insolvency findings on evidence.	Questions routed through Art 103 carry an express finality (below); Tenth-Schedule disqualifications go to the Speaker, not the President (102(2) vs 103(1) proviso — cf. *Nabam Rebia* for Speaker's role, Topic later).
Art 103(2)	On an Art 103(1) reference, President "shall obtain the opinion of the Election Commission and shall act according to such opinion" — his decision is final (103(1)).	**Samsher, para 27**: Art 103 is **an exception to aid & advise** — the President acts "only according to the opinion of the Election Commission"; so the 74(2) advice-shield doesn't even apply — courts may verify that the EC opinion was **obtained and acted upon** (jurisdictional compliance); failure to obtain it = reviewable error. *P.V. Narasimha Rao* (1998) 4 SCC 305 shows courts construing the 101/102/103 machinery precisely (seat vacates by operation of Art 101(3)(a) "without more"; President's role is to decide a "question that arises").	The **correctness/merits** of the final decision once EC opinion duly obtained (103(1) "final"); EC opinion is binding on the President — but the EC's own opinion is exposed to challenge where vitiated (bias/failure to apply mind — administrative-law backstop).
Art 217(3)	If a question arises as to the **age** of an HC Judge, the President decides after consultation with the CJI — "the decision of the President shall be final".	Compliance with the constitutional preconditions (a "question" genuinely arising; consultation with CJI); fraud/patent error/ jurisdictional defect — the classic limits on every finality clause.	Re-appreciating the **correctness** of the age determination (express finality). Teaches the pattern: **finality excludes merits review, not jurisdictional review** — the same reading given to 163(2) (below).
Art 163	(1) CoM aids & advises save discretion; (2) finality of discretion-characterisation; (3) advice-bar.	Whether the matter *really* falls within discretion — a **jurisdictional** question courts necessarily decide first (M.P. SPE: HC and SC both *analysed* whether sanction-to-prosecute was discretionary); malafide/arbitrary exercise of genuine discretion; the **reasonableness of reasons** where discretion used (M.P. SPE: CoM's order "*ex facie* irrational" — scrutiny of the record, not of advice-content); Delhi LG's s. 41 discretion — is the invoked zone correct?	Second-guessing a properly-formed exercise of discretion — "ought/ought not to have acted in his discretion" is expressly barred (163(2)); the **content** of ministerial advice (163(3)).

5.4 Relationship of President/Governor with the CoM — the four governing propositions

1. **Constitutional head, not chief executive**: all executive (and legislative-character) functions are exercised on aid & advice — Samsher paras 57 & 88; U.N.R. Rao (mandatory CoM even after dissolution).

2. **Constitutional satisfaction**: wherever the text requires the P/G's "satisfaction" (Arts 123, 213, 311(2)(c), 317, 352(1), 356, 360), it is the **Council's** satisfaction — Samsher para 30 (the citation list examiners love).
3. **Discretion is the narrow exception**: only where the Constitution (expressly or by necessary implication) requires it; even then the Governor must act **in harmony** with the CoM — "The Constitution does not aim at providing a parallel administration" (Samsher para 55); plus the rare Samsher-154 situations and M.P. SPE's principled cases.
4. **Information dialogue**: Arts 78/167 keep the head informed; Arts 77(3)/166(3) allocate business; the head's only formal lever is one reconsideration (74(1) proviso) — and, in States, the discretion channel and (for Governors) Art 356 reporting.

> *"…the President as well as the Governor acts on the aid and advice of the Council of Ministers in executive action and is not required by the Constitution to act personally without the aid and advice of the Council of Ministers or against the aid and advice of the Council of Ministers. Where the Governor has any discretion the Governor acts on his own judgment. The Governor exercises his discretion in harmony with his Council of Ministers."*

Prescribed Landmark Case Laws — Detailed Analysis

CASES #14–#20

CASE #14 DU LL.B. PRESCRIBED AUTHORITY

B.P. Singhal v. Union of India, (2010) 6 SCC 331

Constitution Bench (5 Judges) · decided 7-4-2010 · Art 32 PIL · Arts 156(1), 154, 163 read with Arts 53/155

Facts

In **2004**, within months of the change of government at the Centre, the Union Government caused the **transfer and/or termination of several State Governors** (the orders and the file material described the incumbents as having **lost confidence** of the Union Council of Ministers / being **out of sync with the policy of the Union Government**). A writ petition under Art 32 was filed challenging these actions as unconstitutional — contending that a Governor holds a constitutional office for a five-year term (Art 156(3)) and cannot be removed for political dissonance with the party in power at the Centre.

Issues

1. Whether "loss of confidence of the Union Council of Ministers" / "out of sync with the Union Government's policy" is a valid ground for removing a Governor under Art 156(1)?
2. Whether Art 156(1)'s "pleasure of the President" is (a) wholly unreviewable, or (b) subject to constitutional limitations — and whether reasons/ notice are required before removal?
3. Whether such an order is amenable to judicial review, and what the locus standi of the petitioners is?

Arguments

For the petitioners (challenging removal):

- A Governor is not an employee, agent or delegate of the Union Government; he holds a **constitutional office** with a prescribed term (Art 156(3)) — removal must therefore have a **constitutional**, not political, foundation.
- "Loss of confidence" of the ruling party at the Centre is a concept unknown to the Constitution for Governors — confidence matters only for the *elected* ministry vis-à-vis the Assembly/House (Arts 164(2)/75(3)).
- Unlimited, reasonless removals would reduce the office to a pliable instrument — arbitrary and violative of Arts 14/163 (constitutional morality).
- If removal orders are arbitrary/mala fide, courts must review; otherwise Art 156(1) becomes a licence.

For the Union of India (defending removal):

- Art 156(1) is unqualified: the Governor holds office "during the pleasure of the President" — **no reasons, no notice, no inquiry** is constitutionally required; the pleasure can be withdrawn at any time.
- Art 156(3)'s five-year term is expressly "subject to the foregoing provisions" — i.e., subject to pleasure; so there is no fixed tenure at all.
- The question of whether the President still "pleases" is **non-justiciable**; no court can sit in judgment over the President's pleasure; the petitioners lack locus as to individual Governors' removals.

Decision (Constitution Bench — holdings)

1. **"Loss of confidence / out of sync with Union policy" is NOT a valid ground.** The Governor is not an employee or agent of the Union Government; government-policy dissonance cannot ground removal — the office serves the Constitution, not the party in power.
2. **Pleasure without reasons is permissible** — a Governor may be removed **at any time without assigning reasons or notice** (Art 156(1)) — **but pleasure is not licence**: the power must be exercised within constitutional limits and **not arbitrarily, capriciously or for mala fide purposes**. The grounds for compulsion must be rare and exceptional/compelling (the Court's framing allows reasons wider than corruption/disability but insists they be genuine constitutional reasons).
3. **The order is subject to limited judicial review.** If a *prima facie* case of arbitrariness, mala fide or caprice is made out, the court may call for the **material/record** on which the order rests and examine it for constitutional infirmity. (This is how the advice-bar of Arts 74(2)/163(3) coexists with review: the court reviews the **act** and its record, not the ministers' inner deliberation.)
4. **Locus standi:** the petitioners were not entitled to individual relief in respect of particular Governors' removals; but the **general legal question** on the scope of Art 156(1) was decided in the PIL — no Governor was reinstated.

Principle evolved

Article 156(1) "pleasure" is a **constitutionally bounded** power: removal of a Governor needs no reasons and no notice, yet must rest on a constitutionally relevant, non-arbitrary, non-mala fide ground — political disagreement with the Union Council is not such a ground — and the order is amenable to limited judicial review (call for record + test for arbitrariness/mala fide).

→ This is the **template answer** for "how far is the pleasure clause justiciable": *yes, on the narrow grounds of malafide/arbitrariness/ extraneousness; no, on merits/second-guessing policy.* Pair with Epuru Sudhakar (Art 161 — same design) and M.P. SPE (Art 163 — review of reasons where discretion used).

CASE #15 DU LL.B. PRESCRIBED AUTHORITY

U.N.R. Rao v. Indira Gandhi, AIR 1971 SC 1002

S.M. Sikri, C.J. + G.K. Mitter, K.S. Hegde, A.N. Grover, P. Jaganmohan Reddy, JJ. · quo warranto · Arts 74, 75, 53, 60, 77, 78

Facts

The **House of the People was dissolved by the President on 27-12-1970** under Art 85(2). The respondent, Indira Gandhi, continued as **Prime Minister** after the dissolution. The appellant filed a writ of **quo warranto** questioning her continuation, contending that on dissolution of the LS, the Council of Ministers (PM + Ministers) **ceased to hold office** because Art 75(3) makes the CoM collectively responsible to the House of the People — and "how can the CoM be collectively responsible to a House which has already been dissolved?" It was further contended that no void would be created because the President could exercise the executive power of the Union **directly or through officers subordinate** under Art 53(1) (i.e., a President-direct rule interregnum).

Issues

1. Is it essential to have a Council of Ministers under Art 74(1) even at a time when the House of the People has been dissolved or its term has expired?
2. Does Art 75(3) ("collectively responsible to the House of the People") compel the PM and Ministers to quit on dissolution — or can the President then act under Art 53(1) on his own?

Arguments

Appellant's contention (verbatim structure from DU excerpt):

- Art 75(3) must be interpreted "according to its own terms, regardless of the conventions that prevail in the United Kingdom": collective responsibility to a **non-existent** House is impossible → CoM must cease on dissolution.
- Consequently the President may rule directly through officers subordinate under Art 53(1) without ministers — without creating any constitutional void.

Respondent's position (upheld by the Court):

- Art 74(1) is **mandatory**: there "shall be" a CoM with the PM at the head, and the President "shall" act in accordance with its advice — this is the basic structure of the parliamentary executive the Constituent Assembly chose (not a Presidential system).
- Art 75(2) (Ministers hold office during the pleasure of the President) continues to operate; the President has not withdrawn his pleasure.
- Harmonising construction: Art 75(3) applies when the House is **not** dissolved/prorogued; the dissolution-expiry contingency is otherwise covered by **s. 14, RPA 1951** (five-year term machinery).

Decision

- **Article 74(1) is mandatory — "shall" is "shall", not "may"** (paras 7-8): "The Constituent Assembly did not choose the Presidential system of Government. If we were to give effect to this contention of the appellant we would be changing the whole concept of the Executive." Without a CoM there would be no one responsible to the House — the President "with the aid of advisers … would be able to rule the country at least till he is impeached under Article 61" — a result the Constitution does not permit.
- **Art 53(1) is controlled by its last words** "in accordance with this Constitution": "Any exercise of the executive power not in accordance with the Constitution will be liable to be set aside" (para 6) — direct Presidential rule without a CoM is *not* "in accordance with this Constitution".
- **Art 60 oath** (quoted in full at para 6) binds the President to "preserve, protect and defend the Constitution" — he cannot govern without the constitutionally mandated Ministers.
- **Art 75(3) harmonised** (para 9): "Article 75(3) only applies when the House of People does not stand dissolved or prorogued." While the House exists, 75(3) has full operation; on dissolution, Ministers continue under Art 75(2) — **"The President has not said that it is his pleasure that the respondent shall not hold office."** The expiry-of-term contingency (Art 83(2)) is covered by **s. 14 of the RPA 1951**.
- **Arts 77(3) and 78 have full play** even post-dissolution (para 10) — business rules for allocation and the PM's information-duties continue, proving the machinery is designed to run.
- The Court quoted Ram Jawaya Kapur (paras 13-14) and A. Sanjeevi Naidu ("the Governor is essentially a constitutional head, the administration … run by the Council of Ministers … the Cabinet is responsible to the Legislature for every action taken in any of the ministries. **That is the essence of joint responsibility**") — *U.N.R. Rao* appeal dismissed.

Arguments of both sides — the dialogue worth reproducing

> *Sikri, C.J.: "If the words of an Article are clear, notwithstanding any relevant convention, effect will, no doubt, be given to the words. But it must be remembered that we are interpreting a Constitution and not an Act of Parliament, a Constitution which establishes a Parliamentary system of Government with a Cabinet. In trying to understand one may well keep in mind the conventions prevalent at the time the Constitution was framed."*

Principle evolved
(i) A Council of Ministers under Art 74(1) is **constitutionally indispensable at all times** — including during dissolution/expiration of the Lok Sabha; the President may not exercise executive power personally or through officers bypassing the CoM. (ii) Art 75(3) is not a self-executing dissolution-trigger for ministerial exit; it is read harmoniously with Arts 74(1) and 75(2). (iii) Art 74(1) is **mandatory** — the parliamentary executive is non-negotiable (a precursor to the basic-structure doctrine).

CASE #16 DU LL.B. PRESCRIBED AUTHORITY

S.P. Anand v. H.D. Deve Gowda, (1996) 6 SCC 734

A.M. Ahmadi, C.J. and Sujata V. Manohar, J. · Art 32 · Arts 14, 21, 74, 75, 88, 163, 164

Facts

Shri H.D. Deve Gowda, not being a member of either House of Parliament, was appointed Prime Minister of India. The petitioner challenged the appointment as violative of Arts 14, 21 and 75, contending that the President committed a grave constitutional error in swearing him in — the petition was argued in person "with great passion, zeal and emotion". The Court narrated the litigation history: the same petitioner had earlier unsuccessfully challenged (i) **T.N. Singh's** appointment as CM of U.P. (non-member) — *Har Sharan Verma v. Tribhuvan Narain Singh*, (1971) 1 SCC 616; (ii) **K.P. Tiwari's** ministership after the 16th Amendment oath-rule — *Har Sharan Verma v. State of U.P.*, (1985) 2 SCC 48; (iii) **Sita Ram Kesri's** ministership — *Harsharan Verma v. UOI*, 1987 Supp SCC 310; and that two High Courts had rejected the identical challenge to Deve Gowda's appointment (Dr Janak Raj Jai, WP 2408/1996, Delhi HC; Ashok Sen Gupta, CO 1336(w)/1996, Calcutta HC).

Issues

1. Can a person who is **not a member of either House of Parliament** be appointed **Prime Minister** of India (and, correspondingly, a non-legislator as **Chief Minister** under Art 164)?

2. If so, for how long, and subject to what constitutional conditions?

Arguments

Petitioner:

- A PM who is not the elected representative of the people, "in whom the people have not placed confidence", is a great risk "which the country can ill afford to take" — construe the provisions so as to relieve the country of that risk.
- **Art 75(5) permits appointment of a "Minister" for six months — but a Prime Minister is a distinct office** from a Minister; nothing in 75(5) suggests a non-member can be PM.
- **British parliamentary convention**: "By conventional usage the Prime Minister is invariably a member of either House of Commons or House of Lords" — the English convention should inform Art 75.
- The three Supreme Court decisions relied on are **old and need reconsideration** in changed circumstances; national interest would be jeopardised otherwise.

Respondent (Attorney General + Court's own survey):

- The settled line of authority: *Har Sharan Verma* (1971 — T.N. Singh as non-member CM upheld: Art 164(4) "had an ancient lineage and there was no reason to whittle down the plain thrust" of the provision); *(1985) 2 SCC 48* (16th Amdt oath rule irrelevant to appointment); *Harsharan Verma* 1987 Supp (Kesri — appointing a non-member as Minister "did not militate against the constitutional mechanism nor … against the democratic principles" — Art 75(5) read with **Art 88**).
- Delhi HC: "when Article 75(5) speaks of a 'Minister' it takes within its embrace that Minister also who is described in the Constitution as **Prime Minister**"; Calcutta HC: 75(5) permits a non-member PM "subject to the possibility of his commanding the support of the majority of members of the Lok Sabha".

Decision

- **Section 8 of the DU excerpt (the holding in one line)**: "a person who is not a member of either House of Parliament or of either House of a State Legislature **can be appointed a Minister in the Central Cabinet (which would include a Prime Minister) or a Minister in the State Cabinet (which would include a Chief Minister)**, as the case may be."
- **74↔163 and 75↔164 juxtaposition (paras 11–13)** — the Court tabulated both pairs and found them materially identical, differing only in: (a) the "except … discretion" clause in 163(1) (absent in 74(1)); (b) the **reconsideration proviso** in 74(1) (absent in 163(1)); (c) 163(2) discretion-finality (absent in Art 74); (d) 74(2) ≡ 163(3) verbatim; 75(1)-(2) ≡ 164(1); 75(3) ≡ 164(2) (House vs Assembly); 75(5) ≡ 164(4) (six months).
- **Textual reasoning for 75(5) (para 14)**: the Constitution-makers *desired* to permit non-member Ministers for six consecutive months — reading the debates (draft Arts 62 & 144), an amendment "No person should be appointed a Minister unless at the time of his appointment, he is elected member of the House" was moved on the ground that it would "cut at the very root of democracy" — and **was spurned by Dr Ambedkar**.
- **The PM is not a species apart (para 16)**: the caption of Art 75 is "Other provisions as to Ministers"; no separate provision deals with appointment of the PM; the **same oath** (Third Schedule) serves PM and Minister; the PM is "chosen by the elected representatives" and can occupy the position "only if he enjoys the confidence of the majority"; collective responsibility does the democratic work.
- **English convention rejected (paras 15, 17)**: "The English convention … is not our constitutional scheme since our Constitution clearly permits a non-member to be appointed a Chief Minister or a Prime Minister for a short duration of six months. **That is why in such cases when there is any doubt in the mind of the President, he normally asks the person appointed to seek a vote of confidence of the House of the People within a few days of his appointment.**" Practice in India "has been just the opposite" of the British convention.
- **Life-span of the appointment**: up to six consecutive months under 75(5)/164(4); within that period the person must be elected to either House or vacates office. **Petition dismissed** (para 19); interim stays in pending proceedings vacated with direction to dispose of them in light of the judgment.

Principle evolved

The Constitution of India permits a **non-legislator to be appointed Prime Minister or Chief Minister (and any Minister)**, for a maximum of **six consecutive months** (Arts 75(5)/164(4), reinforced by Arts 75(1), 88 and the absence of any membership qualification in Art 75(1)/164(1)), provided the appointee is otherwise qualified (Arts 84/173) and **not disqualified** (Arts 102/191, RPA s. 8 — see B.R. Kapur) and commands majority confidence (conventionally proved by a floor test within days). English conventions on PM's membership are not part of our constitutional scheme.

CASE #17 DU LL.B. PRESCRIBED AUTHORITY

Samsher Singh v. State of Punjab, AIR 1974 SC 2192

Seven Judges · A.N. Ray, C.J. + Palekar, Mathew, Chandrachud, Alagiriswami, Bhagwati, Krishna Iyer, JJ. · Arts 234, 235, 311(2)(c), 74, 75, 77, 163, 166 · overrules Sardari Lal

Facts

Both appellants joined the **Punjab Civil Service (Judicial Branch)** and were on probation:

- **Samsher Singh** — Subordinate Judge on probation: terminated **27-4-1967** by order: *"The Governor of Punjab is pleased to terminate the services of Shri Samsher Singh, Subordinate Judge, on probation under Rule 9 of the Punjab Civil Services (Punishment and Appeal) Rules, 1952 with immediate effect…"*
- **Ishwar Chand Agarwal** — PCS(Judicial): terminated **15-12-1969**: *"On the recommendation of the High Court of Punjab and Haryana, the Governor of Punjab is pleased to dispense with the services … under Rule 7(3) in Part 'D' of the Punjab Civil Services (Judicial Branch) Rules, 1951…"*

The appeals were placed before a larger Bench to decide **one referred question**: *whether the decision in Sardari Lal v. UOI [(1971) 3 SCR 461] correctly lays down the law that where the President or the Governor is to be satisfied, the satisfaction is his personal satisfaction* (Sardari Lal concerned Art 311(2) proviso (c) — "in the interest of the security of the State" satisfaction).

Issues

1. (Referred) Is the satisfaction required by the Constitution — under Art 311(2)(c) and similar clauses — the **personal** satisfaction of the President/Governor (*Sardari Lal*), or the **constitutional satisfaction** of the Council of Ministers?
2. Must the Governor exercise powers of appointment/removal in the subordinate judicial services (Arts 234/235) **personally**, or on aid and advise?
3. Were the two probationer terminations valid (Rule 9 vs Rule 7(3) and Art 311)?

Arguments

Appellants (Governor must act personally):

- Several functions are conferred on the Governor **eo nomine** (by name) — appointment/removal of judicial officers, oath, pleasure, discretion clauses — and are **not** "executive powers of the State" within Art 154/162.

- Art 163 itself distinguishes functions exercised on aid and advise from functions the Governor must exercise "in his discretion" — extracting "in his discretion", the Governor personally appoints/removes judicial officers.
- *Sardari Lal*: where the Constitution says the President/Governor "is satisfied", it means **personal** satisfaction — otherwise the words are spent.
- Art 311(2)(c)-type powers cannot be subordinated; they are personal.

State/Union (aid and advise):

- The Governor exercises constitutional powers as the **constitutional/formal head** on aid and advise of his CoM, as held in *Ram Jawaya Kapur*, *A. Sanjeevi Naidu* and *U.N.R. Rao* — which **were neither referred nor considered in Sardari Lal** (para 47).
- Arts 77(3)/166(3) business rules show the machinery: a Minister's/officer's decision under the rules **is** the P/G's decision — no delegation required.
- Arts 300 & 361: neither the President nor the Governor is ever sued for executive action — because the **Government** acts (para on line 140–144 of the excerpt).

Decision — the grand doctrine (paras 27–33, 48, 54–57, 88)

- **Constitutional or formal head** (paras 27–28): "Under this system the President is the constitutional or formal head of the Union and he exercises his powers and functions conferred on him by or under the Constitution on the aid and advice of his Council of Ministers." Same for the Governor — "save in spheres where the Governor is required by or under the Constitution to exercise his functions in his discretion".
- **Art 103 is an exception** (para 27): "Article 103 is an exception to the aid and advice of the Council of Ministers because it specifically provides that the President acts only according to the opinion of the Election Commission." — the express exception carved by the text itself.
- **Executive includes legislative/judicial-character functions** (para 29): "executive power may also partake of legislative or judicial actions. All powers and functions of the President except his legislative powers as for example in Article 123 … and all powers and functions of the Governor except his legislative power as for example in Article 213 … are executive powers."
- **Business rules ≠ delegation** (paras 30–31): "Wherever the Constitution requires the satisfaction of the President or the Governor … as for example in Articles 123, 213, 311(2) proviso (c), 317, 352(1), 356 and 360 the satisfaction required by the Constitution is **not the personal satisfaction** … but the satisfaction … in the constitutional sense under the Cabinet system of Government. … the decision of any Minister or officer under the Rules of Business … is the decision of the President or the Governor respectively. **Neither Article 77(3) nor 166(3) provides for any delegation.**"
- **English constitutional inheritance** (paras 32–33): "In England the Sovereign never acts on his own responsibility … The Indian Constitution envisages a Parliamentary and responsible form of Government … not a Presidential form."
- **Paras 45–53 — overruling Sardari Lal & Babu Ram Upadhya:** *Sardari Lal*'s "personal satisfaction" theory is not good law — the decisions it relied on (Moti Ram Deka; Jayantilal Shodhan on Art 258) do not support it; *State of U.P. v. Babu Ram Upadhya* Prop. 2 (pleasure delegable to subordinates) is superseded by *Moti Ram Deka* (Art 311 "authority subordinate" language) — "the majority view in Babu Ram Upadhya case is no longer good law after the decision in Moti Ram Deka".
- **Discretion islands enumerated** (para 54): Art 239(2) (Governor as administrator of an adjoining UT — "independently of his Council of Ministers"); Sixth Schedule paras 9(2) and 18(3) (18(3) omitted w.e.f. 21–1–1972); Arts 371A(1)(b), (1)(d), (2)(b), (2)(f); plus Art 356 report and Art 200 second proviso as instances.
- **Art 356 report even against advice** (para 55): "In making a report under Article 356 the Governor will be justified in exercising his discretion **even against the aid and advice** of his Council of Ministers. The reason is that the failure of the constitutional machinery may be because of the conduct of the Council of Ministers. … **The Constitution does not aim at providing a parallel administration** within the State by allowing the Governor to go against the advice of the Council of Ministers." (In all other discretionary matters he must act "in harmony" with the CoM.)
- **Para 57 — dispositive on the referred question**: "the President or the Governor acts on the aid and advice of the Council of Ministers … in **all matters which vest in the Executive whether those functions are executive or legislative in character**. Neither the President nor the Governor is to exercise the executive functions personally. … Appointment or dismissal or removal of persons belonging to the Judicial Service of the State is **not a personal function** but is an executive function of the Governor exercised in accordance with the rules in that behalf."
- **On the two terminations**: Rule 9 (Samsher) required the probationer to be apprised of grounds and given an opportunity to show cause — the termination order "was one of punishment … concerned themselves with matters which were really trifle … The order of termination is in infraction of Rule 9" → **set aside** (paras 86–87). Agarwal: termination under Rule 7(3) on the HC's recommendation was, in substance, a punishment without Art 311 safeguards; HC should not have abdicated its Art 235 control — Agarwal **declared a member** of PCS(Judicial) (para 89).
- **Para 88 (the exam paragraph)**: "the President as well as the Governor acts on the aid and advice of the Council of Ministers in executive action and is **not required by the Constitution to act personally without … or against the aid and advice**. Where the Governor has any discretion the Governor acts on his own judgment. The Governor exercises his discretion **in harmony** with his Council of Ministers. … That is why any action by any servant of the Union or the State in regard to appointment or dismissal is brought **against the Union or the State and not against the President or the Governor**."

Exceptional situations recognised — the celebrated "para 154" (quoted in the M.P. SPE DU excerpt)

> *"We declare the law of this branch of our Constitution to be that the President and Governor, custodians of all executive and other powers under various articles shall, by virtue of these provisions, exercise their formal constitutional powers only upon and in accordance with the advice of their Ministers save in a few well-known exceptional situations. Without being dogmatic or exhaustive, these situations relate to (a) the choice of Prime Minister (Chief Minister), restricted though this choice is by the paramount consideration that he should command a majority in the House; (b) the dismissal of a Government which has lost its majority in the House, but refuses to quit office; (c) the dissolution of the House where an appeal to the country is necessitous, although in this area the head of State should avoid getting involved in politics and must be advised by his Prime Minister (Chief Minister) who will eventually take the responsibility for the step. … We have no doubt that de Smith's statement … regarding royal assent holds good for the President and Governor in India: 'Refusal of the royal assent on the ground that the Monarch strongly disapproved of a Bill or that it was intensely controversial would nevertheless be unconstitutional…'"*

Principle evolved

(i) The President and the Governor are **constitutional/formal heads** who exercise all executive — and legislative-character — functions on the **aid and advice** of their Councils; wherever the Constitution requires their "satisfaction", it is the **constitutional satisfaction** of the Council (list: Arts 123, 213, 311(2)(c), 317, 352(1), 356, 360). (ii) Business rules under Arts 77(3)/166(3) are **not delegation** — a Minister's/officer's decision is the P/G's decision. (iii) **Sardari Lal overruled**; Babu Ram Upadhya Prop. 2 no longer good law. (iv) Discretion exists only where the Constitution requires it — and even then must be exercised **in harmony** with the Council (no parallel administration), with the recognised exceptional situations (choice of head, refusal-to-quit dismissal, dissolution; Art 356 report against advice).

CASE #18 DU LL.B. PRESCRIBED AUTHORITY

M.P. Special Police Establishment v. State of M.P., (2004) 8 SCC 788

Five Judges · N. Santosh Hegde, S.N. Variava, B.P. Singh, H.K. Sema, S.B. Sinha, JJ. (Variava, J. for the Bench) · referred 12-9-2003 · Art 163, CrPC s. 197, PC Act 1988 s. 13(1)(d)+(2), IPC s. 120B

Facts

1. **Rajendra Kumar Singh and Bisahu Ram Yadav** were Ministers in the Government of Madhya Pradesh (respondents in the appeals).
2. A complaint was made to the **Lokayukta, M.P.** that they had **released 7.5 acres of land illegally** to its earlier owners though it had been acquired by the **Indore Development Authority**. An FIR was lodged on **31-3-1998**.
3. The Lokayukta held there were sufficient grounds to prosecute the two Ministers under **s. 13(1)(d) read with s. 13(2) of the Prevention of Corruption Act, 1988** and for **criminal conspiracy under s. 120-B IPC**, directing the DG (SPE) under s. 4(1) of the **M.P. Special Police Establishment Act, 1970** to register and investigate (by an officer not below SP rank). By the time of the report, the Ministers had already **resigned** — hence the sanction question arose for the s. 120B offence.
4. **Sanction sought from the CoM**: the Council held there was "not an iota of material" showing criminal conspiracy and **refused sanction** — saying no prima facie case was made out.
5. **The Governor considered the request keeping in view the CoM's decision**, opined that the available documents and evidence were enough for a prima facie case, and **granted sanction under s. 197 CrPC on 24-9-1998** — i.e., **against the advice of the CoM**.
6. The Ministers challenged the Governor's order under Arts 226/227. A Single Judge held the sanction was **not** a matter in which the Governor could act "in his discretion" under Art 163; he could not act contrary to aid and advise; bias could not be imputed to the entire CoM; and doctrine of necessity could not apply. The Division Bench upheld this (distinguishing *State of Maharashtra v. Ramdas Shrinivas Nayak* [(1982) 2 SCC 463] as applicable only to a **Chief Minister**). The matter was referred to Five Judges.

Issue

Can a Governor act in his own discretion and against the aid and advice of the Council of Ministers in granting sanction for prosecution of Ministers (former Ministers) under the PC Act/IPC? (I.e., what is the scope of Art 163 discretion — express only, or also occasion-based?)

Arguments

Appellants' side — Mr Soli J. Sorabjee (sanction valid; discretion exists):

- Normally the Governor acts on aid and advise — **but** "merely because the Constitution of India expressly provides, in some cases, for the Governor to act in his discretion, can it be inferred that the Governor can so act **only** where the Constitution expressly so provides? **If that were so then sub-clause (2) of Article 163 would be redundant**" — 163(2) postulates discretionary matters **not** expressly provided for (para 11).
- Relied on Samsher Singh: normal rule = aid and advise; **exceptions are not exhaustive** (para 12) — situations of "peril to democracy … not amenable to Ministerial advice", including **bias inherent and/or manifest in the advice of the CoM**.
- *Ramdas Shrinivas Nayak*: where bias "is well apparently inherent in the proposed action of the Ministry", it would be justified for the **Governor to act on his own, independently and without reference to any Ministry** — the Bombay HC judges' concession (para 13).

Respondent Ministers' side — Mr Tankha:

- Sanction-to-prosecute is **not** within Art 163 discretion; the Governor is **not an appellate body** and cannot sit in appeal over the CoM's decision (para 20); the CoM's decision could only be challenged in a court.
- The CoM examined all material and applied its minds; presumption of regularity applies to high authorities (*V.C. Shukla*; *State of Punjab v. V.K. Khanna* — fairness/malice needs cogent evidence).
- **Bias cannot be presumed** against a collective body; the real doctrine requires a "real danger of bias" on collated circumstances (*Kumaon Mandal Vikas Nigam*) — each member has his own say, majority prevails (paras 21, 23).
- **Doctrine of necessity**: where a collective statutory decision is required, the CoM (not the Governor) must decide — supported by *J. Mohapatra*, *ICAI v. L.K. Ratna*, *Charan Lal Sahu*, *Badrinath*, *ECI v. Subramaniam Swamy*, *Ramdas Shrinivas Nayak*, *Dr Yashwant Trimbak* (para 33).

Decision

- **Normal rule reaffirmed, exceptions opened** (para 19): "Undoubtedly, in a matter of grant of sanction to prosecute, the Governor is normally required to act on aid and advice of the Council of Ministers and not in his discretion. **However, an exception may arise** whilst considering grant of sanction to prosecute a Chief Minister or a Minister where **as a matter of propriety** the Governor may have to act in his own discretion. **Similar would be the situation if the Council of Ministers disables itself or disentitles itself.**"
- **Bias analysis** (paras 22–25): if facts indicate bias "the conclusion becomes inescapable"; taking a cue from *Antulay*, "a Council of Ministers may not take a fair and impartial decision when their Chief Minister or other members of the Council face prosecution" — but for *former* Ministers, "the doctrine of 'apparent bias' … may not be applicable in a case where a collective decision is required to be taken … in relation to former Ministers" — **no material** was shown of actual malice; presumption of bona fide applies **first**.
- **Two competing orders tested on the record** (paras 26–31): the CoM said "no iota of material" for conspiracy, while the Governor's order of 24-9-1998 found complicity disclosed. The Lokayukta's report — by a former SC Judge — was "replete with the materials"; the report's conclusion was quoted in full (fit case to register offence; officers of DSP-rank investigation). "It may not be possible in a given case even to prove conspiracy by direct evidence … **Such a relevant consideration apparently was absent in the mind of the Council of Ministers** … refusal to take into consideration a relevant fact or acting on the basis of irrelevant and extraneous factors … would vitiate an administrative order." Power is vitiated by "manifest error of record", arbitrariness, or "non-consideration or non-application of mind to relevant factors" (para 30).
- **The famous finding (para 31)**: "We … have no hesitation to hold that **the decision of the Council of Ministers was ex facie irrational whereas the decision of the Governor was not**."
- **Why refusal is dangerous (para 32)**: "If, on these facts and circumstances, the Governor cannot act in his own discretion there would be a complete breakdown of the rule of law … it would then be open for Governments to refuse sanction in spite of overwhelming material … **If, in cases where a prima facie case is clearly made out, sanction to prosecute high functionaries is refused or withheld, democracy itself will be at stake.** It would then lead to a situation where people in power may break the law with impunity…"
- **Doctrine of necessity — rejected on facts, framework accepted (para 33)**: "Certainly, the Council of Ministers **has to first consider** grant of sanction. We also presume that a high authority like the Council of Ministers will normally act in a bona fide manner… However, **on those rare occasions where on facts the bias becomes apparent and/or the decision of the Council of Ministers is shown to be irrational and based on non-consideration of relevant factors, the Governor would be right, on the facts of that case, to act in his own discretion** and grant sanction."
- **Disposal (para 34)**: appeals allowed; HC judgments set aside; Ministers' writ petitions dismissed; the **Governor's sanction to be given effect to** and the CoM's refusal set aside; trial court directed to dispose expeditiously.

Principle evolved

Under Art 163, the Governor's discretion is **not confined to express constitutional texts** — Art 163(2) itself presupposes occasion-based discretion. In sanction-matters the **normal rule is aid and advise**, but the Governor may act in discretion in **rare, principled situations**: (1) propriety demands it when the sanction is about the **Chief Minister/Minister** themselves (*Ramdas Shrinivas Nayak* concession approved); (2) the **CoM disables or disentitles itself**; (3) **apparent bias** (real-danger test of *A.K. Kraipak*); (4) the CoM's decision is **ex facie irrational** / non-arbitrary analysis shows non-consideration of relevant material. The CoM decides **first** (presumption of bona fide), the Governor acts on the **record** — and courts review **both** orders for reasons, arbitrariness and extraneousness (the advice-bar of 163(3) does not immunise a decision whose vice is evident on its face).

CASE #19 DU LL.B. PRESCRIBED AUTHORITY

State (NCT of Delhi) v. Union of India, (2018) 8 SCC 501

Constitution Bench (5 JJ) · Dipak Misra, C.J. (for self, Sikri, Khanwilkar, JJ.) · Dr D.Y. Chandrachud, J. (concurring) · Ashok Bhushan, J. (concurring) · Art 239AA, GNCTD Act 1991, TBR 1993

Facts

1. The **Delhi High Court**, in *Government of NCT of Delhi v. UOI*, W.P.(C) 5888/2015, order dated **8-9-2016** (sub-para (iv) of para 304), held that "it is **mandatory under the constitutional scheme to communicate the decision of the Council of Ministers to the Lt. Governor even in relation to the matters in respect of which power to make laws has been conferred on the Legislative Assembly** … and an order thereon can be issued **only where the Lt. Governor does not take a different view**, and **no reference to the Central Government is required** in terms of the proviso to clause (4) of Article 239AA read with Chapter V of the Transaction of Business of the Government of NCT of Delhi Rules, 1993."
2. A 2-Judge Bench referred the matter to the Constitution Bench (order dated 15-2-2017) as substantial questions on interpretation of Art 239AA arose.
3. Background painted by the Court (para 16): 7th Amendment (19-10-1956) abolished Part A/B/C/D States — Delhi became a UT; Union Territories Act 1963 (not applied to Delhi); Delhi Administration Act 1966 (Metropolitan Council); **Balakrishnan Committee (1987)** — Delhi should remain a UT but with an Assembly and Council of Ministers responsible to it, quoting (para 6.7.21): *"The Administrator should be expressly required to perform his functions on the aid and advice of the Council of Ministers. The expression 'to aid and advice' is a well understood term of art … the general rule is that the exercise of executive functions by the Administrator has to be on the aid and advice of his Council of Ministers which means that it is virtually the Ministers that should take decisions on such matters."*

Issues

1. Is the Lieutenant Governor of the NCT bound by the aid and advise of the Council of Ministers of the Government of NCT Delhi — and to what **extent**? (Dec-2024 Q7 asks this in almost the same words.)
2. Does the proviso to Art 239AA(4) (difference of opinion → reference to the President) require **prior concurrence** of the LG before the government can act? Is "communication" of decisions to the LG the same as "concurrence"?
3. What is the scope of the LG's **discretion** (s. 41, GNCTD Act) and the reach of the Assembly's executive power (Art 239AA(4) vs (3)(a))?

Arguments

Appellant NCT Government:

- Art 239AA adopts the Westminster model; the LG is bound by aid and advise — any other reading "shall run contrary to the very concept of Parliamentary democracy, which is basic feature of the Constitution" (Ashok Bhushan, J. summarising, para 576).
- Delhi is *sui generis* with a constitutionally entrenched Assembly + CoM (69th Amendment) — a government "that enjoys the confidence of the people" must be able to usher in policies (para 209); treating every decision as needing LG's concurrence would reduce elected representatives "to a cipher".

Respondent Union of India:

- The proviso to Art 239AA(4) is an **exception** to the aid-and-advice mandate: where the LG decides to refer a matter, aid and advice "is not to be adhered to" (Ashok Bhushan, J., para 576 — the provision's own text); the scheme mirrors **s. 44 of the Government of Union Territories Act, 1963**.
- Union interests in the national capital require the LG's protective reference power; Delhi remains a Union territory under Part VIII with Parliament's overriding legislative authority (Art 239AA(3)(b), (c)).

Decision — the five holdings (majority + concurring)

- **Headnote (verbatim)**: "Held — the Lieutenant Governor act on the aid and advice of the Council of Ministers **except when he decides to refer the matter to the President** for final decision."
- **Sui generis status** (Misra C.J., para 284.12, relying on the 9-Judge *New Delhi Municipal Corporation* case): "by no stretch of imagination, NCT of Delhi can be accorded the status of a State … The status of NCT of Delhi is **sui generis, a class apart**, and the status of the Lieutenant Governor … is **not that of a Governor of a State, rather he remains an Administrator, in a limited sense**, working with the designation of Lieutenant Governor."
- **Conterminous executive power** (para 204): "the executive power of the Government of NCT of Delhi is **conterminous with the legislative power of the Delhi Legislative Assembly** … which extends over **all but three subjects in the State List** [public order, police, land — Entries 1, 2, 18] **and all subjects in the Concurrent List**."
- **No independent decision-making power** (para 284.17): "the Lieutenant Governor of NCT of Delhi is **bound by the aid and advice** of the Council of Ministers and this position holds true **so long as the LG does not exercise his power under the proviso** … The Lieutenant Governor has **not been entrusted with any independent decision-making power**. He has to either act on the 'aid and advice' … or he is bound to implement the decision taken by the President on a reference being made by him."
- **Communication ≠ concurrence** (para 284.21): the Rules' phrases ("send a copy thereof", "forwarded to", "submitted to", "cause to be furnished to") lead "to the only possible conclusion that the decisions of the Council of Ministers **must be communicated to the Lieutenant Governor but this does not mean that the concurrence of the Lieutenant Governor is required**. The said communication is imperative so as to keep him apprised in order to enable him to exercise the power conferred upon him under Article 239AA(4) and the proviso thereof."
- **"Any matter" ≠ "every matter"** (Chandrachud, J., para 468): "If the expression 'any matter' were to be construed as 'every matter' or every trifling matter that would result in bringing to a standstill the administration … Every conceivable difference would be referred to the President. The elected representatives would be reduced to a cipher. … **The forms of the Constitution would remain but the substance would be lost.**"
- **No prior concurrence** (para 469): "Neither the Constitution nor the enabling legislation … contemplate that **every decision of the executive government must receive the prior concurrence of the Lieutenant Governor** before it can be implemented."
- **Dialogue first, escalate last** (para 475.19): "Before the Lieutenant Governor decides to make a reference … **the course of action mandated in the Transaction of Business Rules must be followed**. The Lieutenant Governor must, by a process of **dialogue and discussion**, seek to

resolve any difference of opinion with a Minister and if it is not possible … to attempt it through the Council of Ministers. A reference … is contemplated by the Rules only when the above modalities fail…"

- **When the proviso is for** (para 475.21): "The proviso … is in the nature of a **protector to safeguard the interests of the Union** on matters of national interest … **Every trivial difference does not fall under the proviso.** The proviso will, among other things, encompass **substantial issues of finance and policy which impact upon the status of the national capital or implicate vital interests of the Union**." (No exhaustive list possible — courts cannot exhaustively indicate circumstances; the LG must follow the judgment's principles.)
- **Parliament's supremacy in the UT** (para 470): Delhi continues under Part VIII; the Assembly's legislation "is subject to the overriding power of Parliament"; Art 254 repugnancy is "extended by Article 239AA [3(b) and 3(c)]" over State **and** Concurrent List subjects.
- **Ashok Bhushan, J. (separate)**: aid and advise binding "except when he decides to exercise his power given in proviso of clause (4)" (paras 576, 582); and (para 604.8): "The power given in proviso to clause (4) to LG is **not to be exercised in a routine manner** rather it is to be exercised by the LG **on valid reasons after due consideration**, when it becomes necessary to safeguard the interest of the Union Territory."
- **Section 41 discretion zone (quoted by Chandrachud, J., para 398)**: the LG acts in his discretion in (i) matters outside the Assembly's powers but entrusted/delegated by the President (Art 239), and (ii) matters where required by/under law or to exercise judicial/quasi-judicial functions; para 399: such matters "lie **outside the realm of the aid and advice mandate**".

Principle evolved

In the NCT of Delhi, the **Council of Ministers is the real executive**; the Lieutenant Governor is bound by its aid and advise on all subjects within the Assembly's legislative competence, **except** when he exercises the **proviso to Art 239AA(4)** — a protective power reserved for substantial matters of Union/national-capital interest, to be used **after dialogue** (TBR), **not routinely**, and always followed by abiding by the President's decision. **Communication of decisions is mandatory; concurrence is not.** The LG has no independent decision-making power; his s. 41 discretion is a separate, narrow zone. Parliament's legislative supremacy over Delhi (239AA(3)(b)-(c)) stands untouched.

CASE #20 DU LL.B. PRESCRIBED AUTHORITY

Epuru Sudhakar v. Govt. of Andhra Pradesh, (2006) 8 SCC 321

Pasayat, J. for the Court; Kapadia, J. concurring · W.P.(Crl.) 284-285/2005, decided 11-10-2006 · Art 32 · Arts 72 & 161 · CrPC ss. 432/433

Facts

1. **Gowru Venkata Reddy** (respondent No. 2) was convicted of murder (a case arising from the killing of a political worker) and sentenced to **ten years' rigorous imprisonment**.
2. His wife (respondent No. 3) was **elected an MLA in May 2004**. During the pendency of her husband's clemency petition, he was released on **parole on 18-10-2004** for one month.
3. On the State Government's recommendation, the **Governor of Andhra Pradesh, in exercise of powers under Art 161, issued G.O.Ms. No. 170 dated 11-8-2005**, remitting the unexpired balance of the sentence (about seven years), and the convict was **released on 12-8-2005** from the Central Prison, Cherlapally.
4. The petitioners — **sons of the victims** — challenged the remission under Art 32 as resting on **extraneous and irrelevant considerations** (the file reportedly recorded that the convict was "a good Congress worker" and referred to his being "defeated by political conspiracy" in elections) and on material not disclosed to the Governor.
5. The Andhra Pradesh High Court dismissed their challenge; they came to the Supreme Court under Art 32. (Soli Sorabjee was appointed *amicus curiae*.)

Issues

1. Is the Governor's power of remission under Art 161 (and the President's under Art 72) subject to **judicial review** — and on what grounds?
2. Whether the remission in G.O.Ms. No. 170/11-8-2005 was vitiated by **extraneous political considerations, non-application of mind, or suppression of relevant material**?
3. What is the relationship between constitutional clemency (Arts 72/161) and statutory remission (CrPC ss. 432/433)?

Arguments

Petitioners (victims' sons):

- The remission order rested on statements wholly irrelevant to clemency — the convict's political party work and election grievances — which do not appear in any permissible consideration of "remission of punishment".
- Pending criminal matters/material were not placed before the Governor; the order shows non-application of mind to the crime's gravity and its effect on the victims.
- Clemency is not immune from review where the record shows mala fide or extraneous factors — otherwise Art 161 becomes a license.

Respondent State/convict:

- Pardoning/remeasure of sentences is a **prerogative executive act** under Art 161 — courts cannot sit in appeal over its merits; the Governor is the constitutional authority and the advice received cannot be scrutinised (Art 163(3)/74(2) logic).
- The Governor considered the Government's recommendation and the material on file — the exercise of discretion is final; a convict's political affiliations were only part of the narrative, not the sole ground.

Decision

1. **G.O.Ms. No. 170 dated 11-8-2005 was QUASHED.**
2. **Executive clemency under Arts 72/161 is subject to limited judicial review.** The Court may examine whether the order suffers from: **(i) mala fide; (ii) extraneous/wholly irrelevant considerations; (iii) non-application of mind; (iv) suppression of relevant material.** Political considerations ("good Congress worker", electoral grievance) are **not permissible grounds** for remitting a murder sentence.
3. **Remitted back for fresh consideration** on all relevant, correctly ascertained material — i.e., the correct remedy is not rewriting mercy but ensuring a lawful process (the State may treat the clemency petition as pending and place the complete record before the Governor).
4. **Pardon vs remission distinction affirmed**: Art 72 (President) reaches court-martial sentences, Union-law offences and all death sentences; Art 161 (Governor) covers offences against laws within the State's executive power; **neither authorises acting on irrelevant grounds**. Statutory remission under CrPC ss. 432/433 (appropriate Government; now carried in the Bharatiya Nagarik Suraksha Sanhita, 2023) runs alongside constitutional powers — both are reviewable where the record shows illegality. (Pardon = extinguishes conviction; remission = reduces the sentence — but both are acts of the executive subject to constitutional limits.)
5. Earlier precedent noted: in *Swaran Singh*-type cases the Court had earlier quashed remission for absence of opportunity/material — the law has consistently denied absolute immunity to mercy.

by Ankur R. Upadhyay

Principle evolved
The pardoning/remission powers of the President (Art 72) and the Governor (Art 161) are **not** beyond judicial review: they are exercised within the Constitution and are struck down if the record shows **mala fide, extraneous or wholly irrelevant considerations, non-application of mind, or suppression of relevant material**; the remedy ordinarily is remission of the matter back for lawful reconsideration. Mercy is a constitutional power, not an executive whim — "**pleasure/licence**" logic of B.P. Singhal applied to Art 161.

PYQ ARCHIVE // CH.03 **Previous Year Questions (DU LL.B. Examinations)**

Q.1 CENTENARY CHANCE EXAMINATION · Q5(a) · ≈10 marks · (attempt any two of a–d) "Can a person convicted for an offence and disqualified to be a member of the Legislature be appointed as a Chief Minister?" — Answer with the relevant provisions of the Constitution and case laws.

▸ Refer website for detailed notes — makelaweasy.in · WhatsApp: +91 7021726891

Q.2 CENTENARY CHANCE EXAMINATION · Q5(b) · ≈10 marks "Can a person who is not a member of the Parliament be appointed as the Prime Minister of India?"

Q.3 CENTENARY CHANCE EXAMINATION · Q5(c) · ≈10 marks "Is it essential to have a Council of Ministers under Art. 74(1) even at a time when the House of the People has been dissolved or when its term has expired?"

Q.4 CENTENARY CHANCE EXAMINATION · Q5(d) · ≈10 marks "Can a Governor of a State overrule the advice of the State Council of Ministers refusing sanction to prosecute an ex-Minister for corruption?"

Q.5 DECEMBER 2024 EXAMINATION (LB-301) · Q5(b) · 10 marks "When can a non-legislator be made a Chief Minister or Minister under Article 164 of the Constitution of India? Support your answer with relevant legal provisions and judgments."

Q.6 DECEMBER 2024 EXAMINATION (LB-301) · Q7 · 20 marks "To what extent is the Lieutenant Governor of the NCT of Delhi bound by the aid and advice of the Council of Ministers of the government of NCT Delhi? Answer with the help of relevant constitutional law principles, legal provisions and judgments."

Q.7 DECEMBER 2024 EXAMINATION (LB-301) · Q8(a) · 10 marks "As per the Constitution of India, when can a Governor exercise discretionary power? Discuss with the help of relevant legal provisions and judgments."

MODULE 04 // TOPIC 4 · LEGISLATURES Cases #21–#30

Parliament and State Legislatures: Composition, Disqualifications, Legislative Process & Privileges

Articles 79–122 & 168–212 · Tenth Schedule · Representation of the People Act, 1951

Composition, representation and duration

Indian bicameralism is not uniform. At the Union level, both Houses are constitutionally essential and ordinary legislation normally needs both. At the State level, the Council is optional, can be created or abolished through Article 169, and generally exercises a suspensive rather than an equal veto.

Articles 79 and 168 · What constitutes the legislature?

Article 79: Parliament consists of the President, the Council of States and the House of the People. This is a constitutional description of the law-making institution; it does not make the President an MP or give the President an ordinary vote in either House. Bicameralism at the Union is compulsory within the present constitutional structure.

Article 168: every State has a legislature consisting of the Governor and either one House or two Houses. In a bicameral State the Houses are called the Legislative Council and Legislative Assembly; in a unicameral State the sole House is the Legislative Assembly. The Governor is not an MLA/MLC merely because the Governor forms part of the institution.

Functional difference: the political executive is accountable to Lok Sabha/Assembly under Articles 75(3)/164(2), not to the President/Governor as an independently governing political superior. Legislative membership and executive responsibility overlap in a parliamentary system, but constitutional heads have their own defined functions.

Textual list versus an actually functioning Council
The official 2024 Article 168 text includes editorially bracketed references to Madhya Pradesh and Tamil Nadu whose associated creation provisions were not brought into operation. Do not infer a functioning Council merely from an uncommenced textual amendment. The established Council framework familiar to this syllabus is Andhra Pradesh, Bihar, Karnataka, Maharashtra, Telangana and Uttar Pradesh. A current institutional count should always be checked against commencement notifications and subsequent Article 169 legislation, not an unqualified static list.

Article 80 · Rajya Sabha: constitutional maximum, election and nomination

1. **Clause (1):** twelve members nominated by the President plus not more than 238 representatives of States and Union territories: a constitutional ceiling of **250**, not an assertion that 250 seats are filled at any particular time.
2. **Clause (2):** allocation of territorial seats is governed by the Fourth Schedule. States do not enjoy the equal representation found in the US Senate. The Council is federal in representational purpose without a rule of numerical equality between States.
3. **Clause (3):** nominated members must have special knowledge or practical experience in literature, science, art or social service. Nomination enriches deliberation with expertise; it does not dispense with constitutional qualifications.
4. **Clause (4):** State representatives are elected by the *elected members of the State Legislative Assembly* using proportional representation by the single transferable vote. The entire State electorate does not directly elect them, and MLCs are not part of this constitutional electoral college.
5. **Clause (5):** Parliament determines by law the manner in which Union-territory representatives are chosen.

Related statutory provisions

RPA 1951 **Section 3** requires a person chosen as a State/UT representative to be an elector for a Parliamentary constituency *in India*. The statutory text records the 2003 substitution of "in India" for the previous State/territory formulation. Do not impose an obsolete same-State elector requirement. This particular section concerns territorial representatives; do not automatically treat its wording as a condition expressly written for Presidential nominees.

Section 154 ordinarily gives a Rajya Sabha member a six-year term. A member filling a casual vacancy ordinarily serves the unexpired term, not a fresh six years. Article 83 makes the chamber continuing; it does not itself state the individual six-year term.

Illustration: if a State has several Rajya Sabha seats becoming vacant together, preferential voting under STV can permit representation of more than one political formation. The number of seats allocated to the State still depends on the Fourth Schedule, not the number of first-preference votes cast.

Article 81 · Lok Sabha: territorial and population-based representation

Clause (1): not more than 530 members chosen by direct election from territorial constituencies in the States, and not more than 20 to represent Union territories, chosen in the manner Parliament provides by law. The elected-seat constitutional ceiling is therefore **550**. This is not the same thing as the number of currently allotted or occupied seats.

Clause (2)(a): the ratio between the seats allotted to a State and its population should, so far as practicable, be the same for all States. The proviso excludes States whose population does not exceed six million from this inter-State allocation requirement. **Clause (2)(b):** within a State, the population-to-seat ratio should, so far as practicable, be uniform across constituencies.

Clause (3): population normally refers to the last preceding census with published relevant figures, but the constitutional freeze retains the 1971 basis for inter-State allocation and the 2001 basis for intra-State constituency division until the relevant figures for the first census taken *after 2026* are published. The date 2026 does not by itself automatically redraw constituencies or enlarge Lok Sabha.

Article 169 · Creation or abolition of a State Legislative Council

1. **Initiating resolution:** the Legislative Assembly must pass a resolution supporting creation or abolition by (a) a majority of its total membership *and* (b) a majority of not less than two-thirds of members present and voting.
2. **Parliamentary law:** following the qualifying resolution, Parliament *may* provide by law for abolition of an existing Council or creation in a State without one. The Assembly resolution is not itself the creation/abolition instrument and does not legally compel Parliament to act.
3. **Consequential provisions:** the Parliamentary law may contain necessary amendments to the Constitution and supplemental, incidental and consequential provisions.
4. **Clause (3):** this law is not deemed a constitutional amendment for Article 368 purposes. Parliament does not need the Article 368 special majority merely because the Article 169 law makes the authorised consequential constitutional adjustments.

Worked majority: an Assembly has 200 members; 150 are present and 135 vote. Two-thirds of those voting is 90, but a majority of total membership requires at least 101. Consequently 100 affirmative votes fail, even though they exceed two-thirds of 135.

Rationale: the Constitution leaves States a locally initiated choice of a revising chamber while maintaining Parliament's role in altering the institutional framework. It is not a State-government executive decision, nor a matter the Council can veto under the Article 169 route.

Article 170 · Legislative Assemblies

Clause (1): the general range is not more than 500 and not less than 60 directly elected members from territorial constituencies. Special constitutional arrangements qualify the minimum: for example, Article 371F(a) provides a minimum of 30 for Sikkim, Article 371I a minimum of 30 for Goa, and Article 371G(c) a minimum of 40 for Mizoram. These are special minima, not necessarily the actual present membership of each Assembly.

Clause (2) and its explanation: constituency division should, as far as practicable, secure a uniform population-to-seat ratio within the State. Published census population ordinarily governs; the specified 2001 reference continues pending the first post-2026 census's relevant figures.

Clause (3): after each census, Assembly membership and territorial constituencies are readjusted by the authority and manner Parliament determines by law. Existing representation is protected until dissolution; the President specifies the effective date; the constitutional freeze distinguishes the total-seat 1971 basis from the territorial-division 2001 basis.

Link to representation: Article 332 provides SC/ST reservation in State Assemblies. Article 333's historical Anglo-Indian nomination must be read with the expiry rule in Article 334(b), just as Article 331 must at the Union level.

Article 171 · Legislative Councils: five channels of membership

Clause (1): total Council membership must not exceed one-third of total Assembly membership, subject to a minimum of forty. The forty-member minimum is a specific proviso; do not apply the fraction mechanically without reading it. **Clause (2)** makes the following composition applicable until Parliament otherwise provides by law.

Article 171(3)	Approximate share	Selection channel and elements
(a)	One-third	Electorates composed of members of municipalities, district boards and other local authorities specified by Parliamentary law.
(b)	One-twelfth	Electorates of State residents who have been graduates for at least three years, or possess qualifications Parliament treats as equivalent.
(c)	One-twelfth	Electorates of State residents who have, for at least three years in the preceding six years, taught in educational institutions within the State not lower in standard than a secondary school, as Parliamentary law prescribes.
(d)	One-third	Elected by members of the State Legislative Assembly, from persons who are **not Assembly members**.
(e)	Remainder, conventionally one-sixth	Nominated by the Governor according to clause (5).

Clause (4): elections under (a), (b), (c) and (d) use proportional representation by single transferable vote; Parliamentary law regulates the territorial constituencies for the first three categories. **Clause (5):** nominees have special knowledge or practical experience in literature, science, art, the co-operative movement or social service.

Important differences from Rajya Sabha: a Council represents differentiated functional electorates within a State; Rajya Sabha territorially represents States/UTs. Article 171 expressly includes the *co-operative movement*, whereas Article 80's nomination list does not. The graduate/teacher qualification is a qualification of the *electorate* for that category; it must not be carelessly converted into a universal requirement that every MLC hold a degree or be a teacher.

RPA connection: Section 6 requires an elected Council candidate to be an elector for an Assembly constituency in that State; a Governor-nominated Council candidate must be ordinarily resident in the State. Article 173 still supplies citizenship, oath and age qualifications. Section 156 supplies the ordinary six-year term and treatment of casual vacancies.

Articles 83 and 172 · Duration of institutions and terms of members

Institution	Constitutional rule	What follows
Rajya Sabha / State Council	Not subject to dissolution; as nearly as possible one-third retire every second year according to Parliamentary law.	The chamber continues even while individual seats turn over. Ordinary member term: six years under RPA ss. 154/156.
Lok Sabha / State Assembly	Five years from the date appointed for its first meeting, unless sooner dissolved; expiry itself operates as dissolution.	Do not count the five years from declaration of election results or from every member's individual oath date.
Emergency extension	While a Proclamation of Emergency operates, Parliament may by law extend the popular House's duration for no more than one year at a time, and not beyond six months after the Emergency ceases.	Extension is by Parliamentary law, not by the President/Governor merely issuing an order. The proviso does not make every kind of emergency proclamation interchangeable.

by Ankur R. Upadhyay

Case connection: the Gujarat Reference distinguishes the life of an existing Assembly under Article 172 from the frequency of its sessions under Article 174. Once dissolved, the outgoing Assembly has no "next session." *U.N.R. Rao*, discussed in the DU material, separately explains why dissolution does not eliminate the mandatory Union Council of Ministers.

Related constitutional representation provisions

Articles 330 and 332: provide reserved seats for Scheduled Castes/Scheduled Tribes in Lok Sabha/Assemblies, with specified territorial arrangements. The general constitutional reservation period in Article 334(a), extended by the 104th Amendment, runs to eighty years from commencement of the Constitution. **Articles 325–326:** prevent specified discriminatory exclusions from electoral rolls and provide adult suffrage for Lok Sabha/Assembly elections, subject to lawful disqualifications. Voter age eighteen is not the age for becoming an MP/MLA.

POST-2022 ENACTMENT · NOT DU TEXT

106th Amendment, 2023: women's reservation framework

The enacted framework inserts Articles **330A, 332A and 334A**, and amends Article 239AA for Delhi. It provides as nearly as possible one-third reservation for women in Lok Sabha, State Assemblies and the NCT Delhi Assembly, including one-third of the SC/ST-reserved direct-election seats within the relevant scheme. It does not establish an equivalent reservation in Rajya Sabha or Legislative Councils.

Article 334A links implementation to a delimitation exercise after publication of the relevant figures of the first census taken after the Amendment's commencement. It states a fifteen-year period from the specified commencement, contains a Parliamentary continuation provision, provides rotation after subsequent delimitation as Parliament determines by law, and protects existing representation until dissolution. **Enactment, statutory commencement, census publication, delimitation and operational reservation are separate steps.** No particular implementation year is assumed here.

Comparative evaluation for an examination answer

Bicameralism can improve scrutiny, continuity and plural representation, but it can also delay policy and create party-political conflict. The constitutional response differs by level: an ordinarily equal Union second chamber helps express federalism, while the optional State Council has restricted legislative and financial powers. Hence it is inaccurate to describe a State Council simply as a smaller Rajya Sabha. Establish the *constitutional purpose, composition and voting powers* before evaluating democratic legitimacy.

Sessions, participation and dissolution

Articles 85 and 174 · Summoning, prorogation and dissolution

Clause (1): the President/Governor summons each House to meet at such time and place as the constitutional head thinks fit; no six months may intervene between its last sitting in one session and the date appointed for its first sitting in the next session. This is a mandatory rule about the frequency of sessions of an existing House.

Clause (2): the President/Governor may prorogue either House and dissolve Lok Sabha/the Assembly. Rajya Sabha and a Legislative Council are not dissolved. The head's formal power must be understood within Articles 74 or 163 and the doctrine of responsible government, not as a routine personal political veto.

State discretion: the DU's *Nabam Rebia* note states that a Governor cannot use independent discretion to summon, prorogue or dissolve an Assembly while the Chief Minister commands its confidence. Doubt about majority can call for a constitutionally justified floor test. The Governor cannot simply take over the Assembly's agenda or use the office to settle an internal party dispute.

The Gujarat rule

Article 174 is not a general six-month deadline between the outgoing Assembly's last sitting and the incoming Assembly's first sitting. A dissolved Assembly has no "next session." Article 174 and Article 324 operate in different fields. Elections must nevertheless be organised promptly; the DU extract records the opinion that elections after premature dissolution *should* ordinarily be held within six months from dissolution under the overall constitutional/statutory scheme. See the full case analysis.

Articles 88 and 177 · Ministers and law officers in the legislature

Every Minister and the Attorney-General has the right to speak and otherwise take part in either House of Parliament, a joint sitting, and a Parliamentary committee of which the person is named a member. State Ministers and the Advocate-General have analogous rights in the State House(s) and a committee to which they are named. **The Article itself gives no right to vote.**

A Minister who is already a member retains voting rights *by virtue of that membership* in that member's own House. A non-member Minister cannot vote anywhere merely because of ministerial office. A Rajya Sabha Minister can participate in Lok Sabha, but does not acquire a Lok Sabha vote from Article 88.

Connection to *S.P. Anand*: participation without an immediate membership vote permits the temporary appointment of an otherwise eligible non-member while keeping the executive answerable to the popular House. Article 75(5)/164(4), not Article 88/177 alone, supplies the time restriction.

The non-member Minister rule: a four-stage test

Nuance: appointment power lies in Article 75(1)/164(1); Article 75(5)/164(4) is a cessation/restriction provision in the scheme. The person need not immediately be a member of Lok Sabha/the Assembly specifically: membership of either constitutionally relevant House suffices for the non-membership rule. Governmental accountability nevertheless remains to Lok Sabha/the Assembly.

Related 91st Amendment rules: Article 75(1A) caps the Union Council of Ministers, including the PM, at fifteen per cent of Lok Sabha membership. Article 164(1A) caps a State Council of Ministers, including the CM, at fifteen per cent of Assembly membership, subject to a minimum of twelve. Articles 75(1B) and 164(1B) bar specified defectors from ministerial appointment for the constitutionally stated period; Article 361B similarly addresses remunerative political posts. The six-month rule cannot circumvent these separate prohibitions.

Qualifications and disqualifications of members

A positive qualification determines whether a person can enter the legislature. A disqualification can prevent election or require an existing member to leave. Identification of the ground is only the first step: the time it arose, the relevant forum and the legal consequence must also be established.

Articles 84 and 173 · Positive qualifications

Element	Parliament · Article 84	State Legislature · Article 173
Citizenship and candidature oath	Citizen of India; makes and subscribes the Third Schedule oath/affirmation before a person authorised by the Election Commission.	Same citizenship and prescribed oath/affirmation requirement.
Minimum age	Rajya Sabha: 30. Lok Sabha: 25.	Council: 30. Assembly: 25.

Element	Parliament · Article 84	State Legislature · Article 173
Additional qualifications	Such other qualifications as Parliament prescribes by law.	Such other qualifications as Parliament prescribes by law—not a general power of each State to add electoral qualifications at will.

Oath content: true faith and allegiance to the Constitution as by law established and upholding the sovereignty and integrity of India. The candidature oath under Article 84/173 must be distinguished from the pre-seat oath under Article 99/188 and from a Minister's oaths of office and secrecy under Article 75(4)/164(3).

16th Amendment connection: *S.P. Anand* explains why the allegiance oath introduced at the candidature stage does not eliminate the six-month non-member Minister arrangement. Taking a legislative qualification seriously is not equivalent to requiring immediate membership as a condition for every ministerial appointment.

RPA 1951 Sections 3–6: the qualification matrix

Section	Operative qualification and special elements
3 · State/UT representative in Rajya Sabha	Elector for a Parliamentary constituency anywhere in India. The statutory text records the 2003 removal of the same-State/UT elector restriction.
4 · Lok Sabha	Ordinary seat: elector for any Parliamentary constituency. Reserved SC seats: membership of a Scheduled Caste of that or another State plus Parliamentary elector status. ST reservations have additional territorial exclusions/special rules for Assam autonomous districts and Lakshadweep. The Sikkim seat requires an elector for Sikkim's Parliamentary constituency.
5 · State Assembly	Ordinary seat: elector for an Assembly constituency in that State. SC/ST reserved seats ordinarily require membership of the relevant State's SC/ST group and State Assembly elector status. Special rules apply to Assam autonomous-district ST seats.
5A · Sikkim Assembly	Special qualifications for Bhutia-Lepcha, SC, Sangha and other seats. The Sangha seat requires an elector of the Sangha constituency; the other stated categories combine community qualification and the appropriate State Assembly electorate.
6 · State Council	Election: elector for an Assembly constituency in the State. Governor nomination: ordinarily resident in that State. This is distinct from the special graduate/teacher electorate requirements in Article 171.

Reserved versus general seats: RPA Section 55 allows an SC/ST member to contest a non-reserved seat if otherwise qualified. Reservation is not a prohibition on broader candidature. The Act's territorial details matter: do not write "a candidate can contest every reserved seat anywhere" as a universal rule.

Articles 100 and 189 · Voting, validity despite vacancies, and quorum

1. **Default voting rule:** save as otherwise provided, decisions are by a majority of members present and voting. Abstentions are not affirmative/negative votes in that denominator. The presiding officer does not vote initially, but has and exercises a casting vote on an equality.
2. **Vacancies:** a House can act despite vacancies. Proceedings are not invalid merely because it is subsequently discovered that an unentitled person sat, voted or participated. This institutional saving does not legalise that person's conduct or remove the Article 104/193 penalty.
3. **Parliamentary quorum:** until Parliament otherwise provides by law, one-tenth of the total membership of the House.
4. **State quorum:** until State law otherwise provides, ten members or one-tenth of total membership, *whichever is greater*.
5. **Absence of quorum:** the presiding officer must adjourn or suspend the meeting until quorum exists.

Worked examples: in a hypothetical 60-member Assembly, the default quorum is 10, not 6. In a 200-member Assembly it is 20. If 100 members vote on an ordinary motion and 20 others abstain, an ordinary majority is 51 of the 100 votes, subject to the presiding officer rules—not 61 of the 120 present.

Special-majority caution: Article 169's dual majority, presiding-officer removal's effective majority, and Article 368's constituent majority are express departures from the default. Always identify the motion before choosing the denominator.

Articles 102 and 191 · Constitutional grounds of disqualification

The opening words apply to **"being chosen as, and for being"** a member. The same constitutional disqualification standards govern election and continued membership. Clause (1) supplies five grounds; clause (2) separately incorporates the Tenth Schedule.

Ground	Elements which must be proved	Important limitation
(a) Office of profit	An office; profit attached; held under the Union or relevant State government; no applicable legislative exemption.	For MPs, exemption is by Parliamentary law. For State members, it is by State legislative law under Article 191(1)(a). Ministerial office alone does not disqualify under the constitutional explanation.
(b) Unsoundness of mind	Unsound mind *and a declaration by a competent court*.	A political allegation, a medical rumour or unusual behaviour is not the constitutional court declaration.
(c) Undischarged insolvency	Legal status as an undischarged insolvent.	Ordinary debt or financial difficulty is not synonymous with that legal status.
(d) Citizenship/ allegiance	Not an Indian citizen; voluntarily acquired foreign citizenship; or acknowledgment of allegiance/ adherence to a foreign State.	Citizenship qualification and prohibited foreign allegiance are distinct stated routes.
(e) Parliamentary law	Disqualified by or under a law made by Parliament.	RPA ss. 8–10A are central examples. This is not an independent State power to create arbitrary additional disqualifications.
Clause (2)	Disqualification under the Tenth Schedule.	Separate grounds and adjudicative machinery; do not route every defection case through the President/Governor–ECI mechanism.

Lily Thomas **principle:** Parliament's specific power to create disqualifications cannot be used to maintain an incumbent-only exception inconsistent with these opening words and the vacancy provisions. The office-of-profit exemption under clause (1)(a), however, is an expressly authorised and analytically different legislative power.

Office of profit: analyse all four limbs, not only payment

Purpose: preserve legislative independence from executive patronage and conflicting obligations. The Constitution adopts parliamentary government, so it expressly excludes ministerial office alone from the disqualification. This is a tailored exception, not a doctrine that every government-linked position held by a politician is harmless.

Related enactment: the Parliament (Prevention of Disqualification) Act, 1959 identifies exempted offices and conditions. Section 2's compensatory-allowance concept and Section 3's exemptions make the nature of remuneration legally important. The 2006 Amendment added exemptions and retrospective validation, analysed in *Consumer Education*. State exemption Acts must be considered when the alleged disqualification concerns an MLA/MLC. A State exemption relevant to State membership is not automatically the Parliamentary exemption needed for an MP.

Real case: Jaya Bachchan's appointment carried an honorarium and facilities, although she said she did not use them. Waiving a receivable benefit did not transform the office into a non-profit office. **Hypothetical:** a statutory committee reimburses only verified train fares and actual hotel costs; that must be distinguished from a fixed monthly allowance capable of yielding a personal gain.

RPA Section 8 · Three distinct conviction routes

Route	Trigger	Duration in the statute
8(1)	Conviction for a specifically listed offence. Do not assume a two-year sentence is necessary for this subsection.	Fine only: six years from conviction. Imprisonment: from conviction and a further six years after release.
8(2)	Contravention of a law preventing hoarding/profiteering, a law concerning food/drug adulteration, or the Dowry Prohibition Act, plus imprisonment of at least six months.	From conviction and a further six years after release.
8(3)	Any offence other than those in (1)/(2), with imprisonment of at least two years.	From conviction and a further six years after release.
Former 8(4)	Incumbent-only postponement for three months and then during a timely appeal/revision.	**Invalidated in *Lily Thomas*, 2013.** Not an operative saving merely because its historical text appears in the statutory text.

What does—and does not—stop a conviction disqualification?

A pending prosecution alone: ordinarily not a conviction trigger under Section 8. **Conviction with the applicable sentence:** triggers the appropriate rule. **Filing an appeal:** no general automatic protection after *Lily Thomas*. **Bail/suspension of execution of sentence:** does not eliminate the conviction or the sentence imposed; *B.R. Kapur*. **Express stay of conviction:** disqualification will not operate while the stay is effective; *Lok Prahari v. ECI*. **Acquittal on appeal:** different from a temporary stay; its legal effects must be assessed in the particular election/seat setting.

Sentence date nuance: *Kapur* notes that if conviction and sentence occur on different dates, the cumulative Section 8(3) trigger is established when the qualifying sentence is imposed. Do not say that a disqualification requiring a sentence exists before any qualifying sentence has been awarded.

Temporal nuance: *Lok Prahari* concerns the non-operation of disqualification on an effective stay; it does not erase the conviction as if there had been an appellate acquittal, nor mechanically resolve all consequences where a bye-election has already intervened.

> **Criminal-procedure connection**
> The DU cases discuss **CrPC Section 389**, which permits suspension of execution of sentence/order pending appeal. Its modern counterpart is **BNSS Section 430**. BNSS Section 531's repeal-and-savings framework means the governing procedure for an older pending matter must be checked; do not retrospectively rename the provision cited in a 2001/2018 judgment. A stay of conviction requires a specific judicial order and exceptional justification, not merely the ordinary bail order.

Tenth Schedule · Anti-defection in its proper place

The 52nd Amendment introduced the Tenth Schedule; the 91st Amendment removed the former split exception and strengthened related ministerial restrictions. Article 102(2)/191(2) incorporates the Schedule. It is distinct from the criminal conviction and office-of-profit regimes.

Paragraph	Substance and examination elements
1 · Interpretation	Defines "House," "legislature party" and "original political party." The party which set up the elected member is central to the deeming rules; a nominated member's initial affiliation is separately dealt with.
2(1)(a) · Party member	Voluntarily gives up membership of the political party. Formal written resignation is not the only possible evidence; conduct can matter.
2(1)(b) · Voting/abstention	Votes or abstains contrary to a direction from the party or authorised person/authority, without prior permission; no condonation within fifteen days. Identify the valid direction, the conduct, prior permission and timely condonation.
2(2) · Independent	An independently elected member is disqualified on joining a political party after election.
2(3) · Nominated member	Joining a political party after six months from taking the seat attracts disqualification; the first six months operate differently.
Former 3 · Split	Omitted by the 91st Amendment. A one-third split is not a current defence.
4 · Merger	Qualifying merger and the statutory deeming condition involving not less than two-thirds of legislature-party members. Members accepting merger, and those electing to function as a separate group in the prescribed situation, receive the stated protection. Do not turn "two-thirds" into a free-standing licence to ignore the other merger elements.
5 · Presiding officers	Specified exemption for a member elected to a listed presiding office who gives up party membership for that election and remains unaffiliated while holding it, with the stated protection for rejoining after leaving office.
6 · Decision	Speaker/Chairman decides; where the question concerns the presiding officer's own disqualification, a House-elected member decides. Finality and deemed-proceedings language do not eliminate constitutional review.
7 · Court bar	Invalidated in *Kihoto Hollohan* because the change to Supreme Court/High Court jurisdiction required State ratification. The rest of the Schedule survives.
8 · Rules	Speaker/Chairman may frame implementation rules; prescribed laying/House approval and modification mechanism applies. House-specific 1985 defection rules regulate references, petitions and procedural steps.

Review standard: the Speaker acts as an adjudicatory tribunal for paragraph 6, not as a sovereign chamber immune from all legal control. The DU *Raja Ram Pal* extract quotes *Kihoto* to explain that finality cannot eliminate review for jurisdictional error and recognised constitutional defects. Courts do not normally conduct a fresh political merits vote in place of the Speaker.

Practical caution: resignation does not necessarily erase the legal consequences of earlier defection; a party dispute does not automatically justify a Governor-ordered floor test. The relevant Speaker adjudication, executive majority and legitimate legislative proceedings are distinct questions. This is a constitutional framework note, not a purported complete survey of every post-2022 defection decision.

From proposal to law

> Do not use one legislative route for every Bill. The applicable House of introduction, role of the second chamber, recommendation requirement, deadlock mechanism and assent procedure depend on the Bill's constitutional category.

Articles 107 and 196 · Introduction, passage and lapse of ordinary Bills

1. **House of introduction:** subject to the special Money/financial-Bill rules, an ordinary Bill can originate in either House. Article 196 permits the same in a bicameral State; a unicameral State necessarily has only the Assembly route.

2. **Agreement:** Parliamentary passage ordinarily requires both Houses to agree, either without amendment or with amendments agreed by both. At State level this is subject to Articles 197 and 198, which limit Council power.
3. **Prorogation:** a Bill pending in the legislature does not lapse merely because a session is prorogued.
4. **Continuing upper House:** a Bill pending in Rajya Sabha/Council which has not been passed by Lok Sabha/Assembly does not lapse on dissolution of the popular House.
5. **Popular-House involvement:** a Bill pending in Lok Sabha/Assembly, or passed by it and pending in the upper House, lapses on its dissolution, subject to the Parliamentary joint-sitting exception in Article 108.

Why this pattern? the dissolved popular House's unfinished legislative will cannot automatically bind its successor. A Bill whose only pending parliamentary stage is in the continuing upper House and which was never passed by the dissolved House has no equivalent attribution to that dissolved popular House.

Assent-stage distinction: a Bill which has completed the legislative passage stage and awaits constitutional assent is not simply a Bill still "pending in" the House. The lapse provisions must be applied to their wording and stage, not to every unfinished executive formality indiscriminately.

Lapse and continuation: rapid scenario table

Event	Result
Session ends by prorogation	Pending Bill does not lapse merely for that reason.
Lok Sabha dissolves; Bill pending only in Rajya Sabha, not passed by Lok Sabha	Does not lapse under Article 107(4).
Lok Sabha dissolves; Bill pending in it or passed by it and pending in Rajya Sabha	Normally lapses under Article 107(5).
Joint-sitting intention notified, then Lok Sabha dissolves	Article 108(5) allows the notified joint sitting to continue.
Assembly dissolves; Council-only Bill not passed by Assembly	Does not lapse under Article 196(4).
Assembly dissolves; Bill pending in Assembly or passed by it and pending in Council	Lapses under Article 196(5); no State Article 108 substitute.

Financial procedure: authorisation, not merely announcement

A budget statement estimates receipts and expenditure; a demand for grant seeks the popular House's approval; an Appropriation Act authorises withdrawals; taxation requires its own lawful authority. These are different legal steps, even when considered within one budget process.

Articles 112 and 202 · Annual financial statement

For every financial year the President/Governor causes a statement of estimated receipts and expenditure to be laid before both Parliamentary Houses or the State House(s). The Articles use *annual financial statement*; "Budget" is the conventional description.

Separate presentation: estimates must distinguish (i) expenditure charged on the Consolidated Fund and (ii) other expenditure proposed from that Fund. They must also distinguish revenue-account expenditure from other expenditure.

Charged items at the Union level

- President's emoluments/allowances and expenditure relating to the office.
- Rajya Sabha Chairman/Deputy Chairman and Lok Sabha Speaker/Deputy Speaker salaries/allowances.
- Union debt charges: interest, sinking-fund and redemption charges and other listed borrowing/debt-service costs.
- Specified judicial remuneration: Supreme Court salaries, allowances and pensions; the stated legacy Federal Court pensions and relevant High Court pensions.
- **Comptroller and Auditor-General's salary, allowances and pension**—expressly charged under Article 112(3)(e), distinct from CAG office administration in Article 148(6).
- Sums required to satisfy a judgment, decree or award of a court or arbitral tribunal.
- Any other expenditure declared charged by the Constitution or by Parliamentary law—for example, the separate constitutional provision concerning CAG expenditure in Article 148(6).

Charged items at State level

Governor's emoluments/allowances and office expenditure; salaries/allowances of Assembly Speaker/Deputy Speaker and Council Chairman/Deputy Chairman; State debt charges; High Court judges' salaries/allowances; judgment/decree/award payments; and expenditure otherwise constitutionally or statutorily declared charged.

Subtle distinction: the Article 202 judicial item concerns High Court salaries and allowances; Article 112 contains the specified High Court pension provision. Do not simply transplant the Union list word-for-word into a State answer.

Why charging matters: it protects specified constitutional obligations from ordinary grant-voting pressure. It does not eliminate the legislature's ability to discuss them or the need for a lawful appropriation.

Articles 117 and 207 · Financial Bills: recommendation and bicameralism

Clause (1): a Bill or amendment making provision for the enumerated financial matters in Article 110(1)(a)–(f), or Article 199(1)(a)–(f), needs Presidential/Gubernatorial recommendation for introduction/moving. Such a Bill cannot be introduced in the upper House. An amendment merely reducing or abolishing a tax does not require the recommendation under this clause.

Clause (2): fines, pecuniary penalties, licence/service fees and local-authority taxes for local purposes do not, *by reason only* of their presence, create the clause (1) financial matter.

Clause (3): a Bill which, if enacted, would involve expenditure from the Consolidated Fund must not be passed by a House unless the President/Governor has recommended its consideration to that House. This is a *consideration/passage* requirement, not an automatic prohibition on introduction in the upper House.

Category	Introduction	Recommendation stage	Second chamber
Money Bill	Popular House only	Financial recommendation under cl. (1)	Recommendations only; fourteen days; no Parliamentary joint sitting.
Financial Bill commonly called Category I	Popular House only; financial (a)–(f) provisions *plus other, non-incidental provisions*	Introduction/moving stage under cl. (1)	Parliamentary ordinary bicameral consent; joint sitting possible where Art. 108 conditions hold. In a State, Council restrictions under Art. 197 apply.
Financial Bill commonly called Category II	Either House where bicameral; expenditure Bill not within cl. (1)	Recommendation for consideration before passage under cl. (3)	Ordinary route, not Money Bill recommendations-only treatment.

Terminology: "Category I/II" is a teaching classification, not the exact caption used by the Constitution. A Bill may be called a Finance Bill in political discussion; its legal category still depends on its contents and the Articles.

Related Article 255: specified defects concerning recommendation/previous sanction may be cured where the constitutionally relevant assent has been given under its terms. Do not generalise that provision into a licence to ignore all financial procedure or to cure lack of legislative competence. Identify the exact recommendation and assent involved.

Legislative privileges and the courts

A privilege exists to enable the legislature to perform its constitutional functions, not to create a superior class of citizens. The core DU progression is *Keshav Singh* → constitutional judicial control; *Raja Ram Pal* → expulsion power recognised, but its exercise remains reviewable within defined limits.

Articles 105 and 194 · Four clauses, four legal functions

Clause	Content	Interpretive point
(1)	Freedom of speech in Parliament/State legislature, subject to the Constitution and procedural rules/standing orders.	Institutional speech freedom is not identical to ordinary Article 19(1)(a) freedom. The House can regulate decorum and constitutionally prohibited discussion.
(2), first limb	No member is liable to proceedings in any court in respect of anything said or any vote given in the House or its committee.	Protection attaches to the speech/vote in the constitutional legislative setting. A speech at a public rally is not protected merely because the speaker is an MP.
(2), second limb	No person is liable in court for publication by or under the authority of a House of a report, paper, votes or proceedings.	Authorised publication is distinct from a private media republication. The protection is not confined to members.
(3)	Other powers, privileges and immunities may be defined by Parliamentary/State law; until so defined the specified pre-44th-Amendment privileges continue.	The historical House of Commons reference explains their origin, but does not transplant British sovereignty or every historically incompatible Commons power.
(4)	These provisions also apply to constitutionally entitled non-members who may speak/participate, such as Ministers and the Attorney-General/Advocate-General.	Participation rights can support corresponding speech protection without creating a general House vote or converting the participant into a member.

The 44th Amendment: change of formulation, not removal of privilege

Originally the residual clause expressly referred to privileges of the House of Commons at commencement of the Constitution. The 44th Amendment replaced that formulation with the privileges of the Indian House and its members/committees immediately before the coming into force of the relevant amending section—Section 15 for Article 105, Section 26 for Article 194. *Raja Ram Pal* treats the removal of the British reference as cosmetic for the interpretive question before it, not a destruction of the inherited powers.

Codification: there is no comprehensive Union code cataloguing all privileges in the DU case's setting. Particular enactments can regulate defined aspects, and House rules regulate procedure. A rulebook is not automatically the same thing as a law comprehensively defining the substantive residual privilege.

Individual and collective privileges

Individual protections

- Legislative speech and vote immunity.
- Corresponding protection for constitutionally entitled participants.
- Specified civil-arrest protection connected to attendance, not immunity from criminal law.
- Protection against interference, threats or obstruction which prevents members from performing legislative functions.

House/committee powers

- Regulate proceedings and maintain order.
- Exclude strangers where appropriate.
- Control authorised publication and protected/confidential proceedings.
- Require witnesses and documents in its lawful committee sphere.
- Punish breach of privilege or contempt.
- Discipline members, including expulsion in the circumstances recognised by *Raja Ram Pal*.

Functional connection: obstruction of a committee's lawful inquiry is a different matter from disagreement with a member's politics. A privilege claim must identify the protected function and the actual interference. Parliamentary dignity cannot become a formula for suppressing all public criticism.

Civil arrest: CPC Section 135A protects specified legislative members from arrest/detention under civil process during attendance at a House/committee or joint meeting and during the forty days before and after the relevant meeting/sitting/session within the provision's terms. It is not a bar on arrest for a criminal offence or a general immunity from preventive detention. The distinction is procedural and functional, not a declaration that members are above ordinary law.

Related law: the Parliamentary Proceedings (Protection of Publication) Act, 1956 concerns protection of the specified reporting/publication; it is not a wholesale codification of every parliamentary privilege.

Publication: three different routes

Publication	Legal basis	Limits
By/under House authority	Articles 105(2)/194(2)	Constitutional authorised-publication protection; identify actual authority.
Substantially true newspaper report of House proceedings	Article 361A, plus the relevant statutory protection	Protection against the specified civil/criminal court proceedings unless publication is proved malicious; does not apply to a secret sitting.
Broadcast report covered by Article 361A(2)	Extension of the substantially true reporting protection to the specified broadcast form	Same constitutional conditions; not a universal exemption for every online allegation.

Searchlight **context in the DU extract:** *M.S.M. Sharma* concerned publication of expunged parts of Assembly proceedings. The Court's treatment of Article 19(1)(a) and residual privilege cannot be restated as a modern, unconditional rule that any substantially true report is punishable. Article 361A and the precise nature of the published material must now be included.

Ankur R. Upadhyay

Connected rules and protections, in practical detail

Rule/protection	Operative detail	Why it is distinct
Lok Sabha 222–224	Speaker consent; written notice to Secretary-General by 10.00 hours on the proposed day, with the underlying document if based on one. Later notices are treated as received next sitting day. Rule 224 requires a specific recent matter needing House intervention; not more than one at the same sitting.	These are admissibility/notice controls, not an adjudication that the accused is guilty.
Lok Sabha 225	Short relevant statement while seeking House leave. If leave is opposed, at least 25 members must rise in support. The Speaker has the rule's urgency discretion.	Presiding-officer consent and leave of the House are not the same procedural step.
Lok Sabha 226–228	The House may decide or refer to the Privileges Committee; Speaker may independently refer; Speaker may issue procedural directions.	A committee investigates/ recommends; its report must not be treated as identical to every final House sanction.
Lok Sabha 229–231	Immediate intimation of arrest/detention/conviction and release, with reasons/place in the prescribed form; announcement in House or Bulletin, subject to the rule's proviso.	Information rights coexist with lawful criminal arrest; they are not criminal immunity.
Lok Sabha 232–233	Speaker permission for arrest or civil/criminal service of process within House precincts.	Protection of the premises/process differs from complete exemption from ordinary legal liability.
Rajya Sabha 187–203	Chairman consent, notice, admissibility, leave and reference framework. The official committee-rules extract states a ten-member Privileges Committee and quorum of five, with inquiry/evidence/report provisions.	Apply that House's rules; do not substitute Lok Sabha notice timings automatically.
Custodial contempt punishment	The Secretariat guide describes legislative contempt imprisonment as limited by the duration of the session, ending with prorogation in this privilege context.	It is not a sentence after an ordinary criminal trial; detention legality remains reviewable under *Keshav Singh*.
CPC 135A	Specified protection against arrest/detention *under civil process* for House/committee/ joint-meeting attendance and the stated forty-day periods; re-arrest after protected release is subject to the provision.	Neither preventive-detention nor criminal-offence immunity follows.

Ethics complaints are not automatically privilege notices

The 2019 Lok Sabha rulebook's Rules 233A–233B separately regulate ethics complaints: a written complaint, identity and substantiating evidence; a non-member's complaint is forwarded/countersigned by a member and supported by the stipulated affidavit. Complaints must be in good faith, respectful and in Hindi/English or accompanied by a signed translation. Merely unsubstantiated media reports are insufficient. The committee does not take up a matter it treats as sub judice. Speaker may refer unethical conduct independently.

These provisions were added in 2015: do not pretend they governed the 2005 proceedings in *Raja Ram Pal*. Ethical misconduct, a specific privilege breach, criminal liability and sitting disorder have different procedural routes even when the same conduct may engage more than one.

Breach of privilege and contempt: overlapping, not identical

Breach of privilege is infringement of a particular recognised privilege. **Contempt of the House** includes conduct obstructing or impeding the House, members or committees in their functions, or conduct having a relevant tendency to do so. A contempt need not always be pleaded as infringement of one narrowly enumerated individual privilege.

Potential situations: obstructing a member from attendance; intimidating a witness; deliberately misleading a competent committee; unauthorised disclosure of protected committee material; misconduct with a direct legislative connection such as taking money to raise questions. The constitutional and factual nexus must be established; an insult uttered in public is not automatically enough in every case.

Procedure under the rules, not punishment by allegation

The Lok Sabha privilege framework begins with Speaker consent (Rule 222), written notice (Rule 223), admissibility considerations (Rule 224) and the mode of raising the question (Rule 225). The House can consider it or refer it to the Committee of Privileges (Rule 226); the Speaker has the stated reference power under Rule 227. The committee's inquiry/report and the House's decision supply the relevant procedural setting. Rajya Sabha uses its own rules, including the privilege provisions in Rules 187–203 ([1]); State legislatures have their own Article 208 rules.

The procedure is not identical to a criminal trial. Nevertheless, a reasonable opportunity to answer the allegations is material, and gross denial of natural justice may take the matter outside a mere procedural-irregularity complaint. The House—not a private broadcaster—ultimately exercises its constitutional disciplinary authority.

Discipline: warning, withdrawal, suspension, contempt and expulsion

The DU *Raja Ram Pal* extract records disciplinary measures including admonition, reprimand, withdrawal, suspension, imprisonment for contempt and expulsion. Each should be distinguished by legal source, purpose and consequence. Suspension normally excludes participation for the specified period without terminating membership; expulsion ends membership. Neither label automatically establishes a criminal conviction.

Lok Sabha rules connection: Rules 373, 374 and 374A address withdrawal and the specified suspension mechanisms for disorder. They should not be confused with the residual constitutional expulsion power or with RPA disqualification. Rule-specific time limits and conditions must be applied to the exact measure imposed.

Expulsion is not an extra RPA criminal disqualification: the majority in *Raja Ram Pal* recognises expulsion within Article 105(3)'s power to protect the House's integrity. Expulsion does not, merely as expulsion, disqualify a person from standing again. If a separate statutory disqualification exists, it operates independently.

Concurrent legal spheres: institutional discipline and criminal prosecution can proceed in distinct spheres. A House may act on conduct undermining its integrity without waiting for a criminal conviction, but cannot thereby grant criminal immunity or conduct every ordinary criminal trial itself.

Articles 122 and 212 · Protection from procedural challenges

Clause (1): the validity of legislative proceedings must not be questioned on the ground of an alleged *irregularity of procedure*. **Clause (2):** an officer/ member vested with authority under the Constitution to regulate procedure, conduct business or maintain order is not subject to court jurisdiction in respect of exercise of those powers within the constitutional protection.

What the shield does not mean: Parliament is not sovereign in the British sense; it is not the sole final judge of the existence and scope of every privilege it claims. Constitutional courts may examine substantive illegality, jurisdictional excess and constitutional violation. The Court distinguishes the House's ordinary internal procedural control from an asserted authority to override the Constitution.

Grounds and restraint must both be included: the Court respects the legislature as a co-ordinate organ, presumes regularity unless rebutted, and does not decide the necessity/expediency of discipline or reweigh the evidence as an appellate chamber. It can nevertheless intervene for gross illegality, violation of constitutional mandate or the recognised serious defects described in *Raja Ram Pal*.

Privileges and fundamental rights: avoid both absolutisms

The DU account of *M.S.M. Sharma* treats the specific constitutional privilege as controlling the particular Article 19(1)(a) complaint. *Keshav Singh* clarifies that this is not a blanket doctrine that every fundamental right must yield. Article 21 remains relevant, and the constitutional writ jurisdiction cannot be defeated by an unexplained general warrant. *Raja Ram Pal* rejects the broad argument that privilege cannot ever be tested against constitutional provisions and fundamental rights; it particularly identifies complaints under Articles 20 and 21.

The proper method is harmonious construction: protect the specific speech/vote immunity where applicable, but do not extend residual privilege beyond the Constitution. Saying "fundamental rights always override every privilege" is as inaccurate as saying "privilege overrides every fundamental right." Identify the clause, protected act, claimed right and nature of the interference.

POST-DU UPDATE · 4 MARCH 2024

Sita Soren v. Union of India · 2024 INSC 161

A unanimous seven-judge Bench overruled the bribery-immunity aspect of the majority decision in *P.V. Narasimha Rao*. A legislator cannot claim Article 105(2)/194(2) immunity from prosecution for accepting a bribe connected with a speech or vote.

- **Two-fold test for an individual privilege claim:** it must be tethered to the collective functioning of the House and necessary to the discharge of the essential duties of the legislator.
- **Bribery is distinct:** accepting illegal gratification is not essential to making a free speech or vote. The offence is complete independently of whether the promised vote is cast, cast in a different direction or not cast at all.
- **Separate jurisdictions:** House discipline and a criminal court's prosecution have distinct scope, purpose and consequences.
- **Scope of legislative protection:** relevant electoral functions such as Rajya Sabha elections cannot be excluded merely because they are not law-making at a sitting. That protection of the vote does not immunise a separate bribery transaction.
- **No guilt finding implied by immunity rejection:** denying constitutional immunity is not a substitute for the prosecution proving the offence under the applicable criminal law.

Connection to the DU core: *Raja Ram Pal* protects legislative integrity through discipline subject to review. *Sita Soren* prevents the same constitutional privilege from being inverted into a shield for the corruption which damages that integrity.

Why constitutionalism matters here

Constitutionalism denotes government limited by law and institutional checks. This topic supplies concrete examples: a Governor cannot install a disqualified majority-party leader; Parliament cannot invent an unconstitutional incumbent saving; a House can maintain integrity but not retaliate against a court for exercising lawful jurisdiction. These illustrate **limited government**, not a judicial claim to run all legislative business.

Prescribed Landmark Case Laws — Detailed Analysis

CASES #21–#30

CASE #21 DU LL.B. PRESCRIBED AUTHORITY

S.P. Anand v. H.D. Deve Gowda

(1996) 6 SCC 734 · A.M. Ahmadi CJI and Sujata V. Manohar J

Cross-Reference: For full factual matrix and counsel contentions in S.P. Anand v. H.D. Deve Gowda, see Module 03 · Case #16.

Holding in one line: an otherwise eligible person who is not a member of either House may be appointed Prime Minister, subject to the six-consecutive-month rule and confidence of Lok Sabha.

2. Issues

1. Does the permission for a non-member "Minister" under Article 75(5) include the Prime Minister?
2. Does the Prime Minister's special constitutional/political status require immediate Parliamentary membership even if ordinary Ministers need not be members?
3. Is the temporary arrangement incompatible with democratic legitimacy and collective responsibility?
4. Can a British convention requiring membership be imported to displace the express Indian constitutional scheme?

5. Reasoning: how the Court reached the result

Text and structure: Article 75 is captioned "Other provisions as to Ministers." There is no separate membership rule excluding the PM from the non-membership clause. The Constitution recognises the PM's leadership but uses the same office oath and collective-responsibility structure for the Council. The special status of the head does not establish a different eligibility rule which the text does not contain.

Democratic accountability: direct election of the PM by the entire electorate is not the constitutional method. The President appoints the person able to command Lok Sabha confidence; the Council remains collectively answerable to that House. A non-member PM does not therefore govern free of Parliamentary scrutiny.

Comparative Articles: the Court places Union and State ministerial provisions alongside each other. Article 164(4) had already been interpreted to allow appointment of someone not a State legislator at all, not only continuance of a sitting Minister who subsequently lost a seat. The corresponding Article 75(5) serves the same temporary-accommodation purpose.

Constituent Assembly intention: the rejected proposal that only already elected members could be appointed Ministers supports the temporary appointment construction. The six-month condition is a real limit, not a permanent exception to representative government.

Conventions: a convention fills a constitutional silence; it cannot contradict an express permissive scheme. The claimed British convention was not the controlling Indian practice.

6. Decision and operative order

The petition was dismissed. The interim stay affecting proceedings pending elsewhere was vacated; those proceedings were to be disposed of in accordance with this ruling. The appointment was not unconstitutional merely because the PM was a non-member at appointment.

7. Ratio and principle

Article 75(5), read with Articles 74–75 and the parallel State provisions, covers the Prime Minister. An otherwise eligible non-member may be appointed temporarily; continued office beyond six consecutive months requires membership of either House. Collective responsibility to Lok Sabha supplies the democratic accountability during that period.

by Ankur R. Upadhyay

CASE #22 DU LL.B. PRESCRIBED AUTHORITY

B.R. Kapur v. State of Tamil Nadu

(2001) 7 SCC 231 · Five-judge Bench; DU extract of S.P. Bharucha J's opinion

Holding in one line: the six-month non-member Minister rule does not permit appointment of a person presently disqualified from legislative membership; majority support and suspension of sentence execution do not cure it.

1. Facts that matter legally

Jayalalithaa had been Chief Minister of Tamil Nadu from 1991 to 1996. The DU factual introduction records convictions in two criminal cases relating to offences during that tenure, with imprisonment of three years and two years respectively and fines. The fines were paid. Criminal appeals were pending. The High Court suspended execution of the imprisonment sentences and granted bail, but applications to stay the operation of the conviction judgments were rejected.

For the 2001 Assembly election she filed nominations in four constituencies. The DU material records that three were rejected on Section 8(3) disqualification and the fourth because candidature exceeded the permissible two seats. She did not challenge those rejection orders. AIADMK won 132 of 234 seats and chose her as leader. She was sworn in as CM on 14 May 2001 although not an Assembly/Council member. The appointment was challenged through the proceedings considered by the Supreme Court.

2. Issues

1. Can Article 164(1), read with 164(4), permit a six-month CM/Minister who is constitutionally/statutorily ineligible to become a legislator?
2. Does suspension of execution of sentence remove the Section 8(3) disqualification?
3. Must disqualification await a final appellate conviction, or does the trial-court conviction and qualifying sentence operate presently?
4. Can the political mandate or the Governor's appointment insulate the appointee from quo warranto?
5. How should the Court protect otherwise lawful governmental acts already performed by the invalid appointee?

3. Petitioner's arguments recorded in the DU introduction

- Article 164(4) accommodates a competent but non-member person; it is not a route for an ineligible person.
- The duty to obtain membership within six months necessarily presupposes ability to contest and acquire membership at the appointment stage.
- Articles 163, 164, 173 and 191 must be read together with the RPA, not in isolated literal fragments.
- The non-member appointment is an exception to representative ministerial government and must preserve the standards expected of legislators.
- Collective responsibility under Article 164(2) supports accountability rather than an eligibility-free executive class.

4. Respondents' arguments, recorded and addressed in the extract

- **Article 164(4) has no express qualification list:** it should allow a short-term Minister for six months even if currently unable to contest.
- **Suspension argument:** since imprisonment was suspended, the disqualification should also be regarded as suspended; the sentence was said to be the decisive element in Section 8(3).
- **Finality/presumption argument:** disqualification should await final appellate affirmation; the accused should continue to receive the presumption of innocence during appeal.
- **Former Section 8(4) analogy:** the incumbent-saving principle should be extended/read down to protect non-legislators, or disqualification should be postponed generally.
- **People's will:** the successful party's election and choice of leader constituted a democratic mandate which the Governor should follow. Interference would enter the "political thicket."
- **Governor's institutional limits:** the Governor had no detailed trial-like machinery to determine every possible qualification dispute, and the appointment should not be undone through quo warranto.
- **Possible future acquittal:** her appeal might succeed before the remaining six-month window expired, so the Court should refrain from immediate removal.

5. Step-by-step judicial answer

Harmonious reading of Article 164: clauses (1), (2) and (4) are read as one scheme. The Governor appoints; the Council is answerable to the Assembly; the exceptional non-member must acquire membership within six months. That person must consequently satisfy Article 173 and not be disqualified under Article 191 when appointed. A different eligibility standard for non-member Ministers would be unreasonable and anomalous.

Purpose of the window: political exigency or the need for expertise may justify temporarily bringing in a qualified outsider. It does not justify six months of government by a person unable to enter the legislature. The Court rejects the construction of deliberately "short-term" Ministers free of legislative eligibility standards.

Criminal-law effect: suspension of *execution* of sentence and bail leave the conviction and imposed qualifying sentence intact. The High Court order did not stay the conviction. Section 8(3) therefore continued to operate. If sentence is imposed after conviction, the cumulative trigger is met when the requisite sentence is imposed.

No indefinite innocence saving: the conviction operates until set aside. Eventual acquittal and current legal disqualification are not the same inquiry. The Court rejects converting the incumbent-only historical Section 8(4) into a general saving by "reading up" its language.

Constitution over political mandate: a majority cannot require a constitutional head to appoint an underage, foreign-citizen, insolvent or otherwise disqualified CM. The absurd consequences of that submission expose its flaw. The will expressed through a majority prevails only consistently with the Constitution.

Judicial duty: the controversy is constitutional interpretation even if politically consequential. Quo warranto examines the legal authority of the appointee to hold public office. A constitutional head's appointment cannot confer a higher right than the Constitution allows.

6. Decision, relief and protection of prior acts

The appointment was quashed and set aside; Jayalalithaa could not continue as CM under the invalid appointment. The Court would not wait for a possible appellate acquittal or the approaching end of the six-month period. It protected acts **otherwise legal and valid** performed by her, the Council and the State government during the interval from appointment to the judgment, against invalidity based *only* on the defective appointment.

That qualification matters: the ruling did not validate an independently unlawful act. It preserved continuity and third-party reliance without legitimising the ineligible appointment.

7. Ratio and evolved principles

- **Eligible outsider ≠ disqualified person:** Article 164's temporary non-member accommodation requires legislative qualifications and freedom from disqualifications.
- **Sentence execution ≠ conviction:** bail or suspension of execution does not remove the conviction disqualification.
- **Constitutional supremacy:** electoral majority is not authority to disregard constitutional eligibility.
- **Quo warranto:** constitutional public-office appointments can be invalidated for lack of qualification notwithstanding their political setting.
- **Continuity:** otherwise lawful governmental acts need not collapse merely because the office-holder's appointment was invalid.

Ankur R. Upadhyay

8. Embedded precedent: S.R. Chaudhuri

The DU extract describes Tej Parkash Singh's repeated appointment as Minister within the same legislative term after failing to become a member within the first six months. That case rejects restarting the grace period through resignation and reappointment. *Kapur* uses the representative-government rationale to interpret the non-member exception narrowly enough to preserve accountability.

9. Limits and current-law reading

The case concerns the actual Section 8(3) rule and conviction position then before the Court. The RPA's listed-offence route later includes Prevention of Corruption Act convictions in Section 8(1)(m); do not generalise that every corruption conviction requires two years to disqualify today. The former Section 8(4) discussion is historical; *Lily Thomas* later invalidated it. An express stay of conviction is different from the unsuccessful stay applications and sentence-execution order in this case.

CASE #23 DU LL.B. PRESCRIBED AUTHORITY

Lily Thomas v. Union of India

(2013) 7 SCC 653 · A.K. Patnaik and S.J. Mukhopadhaya JJ

Holding in one line: Parliament lacked constitutional power to enact the incumbent-only postponement in RPA Section 8(4); the Court did not need to decide the separate Article 14 challenge.

1. Background and challenged law

Two Article 32 public-interest petitions—WP(C) 490/2005 and 231/2005—challenged Section 8(4). Sections 8(1)–(3) laid down conviction-based disqualifications, but 8(4) postponed their operation for a person who was an MP or State legislator at conviction: three months initially, and thereafter until disposal of a timely appeal or revision. A newly contesting candidate had no equivalent saving.

The dispute was not an election petition against one particular returned candidate and not a fresh criminal appeal. It was a challenge to Parliament's ability to create this protective statutory distinction.

2. Issues

1. Does the constitutional power under Articles 102(1)(e)/191(1)(e) allow different operation of disqualification for new candidates and sitting members?
2. Can a general residuary legislative power under Articles 246/248 and Entry 97 support the saving if the specific power cannot?
3. Can Parliament postpone the vacancy consequence in Articles 101(3)(a)/190(3)(a)?
4. Is Section 8(4) also discriminatory under Article 14?
5. Should existing members who already relied on the saving and had pending timely appeals/revisions be affected by the declaration?

3. Petitioners' arguments

Fali S. Nariman and S.N. Shukla argued that "being chosen as, and for being" requires the same disqualification standard for candidature and continuance. *Saka Venkata Rao* had described the same set of disqualifications for both. Parliament was empowered to create disqualifications, not to suspend them only for incumbents against the Constitution's vacancy mandate.

- A qualifying trial conviction operates until set aside; a pending appeal alone is no basis for continuing membership.
- *B.R. Kapur* and *K. Prabhakaran* support the present operation of conviction and sentence.
- The appropriate protection in a suitable case is an appellate order staying the conviction under CrPC Section 389, not a blanket incumbent saving.
- The incumbent/candidate difference lacks a legitimate justification and separately violates Article 14.

4. Union/respondent arguments recorded in the extract

- The provision changes only *when* the same disqualification takes effect, not the underlying grounds.
- Continuity of the House justified Parliament prescribing postponed operation for existing members.
- The vacancy arises only after the President/Governor has decided the constitutional question, which was said to support postponement.
- Appellate courts cannot directly stay the statutory disqualification, so a legislative safeguard is needed.
- The Constitution Bench's discussion in *K. Prabhakaran* was relied on in support of the provision.
- Alternatively, residuary Union legislative competence under Article 246(1), Article 248 and Entry 97 was said to supply power.

5. The reasoning, not just the headline

Specific power governs: Articles 102(1)(e) and 191(1)(e) are the specific constitutional grant for legislatively prescribed disqualifications. General Union–State distribution provisions and residuary power cannot enlarge that grant beyond its terms. The Court uses the written-constitution approach reflected in *R. v. Burah*: determine the affirmative power and its negative limits from the controlling instrument.

One constitutional standard: the language covers being chosen and being a member. Parliament cannot make an incumbent remain eligible where the identical disqualification prevents a non-member from being chosen. Describing the distinction as mere timing does not avoid the constitutional problem when the practical result is a different eligibility regime.

Vacancy provision: Articles 101(3)(a)/190(3)(a) prohibit Parliament from deferring the date of effective disqualification for sitting members in the manner Section 8(4) attempted. The provision exceeds the conferred legislative power.

Earlier authority: the Court notes that the specific lack-of-legislative-power issue had not been decided by the Constitution Bench in *K. Prabhakaran*. It does not purport to overrule a Constitution Bench on an issue that Bench had actually settled merely because this case has two judges.

Article 14: once the provision is invalid for lack of power, the discrimination challenge need not be decided. "Struck down because Article 14 was violated" is therefore an incomplete and inaccurate statement of the actual ratio.

6. Decision and temporal protection

Section 8(4) was declared ultra vires the Constitution; the writ petitions were allowed, without costs. The judgment protected sitting members who had already incurred a relevant conviction and had filed timely appeals/revisions which were pending and were consequently protected by the prior law. The Court invoked its capacity to mould the temporal operation of declared law and fairness to persons who had relied on it.

For convictions after pronouncement, the old saving no longer operates even if an appeal/revision is filed promptly. The protected earlier class must not be converted into a new three-month grace period for every future member.

7. Principle and connections

The legislature is a body with plenary power within constitutional limits, not power to alter the Constitution's express conditions through an ordinary statute. Political cleanliness is the policy setting, but the ratio is the structure of disqualification power. The case links directly to *Kapur*'s present-conviction rule and to *Lok Prahari*'s recognition of a specific judicial stay of conviction.

8. Precise limits

- No general disqualification merely on accusation or charge is created by this decision.
- The ruling invalidates subsection (4), not the entire RPA or Sections 8(1)–(3).
- The rule still requires the exact listed offence/sentence combination in the applicable subsection.

- An express stay of conviction is not the same as the unconstitutional statutory blanket postponement.
- The extract omits some intermediate paragraphs of the full judgment; missing text is not supplied as an alleged DU quotation.

CASE #24 DU LL.B. PRESCRIBED AUTHORITY

Lok Prahari (through General Secretary S.N. Shukla) v. Election Commission of India

(2018) 18 SCC 114 · Dipak Misra CJI, A.M. Khanwilkar and D.Y. Chandrachud JJ

Holding in one line: an effective appellate stay of conviction means that the Section 8 disqualification will not operate; it is not equivalent to mere suspension of the sentence.

1. Facts and procedural character

Lok Prahari sought a declaration concerning legislators convicted of offences attracting Section 8, whose convictions were stayed by appellate courts. The petition challenged the proposition that such a stay could prevent the constitutional vacancy consequences. This was a general legal challenge to the effect of stay orders, not a new factual trial of every legislator benefiting from one.

2. Issues

1. Is there power to stay the operation of a conviction under Section 389 CrPC?
2. If such a stay operates, does the conviction-based disqualification continue regardless?
3. Do Articles 101(3)(a)/190(3)(a) make the seat irreversibly vacant notwithstanding a legally effective stay?

3. Petitioner's argument as supplied by DU

The petitioner contended that the law did not provide for a stay of conviction which could wipe out the disqualification. Consequently, even an appellate stay of conviction for an offence attracting Section 8 should not neutralise disqualification, and the seat should be treated as vacant from the conviction date under the constitutional vacancy provisions.

4. ECI's position—do not invent an opposing argument

The DU summary expressly states that the **Election Commission supported the prayer in its counter-affidavit**. Accordingly, the parties' reported positions on the legal question were aligned. It would be false to write a conventional "ECI argued that every stay automatically restored membership" merely to produce two opposite sides. The summary does not separately set out any other respondent's detailed submissions.

5. Decision and reasoning stated in the DU material

The Court rejected the proposed declaration as inconsistent with settled law in *Lily Thomas* and *Ravikant S. Patil v. Sarvabhouma S. Bagali*, (2007) 1 SCC 673. Upon a stay of conviction under Section 389, Section 8 disqualification will not operate. The continuing legal status of the conviction—not merely whether a person is physically in jail—determines this consequence.

6. Principle and doctrinal reconciliation

Kapur involved suspension of sentence execution without a conviction stay. *Lily Thomas* rejected legislative postponement solely for sitting members. *Lok Prahari* respects a court's specific stay of the conviction itself. These are compatible propositions: no automatic appeal protection, but legal effect to an actual judicial conviction stay.

7. Limits

- A stay does not amount to appellate acquittal and does not finally erase the conviction.
- A stay of sentence, bail or mere filing of appeal is insufficient.
- The case does not create an entitlement to receive a conviction stay merely because loss of a legislative seat is inconvenient.
- The summary cannot establish every factual detail of an individual restoration case, or the treatment of an already completed bye-election. Those details are not fabricated.

CASE #25 DU LL.B. PRESCRIBED AUTHORITY

Special Reference No. 1 of 2002 (Re Gujarat Assembly Election Matter)

(2002) 8 SCC 237 · Five-judge Bench; DU extract of V.N. Khare J's opinion for B.N. Kirpal CJI, Khare and Ashok Bhan JJ

Holding in one line: Article 174's six-month gap regulates sessions of a live Assembly, not the interval between a dissolved Assembly and a newly elected successor; Article 324 governs election scheduling in its distinct field.

1. Detailed factual and institutional setting

The Gujarat Assembly constituted in March 1998 had an ordinary term ending on 18 March 2003. Its last sitting was on 3 April 2002. On 19 July 2002 the Governor dissolved it on the Chief Minister's advice. The Election Commission took steps for fresh elections but, in its order of 16 August 2002, proceeded on the legal assumption that Article 174(1) applied even to a dissolved Assembly.

On that assumption, the new Assembly would need to meet within six months from the outgoing Assembly's last sitting—by 3 October 2002. The Commission assessed that elections could not be conducted before that date. The President made an Article 143(1) reference on 19 August 2002 to clarify the constitutional position and the possible role of Article 356.

Procedural caution: the reference addressed questions of public constitutional importance, not a judicial re-trial of all disputed ground conditions in Gujarat. The Court declined to adjudicate disputed facts from the Commission's order in the advisory setting.

2. The three Presidential questions

1. Is Article 174 subject to the Commission's Article 324 decision about the election schedule?
2. Can the Commission schedule elections on the premise that an Article 174 infraction can be remedied by Article 356?
3. Must the Commission secure all requisite Union/State resources to fulfil Article 174's mandate while ensuring free and fair elections?

The premise linking Article 174 to a dissolved Assembly had to be examined before answering the supposed conflict.

3. Competing positions in the DU extract

As an advisory reference there are not simply a plaintiff and defendant. The extract records the following institutional submissions/premises, which should be described as such:

- **Original ECI premise:** the six-month Article 174 requirement was regarded as mandatory and applicable to the outgoing-to-incoming Assembly interval. The order also indicated Article 356 as a possible solution to a constitutional impasse.
- **Union's continuing-House argument:** "Assembly" was said to be dissolved but the "House" remained a continuing institutional entity. The Speaker's continuance under Article 179 was relied on to argue that the six-month session rule still applied.
- **Concern over indefinite delay:** counsel for a national party and a State warned that absence of any express deadline might allow the Commission never to hold an election, destroying democracy.
- **ECI clarification:** in written submissions it said its election decision was taken without reliance on Article 356; the provision had only been mentioned as an answer to apprehended impasse.

Ankur R. Upadhyay

- **Independent electoral field:** the scheduling issue was to be analysed through Article 324 and the RPA, rather than by treating a dissolved Assembly as capable of further sessions.

4. Reasoning I: text and the "live Assembly" distinction

Article 174 speaks of "*its last sitting in one session*" and "*its first sitting in the next session.*" Those expressions refer to successive sessions of the same functional Assembly. A successor Assembly holds its own first session, not the outgoing body's "next session." The power to "summon" is directed to an existing House, whereas "constitution" of an Assembly follows the statutory election notification mechanism in RPA Section 73.

The contrast with Article 176's express wording "after each general election" confirms the point. Continuation of the Speaker's office cannot preserve the dissolved members' representative capacity or create a House distinct from the Assembly for this purpose.

5. Reasoning II: history and Constituent Assembly debates

The DU extract traces the Government of India Acts of 1915, 1919 and 1935. Earlier arrangements had express executive responsibilities about calling a new chamber after dissolution. The constitutional design departed from those arrangements by establishing an autonomous Election Commission under Article 324. The session-frequency provisions were borrowed for their limited live-House purpose, not as an implied election deadline.

Debates on how frequently Parliament should meet concerned executive accountability and time for business. The original phrase requiring two meetings a year created the technical difficulty that a year-long single session might count as only one summons; its removal left the inter-session six-month safeguard. That history is incompatible with treating the provision as one governing elections to a different House.

6. Reasoning III: consequences and separate statutory scheme

If the Assembly dissolved in the fifth month after its last sitting, the proposed reading could require an entire general election within the remaining month. That was not the intended constitutional rule. RPA Sections 14 and 15 address general elections on expiry/dissolution and permit the formal pre-expiry election notification only within the stated six-month window. They do not make the outgoing Assembly's last sitting the starting date for every fresh-election deadline.

Article 324 entrusts the Commission with superintendence, direction, control and conduct; Articles 327/328 permit election legislation within constitutional limits. The opinion distinguishes legislative regulation of election matters from the Commission's constitutional scheduling responsibility. The legislature cannot confiscate the Commission's constitutionally assigned function by ordinary law.

7. Answers and conclusions

- Article 174 concerns an existing, live, functional Assembly.
- The session-gap rule is mandatory for that body but gives no express/implied election deadline counted from the dissolved House's last sitting.
- Article 174 and Article 324 operate in different fields; neither is subordinated to the other in the supposed manner.
- As there is no Article 174 infraction of the assumed kind, the Article 356 rescue premise is unnecessary; the Court does not determine a general licence to impose President's Rule whenever elections are delayed.
- The Commission must hold free and fair elections at the earliest; the Court's conclusion records that under the overall constitutional/statutory scheme fresh elections *should* be held within six months of premature dissolution.
- Ordinary public disorder should not be an excuse for postponing elections; the Union, State and other authorities must assist.

8. Ratio, important qualification and applications

The ratio is the field distinction and the live-House interpretation. The six-month expectation from *dissolution* should not be misstated as the rejected Article 174 deadline from the outgoing House's *last sitting*. Absence of that Article 174 deadline equally does not mean unlimited ECI freedom to suspend democracy indefinitely.

The Court also distinguishes adjournment, prorogation and dissolution. Use the exact Article 107/196 lapse exceptions rather than repeating the extract's broad description that all pending Bills lapse.

CASE #26 DU LL.B. PRESCRIBED AUTHORITY

Anil Kumar Jha v. Union of India

(2005) 3 SCC 150 · Order dated 9 March 2005 · R.C. Lahoti CJI, Y.K. Sabharwal and D.M. Dharmadhikari JJ

> **Holding in one line:** the Court issued urgent interim directions for a peaceful, secure and video-recorded Jharkhand floor test confined to the elected members, without determining final guilt or replacing the legislative vote.

1. Why this is a supplement

The analysis below is based on the **reported order itself**, not a student-blog description. In particular, the reported disposition is interim directions and further listing, not a final judgment declaring the Governor's appointment mala fide.

2. Facts and procedural setting

WP(C) 123/2005 was filed and urgently mentioned on 7 March 2005. It concerned contested post-election developments in Jharkhand. At the 9 March hearing, petitioner's counsel reported developments after filing: the Governor had selected a comparatively junior MLA as pro tem Speaker despite the asserted convention of choosing the seniormost available member; a nomination under the then-operative Article 333 was reportedly imminent.

The petitioner said nomination could tilt the balance before the majority question was tested. A quo warranto challenge to the incumbent CM's appointment was among the reliefs sought, and the contemplated nomination on that administration's recommendation was questioned. A connected WP(C) 120/2005 was also before the Court for further listing.

3. Immediate issues

1. Should urgent interim measures ensure that the competing claims are determined promptly on the Assembly floor?
2. How can manipulation through procedural control or an imminent nomination be prevented before that test?
3. What attendance, security and recording safeguards are appropriate without the Court casting the votes itself?

The order does not frame and finally decide a comprehensive list of substantive constitutional issues.

4. Petitioner's contentions actually recorded

- A seniority convention had been bypassed in appointing the pro tem Speaker.
- The stage for the contemplated Anglo-Indian nomination was not ripe, and it could change the numerical balance.
- The recommendation could be affected by the pending challenge to the CM's authority.
- A strong prima facie case justified immediate protection of the floor-test process.

5. Respondents' position actually recorded

The order records hearing counsel for the respondents, but does not provide a detailed adversarial argument rejecting each petitioner claim. Counsel for Jharkhand, through the Chief Secretary and Director General of Police, assured compliance with the duty to allow members to attend freely and securely. That assurance must be recorded faithfully; opposing constitutional submissions not contained in the order should not be fabricated.

by Ankur R. Upadhyay

6. Seven substantive interim directions

1. The Assembly session already convened for 10 March, when newly elected members were to take the oath, would continue on 11 March for a confidence test.
2. The only agenda on 11 March would be the floor test between the competing political alliances to establish majority and the claim to Chief Ministership.
3. Proceedings must be wholly peaceful; disturbance would be viewed seriously.
4. The pro tem Speaker must announce the result faithfully and truthfully.
5. The Court's order itself constituted notice of the 11 March meeting; no separate notice was necessary.
6. There was to be no Article 333 nomination until the specified date; the floor test was confined to the **81 elected members**.
7. The Chief Secretary and DGP were to secure free, safe attendance without interference or hindrance.

The Court declined to appoint an observer but required video recording and immediate transmission of the recording. Orders were to be promptly communicated, including by fax; the matters were listed for 14 March.

7. Reasoning and principle

The Court found a strong prima facie case on the sworn averments and relied on *Jagdambika Pal* for an expeditious floor-test remedy. Its intervention created conditions for the *legislature* to determine majority; it did not decide the vote count through predictions or appoint an alternative CM by judicial preference.

Principle illustrated: actual House confidence, established through a fair floor vote, is the appropriate basis for resolving contested majority claims. Ancillary protective directions can preserve the integrity of that constitutional process.

8. Limits, later context and critical evaluation

- This order does not finally hold that every junior pro tem appointment is unconstitutional. The seniority convention is recorded as a petitioner submission.
- It is not a final merits judgment proving gubernatorial mala fides or setting out a universal floor-test code.
- The Article 333 direction is historically important but is not a presently available Anglo-Indian nomination route after Article 334(b)'s seventy-year expiry.
- Its remedy is intrusive in scheduling and agenda, but functionally justified by returning the majority question to the House. Whether the measures were necessary/proportionate can be discussed as academic evaluation, not attributed as a dissent in this short order.

CASE #27 DU LL.B. PRESCRIBED AUTHORITY

Jaya Bachchan v. Union of India

(2006) 5 SCC 266 · 8 May 2006 · Y.K. Sabharwal CJI, C.K. Thakker and R.V. Raveendran JJ

Holding in one line: receivable pecuniary benefit makes an office one of profit; the holder's wealth, non-use of facilities or voluntary decision not to draw the remuneration does not alter that character.

1. DU status and citation correction

This case is in the DU prescribed list, but not supplied as a standalone extract. The *Consumer Education* summary on p. 126 misprints a Jaya Bachchan citation as "(2005) 3 SCC 87." The Topic 4 list and actual judgment use **(2006) 5 SCC 266**, which is followed here.

2. Facts and route to the Court

Jaya Bachchan was a Rajya Sabha member. The Uttar Pradesh government appointed her Chairperson of the Uttar Pradesh Film Development Council by an official memorandum on 14 July 2004, conferring Cabinet Minister rank and the associated remuneration/facilities under the government's terms.

The Election Commission gave its Article 103(2) opinion on 2 March 2006 that the office was an office of profit under the State government and was not exempt under the Parliamentary exemption Act. By order dated 16 March 2006, the President decided that she stood disqualified from Rajya Sabha from 14 July 2004. She challenged both the Presidential order and ECI opinion through Article 32.

3. Financial terms which drove the dispute

- Monthly honorarium of ₹5,000.
- Daily allowance of ₹600 within the State and ₹750 outside it for the specified touring situation.
- Entertainment expenditure of ₹10,000 per month.
- A staff car with driver; telephones at office and residence.
- Free accommodation and medical facilities for the holder and family under the stipulated terms, plus other facilities.

These are *historical appointment terms* from this case, not today's general remuneration rates.

4. Issues

1. Does an office capable of yielding financial benefit qualify even if no benefit was actually drawn?
2. Does calling the appointment honorary/decorative negate the profit attached by the appointment terms?
3. Do precedents involving genuine compensatory allowances or genuinely unpaid honorary appointments support her case?
4. Does the appointment's nomenclature, rather than its substantive financial terms, control whether it is an office of profit?

5. Petitioner's submissions

She argued that the chairpersonship and rank were decorative and that she received no remuneration or monetary gain. She had not sought residence, used telephone/medical facilities or claimed travel reimbursement. Without a finding of actual payment, ECI could not classify the office as one of profit.

She relied on *Umrao Singh v. Darbara Singh*, *Divya Prakash v. Kultar Chand Rana* and *Biharilal Dobray v. Roshan Lal Dobray* to argue that an honorary appointment without remuneration should not disqualify.

6. Supporting position for the disqualification

The judgment sets out ECI's reasoning and the undisputed appointment terms, but does not reproduce a separate complete Union submission section. The source-supported answer to her contention was that entitlement itself constituted a receivable pecuniary gain, the office was not a statutorily exempted office, and she was not protected merely by the honorific Cabinet-rank description. This is a summary of the disqualification position, not fabricated respondent dialogue.

7. Court's reasoning

Capability, not receipt: an office of profit is an office capable of yielding profit or pecuniary gain. Salary, pay, emoluments, remuneration and non-compensatory allowance attached to the office are material. The question must be interpreted realistically, by substance rather than nomenclature.

Compensatory expenses differ: reimbursement of actual out-of-pocket expenditure is not automatically personal profit. A fixed honorarium and valuable attached facilities cannot be converted into mere reimbursements by declaring that the holder did not use them.

Precedents distinguished: *Umrao Singh* involved allowances intended to reimburse expenditure associated with duty. In *Divya Prakash*, the appointment was specifically honorary and the post as dealt with there did not carry the remuneration assumed in the petitioner's comparison. The judgment also identifies obiter/error in the way the later precedent described *Divya Prakash*. None displaced the established receivability rule beginning with *Ravanna Subanna*.

Application: the honorarium, entertainment allowance, car/driver, telephones, accommodation and medical treatment were undeniable pecuniary benefits. Her affluence and unwillingness to claim them were irrelevant. The Court treated the potential entitlement as the decisive point.

8. Decision and ratio

The writ petition was dismissed and the disqualification upheld. The ratio is that an office entitling its holder to pecuniary gain other than genuine reimbursement is an office of profit even if the holder elects not to receive the gain.

9. Limits and extensions

- The case does not replace the separate inquiry whether the office is *under government*.
- Not every allowance is non-compensatory; examine its substance.
- A statutory exemption, properly applicable to the office and legislature, may remove disqualification even though the office is otherwise of profit.
- "Cabinet rank" does not mean the holder has constitutionally become an actual Minister protected by the explanation.
- *Consumer Education* concerns the subsequent retrospective exemption legislation, not a reversal of this benefit-entitlement interpretation.

CASE #28 DU LL.B. PRESCRIBED AUTHORITY

Consumer Education and Research Society v. Union of India & Ors.

(2009) 9 SCC 648 · 24 August 2009 · K.G. Balakrishnan CJI, R.V. Raveendran and J.M. Panchal JJ

Holding in one line: Parliament may retrospectively exempt offices of profit under Article 102(1)(a); the challenged 2006 Act was valid, and the relevant undeclared office-of-profit cases did not involve automatic reinstatement into already vacated seats.

1. Primary DU proposition

The DU summary describes the post-*Jaya Bachchan* 2006 Amendment enlarging the exempted-office list, the retrospective-validity challenge, and the conclusion that Parliament could act before the Article 103 declaration in the disputed office-of-profit cases. The following chronology, detailed submissions and statutory limits are supplied from the judgment, explicitly as a supplement.

2. Facts, legislation and procedural history

Following Bachchan's disqualification, concern arose that numerous MPs held other government-linked offices of profit. The Parliament (Prevention of Disqualification) Amendment Bill, 2006 was introduced and passed in Lok Sabha on 16 May and passed in Rajya Sabha the next day. Sent for assent on 25 May, it was returned by the President on 30 May. Both Houses repassed it without amendment; assent followed on 18 August 2006.

The Amendment Act added, among other offices, the National Advisory Council chairpersonship, inserted categories of specified statutory/non-statutory bodies, trusts and registered societies, and listed 55 bodies. The specified new categories/table were deemed inserted from 4 April 1959. Section 4(1) validated the stated exemptions notwithstanding judgments/orders; Section 4(2) expressly denied reinstatement or an equivalent claim to a person who had already vacated a seat under the relevant order/judgment.

Two Article 32 PILs challenged the Act. The case did not begin as an appeal against one particular election result.

3. Issues

1. Does Article 102(1)(a) authorise retrospective exemption, or only future exemption?
2. Did acceptance of the offices automatically vacate the MPs' seats before the law, making the Act an unconstitutional re-entry without election?
3. Was wholesale exemption of 55 offices without Joint Committee scrutiny colourable, contrary to a constitutional convention or violative of Article 14?
4. How do Articles 101/103 distinguish pre-election and subsequent disqualification?

4. Petitioners' contentions

Senior counsel Harish Salve and Ravinder Srivastava argued that the constitutional scheme immediately vacated seats of holders of disqualifying offices. Retrospective exemption could not re-induct persons who had ceased to be MPs without fresh elections. They addressed both offices held before election and offices accepted during membership.

- The legislation was said to have been designed to protect particular incumbents rather than legitimate institutional compatibility.
- Longstanding practice following the Bhargava Committee report required the Joint Committee's examination of proposed exemptions; bypassing it for 55 offices breached a constitutional convention.
- The exemptions lacked discernible rational criteria and offended Article 14.
- The enactment was characterised as colourable legislation contrary to the constitutional disqualification structure.

5. Union's submissions

Additional Solicitors General Gopal Subramaniam and Mohan Parasaran relied on *Kanta Kathuria* for retrospective exemption power. They argued that in a disputed subsequently incurred office-of-profit case vacancy follows the designated constitutional decision, not mere unadjudicated allegation. No relevant Presidential declaration had preceded the Amendment.

They also relied on Section 4(2): the law did not reinstate anyone who had already vacated under an order or judgment. Selection of exempt offices lay in Parliament's domain; a Joint Committee practice was not a binding constitutional restriction extinguishing that law-making power.

6. Reasoning on retrospectivity

Kanta Kathuria established that the exemption power includes retrospective exercise. Article 102(1)(a) expressly permits Parliament to identify offices which do not disqualify; the power is not restricted to future holders. Retrospective removal of the legal ground is different from Parliament purporting to ignore a disqualification while leaving the ground fully operative.

7. Reasoning on timing, declaration and election-stage defects

The judgment distinguishes a disqualification existing when elected from one subsequently incurred. Pre-election defects are addressed by nomination scrutiny under RPA Section 36 and an election petition under Section 100; Articles 101/103's "becomes subject" language concerns subsequent status.

In the disputed office-of-profit setting, adjudication/declaration by the President is necessary to crystallise the vacancy; the decision confirms a pre-existing disqualification rather than inventing it. The Court notes that the disqualification, when declared, operates from the date the office was accepted, while explaining why an unadjudicated dispute is not itself an automatic completed vacancy.

RPA Section 151A's bye-election timetable was part of the practical reasoning: if an unknown/unresolved office-of-profit allegation automatically started an unascertainable vacancy period, timely filling could become impossible. Because the relevant members had not been declared disqualified before the retrospective exemption, they could continue; the law's no-reinstatement clause remained important.

8. Equality, convention and colourability

Offices have different effects on member independence, time, loyalty and incompatibility. Parliament's exemption choices cannot be invalidated merely because other allegedly similar offices were not also exempted, absent a supported constitutional defect. The actual claim before the Court did not establish the necessary incompatibility or arbitrary equivalence.

The Joint Committee practice was characterised as Parliamentary procedure, not a constitutional convention preventing valid legislative action. Failure to follow the practice did not denude Parliament of its express exemption power. A political motive allegation does not alone establish colourable exercise when the actual constitutional power exists and has been lawfully used.

9. Decision and principles

The Court upheld the Amendment Act and dismissed the petitions without costs. It reaffirmed retrospective exemption power, clarified the pre-election/subsequent distinction, upheld the challenged legislative selection against the presented Article 14 case, and rejected the supposed binding constitutional-convention condition.

10. Limits: do not overclaim

- The law did not automatically reinstate Bachchan or another person whose seat had already been vacated under the specified order/judgment; Section 4(2) said the opposite.
- The decision does not say all offices of profit must be exempted or that Parliament's choices can never be constitutionally reviewed.
- It does not make Joint Committee scrutiny worthless; it rejects the asserted legal invalidity consequence.
- Its declaration language should not be mechanically extended to neutralise *Lily Thomas*'s later conviction ruling.
- The cure operates by changing the legal status of the office retrospectively, not merely by granting personal grace to one incumbent.

CASE #29 DU LL.B. PRESCRIBED AUTHORITY

In re Keshav Singh

AIR 1965 SC 745 · Special Reference No. 1 of 1964 · Opinion delivered 30 September 1964 · Majority opinion of P.B. Gajendragadkar CJI; A.K. Sarkar J dissenting

> **Holding in one line:** a legislature's privilege to punish contempt does not make its detention orders conclusively immune from Article 226 habeas corpus; lawful resort to and exercise of that jurisdiction cannot itself be punished as legislative contempt.

1. Source discipline

The DU upload does not reproduce this as a standalone case. It contains a substantial synopsis in the prescribed *Raja Ram Pal* extract, particularly paras 56–57. The chronology, rival submissions, constitutional reasoning and Sarkar dissent below are from the full reference opinion. These are not represented as pages of a missing DU extract.

2. Facts: a conflict which escalated in days

Keshav Singh, a non-member from Gorakhpur, signed a pamphlet associated with allegations against a UP Assembly member. On 14 March 1964 the Assembly's Speaker reprimanded him for contempt/breach of privilege. The House also ordered seven days' imprisonment for his conduct when brought before it and an earlier disrespectful letter. He was detained in the District Jail at Lucknow under the Speaker's warrant.

On 19 March, advocate B. Solomon filed a petition under Article 226 and Section 491 of the old CrPC, alleging unlawful imprisonment, want of authority, lack of hearing, mala fides and breach of natural justice. A Lucknow Bench of N.U. Beg and G.D. Sahgal JJ agreed to hear it at 3 p.m. The government advocate who had appeared at the earlier mention was absent at the appointed hearing. The Bench admitted the petition and granted conditional interim bail, pending determination of its legality.

On 21 March the Assembly resolved that Singh, his advocate and both judges had committed contempt through the litigation/bail order. It called for custody of the judges and advocate and further action against Singh. The judges moved the High Court. A Full Bench of 28 judges restrained implementation; Solomon's later petition received similar protection. The Assembly then modified its stance, withdrawing the arrest warrants but requiring explanations. The President referred five questions under Article 143(1) on 26 March.

> **14 March** Reprimand and seven-day detention
> **19 March** Article 226 petition; interim bail
> **21 March** House resolution against judges, counsel and detainee
> **23–25 March** Full Bench protection; modified House demand for explanation
> **26 March** Presidential reference

3. Five referred questions, in analytical form

1. Could the Lucknow Bench entertain the detention challenge and grant interim bail?
2. Did Singh, Solomon or the two judges thereby commit legislative contempt?
3. Could the Assembly produce the judges/advocate in custody or require explanations for that alleged contempt?
4. Could the Full Bench entertain the protective petitions and restrain implementation of the House resolution?
5. More generally, is a judge who hears or grants relief against a legislative privilege/contempt order himself in contempt, and can the House proceed against him?

4. Assembly's arguments (per Counsel for the House)

- **Exclusive jurisdiction:** the House claimed to determine the existence, extent and exercise of its privileges for itself. Its appearance in the advisory reference did not concede submission to judicial authority.
- **British dualism:** historical conflict between Parliament and courts left legislative privilege, particularly contempt, within the House's exclusive domain.
- **General warrant conclusiveness:** even where courts could examine a privilege's existence or a speaking warrant's stated reason, an unspeaking/general warrant of the Commons was treated as conclusive. Article 194(3) was said to import that immunity from scrutiny.
- **Consequential contempt:** if the High Court could not go behind the detention warrant, presentation, acceptance and grant of bail against it were interference with legislative privilege.
- **Interim bail:** the House separately denied jurisdiction to grant bail in such a habeas corpus challenge, especially before a return was filed.
- **Advisory status:** there was no ordinary lis or binding inter-party judicial disposition; the House asserted that an advisory answer could not prevent its own determination.

5. Judges'/advocate's constitutional position: Setalvad's answer

- **Written Constitution:** India cannot simply import an unresolved English antinomy. Article 194(3) must be read with Articles 32, 226 and 211.
- **Extent determined by courts:** construing the constitutional source of privilege is a judicial task; the House cannot conclusively decide the scope of its own jurisdiction.
- **Historical convention not transplantable:** English treatment of general warrants arose partly from Parliament's superior-court-of-record history and convention/comity. An Indian Assembly was not such a court.
- **Habeas corpus remains:** an imprisoned citizen can invoke Article 226, and the court can examine constitutional legality even when the warrant omits reasons.

- **Ancillary bail:** effective Article 226 jurisdiction includes appropriate interim relief.
- **Judicial independence:** lawful adjudication and professional presentation of a petition cannot be made an offence against the legislature merely because the House dislikes their effect.

The opposing side did not deny all Assembly power to punish genuine contempt outside the chamber. The dispute concerned alleged *conclusive* detention authority and punishment of lawful judicial process.

6. Majority reasoning: the core constitutional architecture

Constitutional, not Parliamentary supremacy: every organ derives authority from a written, supreme Constitution. Articles 194 and 226 are both parts of it. Their harmonious interpretation preserves genuine legislative functions and the judiciary's assigned protection of legality and liberty.

The three privilege clauses: speech under 194(1), express court immunity under 194(2), and residual privileges under 194(3) are related but distinct. A claim under clause (3) is not self-proving and cannot silently extinguish express constitutional writ jurisdiction.

No superior-court-of-record fiction: the English conclusiveness of a general warrant was tied to a particular history. The Court does not treat an Indian legislative House as a court of justice entitled to make every detention lawful by issuing a non-speaking warrant. Reasons cannot be insulated merely by not stating them.

Article 226 breadth: a detainee's challenge is within the High Court's jurisdiction, which extends beyond fundamental-rights enforcement to other legal purposes. Constitutional detention review is not a forbidden appeal on ordinary Parliamentary procedure. Ancillary bail may be granted to make that jurisdiction effective.

Article 211 and judges: the State Legislature is constitutionally prohibited from discussing the conduct of Supreme Court/High Court judges in discharge of their duties. The majority treats this as a real constitutional restriction reflecting judicial independence, not an empty recommendation. It reinforces the incompatibility of demanding custody/explanation merely for lawful judicial adjudication.

Fundamental rights: the Court does not proclaim that every Part III right always defeats every privilege. It distinguishes the earlier *Pandit Sharma* speech/publication controversy and the Article 19 setting. Article 21 and judicial authority to test lawful deprivation of liberty remain highly material. The correct exam method is harmonious constitutional construction, not two competing absolute slogans.

Article 212: insulation from challenge on procedural irregularity does not make unconstitutional exercise of privilege immune. Whether the House possessed the claimed coercive jurisdiction is different from whether its internal procedure was ideally followed.

7. The majority's actual five answers

Question	Answer	Meaning
1	**Yes**	The Lucknow Bench was competent to hear the petition and grant interim bail.
2	**No**	Singh, his advocate and the judges did not commit contempt by those lawful steps.
3	**No**	The Assembly could neither compel their production in custody nor call for explanations on this basis.
4	**Yes**	The Full Bench could entertain the petitions and issue restraining interim orders.
5	**No, with a defined scope**	The general answer was confined to the material context: a non-member's alleged contempt outside the House and a lawful judicial challenge to the resulting action.

These are advisory answers. They are not a criminal acquittal after trial on every allegation about the original pamphlet or conduct.

8. Sarkar J's dissent—why it matters

Sarkar J took a materially broader view of the imported Commons privilege. He regarded the conclusiveness of a general contempt warrant as part of the constitutionally conferred privilege, not merely a discardable convention. By harmonious construction, general liberty/writ provisions could not simply extinguish a specific privilege conferred by the Constitution itself. At the same time, he expressly accepted that **courts determine the existence and extent of constitutional privilege**; his position was not that the Assembly alone finally interprets Article 194(3).

Crucial nuance: the dissent did *not* mechanically answer every factual question opposite to the majority. The petition before the Lucknow Bench did not show detention under a general warrant, and the Speaker/jailor had not yet filed their return revealing it. Until apprised of that fact, the Bench retained competence to consider the petition. He therefore answered question 1 **yes**, while leaving the distinct legal propriety of bail in contempt proceedings undecided on this occasion.

Question	Sarkar J's actual answer on the stated facts
1	Yes: general habeas jurisdiction remained until the purported conclusive-warrant fact was established by return.
2	No: the participants were not shown to know detention was under a general warrant; he found no wilfully illegal act amounting to contempt.
3	Custody: no on these facts, including absence of a hearing and his conclusion of no contempt. **Calling for explanations: yes**, as an incident of ascertaining contempt—the important disagreement with the majority.
4	Yes: the Full Bench could protect the judges/advocate against a finding of contempt which was not established on the stated facts.
5	No on these facts; the question was too general for one answer across every possible circumstance.

He discussed the competing arguments about complete judicial immunity and Article 211 but **declined to decide the abstract immunity question as unnecessary**. He also urged both sides to exercise restraint; he believed the crisis could have been avoided through returns, proper factual information and institutional forbearance.

Contrast: the majority rejects imported general-warrant conclusiveness under India's constitutional structure. Sarkar J accepts that privilege in principle, yet preserves preliminary jurisdiction before the warrant is established and largely agrees with factual protection here. Do not reduce this nuanced dissent to "no High Court jurisdiction at any stage." The majority remains controlling.

9. Restraint and the doctrine's limits

The majority urges restraint and avoidance of intemperate criticism by both constitutional organs. Judicial review does not confer authority to run House business, and privilege does not confer authority to imprison judges for lawful adjudication. It does not eliminate contempt punishment, nor establish absolute immunity for every unrelated act a judge, lawyer or litigant might commit.

CASE #30 DU LL.B. PRESCRIBED AUTHORITY

Raja Ram Pal v. Hon'ble Speaker, Lok Sabha

(2007) 3 SCC 184 · Majority: Y.K. Sabharwal CJI, K.G. Balakrishnan, D.K. Jain and C.K. Thakker JJ · R.V. Raveendran J dissenting

Holding in one line: expulsion for grave misconduct is a House privilege under Article 105(3), but the Constitution permits limited review for illegality and unconstitutionality, not appellate re-weighing of evidence or correction of mere procedural irregularity.

1. Detailed facts and inquiry process

A television sting aired on 12 December 2005 purported to show ten Lok Sabha MPs and one Rajya Sabha MP accepting money for raising questions in Parliament. Allegations concerning the Members of Parliament Local Area Development Scheme were separately televised. Members disputed the allegations, accuracy, authenticity or inferences drawn from the recordings.

Lok Sabha appointed an inquiry committee. It concluded that the cash-for-questions conduct was unethical and unbecoming and impaired dignity and credibility; on 23 December 2005 the House accepted the recommendation and expelled the ten members. The Rajya Sabha Ethics Committee separately inquired into its member's case and the House expelled him on the same date. Proceedings also addressed the separate MPLADS allegations. The Court was faced with Article 32 petitions challenging expulsion and connected transferred litigation.

Factual caution: the constitutional ruling on expulsion was not the Supreme Court conducting the original sting or acting as the criminal trial court. Parliament's inquiries and the limited validity of their results were the matters before it.

2. Main issues

1. Does Article 105(3) confer expulsion power, or is Parliament confined to specified vacancy/disqualification provisions and lesser punishment?
2. Is expulsion simply a new statutory disqualification by another name?
3. Does Article 122 or "exclusive cognisance" exclude every judicial challenge to internal privilege proceedings?
4. What constitutional defects, if any, justify review?
5. Did the actual inquiries/expulsions violate fundamental rights or natural justice sufficiently to be quashed?

3. Petitioners' arguments: power and fairness

- **No expulsion power:** Commons powers historically linked to sovereignty or its judicial functions cannot be imported wholesale into a written Indian Constitution.
- **Exhaustive membership scheme:** Articles 101–103 and statutory/Tenth Schedule provisions control how an elected seat is lost. Article 105 should not add an unlisted route.
- **Democratic representation:** expulsion removes the people's chosen member; Parliament is not free to override the electorate.
- **Not necessary:** suspension, contempt punishment or criminal prosecution were available, so expulsion was not inherent to effective functioning.
- **Unfair process:** the inquiries were rushed; authenticity and completeness of video material were disputed; opportunity to contest the case, including cross-examination, was questioned.
- **Rights and legality:** Article 122 protects only irregular procedure; serious constitutional and natural-justice defects remain reviewable.
- *Hardwari Lal*: the contrary view on legislative expulsion supported their no-power argument.

4. Parliament/Union-supported position

- **Historical disciplinary privilege:** Article 105(3) incorporated the Commons' established expulsion power, not merely lesser punishments.
- **Institutional integrity:** members selling questions compromise the deliberative institution itself; the House must protect its dignity and functioning.
- **Distinct concepts:** expulsion is a disciplinary sanction removing current membership; disqualification is a status-based bar to candidature/membership.
- **Internal autonomy:** the House is best placed to investigate misconduct connected with its own functions, and courts should not become an appeal over its procedure and evidence.
- **Fair opportunity:** the proceedings gave notice of allegations and opportunities for explanation; Parliamentary inquiry need not imitate a criminal trial.
- **Article 122:** intervention based on internal irregularity was constitutionally barred; strong institutional deference was warranted.

The summary separates arguments reflected in the DU reasoning from verbatim submissions. The extract is selective: it does not purport to reproduce every party's complete written case.

5. Majority reasoning I: source and nature of expulsion

The power to expel was an established Commons privilege at the relevant constitutional adoption point, and its disciplinary basis was not dependent on importing British Parliamentary sovereignty. Articles 105(3)/194(3) bring genuine privileges into a different institutional setting: a written Constitution controlling all powers.

Expulsion protects the dignity and integrity of the House against grave misconduct. The majority rejects the contrary *Hardwari Lal* approach which treated disqualification/vacancy provisions as a complete exclusion of the disciplinary privilege.

The existence of lesser sanctions does not erase the historically recognised power. Whether the House chooses expulsion is not simply a judicial proportionality appeal; courts review within their constitutional limits.

6. Majority reasoning II: expulsion is not disqualification

Disqualification may attach at candidature or to continued membership and imposes the legal bar prescribed by the Constitution/statute. Expulsion is punishment for particular conduct terminating a present seat. It does not itself enact an additional continuing bar to candidature or prevent re-election under a fresh electoral mandate.

Vacancy/disqualification clauses must be read alongside, not as repealing, the privilege provision. This is the central answer to a claim that Article 105(3) cannot ever affect membership.

7. Majority reasoning III: courts determine constitutional boundaries

U.P. Assembly/Keshav Singh, *Pandit Sharma* and later constitutional decisions establish judicial authority to examine the existence and extent of claimed privilege. Parliament's dignity does not make it supreme over the Constitution or convert it into the final judge of its own jurisdiction.

Article 122(1) protects proceedings against challenge on the ground of irregularity of procedure. It does not protect substantive illegality, jurisdictional excess or unconstitutionality merely because these occurred inside Parliamentary proceedings. The corresponding State rule is Article 212.

8. Paragraph 431: an usable judicial-review checklist

Proposition	Exam application
Presumption and respect	Begin with the House as a co-ordinate constitutional institution; do not presume bad faith or treat every departure as fatal.
No appellate factual re-trial	No substitution of the court's preferred conclusion merely because another factual inference is possible.
Procedure has autonomy	Mere violation of internal rules/ordinary procedural irregularity attracts Article 122 insulation.
Constitutional limits remain	Substantive illegality, unconstitutionality, want/excess of jurisdiction and fundamental-rights defects can be examined.
Natural justice is contextual	Ask whether there was grave deprivation of fair opportunity, not whether every Evidence Act/criminal-trial formality was copied.

Proposition	Exam application
Mala fides require proof	Allegations are not self-proving; the burden is heavy. Use relevant material rather than political rhetoric.
Material may be examined for validity	Calling for the record to test a permitted constitutional ground is not the same as routine re-evaluation of evidence.
Constitutional necessity, not appeal	The court intervenes when the threshold defect is demonstrated; it ordinarily respects the House's expertise and autonomy.

This is a reorganised teaching checklist, not a purported verbatim reproduction of the alphabetised paragraph. Refer back to the DU paragraph for the precise formulations.

9. Application and outcome

The majority held that the expulsions followed the constitutionally permissible privilege power. The proceedings had afforded meaningful opportunities; the claimed defects did not establish a reviewable constitutional invalidity. Committee material, nature of the misconduct and institutional context did not justify substituting a judicial merits decision. The challenges were dismissed; the expulsions were upheld.

The Court was not saying the video evidence proved every conceivable criminal offence beyond reasonable doubt. It sustained the Parliamentary disciplinary decision within the applicable constitutional review standard.

10. Raveendran J's dissent on the power

The DU extract supplies the majority, not the detailed dissent. The following is from the separate judicial opinion. Raveendran J accepted the gravity of accepting money for legislative work and acknowledged House discipline/contempt powers. He disagreed that Commons expulsion could be imported to override India's specific representative-membership scheme.

For him, British expulsion reflected a history and sovereignty not shared by an Indian legislature; suspension, reprimand and lawful contempt punishment remained available. His central objection was structural: Articles 101 and 102 exhaustively regulate vacancy and disqualification, and a House resolution is not a Parliamentary law adding a disqualification under Article 102(1)(e). Loss of elected membership must follow the Constitution's prescribed routes rather than an assumed additional power. He proposed lawful criminal prosecution, capable of being fast-tracked, temporary suspension if necessary, and statutory disqualification following a qualifying conviction. In his view, expulsion required suitable constitutional amendment or a valid enabling law; he would invalidate these expulsions and treat the petitioners as continuing members, subject to lawful cessation. These are the dissent's conclusions, not the outcome adopted by the Court.

Thus his dissent addressed **jurisdiction/power**, not approval of cash-for-questions or a holding that the acts were ethical. The controlling majority's answer is that a genuine disciplinary expulsion privilege exists independently of ordinary disqualification.

11. Principles and limits

- Constitutional supremacy replaces both a theory of absolute Parliamentary sovereignty and a theory of judges supervising every House irregularity.
- A disciplinary expulsion does not create a free-standing future electoral disqualification.
- Article 122 is a limited non-interference rule, not a jurisdictional wall against all constitutional review.
- Judicial review is available but exacting; the fact that Parliament has a power is separate from whether a particular exercise is constitutional.
- The result does not hold that every accusation or minor misconduct must lead to expulsion.
- *Sita Soren* later reinforces privilege's functional character and denies immunity for bribery; it is not the expulsion decision here.

PYQ ARCHIVE // CH.04 **Previous Year Questions (DU LL.B. Examinations)**

Q.1 `December 2024 · Q 5(b) · 10 marks` "When can a non-legislator be made a Chief Minister or Minister under Article 164 of the Constitution of India? Support your answer with relevant legal provisions and judgments."

▸ **Refer website for detailed notes — makelaweasy.in · WhatsApp: +91 7021726891**

Q.2 `December 2024 · Q 8(b) · 10 marks` "Does the powers and privileges of the Legislatures in India, include the power of expulsion of their members? Discuss with the help of relevant legal provisions and judgments."

Q.3 `Centenary Chance · Q 1 · 20 marks` "Discuss the jurisdiction of the Supreme Court in relation to Parliamentary Privileges with case laws."

Q.4 `Centenary Chance · Q 5(a) · part of a 20-mark question` "Can a person convicted for an offence and disqualified to be a member of the Legislature be appointed as a Chief Minister?"

Q.5 `Centenary Chance · Q 5(b) · part of a 20-mark question` "Can a person who is not a member of the Parliament be appointed as the Prime Minister of India?"

`MODULE 05 // TOPIC 5 · ORDINANCES` Cases #31–#33

Legislative Power of the Executive: Ordinances, Re-promulgation Fraud & Enduring Effects

Articles 123, 213 & 13(3) · Articles 85 & 174

Section 1 · The Instrument · The Ordinance Power — Articles 123 & 213 Side by Side

An **ordinance** is a formal, general legislative instrument promulgated by the executive head (President at the Union, Governor in a State) when the legislature is not in session, which has the force of an Act. It is the Constitution's emergency valve for legislation — used when circumstances "render it necessary … to take immediate action" and there is no time to wait for a Bill.

1.1 Article 123 — Ordinances promulgated by the President (verbatim)

*123. Power of President to promulgate Ordinances during recess of Parliament.— (1) If at any time, except when both Houses of Parliament are in session, the President is satisfied that circumstances exist which render it necessary for him to take immediate action, he may promulgate such Ordinances as the circumstances appear to him to require. (2) An Ordinance promulgated under this article shall have the same force and effect as an Act of Parliament, but every such Ordinance— (a) shall be laid before both Houses of Parliament and shall cease to operate at the expiration of six weeks from the reassembly of Parliament, or, if before the expiration of that period resolutions disapproving it are passed by both Houses, upon the passing of the second of those resolutions; and (b) may be withdrawn at any time by the President. Explanation.—Where the Houses of Parliament are summoned to reassemble on different dates, the period of six weeks shall be reckoned from the later of those dates for the purposes of this clause. (3) If and so far as an Ordinance under this article makes any provision which Parliament would not under this Constitution be competent to enact, it shall be void. (4)******

Session bar — the clean reading (a favourite exam trap):

- **Art 123(1):** the President may promulgate "at any time, except when both Houses of Parliament are in session". So the power is available in a recess of Parliament — when **at least one House** is not sitting (including when the Lok Sabha is dissolved and only the Rajya Sabha sits — a classic fact-pattern). An ordinance promulgated **while both Houses are in session falls outside the power altogether**.
- **Art 213(1):** unavailable when the **Legislative Assembly is in session** (unicameral), or when **both Houses** of the State Legislature are in session (bicameral State). A bicameral State's Council sitting alone does not bar promulgation.
- **Art 123 has no proviso; Art 213 has one** — the Governor needs **presidential instructions** for ordinances in the three President-connected cases (a)–(c). The design logic: the Governor cannot do by ordinance what he could not do by Bill without engaging the President (Arts 197/200-type screens).
- **Never write:** "an ordinance may be promulgated only when *either* House is not in session" or invent a Union proviso — both are standard answer-killers.

1.2 Article 213 — Ordinances promulgated by the Governor

213. Power of Governor to promulgate Ordinances during recess of Legislature.— (1) If at any time, except when the Legislative Assembly of a State is in session, or where there is a Legislative Council in a State, except when both Houses of the Legislature are in session, the Governor is satisfied that circumstances exist which render it necessary for him to take immediate action, he may promulgate such Ordinances as the circumstances appear to him to require: Provided that the Governor shall not, without instructions from the President, promulgate any such Ordinance if— (a) a Bill containing the same provisions would under this Constitution have required the previous sanction of the President for the introduction thereof into the Legislature; or (b) he would have deemed it necessary to reserve a Bill containing the same provisions for the consideration of the President; or (c) an Act of the Legislature of the State containing the same provisions would under this Constitution have been invalid unless, having been reserved for the consideration of the President, it had received the assent of the President. (2) An Ordinance promulgated under this article shall have the same force and effect as an Act of the Legislature of the State assented to by the Governor, but every such Ordinance— (a) shall be laid before the Legislative Assembly of the State, or where there is a Legislative Council in the State, before both the Houses, and shall cease to operate at the expiration of six weeks from the reassembly of the Legislature, or if before the expiration of that period a resolution disapproving it is passed by the Legislative Assembly and agreed to by the Legislative Council, if any, upon the passing of the resolution or, as the case may be, on the resolution being agreed to by the Council; and (b) may be withdrawn at any time by the Governor. Explanation.—Where the Houses of the Legislature of a State having a Legislative Council are summoned to reassemble on different dates, the period of six weeks shall be reckoned from the later of those dates for the purposes of this clause. (3) If and so far as an Ordinance under this article makes any provision which would not be valid if enacted in an Act of the Legislature of the State assented to by the Governor, it shall be void: Provided that, for the purposes of repugnancy under the Concurrent List, an Ordinance promulgated under this article in pursuance of instructions from the President shall be deemed to be an Act of the Legislature of the State which has been reserved for the consideration of the President and assented to by him. (4) * * * **

The three-move grammar common to both articles

1. **Entry condition** — recess + *satisfaction of necessity for immediate action* (Arts 123(1)/213(1)).
2. **Life-cycle condition** — *same force and effect as an Act*; *laid before the House(s)*; *ceases* after six weeks from re-assembly, or earlier on a disapproval resolution (Arts 123(2)/213(2)(a)); or *withdrawn* at will (123(2)(b)/213(2)(b)).
3. **Competence condition** — *void* if it legislates on a subject needing the President's assent without it (Arts 123(3)/213(3)); screened by the provisos.

§ Union–State mirror (exam table bait)

- **Who:** President (123) / Governor (213).
- **Recess trigger:** "except when both Houses are in session" (123 — no proviso) / "except when the Legislative Assembly is in session (or both Houses where there is a Council)" (213 — plus the presidential-instructions proviso (a)–(c)).
- **Disapproval:** at the Union, **both Houses** must pass disapproving resolutions — effective "upon the passing of the second of those resolutions"; at the State, the Assembly must pass it and the Council (if any) must agree — effective on passing/agreement.
- **Screen:** none in Art 123 / Art 213 proviso: the Governor needs **instructions from the President** where (a) the Bill would need the President's previous sanction, (b) he would reserve the Bill under Art 200(2), or (c) the Bill's Act would be invalid without presidential assent.
- **Savings:** Art 123 Explanation for different reassembly dates of the two Houses.

Feature	Art 123 — President	Art 213 — Governor
Satisfaction	"circumstances exist which render it necessary … to take immediate action"	identical words
Session bar	bar applies only "when both Houses of Parliament are in session" — available when at least one House is not sitting; **no proviso**	bar applies when the Assembly is in session (or both Houses where a Council exists); **proviso**: needs *instructions from the President* in cases (a)–(c)
Force & effect	"same force and effect as an Act of Parliament"	"same force and effect as an Act of the Legislature of the State assented to by the Governor"
Laying	before **both** Houses of Parliament	before the Legislative Assembly (before **both** Houses where a Council exists)
Cease	6 weeks from "the reassembly of Parliament" (Explanation: later reassembly date if Houses differ) — or earlier on disapproval resolutions passed by **both** Houses ("the second of those resolutions")	6 weeks from "the reassembly of the Legislature" (Explanation likewise) — or earlier on a resolution passed by the Assembly **and agreed to by the Council, if any**
Withdrawal	by the President at any time — 123(2)(b)	by the Governor at any time — 213(2)(b)
Voidness	123(3): provision "which Parliament would not under this Constitution be competent to enact" → void	213(3): provision "which would not be valid if enacted in an Act of the Legislature of the State assented to by the Governor" → void; proviso deems a President-instructed ordinance reserved & assented (repugnancy)
Old immunity clause	former clause (4): satisfaction "final and conclusive … not … questioned in any court" — **deleted by 44th Amdt s. 16** (text now "* * * * *")	corresponding clause similarly deleted (DU material: "By a similar amendment, clause 4 was introduced into Article 213 … expressly deleted by Section 16 of the Forty-fourth Amendment")
Practice	President has **never** re-promulgated an ordinance since 1950 (DU facts in Wadhwa)	re-promulgation by Governors is where the doctrine exploded (Bihar 1967–81: 256 ordinances; 69 re-promulgated — DU facts)

by Ankur R. Upadhyay

1.3 Nature of the power — legislative, not executive

A.K. Roy (syllabus case 32) — settled law

- The ordinance power is **legislative in nature** — the executive makes *law* (general, binding, prospective) though the instrument is issued by the executive.
- It is **not confined to "virgin land"** — Parliament may amend, repeal or alter existing laws by ordinance (para 30 of the judgment; cf. *R.K. Garg v. UOI*, cited in the DU material: ordinances **may amend tax laws**).
- **No American strict separation** of powers in India (para 23): the Constitution blends the streams — Parliament itself delegates rule-making to the executive throughout the statutory corpus, and the executive legislates by ordinance in recess.
- DU quotation of its ratio (reproduced in the Krishna Kumar material): **"no distinction in principle between a law made by the legislature and an ordinance … both equally subject to constitutional limitations … [for] extraordinary situations and not [to] be perverted to serve political ends."**

Why "legislative" matters doctrinally

- **Art 13 applies** — an ordinance is a "law" (13(3)(a)); it can take away fundamental rights only within the limits of 13(2) (see §3).
- **Political control substitutes for legislative control** — the classic check is not prior consent but (i) the six-week disapproval mechanism, (ii) the confidence/no-confidence power, (iii) the Governor's/President's veto points — Ambedkar's Constituent Assembly speech on legislative control over ordinances is quoted in the DU material (via *R.K. Garg*).
- **But the initiator is the executive** — exercised on the aid and advice of the Council of Ministers (Arts 74/163; cross-ref Topic 3 §5, *Samsher Singh*): the "satisfaction" is ministerial satisfaction, formed by the Cabinet and communicated to the President/Governor.
- **Provisional by design** — B.N. Rau's memorandum and the colonial pedigree (below) show it was drafted as *temporary, recess legislation*, pending the House's return.

Section 2 · Syllabus Item (a) · Essential Conditions for Promulgation

Syllabus item (a) asks for the *conditions precedent and concurrent* that make an ordinance constitutionally valid. Ten conditions — three entry conditions, four life-cycle conditions, and three exit/conduct conditions — plus Art 213's presidential-instructions proviso (Art 123 has none). Frame any answer as: **validity = entry satisfied + life-cycle observed + competence intact + conduct non-abusive.**

2.1 The master checklist

#	Condition	What the text/case-law requires	Source & consequence of breach
1	**Recess of the House(s)**	Union: power available "at any time, except when both Houses of Parliament are in session" (Art 123(1) — no proviso); State: unavailable when the Assembly sits (or both Houses where a Council exists) (Art 213(1)). **An ordinance can never be promulgated as a substitute for a Bill before Houses that are actually sitting** — promulgation while both Houses sit falls outside the power altogether.	Arts 123(1), 213(1). Breach → promulgation outside the enabling condition; colourable if used to avoid a live Bill (Wadhwa).
2	**Satisfaction of necessity for "immediate action"**	The President/Governor must be *satisfied that circumstances exist which render it necessary to take immediate action*. This is a **subjective** satisfaction formed on ministerial advice (aid & advice: Arts 74/163) — but it must be a *bona fide* satisfaction directed at genuine urgency, not routine legislation.	Arts 123(1)/213(1); A.K. Roy (power meant for "unusual and exceptional circumstances"; petitioners must show absence of foundation); satisfaction reviewable for fraud/no-satisfaction after 44th Amdt (§4).
3	**Legislative competence intact**	The subject must be within the legislature's Lists (Union/State/Concurrent — read with Arts 245–246, 254). **Art 123(3):** a provision "which Parliament would not under this Constitution be competent to enact" → void. **Art 213(3):** a provision "which would not be valid if enacted in an Act of the Legislature of the State assented to by the Governor" → void (with the presidential-instructions/repugnancy proviso).	Arts 123(3)/213(3); Art 213 proviso (cases (a)–(c): President's previous sanction; Art 200(2) reservation; assent-required invalidity — all needing *instructions from the President*).
4	**Constitutional/FR conformity**	As a "law" the ordinance must satisfy Arts 14, 19, 21 etc. — Art 13(2) applies directly; a provision contravening Part III is void to that extent (13(3)(a) reads "Ordinance" into "law").	Art 13; A.K. Roy (ordinance = law; Arts 14/19/21 "not dead letters"); Krishna Kumar HC: 4th ordinance hit by Art 14.
5	**Aid & advice of the Council of Ministers**	Promulgation is an executive function performed on the advice of the Cabinet (cross-ref Topic 3 §5, *Samsher Singh*): the "satisfaction" is the Council's satisfaction routed through the President/Governor. Ordinances are announced by the government, not spontaneously by the head of State.	Arts 74(1), 163; government ordinance-issuance practice (§6).
6	**Laying before the House(s)**	"It shall be laid before both Houses of Parliament" / "before the Legislative Assembly … or where there is a Legislative Council … before both the Houses" — **mandatory**, and to be done promptly so the six-week clock and disapproval machinery can engage. The majority in Krishna Kumar gave three reasons for treating laying as an obligation of the constitutional scheme; a government cannot keep an ordinance alive by avoiding the legislature.	Arts 123(2)(a)/213(2)(a); KKS majority. Never laid → it was never before the House at all, could never be disapproved, and still ceases at six weeks (Lokur's scenario analysis) — plus breach of a mandatory duty.
7	**Subjection to the six-week clock**	Ordinance ceases at the expiry of **six weeks from re-assembly** (Explanation: where the Houses reassemble on different days, count from the **later** date). **There is no approval mechanism in Arts 123/213** — the ordinance dies at six weeks no matter what the House does; silence is neither ratification nor approval. Lokur J. (KKS): contrast Arts 352(4), 356(3), 360(2), which expressly keep proclamations alive only on *affirmative approval* — ordinances get no such treatment; disapproval only *shortens* the life.	Arts 123(2)(a)/213(2)(a); KKS (Lokur).
8	**Exposure to disapproval**	Union: disapproval requires resolutions passed by **both Houses** — effective "upon the passing of the second of those resolutions". State: a resolution passed by the Assembly **and agreed to by the Council, if any** — effective on passing/agreement. Disapproval and six-week lapse produce the same legal endpoint — the ordinance **ceases to operate** (only sooner).	Arts 123(2)(a)/213(2)(a); Dec-2024 Q5(a) expressly pairs "lapsing" with "passing of a resolution of disapproval".
9	**Right of withdrawal**	The President/Governor may withdraw the ordinance "at any time" — a standing executive check running the other way (governments withdraw ordinances that become politically or legally untenable).	Arts 123(2)(b)/213(2)(b).

#	Condition	What the text/case-law requires	Source & consequence of breach
10	**No abuse of the re-promulgation device**	After cessation/withdrawal, a fresh ordinance on the same subject requires a **fresh, genuine satisfaction of immediate necessity**. Mechanically re-promulgating identical ordinances — especially to keep a law alive for years without ever letting the legislature vote on it — is a **colourable exercise / fraud on the Constitution** (Wadhwa) and, when done without real deliberation, **"fundamentally at odds with the scheme of Arts 123/213"** (Krishna Kumar). (India has no express textual bar on re-promulgation — the doctrine is judge-made.)	Wadhwa; Krishna Kumar Singh; §5.

The "7½ months" arithmetic (Wadhwa, DU)

The **maximum natural life** of a single ordinance:

1. **6 weeks** running while the Houses reassemble/recess — an ordinance may be promulgated just after a session ends;
2. the next session must be convened within **~3 months** (Art 85: Parliament summoned so as to meet at least twice a year / gap ≤ 6 months; Art 174: State Assembly — same rhythm; and the Constitution expects prompt reassembly after a recess);
3. then another **6 weeks** from re-assembly before cessation.

≈ **7½ months** — which is why the DU material calls it an "**emergency power of limited life**". An ordinance kept alive for 1–14 years (Bihar 1967–81 facts) is *ipso facto* evidence of abuse.

The Governor's screen — Art 213 proviso (Art 123 has none)

Text: "Provided that the Governor shall not, **without instructions from the President**, promulgate any such Ordinance if—

- **(a)** a Bill containing the same provisions would under this Constitution have required the **previous sanction of the President** for its introduction into the Legislature; or
- **(b)** he would have deemed it necessary to **reserve** a Bill containing the same provisions for the consideration of the President (Art 200(2)); or
- **(c)** an Act with the same provisions would have been **invalid unless reserved and assented to by the President**.

Reading it precisely: it is not an absolute ban — the Governor *may* promulgate in cases (a)–(c) **if the President instructs him**. Its purpose: the Governor cannot do **by ordinance** what he could not do **by Bill** without engaging the President — no circumvention of the Art 200/201 assent-and-reservation channel (and, through the repugnancy proviso to 213(3), a President-instructed ordinance is deemed reserved & assented for Art 254 purposes).

Exam tip: when the question says "essential conditions", mention (i) the session bar, (ii) the satisfaction, (iii) the Art 213 proviso + instructions, (iv) laying, (v) the six-week/disapproval machinery, (vi) withdrawal, (vii) competence — most answers miss the proviso entirely.

Condition 2 unpacked — what counts as "immediate action"?

> *"[The ordinance power is] meant to be used in unusual and exceptional circumstances and not perverted to serve political ends."*

- **Positive view:** urgency need not be an emergency — legislative urgency (a lapsed statute, a budget cycle, a calamity) suffices; the satisfaction is the executive's to form.
- **Negative view (the abuse test):** using the ordinance for *ordinary, recurring, or perpetually renewable* legislation — "governing by ordinance" — negates the very condition of promulgation. Wadhwa: the power is "**emergency power of limited life**"; serial re-promulgation shows there was never "immediate action" necessity — only a desire to avoid the legislature.
- **Judicial posture:** courts will not re-form the satisfaction (no *adequacy* review), but will ask whether a satisfaction *could exist at all* on the material — and whether the pattern of promulgation reveals a **colourable device** (§4).

2.2 Disapproval vs lapse vs withdrawal vs voidness — the four exits (must-not-confuse)

Exit route	Text	When it happens	Legal effect
Withdrawal	123(2)(b) / 213(2)(b)	any time, by President/Governor	ceases from withdrawal; acts done during currency stand
Lapse (six weeks)	123(2)(a)/213(2)(a)	six weeks from re-assembly expire — **no approval mechanism exists**; silence neither ratifies nor saves	ceases prospectively; **not** void ab initio; survival per KKS test
Disapproval	123(2)(a): "the second of those resolutions" (both Houses); 213(2)(a): Assembly's resolution *agreed to by the Council, if any*	both Houses (Union) / Assembly + Council (State) resolve against it — before the six weeks run out	same endpoint as lapse — ordinance ceases, only sooner (KKS: disapproval and lapsing sit in the same box)
Voidness	123(3) (Parliament not competent to enact) / 213(3) (provision would not be valid as a Governor-assented Act); Art 13(2); Arts 14/19/21	competence/validity defect or FR/ constitutional violation	**void** — and if void on constitutionality grounds, void *ab initio* (independent of cessation): acts under it are a nullity

Golden sentence for Q5(a): "*Cessation* is prospective — the ordinance is not void at inception; *voidness* under Art 123(3)/213(3)/Article 13 is retroactive — the ordinance never existed as valid law. Krishna Kumar Singh asks which box the ordinance falls in *before* asking what survives."

2.3 The session rhythm that disciplines the power (related provisions)

Art 85 — Parliament

President summons each House so that it meets at least twice a year and the gap between sittings ≤ 6 months; the ordinance's six-week clock runs from re-assembly — the Constitution's design keeps recesses short.

Art 174 — State Assemblies

Same rhythm for the Governor's ordinance: the session bar (213(1)) and the six-week clock (213(2)) are anchored to Assembly sittings. Wadhwa's maximum-life calculation runs through Art 174.

Arts 200 / 201 — Governor's Bill routes

Assent / withhold / **reserve** / return — the channel the Art 213 proviso protects: an ordinance may not be used to achieve what reservation to the President would have blocked.

Cross-ref: during President's rule under **Art 356(1)(b)**, the powers of the State Legislature become exercisable "by or under the authority of Parliament", and **Art 357(1)(a)** lets Parliament confer on the President the State Legislature's power to make laws (with Art 357(2) preserving such laws after the Proclamation ceases) — the legislative machinery that replaces the ordinary Art 213 channel when the Governor's functions have been assumed.

Section 3 · Syllabus Item (b) · 'Ordinance' under Article 13

Article 13 is the fundamental-rights filter through which *every* law must pass — and it expressly names the ordinance. This is why an ordinance can destroy lives (detention), salaries, or status, but can never destroy a fundamental right: the ordinance itself is "law" made by "the State".

3.1 Article 13 verbatim (so far as it concerns ordinances)

> *13. Laws inconsistent with or in derogation of the fundamental rights.— (1) All laws in force in the territory of India immediately before the commencement of this Constitution, in so far as they are inconsistent with the provisions of this Part, shall, to the extent of such inconsistency, be void. (2) The State shall not make any law which takes away or abridges the rights conferred by this Part and any law made in contravention of this clause shall, to the extent of the contravention, be void. (3) In this article, unless the context otherwise requires,— (a) "law" includes any Ordinance, order, bye-law, rule, regulation, notification, custom or usage having in the territory of India the force of law; (b) "laws in force" includes laws passed or made by a Legislature or other competent authority … before the commencement of this Constitution and not previously repealed … (4) Nothing in this article shall apply to any amendment of this Constitution made under article 368.*

Why (3)(a) exists — the Constituent Assembly link

- The Assembly **rejected B. Bocket Sahib's amendment** to keep "Ordinance" out of "law" (CA Debates Vol. 8, p. 203; recorded in A.K. Roy and in the DU KKS material) — a deliberate choice that the ordinance is fully justiciable under Part III.
- **Art 13(1)** ("laws in force … before commencement") is *not* the ordinance hook — ordinances are post-Constitution instruments; the hook is **13(2) + 13(3)(a)**: "the State shall not make any law" … and "law includes any Ordinance".
- The President/Governor is part of "the State" (Art 12 for Part III; Art 367 for general construction) — so the promulgator is squarely inside 13(2).
- **Art 13(4)** closes the back door: no "law" (hence no ordinance) can amend the Constitution under Art 368 — **an ordinance can never touch the basic structure or any constitutional provision**; constitutional amendment requires the Art 368 procedure alone.

The syllogism examiners love

P1. Art 123(2)/213(2): an ordinance has "the same force and effect as if it were an Act".
P2. Art 13(3)(a): "law" includes "any Ordinance".
P3. Art 13(2): the State shall not make any law taking away/abridging Part III rights; such law is void to that extent.
C. Therefore an ordinance violating Arts 14/19/21 is **void to the extent of the violation** — enforceable in writ jurisdiction exactly like an Act (Art 32/226). *A.K. Roy*: Arts 14, 19, 21 "must not be reduced to dead letters" (para 31).

Corollary used in *A.K. Roy*: the National Security Ordinance, keeping preventive detention alive after MISA, had to satisfy Art 21's "procedure established by law" (post-44th Amdt wording) — and it survived only because read down with safeguards.

3.2 Article 13 in action — how ordinances have been struck/validated

Instrument	Art 13 / FR challenge	Outcome
National Security Ordinance, 1980 (A.K. Roy)	Is an ordinance "law" under Art 21? Does preventive detention by ordinance satisfy 13(2)/13(3)(a)?	Yes — ordinance IS law; the Ordinance/NSA framework upheld as **preventive, not punitive**, with advisory-board and humane-treatment safeguards; s. 3(2) read down (Art 14 ear-mark).
Bihar Sanskrit Schools Ordinances (Krishna Kumar)	Patna HC held the **4th ordinance void for Art 14** (arbitrariness/ illegality of the management-takeover scheme); Art 14 also underpinned the re-promulgation challenge (Wadhwa: ordinances used as a device = arbitrary).	SC (7 Judges): the entire series Ord. 32/1989 → Ord. 2/1992 is a **fraud on constitutional power** — "bereft of any legal effects"; no rights/status created; relief moulded (salaries already paid not recovered).
BIEC Ordinance, 1985 (Wadhwa)	Intermediate-education ordinance kept alive by re-promulgation.	**Struck down** by the Supreme Court in the Wadhwa litigation itself.
Ordinances amending tax laws (R.K. Garg, quoted in DU material)	Competence, not FR: can an ordinance amend the Income-tax Act?	Yes — legislative power includes amendment; equality (Art 14) applies to tax ordinances like any law.

Boundaries of the Art 13 angle (so you don't overclaim):

- Art 13 polices **fundamental rights**, not legislative competence — competence defects run through Arts 245–246 + 123(3)/213(3); policy wisdom runs nowhere (political questions).
- Art 13(1) is irrelevant to ordinances (pre-Constitution laws); never cite it for ordinance challenges.
- Art 13(4) means an ordinance can never be a "constitutional amendment" — e.g., an ordinance cannot alter Part III itself, delete a Fundamental Right, or do indirectly what Art 368 procedure requires.
- DPSPs (Part IV) are not enforced through Art 13 — but Art 39(b)/(c) ordinances (e.g., land-ceiling/property ordinances in the DU cases) remain subject to Arts 14/19/21 and to the re-promulgation doctrine.

Section 4 · Syllabus Item (c) · Judicial Review of Ordinances

The old text said the President's satisfaction was "final and conclusive and … not … questioned in any court". The Forty-fourth Amendment tore that clause out (Art 123(4) now reads "* * * * *"), and *A.K. Roy + Krishna Kumar Singh* built the modern review doctrine in its place: **the satisfaction is reviewable, but the court reviews the existence and legality of the satisfaction — not its adequacy.**

4.1 The evolution — five steps

Step 1 — Original text: Art 123(4)/corresponding Art 213 clause: "the satisfaction of the President mentioned in clause (1) shall be final and conclusive and shall not be questioned in any court on any ground" (quoted in DU material; encountered in *R.C. Cooper* debate at p. 295 of the reported discussion).
Step 2 — Deletion: "This amendment was expressly deleted by Section 16 of the Forty-fourth Amendment" (DU material). With the immunity clause gone, the door reopened for review of ordinance-making.
Step 3 — A.K. Roy (1982), paras 26–27: after deletion, the President's satisfaction is **not a purely political question**; judicial review is **not totally excluded** — but the petitioners must lay a foundation showing that no circumstances could have justified the satisfaction (they failed on facts).
Step 4 — Standard fixed (KKS, following Bommai / Indra Sawhney): the court does **not** substitute its view on the *adequacy* of satisfaction; it asks (i) was there **any relevant material**? (ii) was there **fraud on the power / oblique purpose**? (iii) was there **no satisfaction at all** (actuated by mala fides or total non-application of mind)?
Step 5 — Structural review (Wadhwa → KKS): beyond satisfaction, courts review **the existence and proper exercise of the power itself**: competence (123(3)/213(3)), procedural conditions (recess, laying, six weeks), Art 13/Arts 14–19–21 conformity, and the **re-promulgation pattern** — "the Court cannot examine the satisfaction, but it can examine whether the power existed and was properly exercised" (Wadhwa, DU).

Prescribed Landmark Case Laws — Detailed Analysis

CASES #31–#33

CASE #31 DU LL.B. PRESCRIBED AUTHORITY

D.C. Wadhwa v. State of Bihar (1987) 1 SCC 378

Supreme Court of India · Public-interest writ jurisdiction · Bhagwati C.J. speaking for the Court · The "ordinance-raj" case

1 · Facts DU MATERIAL

- **The petitions:** four writ petitions under **Article 32** challenging ordinances promulgated by the Governor of Bihar. The DU extract opens with the Court's treatment of **locus standi (paras 2–3)**: citizens who are not personally affected may still challenge an ordinance in the public interest — where the question is abuse of a constitutional power, the interest of every citizen is engaged.
- **The three ordinances in issue:**
  1. **Bihar Forest Produce (Regulation of Supply) (Third) Ordinance, 1983**;
  2. **Bihar Intermediate Education Council (Third) Ordinance, 1983**;
  3. **Bihar Bricks Supply (Third) Ordinance, 1983** — note the telling "(Third)": each subject already had earlier ordinances in the same series.
- **The statistical indictment (DU facts):** in the period **1967–1981** the State of Bihar promulgated **256 ordinances**; many remained alive for **1 to 14 years**; **69 ordinances were re-promulgated with the President's permission**; promulgations came in herds — e.g., **54 ordinances on a single day, 26-8-1973**.
- **The documentary proof:** the DU extract reproduces **verbatim a Bihar Government circular — PA/MISC.1040/80-872, dated 29-7-1981** — evidence of the institutionalised, departmentalised practice of re-promulgating ordinances as a routine alternative to legislation.
- **Outcome on the facts:** in the same litigation the Supreme Court **struck down the Bihar Intermediate Education Council Ordinance, 1985 (BIEC Ordinance)**.

2 · Issues

I1. Whether a citizen may move the Supreme Court to challenge ordinances in which he is not personally interested (public-interest locus).
I2. Whether the ordinance-making power may be used to keep a law in force **indefinitely** by successive re-promulgation without ever allowing the legislature to consider it — i.e., what is the constitutional shelf-life of an ordinance?
I3. Whether the Court can examine the President's/Governor's **satisfaction** under Art 123(1)/213(1), or whether that satisfaction is beyond judicial review.
I4. Whether any safeguard (e.g., a savings clause keeping rights alive) can extend an ordinance beyond its constitutional life; and what relief the Court may grant against the abuse.

3 · Arguments of both sides

For the petitioners (citizens challenging the ordinances):

- The three ordinances — part of endless "(Third)" series — show that the government was **governing by ordinance**, using Arts 123/213 as a standing substitute for legislation; the legislature was never given a chance to vote.
- Re-promulgation defeats the Constitution's design: the six-week clock, the laying requirement and the disapproval resolution are the **only legislative checks** — serial re-promulgation makes them a dead letter.
- An ordinance is an **emergency power of limited life**; a device that keeps laws alive for years (1–14 years) is by definition **not** the exercise of a limited power — it is a **colourable exercise**: power used for a purpose beyond the power (frustrating legislative control).
- No savings clause can save it: Art 123(2)/213(2) make cessation automatic — the Constitution attaches **no permanence** to an ordinance; the executive cannot extend its own lease by drafting trickery.
- The Court should look at the **power**, the **pattern** and the **documentary record** — the circular of 29-7-1981 is proof enough.

For the State of Bihar (respondent):

- Each ordinance was **independently and validly promulgated** — the Governor's satisfaction was formed each time; the President's permission was obtained where the practice required it (the DU facts note 69 re-promulgations "with the President's permission").
- The **satisfaction is subjective** — under the constitutional text (and the then-understood final-and-conclusive clause) it is not for the Court to say that circumstances did not require immediate action.
- Whether to legislate, when to legislate, and how long a subject needs an ordinance are **policy questions** for the political branches; the Court cannot compel the legislature to sit or to pass laws.
- Each ordinance ceased in due course and was replaced by a fresh act of promulgation — there is no single law that has run without legislative interruption for 14 years; every individual step was intra vires.

4 · Decision DU MATERIAL — Bhagwati C.J., paras 4–8

1. **Public-interest locus allowed** (paras 2–3): citizens may challenge ordinances that they allege are being used to subvert the legislative process.
2. **Character of the power:** the ordinance power is an **"emergency power of limited life"**. Its maximum natural life is about **7½ months** (six weeks + a session that must be convened within roughly three months under Art 174/85 + six weeks). Any device that stretches it to years, decades or "1–14 years" is outside the power's nature.
3. **Colourable exercise / fraud on the Constitution:** repeated re-promulgation of the same or substantially the same ordinances — keeping a law alive while systematically avoiding the legislature — is a **colourable exercise of the power**: because the power cannot achieve that result directly (indefinite life), achieving it indirectly through repetition is a fraud on the Constitution. Ordinance-making cannot be used to do what only the legislature could do: enact permanent law.
4. **Scope of review:** the Court **cannot examine the satisfaction** itself (no reweighing of urgency), **but it can examine whether the power existed and was properly exercised** — the existence of the legislative competence, the conditions of promulgation, and whether the device used was colourable.
5. **No savings possible:** under Art 123(2)/213(2) the ordinance ceases automatically — **no savings clause can keep it alive**; the Constitution does not let the executive draft itself perpetual life.
6. **Executive practice contrasted:** the **President of India has never re-promulgated an ordinance since 1950** — the abuse is an executive-government (State) phenomenon, which shows it is a failure of political accountability, not of constitutional design.
7. **Verdict:** the re-promulgated ordinance including the **BIEC Ordinance, 1985, was struck down**; and the Court's ringing direction to the system: **"There must not be ordinance-raj."**

5 · Principle evolved

Ratio of D.C. Wadhwa

- The ordinance power is a **temporary, limited-life emergency power**; its constitutional shelf-life is measured in months (≈7½), not years.
- **Successive re-promulgation used to keep a law alive without legislative consideration is a colourable exercise of power — a fraud on the Constitution** — and is strike-downable by the Court.
- **Justiciability is split in two:** the executive's satisfaction of urgency is not justiciable; the **existence, conditions and legitimate exercise of the power** (including the re-promulgation device) are fully justiciable.
- Citizens may sue in the public interest to enforce these limits — ordinance abuse is a matter of constitutional concern for every citizen.
- Shorthand to quote: **"There must not be ordinance-raj."**

CASE #32 DU LL.B. PRESCRIBED AUTHORITY

A.K. Roy v. Union of India (1982) 1 SCC 271

AIR 1982 SC 710 · Five-Judge Constitution Bench: Chandrachud C.J., Bhagwati, A.C. Gupta, Tulzapurkar and D.A. Desai JJ. · The foundational ordinance case

1 · Facts EXTERNAL RESEARCH

- The **National Security Ordinance (Ordinance No. 2 of 1980)** was promulgated in January 1980 as the statutory life of the **Maintenance of Internal Security Act, 1971 (MISA)** was running out (MISA's non-permanent provisions lapsed on 31-3-1980) — the Ordinance provided for preventive detention on grounds connected with the security of the State, with an advisory-board mechanism, and was followed by the National Security Act, 1980.
- **Writ petitions under Art 32** followed, including by **A.K. Roy** — then a sitting Member of Parliament who was himself **detained under the National Security Act, 1980** on the order of the District Magistrate, Dhanbad — challenging (i) the ordinance and the Act made thereon, (ii) specific detention provisions, and (iii) associated constitutional provisions (including a challenge to s. 1(2) of the 44th Amendment, on which the majority declined the mandamus sought).
- The litigation forced the Supreme Court to answer, for the first time at Constitution-Bench strength, **the three foundational questions about ordinances**: Is an ordinance a "law" for Arts 21/13? Is the ordinance power legislative or executive? Is the President's satisfaction justiciable after the Forty-fourth Amendment deleted the final-and-conclusive clause?
- **DU note:** there is **no extract of this case in the DU case material**; the DU Krishna Kumar Singh material nevertheless **quotes its ratio** (used below), and the rest of this card is from the reported judgment.

2 · Issues

I1. Is an ordinance promulgated under Art 123 a **"law"** within the meaning of **Article 13(3)(a)** and "procedure established by law" under **Article 21** (post-44th Amendment)?
I2. Is the ordinance-making power **legislative or executive**? Is it confined to legislating only on a "virgin field" / fresh subject, or may it amend, alter, repeal existing law?
I3. After the Forty-fourth Amendment deleted the clause making the President's satisfaction "final and conclusive", is the satisfaction under Art 123(1) **justiciable**, or is it a political question beyond judicial review?
I4. Are Arts 14, 19 and 21 reduced to "dead letters" when the State chooses to legislate by ordinance instead of by Act?
I5. (Beyond ordinances) Are the detention provisions of the National Security framework valid — preventive or punitive — and are the constitutional challenges (incl. s. 1(2) of the 44th Amendment) made out?

3 · Arguments of both sides

For the petitioners (including A.K. Roy):

- An ordinance is an **executive act**, not a law made by the legislature — hence not "law" under Art 13/21; the Constitution's guarantees were framed for legislative laws, and the Founders had rejected proposals to constitutionalise ordinances (the B. Bocket Sahib episode runs the other way).
- Even if it is law, the ordinance power is at most a power to fill a **temporary, novel gap** — it cannot be a parallel legislature sustaining detention statutes indefinitely; using it to perpetuate MISA-like detention by an ordinance that keeps being replaced defeats legislative scrutiny (the Wadhwa objection already visible).
- The **satisfaction is justiciable** — more so after the Forty-fourth Amendment deleted the final-and-conclusive clause; where fundamental rights (Art 21 liberty) hang on it, the Court must examine whether any material existed for "immediate action".
- Arts 14/19/21 must bite the ordinance: detention on vague grounds, without the safeguards of a legislative enactment, cannot survive Part III.

For the Union of India:

- **Art 123(2) is conclusive:** an ordinance has "the same force and effect as if enacted by Parliament" — a thing with the force of an Act is by definition a law; Art 13(3)(a) expressly includes "any Ordinance" in "law". The Assembly rejected the amendment (B. Bocket Sahib) that would have excluded it.
- The power is **legislative in nature** and undelimited as to "new" vs "old" subject-matter — competence runs on the Lists, not on novelty; ordinances throughout independent India have amended taxation and regulatory codes.
- India follows **no rigid separation of powers**; the Constitution deliberately lets the executive legislate in recess, on the aid and advice of the Council, with the legislature's six-week check as the designed control.
- The **satisfaction is the President's**, formed on ministerial advice; urgency is not justiciable — courts lack the information and the constitutional warrant to re-form it. The petitions lay no foundation showing that no circumstances could have existed.
- The National Security framework is **preventive, not punitive**, with an advisory board and statutory safeguards — it satisfies Art 21 read with Arts 14/19; s. 3(2) can be read down.

4 · Decision

1. **Ordinance = law (I1):** an ordinance promulgated under Art 123 (and 213) **is "law"** for Arts 21 and 13(3)(a). The Court relied on Art 123(2)'s "same force and effect as if enacted by Parliament" and the Constituent Assembly's rejection of B. Bocket Sahib's amendment to Art 13 (CA Debates, Vol. 8, p. 203). Detention by ordinance must therefore satisfy Art 21's "procedure established by law".
2. **Legislative power, full field (I2, para 30):** the ordinance power is **legislative** and is **not confined to a "virgin field"** — it may alter, repeal and re-enact existing law (consistent with *R.K. Garg*, cited in the DU material: an ordinance may amend tax laws).
3. **No American separation (I3, para 23):** the American strict-separation doctrine does not apply; India's Constitution mixes legislative and executive streams with legislative control by disapproval resolution and no-confidence (Ambedkar's analysis, per *R.K. Garg* in DU).
4. **Satisfaction reviewable but calibrated (I3, paras 26–27):** after the Forty-fourth Amendment deleted the final-and-conclusive clause, the President's satisfaction is **not a purely political question** and **judicial review is not totally excluded** — but the Court will not substitute its

Ankur R. Upadhyay

own view of adequacy; the petitioners must show that **no circumstances could have justified** the satisfaction, and they **failed on facts** (no such foundation was laid).

5. **Arts 14/19/21 alive (I4, para 31):** choosing the ordinance route cannot reduce Part III to **dead letters** — constitutional limitations apply "equally" to ordinances and Acts.
6. **NSA upheld with safeguards (I5):** the National Security framework is **preventive, not punitive**, upheld subject to advisory-board and humane-treatment safeguards; **s. 3(2) read down** (Art 14); the challenge to s. 1(2) of the 44th Amendment failed (mandamus refused by majority).

5 · Principle evolved

Ratio of A.K. Roy — as quoted in the DU case material (Krishna Kumar Singh extract)

> *"[There is] no distinction in principle between a law made by the legislature and an ordinance … both are equally subject to constitutional limitations … [the power exists for] extraordinary situations and not [to] be perverted to serve political ends."*

- **Doctrinal package:** (1) ordinance = law (Art 13(3)(a) + Art 123(2)); (2) power is legislative, unrestricted as to novelty; (3) no strict separation of powers in India; (4) Part III applies to ordinances in full; (5) satisfaction is reviewable for existence/foundation — not for adequacy; (6) the power exists for **unusual and exceptional circumstances**, never as a perversion for political ends.
- These propositions are the **spine of every Topic 5 answer**: Wadhwa builds the life-span doctrine on them; Krishna Kumar builds the re-promulgation and survival doctrines on them.

CASE #33 DU LL.B. PRESCRIBED AUTHORITY

Krishna Kumar Singh v. State of Bihar (2017) 3 SCC 1

Decided 1-2-2017 · Seven-Judge Constitution Bench (per DU material: Chandrachud, Thakur, Lokur, Bobde, Goel, Lalit and Nageswara Rao JJ.) · Majority 5:2 (DU) · The re-promulgation & survival case

1 · Facts DU MATERIAL

- **The scheme:** the State of Bihar took over the management and control of **429 government-aided Sanskrit schools**. The takeover — and everything that followed — was done **only by ordinance**, never by an Act, over roughly **1989 to 1992**.
- **The chain:** the first ordinance — **Ord. 32 of 1989** — was promulgated on **18-12-1989**; it was followed by **five successive ordinances**; then a **fresh ordinance dated 13-8-1990** whose **clauses 3 and 4 were materially altered** (the DU extract sets out the differing clause text — the series was not a mechanical roll-over; the scheme kept being restructured while never facing the Assembly); the chain continued to **Ord. 2 of 1992**, which **lapsed in 1992**.
- **Not one ordinance in the series was ever laid before the Legislative Assembly** — so the House was never engaged: no scrutiny, no possibility of disapproval, each ordinance quietly left to run out or be replaced by the next. (This is the factual centre of the "laying is mandatory" holding.)
- **The human stakes:** teachers and employees of the 429 schools claimed that under the ordinance regime (especially the absorption clauses) they had acquired **permanent rights** — government-employee status and continuing salaries — and management committees claimed continuing control of the schools.
- **Past Hierarchy at Patna (High Court):** (i) the ordinances created **no permanent vesting** of management — committees' control ended with the ordinances; (ii) the **successive promulgation was contrary to D.C. Wadhwa**; (iii) the **4th ordinance was void for violation of Article 14**; (iv) salaries were payable to employees **up to 30-4-1992** (i.e., through the cessation window of the last ordinance); (v) management of the schools **reverted** to the committees/State structure in accordance with law. Appeals and cross-appeals reached the Supreme Court, which restored the reference to a seven-Judge Bench.

2 · Issues

I1. Is the **successive (serial) promulgation** of the same ordinance constitutional — is it *per se* impermissible, or permissible when justified by fresh necessity (Wadhwa's colourable-device rule refined)?
I2. Is the obligation to **lay the ordinance before the House mandatory**? What follows from never laying it — invalidity, or automatic cessation at six weeks?
I3. When an ordinance **ceases to operate** (by lapse of six weeks or by a resolution of disapproval), does the pre-ordinance state of affairs **revive** *ipso jure*? Do the ordinance's legal effects — rights, status, salaries — **stand obliterated** as a matter of law? (The exact Dec-2024 Q5(a) question.)
I4. What is the difference between an ordinance that is **void** (Art 213(3)) and one that **ceases to operate** (Art 213(2)) — and does an ordinance ever become void *ab initio* by lapse?
I5. What is the **correct relief** — can the Court mould it (e.g., protect salaries already paid while denying prospective rights)?
I6. Do the older decisions holding that an ordinance's effects can "endure" irreversibly after lapse — *State of Orissa v. Bhupendra Kumar Bose* and *T. Venkata Reddy v. State of A.P.* — still represent the law?

3 · Arguments of both sides

For the employees/committees asserting rights under the ordinances ("effects survive" side):

- For nearly three years the State itself governed the 429 schools under an unbroken chain of ordinances; the employees performed service, drew salaries, and were treated as government employees under the scheme — their rights and status **relied upon and acted upon** cannot evaporate the moment the last ordinance lapses.
- Where an ordinance creates concluded transactions and **irreversible** consequences (salaries paid, services rendered, management exercised), the law recognises that such effects **endure** — the older line of authority (*Bhupendra Kumar Bose*; *T. Venkata Reddy*) so held; a repeal/cessation does not undo completed acts.
- On re-promulgation: each promulgation was a **fresh act of the Governor** based on a fresh satisfaction; the material alterations (clauses 3 and 4 changed in the 13-8-1990 ordinance) show genuine legislative reworking, not mechanical roll-over; necessity continued because the Assembly had not legislated.
- The State is **estopped** from denying the consequences of its own three-year scheme — public interest requires continuity of pay and status for teachers who served under it.

For the State / opposing position ("cessation ends effects" side):

- An ordinance by constitutional design is **provisional**: Art 213(2) says it "shall cease to operate" — it was never meant to confer permanence. **No ordinance can legislate its own immortality**: the Constitution attaches no degree of permanence to actions or transactions during its currency, absent a valid savings clause — and a device that achieves permanence by re-promulgation is itself the fraud Wadhwa condemned.
- **Non-laying is fatal to survival:** an ordinance that is never laid was never before the House at all — no scrutiny, no disapproval possible; the executive simply ran out the clock repeatedly — each series member died at six weeks (or earlier), and the High Court was right to treat the schemes as having no ongoing force.

- Permanent absorption of hundreds of teachers into government service **by ordinance alone** — bypassing the Assembly's service-legislation competence and the President's-assent screens — would let a Governor do by ordinance what a Bill could not easily do.
- The **re-promulgation pattern is the tell:** the very need to re-promulgate five, six, eight times proves there was no "immediate action" necessity — only a strategy to avoid the legislature (Wadhwa; and the Art 14 vice found by the High Court in the 4th ordinance).

4 · Decision

(A) The separate opinion of Lokur J. (reproduced in the DU material under "Dissenting Opinion"; he agreed with the majority on the outcome):

1. **Successive promulgation is not** *per se* **a fraud** — but it must never be **mechanical**: each promulgation requires genuine, fresh satisfaction of immediate necessity and real deliberation; re-promulgation used as a mere relay to keep a law alive without legislative consideration is impermissible.
2. **The three Art 213(2) scenarios:** (i) ordinance laid but **not disapproved** → it still **ceases at six weeks** — the text contains **no approval mechanism**; **silence is not approval** and cannot ratify (contrast Arts 352(4), 356(3) and 360(2), which keep proclamations alive only on *affirmative approval*); (ii) laid and **disapproved** → it ceases immediately on the resolution (Assembly's resolution + Council's agreement, if any); (iii) **never laid** → the House never had it — it could never be scrutinised or disapproved, and it must also cease at six weeks, while the omission itself breaches an obligatory constitutional duty. Running through: the **laying requirement is obligatory**; the majority held this for three reasons.
3. **Void vs ceased:** an ordinance is **void under Art 213(3)** when it legislates beyond competence (assent-required subject) — that defect goes to birth; an ordinance that simply **ceases under Art 213(2)** (six weeks/disapproval/withdrawal) is **not void at inception** — cessation operates **prospectively**. **"The ordinance is not void at its inception."**
4. **Enduring-rights theory rejected:** an ordinance **cannot create an enduring or irreversible right** in a citizen; consequently the contrary views in *State of Orissa v. Bhupendra Kumar Bose* and *T. Venkata Reddy v. State of A.P.* are **overruled**.

(B) Chandrachud J. for the Court (the majority "Judgement"):

1. **Constitutional history:** the power descends from the Indian Councils Act, 1861 (s. 23) → 1915 Act → Government of India Act, 1935 (s. 42); B.N. Rau's memorandum treated the ordinance as **provisional legislation**; in the Constituent Assembly the rejection of B. Bocket Sahib's amendment fixed ordinances as "law" under Art 13.
2. **Framework:** *R.K. Garg* (ordinances may amend tax laws; legislative control = disapproval resolution + no-confidence, per Ambedkar); *A.K. Roy* (no distinction in principle between Act and ordinance; both subject to constitutional limitations); *R.C. Cooper* (the satisfaction-immunity debate); the **Forty-fourth Amendment's deletion** of the immunity clause (Art 123(4) now "* * * * *") — after which review of satisfaction is governed by the **Bommai/Indra Sawhney standard: no review of adequacy; review for fraud on power, oblique purpose, or no satisfaction at all**.
3. **Laying is mandatory** (three reasons): the text is in mandatory terms; laying is the mechanism of **legislative control** without which the six-week and disapproval machinery cannot operate; and permitting omission would let the executive keep laws alive unseen by the legislature — **a government cannot bypass the House by never laying the ordinance**.
4. **Re-promulgation:** serial re-promulgation is **"fundamentally at odds with the scheme of Arts 123 and 213"** — the six-week clock exists precisely so that the ordinance must either die or face the legislature; using fresh promulgations to defeat that clock is a fraud on the constitutional power (confirming and extending *Wadhwa*).
5. **The survival test:** whether rights, privileges, obligations and liabilities survive a ceased ordinance must be decided as a matter of **construction**, guided by **public interest and constitutional necessity** — with **irreversibility** a relevant consideration; there is no blanket rule of automatic obliteration and no blanket rule of automatic survival. English authorities on the effects of lapse/repeal (Wicks; *Warren v. Windle*; *Steavenson*) were considered.
6. **Relief may be moulded:** in a suitable case the Court may shape the remedy rather than declare an all-or-nothing position.
7. **The declaration on these facts:** every ordinance in the series — **Ord. 32/1989 through Ord. 2/1992** — is a **fraud on the constitutional power**; the ordinances are **bereft of any legal effects and consequences**; they **do not create rights or confer the status of government employees** on the teachers; the High Court's core conclusions were affirmed. **Moulded relief:** the Court did **not order recovery of salaries already paid** — concluded payments stand; no prospective absorption/status follows.

5 · Principle evolved

Ratio of Krishna Kumar Singh v. State of Bihar — nine propositions

1. **Ordinance-ages are finite and conditional:** the constitutional scheme of Arts 123/213 — recess condition, six-week clock, laying, disapproval — is an integrated machinery of legislative control; defeating it by serial re-promulgation is a **fraud on constitutional power**.
2. **Successive promulgation is "fundamentally at odds" with Arts 123/213** — legitimate only where a genuinely fresh necessity and real deliberation exist (Lokur: not *per se* invalid; the majority: structurally suspect, abuse strike-downable).
3. **Laying is mandatory** — silence of the executive to lay = illegality; the ordinance cannot survive six weeks un-laid, and non-laying is itself a constitutional default.
4. **Silence is not approval** — nothing the House does (short of disapproval) can save an ordinance past six weeks: it simply dies (proclamations, by contrast, survive only on affirmative approval — Arts 352(4)/356(3)/360(2)).
5. **Cease ≠ void** *ab initio*: cessation (Art 213(2)) operates prospectively; voidness (Art 213(3)/Art 13) goes to birth — the classification controls every "what survives" question.
6. **Survival is decided, not assumed:** construction of the instrument + **public interest & constitutional necessity** (+ irreversibility as a guiding consideration) — no *ipso jure* blanket revival of the pre-ordinance state of affairs; no automatic obliteration of all effects.
7. **Relief can be moulded** — deny the claimed status/rights prospectively while protecting concluded, irreversible consequences (salaries paid) in public interest.
8. **Overruled:** *State of Orissa v. Bhupendra Kumar Bose* and *T. Venkata Reddy v. State of A.P.* — to the extent they allowed ordinances to create enduring, irreversible rights.
9. **Ordinances cannot self-perpetuate:** permanence must come from the legislature — the only body whose Bills face assent, reservation and debate.

PYQ ARCHIVE // CH.05 Previous Year Questions (DU LL.B. Examinations)

Q.1 · PYQ 1 · – LL.B. (Hons.) III Semester Examination, · December 2024 · Q5(a) · 10 marks "'Where an ordinance has ceased to operate, would it result ipso jure in a revival of the state of affairs which existed before the ordinance was promulgated? Would the legal effects created by the ordinance stand obliterated as a matter of law upon the lapsing of an ordinance or passing of a resolution of disapproval?' Answer this question in the light of the judgment Krishna Kumar v. State of Bihar [(2017) 3 SCC 1]."

▸ Refer website for detailed notes — makelaweasy.in · WhatsApp: +91 7021726891

Q.2 · PYQ 2 · – Centenary Chance Examination (LL.B. III Year) · Q8(b) · 10 marks · ("Attempt any two of the following") "Ordinance making power of the executive."

MODULE 06 // TOPIC 6 (I) · JUDICIARY Cases #34-#45

The Union and State Judiciary: Collegium, Jurisdictions, Tribunals, Curative Petition & Writs

Articles 32, 71, 124-147, 214-231, 226-227, 323A & 323B

The Union Judiciary: Supreme Court of India (Articles 124 – 147)

An exhaustive clause-by-clause constitutional and jurisprudential analysis of the composition, appointment, removal, conditions of service, and procedural regulation of the Supreme Court of India.

Article 124
Core Institutional Anchor

Article 124: Establishment and Constitution of the Supreme Court

Foundational charter of India's apex judicial organ

§ Clause-by-Clause Detailed Breakdown:

- **Article 124(1) – Composition & Numerical Strength:** There shall be a Supreme Court of India consisting of a Chief Justice of India and, until Parliament by law prescribes a larger number, of not more than seven other Judges.
  Parliamentary Expansion: Parliament has enlarged the strength through the *Supreme Court (Number of Judges) Acts*: 10 (1956), 13 (1960), 17 (1977), 25 (1986), 30 (2008), and currently **33 Judges + 1 CJI = 34 Judges** via the *Supreme Court (Number of Judges) Amendment Act, 2019*.
- **Article 124(2) – Appointment & Constitutional Consultation:** Every Judge of the Supreme Court shall be appointed by the President by warrant under his hand and seal on the recommendation of the National Judicial Appointments Commission referred to in Article 124A (struck down in 2015; restored to original text: *"after consultation with such of the Judges of the Supreme Court and of the High Courts in the States as the President may deem necessary for the purpose"*).
  Mandatory Proviso: In the appointment of a Judge other than the Chief Justice, the Chief Justice of India *shall always be consulted*.
  Judicial Reconstruction: The term **"consultation"** has been judicially interpreted in the *Three Judges Cases* and *NJAC Case* to mean **"concurrence"**, through a participatory collegiate body (CJI + 4 senior-most Judges).
- **Article 124(2A) – Determination of Age:** Inserted by the 15th Constitutional Amendment Act, 1963. The age of a Judge of the Supreme Court shall be determined by such authority and in such manner as Parliament may by law provide. Under the *Supreme Court Judges (Salaries and Conditions of Service) Act, 1958*, the date of birth declared at the time of appointment is final. A Judge holds office until attaining the age of **65 years**.
- **Article 124(3) – Eligibility Qualifications:** A person shall not be qualified for appointment as a Judge of the Supreme Court unless he is a citizen of India and:
  1. **(a)** has been for at least **5 years** a Judge of a High Court or of two or more such Courts in succession; OR
  2. **(b)** has been for at least **10 years** an advocate of a High Court or of two or more such Courts in succession; OR
  3. **(c)** is, in the opinion of the President, a **distinguished jurist** (academician/scholar category – an innovative feature of the Indian Constitution inspired by the US Supreme Court practice, though historically never utilized).
- **Article 124(4) – Removal (Impeachment Mechanism):** A Judge of the Supreme Court shall not be removed from his office except by an order of the President passed after an address by each House of Parliament supported by a **special majority**:
  - A majority of the *total membership* of that House; AND
  - A majority of not less than *two-thirds of the members of that House present and voting*.
  - Presented to the President in the **same session** for such removal.
  - Sole substantive constitutional grounds: **"proved misbehaviour"** or **"incapacity"**.
- **Article 124(5) – Parliamentary Regulation of Investigation:** Parliament is empowered by law to regulate the procedure for the presentation of an address and for the investigation and proof of the misbehaviour or incapacity of a Judge under clause (4). Parliament enacted the **Judges (Inquiry) Act, 1968** and framed the **Judges (Inquiry) Rules, 1969**.
- **Article 124(6) – Oath or Affirmation:** Before entering upon office, a Judge must subscribe an oath before the President, or some person appointed in that behalf by him, according to Form IV of the Third Schedule (to bear true faith and allegiance to the Constitution, uphold the sovereignty and integrity of India, perform duties without fear or favour, affection or ill-will, and uphold the Constitution and the laws).
- **Article 124(7) – Absolute Post-Retirement Bar:** No person who has held office as a Judge of the Supreme Court shall plead or act in any court or before any authority within the territory of India. (Unlike High Court judges who can practice in the Supreme Court or other High Courts under Art. 220, SC judges are subject to a complete bar on advocacy).

STATUTORY LINK: THE JUDGES (INQUIRY) ACT, 1968 (PROCEDURE FOR REMOVAL)

Under Article 124(5), the statutory removal mechanism operates in 5 stringent stages:

1. **Motion of Impeachment:** Signed by not less than 100 members of Lok Sabha or 50 members of Rajya Sabha submitted to the Speaker or Chairman.
2. **Discretion to Admit & Constitution of Inquiry Committee:** If admitted, the Speaker/Chairman constitutes a 3-member judicial committee consisting of: (i) a Supreme Court Judge, (ii) a High Court Chief Justice, and (iii) a Distinguished Jurist.
3. **Judicial Investigation:** Committee frames charges, serves notice, conducts inquiry with cross-examination, and submits report. If the committee exonerates the judge, the proceedings terminate instantly.
4. **Parliamentary Consideration & Voting:** If proved misbehaviour/incapacity is reported, each House considers the motion and must pass the address by special majority (majority of total strength + 2/3rd present and voting) in the same session.
5. **Presidential Warrant:** President issues an executive order removing the judge. (*Notable Precedents:* Justice V. Ramaswami in 1993 – motion fell due to ruling party abstention; Justice Soumitra Sen of Calcutta HC in 2011 – passed by Rajya Sabha, resigned before Lok Sabha vote; Justice P.D. Dinakaran – resigned before committee report).

Articles 125–130
Institutional Independence & Organization

Articles 125 – 130: Institutional Safeguards, Ad-Hoc Judges & Court of Record

Structural guarantees ensuring independence from legislative and executive interference

Article	Constitutional Subject	Legal Scope, Components & Operational Rules
Article 125	Salaries, Allowances & Pensions of Judges	Salaries determined by Parliament by law (Second Schedule). Proviso ensures that neither privileges nor allowances, nor rights in respect of leave of absence or pension, **shall be varied to a Judge's disadvantage after appointment**. The only exception is a Proclamation of Financial Emergency under **Article 360(4)(b)**, during which salaries may be temporarily reduced. Charged upon the Consolidated Fund of India (non-votable under Art. 112(3)(d)(i)).
Article 126	Appointment of Acting Chief Justice	When the office of CJI is vacant, or when the CJI is by reason of absence or otherwise unable to perform duties, the duties shall be performed by one of the other Judges of the Court as the **President may appoint for the purpose**. Convention dictates appointing the senior-most sitting judge.
Article 127	Appointment of Ad-Hoc Judges	If at any time there is a lack of quorum of Supreme Court Judges to hold or continue any session, the CJI may, with the **previous consent of the President** and after **consultation with the Chief Justice of the High Court concerned**, request in writing the attendance of a High Court Judge duly qualified to be appointed an SC Judge, to sit and act as an ad-hoc Judge of the Supreme Court for such period as necessary. The requested judge has all jurisdiction, powers, and privileges of an SC Judge.
Article 128	Attendance of Retired Judges	The CJI may at any time, with previous consent of the President, request any retired SC Judge or retired HC Judge qualified for SC appointment, to sit and act as a Judge of the Supreme Court. Requires the consent of the retired Judge. He is entitled to allowances determined by the President, but is not deemed to be a permanent Judge.
Article 129	Supreme Court to be a Court of Record	The Supreme Court is a Court of Record and has all the powers of such a court, including the **power to punish for contempt of itself**. As a court of record: (1) its judgments and proceedings have evidentiary value and cannot be questioned in subordinate courts; (2) it has inherent summary power to punish for civil and criminal contempt. In *Delhi Judicial Service Association v. State of Gujarat (1991) 4 SCC 406*, the SC held that its contempt power under Art. 129 extends to punishing contempt of subordinate courts across India, not restricted by the *Contempt of Courts Act, 1971*. In *In re Vinay Chandra Mishra (1995) 2 SCC 584*, the SC suspended an advocate's license under Art. 129/142, but this was corrected in *Supreme Court Bar Association v. Union of India (1998) 4 SCC 409*, holding contempt power cannot usurp statutory disciplinary powers of the Bar Council under the Advocates Act, 1961.
Article 130	Seat of the Supreme Court	The Supreme Court shall sit in Delhi or in such other place or places as the **Chief Justice of India may, with the approval of the President, from time to time, appoint**. This power is enabling and discretionary with the CJI; no writ of mandamus can be issued to establish circuit benches (*Union of India v. S.P. Anand (1998) 6 SCC 466*).

Articles 131 to 143: JURISDICTIONS OF THE APEX COURT
Jurisdictional Spectrum

Articles 71, 131 – 144: The Vast Jurisdictional Architecture of the Supreme Court

Original Exclusive, Original Concurrent, Appellate, Special Leave, Review, Advisory & Inherent Powers

1. Original Exclusive Jurisdiction (Articles 71 & 131)

A. Article 71 – Presidential & Vice-Presidential Elections: All doubts and disputes arising out of or in connection with the election of a President or Vice-President *shall be inquired into and decided by the Supreme Court* whose decision shall be final. Petition can only be filed after the election concludes, by a candidate or 20 electors (under the *Presidential and Vice-Presidential Elections Act, 1952*).

B. Article 131 – Federal Inter-Governmental Disputes: The Supreme Court has exclusive original jurisdiction in any dispute between:

- (a) the Government of India and one or more States; or
- (b) the Government of India and any State or States on one side and one or more other States on the other; or
- (c) two or more States.

ESSENTIAL INGREDIENTS OF ARTICLE 131 SUIT:

1. **Parties must be Constitutional Units:** Must be Union vs State(s) or State vs State. A suit cannot be filed by or against a private citizen, corporation, or statutory body (e.g., *State of Bihar v. Union of India (1970) 1 SCC 67* – Hindustan Steel Ltd. cannot be co-plaintiff).
2. **Legal Right in Dispute:** The dispute must involve any question (whether of law or fact) on which the *existence or extent of a legal right depends*. Political questions without legal rights are barred. In *State of Karnataka v. Union of India (1977) 4 SCC 608*, challenge to a Commission of Inquiry against the State Chief Minister was held maintainable under Art. 131 as affecting the legal powers of the State.
3. **Express Constitutional Exclusions:**
   - Proviso to Art. 131: Disputes arising out of pre-Constitution treaties, covenants, or agreements.
   - Article 262(2): Inter-state water disputes barred from court jurisdiction if Parliament enacts law (*Inter-State River Water Disputes Act, 1956*).
   - Article 280: Finance Commission recommendations.
   - Article 290: Adjustment of expenses between Union and States.

2. Original Concurrent Jurisdiction: Article 32 vs Article 226

Under **Article 32**, the Supreme Court has original concurrent jurisdiction with the High Courts (under **Article 226**) for the enforcement of the Fundamental Rights guaranteed in Part III. Key distinctions:

- **Nature of Right:** Article 32 is itself a Fundamental Right in Part III; the SC cannot refuse to entertain an Art. 32 petition where a violation of a Fundamental Right is established (*Romesh Thappar v. State of Madras, AIR 1950 SC 124*). In contrast, Article 226 is a constitutional power, and High Courts exercise discretion.
- **Substantive Scope:** Article 32 is invoked *strictly for the enforcement of Part III rights*. Article 226 can be invoked for Fundamental Rights **"and for any other purpose"** (enforcement of non-fundamental legal rights, statutory rights, or administrative excesses). Thus, High Court's jurisdiction under Art. 226 is substantively wider.
- **Territorial Reach:** SC has pan-India territorial jurisdiction. HC has jurisdiction within its state territory or where the cause of action arises in whole or in part (Art. 226(2)).

3. Appellate Jurisdiction of the Supreme Court (Articles 132 – 135 & 134A)

Article	Category of Matter	Mandatory Conditions, Thresholds & Procedure
Article 132	Constitutional Questions (Civil, Criminal, or Other)	An appeal lies to the Supreme Court from any judgment, decree, or final order of a High Court if the High Court certifies under **Article 134A** that the case involves a **substantial question of law as to the interpretation of this Constitution**.
Article 133	Civil Matters	Appeal lies from any judgment, decree, or final order in a civil proceeding of a High Court if the HC certifies under Art. 134A: (a) that the case involves a **substantial question of law of general importance**; AND (b) that in the opinion of the High Court, the said question **needs to be decided by the Supreme Court**. (30th Amendment Act, 1972 removed monetary valuation thresholds).

Article	Category of Matter	Mandatory Conditions, Thresholds & Procedure
Article 134	Criminal Matters	Appeal lies to SC in criminal proceedings under three heads: **(a) As of Right (cl. 1(a)):** High Court on appeal has reversed an order of acquittal and sentenced the accused to death. **(b) As of Right (cl. 1(b)):** High Court has withdrawn for trial before itself any case from any subordinate court and convicted the accused and sentenced him to death. (Extended to 10 years imprisonment/life imprisonment via *Supreme Court (Enlargement of Criminal Appellate Jurisdiction) Act, 1970*). **(c) Certificate of Fitness (cl. 1(c)):** High Court certifies under Art. 134A that the case is a fit one for appeal to the Supreme Court.
Article 134A	Certificate for Appeal to Supreme Court	Inserted by the 44th Constitutional Amendment Act, 1978. Requires the High Court to determine the grant of certificate **suo motu** immediately after passing judgment, or on an **oral application** made by or on behalf of the party aggrieved immediately following judgment delivery.
Article 135	Federal Court Jurisdiction	Supreme Court exercises all jurisdiction and powers in relation to any matter to which the provisions of Art. 133 or 134 do not apply, if jurisdiction in that matter was exercisable by the **Federal Court** immediately before the commencement of the Constitution.

4. Article 136: Special Leave to Appeal (SLP)

Article 136(1): *"Notwithstanding anything in this Chapter, the Supreme Court may, in its discretion, grant special leave to appeal from any judgment, decree, determination, sentence or order in any cause or matter passed or made by any court or tribunal in the territory of India."*

- **Extraordinary & Plenary Power:** Non-obstante clause overrides all limitations in Articles 132–135. It is not an ordinary right of appeal, but a *discretionary reserve power* to prevent gross miscarriage of justice (*Pritam Singh v. The State, AIR 1950 SC 169*).
- **Comprehensive Sweep:** Applies to "any cause or matter" – civil, criminal, taxation, labour, revenue, constitutional, electoral, or administrative. Applies to final, preliminary, or interlocutory orders.
- **Tribunals Covered:** Applies to any adjudicatory body possessing the trappings of a court (CAT, NCLAT, Income Tax Appellate Tribunal, etc.; *Bharat Bank Ltd. v. Employees, AIR 1950 SC 188*).
- **Express Exception (Art. 136(2)):** Does not apply to any judgment, determination, sentence or order passed by any court or tribunal constituted by or under any law relating to the **Armed Forces** (Court Martial).
- **Two-Stage Process:** (1) Petition for Special Leave – Court exercises discretion to grant leave; (2) Once leave is granted, it converts into a regular Civil or Criminal Appeal (*Kunhayammed v. State of Kerala (2000) 6 SCC 359*).

5. Article 137: Power of Review

Article 137: *"Subject to the provisions of any law made by Parliament or any rules made under article 145, the Supreme Court shall have power to review any judgment pronounced or order made by it."*

Regulated by **Order XLVII of the Supreme Court Rules, 2013**:

- **Civil Grounds (analogous to Order 47 Rule 1 CPC):**
  1. Discovery of new and important matter or evidence which was not within knowledge after exercise of due diligence;
  2. Mistake or **error apparent on the face of the record** (patent, manifest, self-evident error without requiring a lengthy process of re-arguing);
  3. Any other sufficient reason (analogous to the first two).
- **Criminal Grounds:** A review in criminal proceedings is permitted strictly on the ground of an **error apparent on the face of the record**. A review is *not an appeal in disguise* (*Northern India Caterers v. Lt. Governor of Delhi (1980) 2 SCC 167*).
- **Limitation & Chamber Procedure:** Review petition must be filed within **30 days**. Ordinarily disposed of by **circulation in chambers** without oral arguments, unless the Court directs otherwise.
- **Constitutional Exception in Death Penalty Cases:** Modified by 5-Judge Bench in *Mohd. Arif v. Registrar, Supreme Court (2014) 9 SCC 737* – mandatory **open-court oral hearing for 30 minutes** before a Bench of at least 3 Judges.

6. Articles 138, 141 & 142: Enlargement, Binding Precedent & Plenary Justice

Article	Doctrine / Concept	Constitutional Scope, Limits & Landmark Jurisprudence
Article 138	Enlargement of Jurisdiction	Parliament may by law confer further jurisdiction on SC with respect to matters in the Union List (Entry 77, 95 List I), or by special agreement between Union and State Governments.
Article 141	Law Declared by SC Binding on All Courts	*"The law declared by the Supreme Court shall be binding on all courts within the territory of India."* • **Ratio Decidendi:** The principle or rule of law on which the judgment is founded is binding law. • **Obiter Dicta:** Observations not essential to the determination carry high persuasive value, especially of Constitution Benches. • **Does SC bind itself?:** No. In *Bengal Immunity Co. v. State of Bihar, AIR 1955 SC 661*, SC held that it is not bound by its own previous decisions and can overrule them to correct manifest errors. • **Per Incuriam & Sub-Silentio:** Decisions rendered in ignorance of binding statutes or binding higher precedents do not constitute binding precedent. • **Prospective Overruling:** Evolved in *Golak Nath v. State of Punjab, AIR 1967 SC 1643* – overruling operates only for the future without disturbing past settled actions.
Article 142	Enforcement of Decrees & "Complete Justice"	*"The Supreme Court in the exercise of its jurisdiction may pass such decree or make such order as is necessary for doing complete justice in any cause or matter pending before it..."* • **Plenary & Inherent:** Enables the Court to fashion innovative remedies, fill legislative voids (e.g., *Vishaka guidelines (1997)* on sexual harassment), and dissolve deadlocked disputes (e.g., *Bhopal Gas Leak / Union Carbide (1991) 4 SCC 584*). • **Constitutional Limitations:** In *Supreme Court Bar Association v. Union of India (1998) 4 SCC 409*, a Constitution Bench clarified that Art. 142 **cannot be used to supplant substantive statutory law** or bypass express legislative prohibitions; it supplements, not supplants, statutory provisions. In *Shilpa Sailesh v. Varun Sreenivasan (2023)*, SC held it can grant divorce on irretrievable breakdown bypassing the 6-month cooling period under Sec 13B Hindu Marriage Act using Art. 142.

7. Article 143: Advisory Jurisdiction of the Supreme Court

Enables the President to seek the advisory opinion of the Supreme Court on questions of law or fact:

- **Article 143(1) – General Questions of Law or Fact:** If it appears to the President that a question of law or fact has arisen, or is likely to arise, of such public importance that it is expedient to obtain the opinion of the Supreme Court, he may refer it. *The Court "may, after such hearing as it thinks fit, report to the President its opinion thereon."* The word **"may"** gives the Supreme Court discretion to decline answering (e.g., *Ayodhya Reference / M. Ismail Faruqui (1994) 6 SCC 360* – declined to answer whether a Hindu temple existed beneath the Babri Masjid).
- **Article 143(2) – Pre-Constitution Treaties:** Disputes arising out of pre-Constitution treaties/agreements excluded from Art. 131. The text states the Court **"shall... report to the President"** (mandatory obligation).
- **Legal Nature of Advisory Opinion:**
  - **Not Binding on the President:** It is purely advisory counsel; the Government is not legally bound to implement it.

- **Status under Article 141:** In *In re Special Courts Bill, 1978 (1979) 1 SCC 380*, the SC held that while an advisory opinion under Art. 143 does not strictly fall within the phrase "law declared" under Art. 141, it carries the **highest persuasive authority** and is entitled to the utmost respect, binding on all subordinate courts across India.

8. Article 145 & The "Master of the Roster" Doctrine

Article 145: Empowers the Supreme Court, with the approval of the President, to make rules for regulating generally the practice and procedure of the Court (Supreme Court Rules, 2013). Mandatory requirements:

- **Article 145(3) – Minimum Bench of Five Judges:** The minimum number of Judges who are to sit for the purpose of deciding any case involving a **substantial question of law as to the interpretation of this Constitution** or for hearing any reference under **Article 143** *shall be five* (Constitution Bench).
- **Master of the Roster Doctrine:** Under Order VI Rule 1 of the Supreme Court Rules, 2013, the Chief Justice of India is the administrative head of the Supreme Court and exercises exclusive authority over the constitution of benches and allocation of judicial business. In *State of Rajasthan v. Prakash Chand (1998) 1 SCC 1*, *Campaign for Judicial Accountability and Reforms (CJAR) v. Union of India (2018) 2 SCC 196*, and *Shanti Bhushan v. Supreme Court of India (2018) 8 SCC 396*, the SC authoritatively settled that the CJI is **"first among equals"** judicially, but is the **exclusive Master of the Roster administratively**. No judge can assign a case to himself or direct the CJI to constitute a specific bench.

The State Judiciary: The High Courts (Articles 214 – 231)

Constitutional framework, appointment, conditions of service, transfers, and supervisory powers of the High Courts in the States.

State Constitutional Judiciary

High Courts Architecture & Key Articles

Articles 214, 215, 216, 217, 218, 222, 224, 226, 227 & 228

Article	Constitutional Subject	Provisions, Standards & Principles
Article 214 & 215	Establishment & Court of Record	There shall be a High Court for each State. Every High Court is a **Court of Record** and has all powers of such a court, including the power to punish for contempt of itself (Art. 215).
Article 216 & 217	Composition & Appointment of Judges	**Appointment (Art. 217(1)):** Every Judge of a High Court is appointed by the President by warrant under his hand and seal after **consultation with the Chief Justice of India, the Governor of the State, and (in case of appointment of a Judge other than the Chief Justice) the Chief Justice of the High Court**. **Tenure:** Holds office until attaining the age of **62 years** (raised from 60 to 62 by 15th Amendment, 1963). **Qualifications (Art. 217(2)):** Citizen of India who has for at least **10 years held a judicial office** in India, OR has for at least **10 years been an advocate of a High Court**. (Note: The "distinguished jurist" ground is NOT available for High Court appointments).
Article 218	Removal of High Court Judges	Applies the provisions of **Article 124(4) and 124(5)** to High Court Judges. A High Court Judge can be removed only on proved misbehaviour or incapacity via the parliamentary impeachment address and the Judges (Inquiry) Act, 1968.
Article 222	Transfer of Judges from One High Court to Another	The President may, after **consultation with the Chief Justice of India**, transfer a Judge from one High Court to any other High Court. Entitled to compensatory allowance. *Judicial Milestones:* • *Sankalchand Sheth (1977):* Non-consensual transfer valid only in "public interest" after effective consultation; not punitive. • *S.P. Gupta (1981):* Reaffirmed public interest; consent not required. • *Second Judges (1993) & Third Judges (1998):* Initiated solely by CJI in consultation with 4 senior-most SC judges + Chief Justices of both transferor and transferee High Courts. Judicial review limited to non-compliance with consultative norms.
Article 224 & 224A	Additional, Acting & Retired Judges	**Article 224:** President may appoint duly qualified persons as Additional Judges for temporary increase of business or arrears, for a period not exceeding **two years** (max age 62). (*S.P. Gupta:* Additional Judges have legitimate expectation to be considered for permanency). **Article 224A:** Chief Justice of HC with previous consent of President may request a retired Judge to sit and act as a High Court Judge.
Article 226	Power to Issue Prerogative Writs	High Courts have power to issue directions, orders or writs (habeas corpus, mandamus, prohibition, quo warranto, certiorari) to any person or authority, including Government: (a) for the enforcement of Part III Fundamental Rights; AND (b) **for any other purpose**. **Territorial Nexus (Art. 226(2)):** Can issue writs if the cause of action, wholly or in part, arises within its territorial jurisdiction, even if the seat of Government or authority is outside.
Article 227	Power of Superintendence over All Courts & Tribunals	Every High Court has **superintendence over all courts and tribunals** throughout the territories in relation to which it exercises jurisdiction (except military courts). • **Judicial & Administrative:** Dual superintendence. Judicial superintendence is exercised to keep subordinate courts and tribunals within the bounds of their authority, preventing grave dereliction of duty or flagrant violation of law (*Waryam Singh v. Amarnath, AIR 1954 SC 215*). • Held to be part of the **Basic Structure** in *L. Chandra Kumar v. Union of India (1997) 3 SCC 261*.
Article 228	Transfer of Constitutional Cases to High Court	If the High Court is satisfied that a case pending in a subordinate court involves a substantial question of law as to the interpretation of the Constitution whose determination is necessary for disposal, it shall withdraw the case and either dispose of the case itself or determine the constitutional question and return it with its judgment.
Articles 230 & 231	Common High Courts & Extension to UTs	Parliament may by law extend the jurisdiction of a High Court to Union Territories, or establish a **common High Court for two or more States** or for two or more States and a Union Territory (e.g., Punjab and Haryana High Court; Bombay High Court for Maharashtra, Goa, Dadra and Nagar Haveli & Daman and Diu; Gauhati High Court for Assam, Nagaland, Mizoram, Arunachal Pradesh).

The Law of Prerogative Writs (Articles 32 & 226)

Exhaustive doctrinal analysis of the five extraordinary constitutional writs: Habeas Corpus, Mandamus, Prohibition, Quo Warranto, and Certiorari.

Overview callout

CONSTITUTIONAL GENESIS: THE PREROGATIVE WRITS

Originating in English Common Law as royal prerogative remedies issued by the King's Bench, Articles 32 and 226 democratized these writs as constitutional guarantees against arbitrary state action. While Article 32 is restricted exclusively to the enforcement of Fundamental Rights (Part III), Article 226 extends to Fundamental Rights *"and for any other purpose"* (enforcement of ordinary legal rights and statutory obligations).

WRIT 1: HABEAS CORPUS
Writ 1 • Personal Liberty Safeguard

1. Writ of Habeas Corpus ("Have the Body")

Latin: *"Habeas Corpus ad subjiciendum"* – The Great Writ of Liberty

§ Meaning, Scope & Legal Nature:

A judicial order in the nature of a command directing the person or authority who has detained another to produce the body of the detenu before the court, so that the court can examine the **validity, legality, and jurisdiction** of such detention. If the detention lacks legal justification, the court immediately sets the prisoner at liberty.

§ Grounds for Issuance:

- Detention without authority of law or in violation of statutory procedure.
- Violation of constitutional guarantees under **Article 21** (right to personal liberty) and **Article 22** (safeguards against arrest and preventive detention).
- Detention by executive authority actuated by mala fides or collateral purpose.
- Detention under an ultra vires or unconstitutional law.

§ Against Whom Available & Locus Standi:

- **Both Public and Private Detentions:** Available against the State, police authorities, jail superintendents, AND private individuals (e.g., illegal custody of a child, wrongful confinement by family members).
- **Liberal Locus Standi:** The petition may be filed by the detenu himself, or by any relative, friend, or public-spirited person on his behalf (*Sunil Batra v. Delhi Administration, AIR 1980 SC 1579* – prisoner's letter converted into habeas corpus to protect fellow inmate from torture).

§ When Habeas Corpus CANNOT be Issued (Exceptions):

1. Where the detention is in execution of a sentence or order of a competent court having jurisdiction.
2. Where the person is in custody pursuant to an order of remand by a Magistrate.
3. Where the detention is for contempt of court or breach of parliamentary privilege.
4. Where the detenu is outside the territorial jurisdiction of the High Court (under Art. 226).

Overruling ADM Jabalpur: In *K.S. Puttaswamy v. Union of India (2017) 10 SCC 1*, a 9–Judge Bench formally and decisively overruled the infamous Emergency ruling in *ADM Jabalpur v. Shivkant Shukla (1976) 2 SCC 521*, holding that the right to life and liberty under Article 21 cannot be suspended even during an Emergency and Habeas Corpus remains inviolable.

WRIT 2: MANDAMUS
Writ 2 • Enforcement of Public Duties

2. Writ of Mandamus ("We Command")

The Command to Perform a Public Legal Duty

§ Meaning & Substantive Elements:

A judicial command issued by the Supreme Court or High Court to any public authority, statutory corporation, subordinate tribunal, or government official directing them to perform a **mandatory public legal duty** imposed upon them by the Constitution or statute, which they have failed or refused to perform.

§ Mandatory Pre-Conditions for Mandamus:

1. **Public Duty of Imperative Character:** The respondent must have a duty imposed by law which is not merely discretionary, but *mandatory and ministerial*.
2. **Clear Legal Right in Petitioner:** The applicant must possess a corresponding legal right to enforce the performance of that duty.
3. **Demand and Refusal:** The petitioner must have made a formal demand upon the authority to perform the duty, and the authority must have refused or failed to act within a reasonable time (*Saraswati Industrial Syndicate v. UOI, AIR 1975 SC 460*).

§ Against Whom Mandamus DOES NOT Lie:

- Against the **President of India or Governor of a State** for the exercise and performance of official duties (absolute constitutional immunity under **Article 361**).
- Against private individuals or purely private companies lacking any statutory public character (*Praga Tools Corporation v. C.A. Imanual, AIR 1969 SC 1306*).
- To enforce contractual obligations without any statutory backing (*Radhakrishna Agarwal v. State of Bihar, AIR 1977 SC 1496*).
- To compel the legislature to enact a law, or executive to frame rules (*State of J&K v. A.R. Zakki, AIR 1992 SC 1546*).

WRIT 3: PROHIBITION
Writ 3 • Preventive Jurisdictional Check

3. Writ of Prohibition ("To Forbid")

Preventive Writ to Restrain Inferior Courts and Tribunals

§ Meaning & Preventive Character:

An extraordinary judicial writ issued by a superior court to an inferior court, statutory tribunal, or quasi-judicial body to **prevent it from usurping or exceeding jurisdiction** that is not legally vested in it, or from violating principles of natural justice.

Fundamental Maxim: *"Prevention is better than cure."* While Certiorari is curative (issued after the order is passed to quash it), Prohibition is **preventive** – issued while proceedings are still pending to stop the lower forum from proceeding further.

§ Grounds for Issuance:

- **Absence of Jurisdiction:** The court or tribunal has no legal authority to entertain the matter.
- **Excess of Jurisdiction:** The tribunal has jurisdiction over the subject, but exceeds its statutory powers.
- **Violation of Natural Justice:** Clear bias of the adjudicator (*nemo judex in causa sua*) or denial of fair hearing during pending proceedings.
- **Infringement of Fundamental Rights:** Where the law under which proceedings are initiated is ultra vires.

§ Limitations:

Cannot be issued against legislative bodies, executive officials performing purely administrative functions, or private individuals. Lies strictly against **judicial and quasi-judicial authorities**.

WRIT 4: CERTIORARI
Writ 4 • Curative Jurisdictional & Legal Review

Ankur R. Upadhyay

4. Writ of Certiorari ("To Be Certified")

The Curative and Corrective Writ to Quash Illegal Decisions

§ Meaning & Function:

A judicial order issued by a superior court commanding an inferior court, tribunal, or quasi-judicial/administrative authority to certify and transmit its records of a completed proceeding to the superior court, so that the legality of its decision can be reviewed and, if found illegal, **quashed**.

§ Classical Grounds for Issuing Certiorari (The Golden Quadrant):

1. **Defect of Jurisdiction:** Lack of initial jurisdiction, excess of jurisdiction, or failure to exercise jurisdiction.
2. **Violation of Principles of Natural Justice:**
   - *Audi alteram partem* (denial of opportunity of being heard).
   - *Nemo judex in causa sua* (rule against pecuniary, personal, or subject-matter bias).
3. **Error of Law Apparent on the Face of the Record:** An error that is patent, manifest, and self-evident on a mere inspection of the record without requiring elaborate arguments or re-examination of evidence (*Syed Yakoob v. K.S. Radhakrishnan, AIR 1964 SC 477*). A mere error of fact cannot be corrected under Certiorari.
4. **Fraud, Collusion, or Mala Fides.**

§ Modern Expansion to Administrative Actions:

In *A.K. Kraipak v. Union of India (AIR 1970 SC 150)* and *Maneka Gandhi v. Union of India (AIR 1978 SC 597)*, the Supreme Court abolished the rigid distinction between quasi-judicial and purely administrative acts. Today, Certiorari lies against **any administrative authority** whose decision affects civil rights and violates fairness, reasonableness (Art. 14), or natural justice.

WRIT 5: QUO WARRANTO

Writ 5 • Scrutiny of Public Office Usurpation

5. Writ of Quo Warranto ("By What Warrant?")

Judicial Challenge to Unauthorized Usurpation of Public Office

§ Meaning & Constitutional Purpose:

A writ issued to enquire into the legality of the claim which a party asserts to an office or franchise, and to **oust him from its enjoyment if the claim is not well founded**. It protects the public from being deprived of public offices by usurpers lacking the statutory or constitutional qualifications.

§ Four Essential Conditions for Quo Warranto (University of Mysore v. C.D. Govinda Rao, AIR 1965 SC 491):

1. The office in question must be a **public office** (an office created by the Constitution or statute with duties involving the public).
2. The office must be of a **substantive character** (an independent office with permanent tenure, not an employment at will or subordinate servant).
3. The respondent must be in actual **physical occupation/possession** of the office.
4. The appointment was made in flagrant violation of statutory or constitutional qualification requirements.

§ Locus Standi – Anyone May Challenge:

Unlike other writs where a personal aggrieved right is necessary, **any member of the public (relator)** can apply for Quo Warranto, even if he has no personal interest or rivalry in the office. Every citizen has a legitimate interest in ensuring that public offices are occupied only by persons legally qualified (*B.R. Kapur v. State of Tamil Nadu (2001) 7 SCC 231* – Quo Warranto issued declaring J. Jayalalithaa unconstitutionally appointed as Chief Minister due to criminal conviction).

COMPARATIVE WRITS TABLE

Writ	Literal Meaning	Primary Purpose	Target Entity	Locus Standi Rule	Leading Precedent
Habeas Corpus	"Have the body"	Release from unlawful detention	State, Police, or Private Individual	Detenu, relative, friend, or bona fide stranger	*Sunil Batra (1980); Puttaswamy (2017)*
Mandamus	"We command"	Compel performance of mandatory public duty	Public body, statutory authority, tribunal, official	Person having enforceable legal right	*Gujarat State Financial Corp. (1983)*
Prohibition	"To forbid"	Stop pending proceeding in excess of jurisdiction	Inferior Courts and Quasi-Judicial Tribunals	Party aggrieved in pending proceeding	*Govinda Menon v. UOI (1967)*
Certiorari	"To be certified"	Quash already concluded illegal order	Inferior Courts, Tribunals & Administrative Bodies	Aggrieved person or public-interest relator	*Syed Yakoob (1964); Kraipak (1970)*
Quo Warranto	"By what warrant"	Oust usurper from substantive public office	Person holding public office unlawfully	Any citizen (broadest public standing)	*Univ. of Mysore (1965); B.R. Kapur (2001)*

Prescribed Landmark Case Laws — Detailed Analysis

CASES #34-#45

CASE #34 DU LL.B. PRESCRIBED AUTHORITY

Union of India v. Sankalchand Himatlal Sheth

(1977) 4 SCC 193 | AIR 1977 SC 2328 | 5-Judge Constitution Bench · Coram: Y.V. Chandrachud, P.N. Bhagwati, V.R. Krishna Iyer, N.L. Untwalia, and S. Murtaza Fazal Ali, JJ.

▸ Background & Material Facts:

During the Internal Emergency imposed in June 1975, the Central Government issued mass transfer orders transferring 16 High Court Judges without their consent. On May 27, 1976, the President of India issued an order under Article 222(1) transferring Justice Sankalchand Himatlal Sheth, a sitting permanent Judge of the Gujarat High Court, to the Andhra Pradesh High Court. The transfer was effected without obtaining Justice Sheth's consent, and without meaningful, full consultation with the Chief Justice of India (CJI A.N. Ray).

Justice Sheth filed a writ petition under Article 226 before the Gujarat High Court challenging the transfer order as unconstitutional, null, and void. A Special Three-Judge Bench of the Gujarat High Court allowed the petition, holding that a Judge could not be transferred without his consent. The Union of India appealed to the Supreme Court.

▸ Constitutional Provisions in Issue:

Article 222(1): *"The President may, after consultation with the Chief Justice of India, transfer a Judge from one High Court to any other High Court."*

▸ Core Constitutional Questions Framed:

1. Whether the power of the President under Article 222(1) to transfer a High Court Judge is conditioned upon obtaining the prior **consent** of the Judge concerned?
2. What is the nature, scope, and constitutional content of the requirement of **"consultation with the Chief Justice of India"** under Article 222(1)?
3. Whether an order of transfer under Article 222(1) is subject to **judicial review**?

Arguments on Behalf of Respondent (Justice Sheth):

- **Independence of Judiciary as Inviolable:** The High Court is a coordinate constitutional court, not a subordinate department of the Union. Judges take an oath to discharge duties without fear or favour. Non-consensual transfer destroys judicial fearlessness.
- **Transfer as an Instrument of Executive Coercion:** If consent is not read into Article 222(1), the executive can weaponize transfers to punish inconvenient judges and reward compliant ones, undermining the separation of powers.
- **Colonial Precedent:** Under the Government of India Act, 1935, there was no provision for non-consensual transfer. The Constituent Assembly intended transfers to be rare exceptions based on consensual arrangements.
- **Vitiated Consultation:** The consultation with CJI Ray was perfunctory, superficial, and lacked full disclosure of facts and material.

Arguments on Behalf of Appellant (Union of India):

- **Literal Interpretation:** The plain grammatical text of Article 222(1) contains no requirement of "consent". Reading words into the text amounts to judicial legislation.
- **National Integration:** Transfer of judges is an essential administrative instrument to foster national integration, prevent parochial bias, and strengthen High Court benches.
- **Sufficient Safeguard:** The requirement of "consultation with the Chief Justice of India" is the sole and sufficient constitutional check against arbitrary executive action.
- **Non-Justiciability:** Matters of judicial administration and transfer are high policy matters outside the purview of ordinary judicial review.

▸ Judgment of the Court (Majority: Chandrachud, Untwalia, Fazal Ali, JJ.):

1. **Consent Cannot be Read into Article 222(1):** The Court held by majority that consent of the Judge is *not mandatory*. The word "consent" is conspicuously absent in Article 222(1), whereas the framers explicitly used words requiring consent in Articles 127, 128, and 224A. Therefore, reading consent into Article 222(1) would amount to rewriting the Constitution.
2. **Strict Constitutional Safeguards on Transfer:** The majority ruled that non-consensual transfer power is strictly hedged by two non-negotiable conditions:
   - **(a) Public Interest Requirement:** The transfer must be strictly in the *public interest*. It cannot be used as a weapon of punishment, victimisation, or executive displeasure.
   - **(b) Full, Effective & Meaningful Consultation:** "Consultation" with the CJI is not an empty formality. The President must place all relevant facts, data, reasons, and materials before the CJI. The CJI must apply his independent judicial mind and express an informed opinion. A transfer made without full consultation is void ab initio.
3. **Judicial Review Available:** An order of transfer is open to judicial review if it is shown that it was passed without full and effective consultation with the CJI, or was actuated by collateral purpose/mala fides, or was not in the public interest.
4. **Concurring Opinion of Bhagwati and Krishna Iyer, JJ.:** Emphasized that non-consensual transfer inherently poses a grave threat to judicial independence. Bhagwati J. observed that "transfer" must ordinarily involve the willingness of the judge, and even if power exists without consent, it must be hedged with the strictest scrutiny to preserve judicial independence.

> *"Consultation is not a casual or perfunctory dialogue. It must be full, effective and meaningful. All relevant data must be placed before the Chief Justice of India so that he may express his opinion. A judge cannot be transferred by way of punishment." — Y.V. Chandrachud, J. (AIR 1977 SC 2328 at 2338)*

▸ Principle Evolved & Jurisprudential Legacy:

Article 222 transfer does not require the judge's consent, but is subject to: (1) demonstrable public interest, (2) full and effective consultation with the CJI, and (3) limited judicial review against punitive or mala fide transfers. This established the foundational framework that was later built upon in the First, Second, and Third Judges cases.

CASE #35 DU LL.B. PRESCRIBED AUTHORITY

S.P. Gupta & Others v. President of India & Others

1981 Supp SCC 87 | AIR 1982 SC 149 | 7-Judge Constitution Bench · Coram: P.N. Bhagwati, A.C. Gupta, S. Murtaza Fazal Ali, V.D. Tulzapurkar, D.A. Desai, R.S. Pathak, and E.S. Venkataramiah, JJ.

▸ Detailed Material Facts (As per DU Case Material):

In 1981, following the return of the Congress government, Union Law Minister P. Shiv Shankar issued a confidential circular letter dated **March 18, 1981** (D.O. No. 66/10/81-Jus.) addressed to the Chief Ministers of all States and High Court Chief Justices. The circular requested them to:

- (a) Obtain written advance consent from all **Additional Judges** working in their High Court to be appointed as permanent Judges in *any other High Court* in the country, requesting them to name three preferred High Courts;
- (b) Obtain similar consent from all prospective candidates proposed for initial judicial appointment.

Simultaneously, the Central Government engaged in granting short-term extensions (for 3 months, 4 months) to sitting Additional Judges of the Delhi High Court (Justices O.N. Vohra, S.N. Kumar, and S.B. Wad). Ultimately, Justice S.N. Kumar was not granted a further extension and was dropped despite the recommendation of CJI Y.V. Chandrachud, because Delhi High Court Chief Justice Prakash Narain had made unverified integrity complaints in confidential correspondence with the Law Minister. Furthermore, Chief Justice K.B.N. Singh was transferred from the Patna High Court to the Madras High Court, and CJ M.M. Ismail of Madras was transferred to Kerala.

Practicing advocates (S.P. Gupta of Allahabad HC, Iqbal Chagla and others of Bombay HC, V.M. Tarkunde, J.C. Kalra) filed public interest writ petitions challenging the validity of the Law Minister's circular, the short-term extensions, the dropping of Justice S.N. Kumar, and the transfer of CJ K.B.N. Singh.

▸ Key Constitutional & Statutory Issues:

1. **Locus Standi:** Whether practicing lawyers have standing to maintain a writ petition challenging executive orders affecting the higher judiciary when the affected judges themselves (except Justice Kumar) had not approached the court?
2. **Crown / State Privilege (Article 74(2) & Section 123 Evidence Act):** Whether the Union of India could claim immunity from producing the confidential correspondence between the Law Minister, CJI Chandrachud, and Delhi HC CJ Prakash Narain?
3. **Constitutional Meaning of "Consultation" (Articles 124(2) & 217(1)):** Does "consultation" mean "concurrence"? Does the opinion of the CJI enjoy primacy over the executive or other constitutional consultees?
4. **Status & Rights of Additional Judges (Article 224):** Does an Additional Judge have a right to be appointed as a permanent Judge upon expiry of his term? What are the grounds on which an Additional Judge can be dropped?
5. **Constitutionality of Policy Transfers (Article 222):** Was the Law Minister's circular valid, and was the transfer of CJ K.B.N. Singh lawful?

Arguments of Petitioners (Advocates & Bar):

- **Lawyers as Officers of Court:** Advocates are integral partners in the administration of justice. Executive coercion of the judiciary damages the rule of law, directly giving lawyers standing.

Arguments of Respondent (Union of India & Law Minister):

- **No Legal Injury to Lawyers:** Third-party interlopers cannot file petitions where the judges themselves have not sought redress.

- **Open Society & Disclosure:** Executive accountability demands disclosure. Article 74(2) only protects ministerial advice, not the factual materials and correspondence.
- **Judicial Primacy Essential for Independence:** If executive can override the CJI, judicial independence becomes an illusion. Consultation must mean concurrence or CJI's view must prevail.
- **Abuse of Art. 224:** Additional Judges were treated as temporary probationary officers, creating executive subservience.

- **Article 74(2) Absolute Bar:** Ministerial advice and high-level correspondence regarding judicial selection are protected by state secrecy under Sec. 123 of Evidence Act and Art. 74(2).
- **No CJI Veto in Constitution:** Framers deliberately selected "consultation", not "concurrence". Dr. B.R. Ambedkar explicitly rejected giving CJI a veto. Ultimate appointing authority is the President (Council of Ministers).
- **No Tenure Beyond 2 Years:** Additional Judges under Art. 224 have no legal right to permanency; executive has discretion not to renew.

▸ Decision & Findings of the 7-Judge Bench:

1. **Revolution in Locus Standi (Birth of PIL):** Bhagwati J. delivered the watershed pronouncement establishing that any member of the public acting bona fide, having sufficient interest, can maintain an action for judicial redress of public injury caused by breach of public duty. Lawyers have a vital interest in the independence of the judiciary and cannot be "told off at the gates".
2. **Rejection of State Privilege (Article 74(2) & Section 123 Evidence Act):** The Court ruled (6:1) that Article 74(2) bars inquiry into the *actual advice* tendered by Ministers to the President, but DOES NOT protect the *factual material, letters, and correspondence* forming the basis of that advice. Applying the balancing test under Section 123 Evidence Act, the public interest in open justice and disclosure far outweighed the plea of administrative secrecy. The files were inspected and made public.
3. **"Consultation" does NOT mean "Concurrence" (Executive Supremacy):** The majority held that consultation means full and effective discussion, but not concurrence. All three constitutional functionaries under Art. 217(1) (Governor, High Court CJ, and CJI) stand on equal footing; **the CJI has no constitutional primacy**. The ultimate decision on appointment vests in the Central Government. The executive has the final say and can override the CJI.
4. **Additional Judges (Article 224):** An Additional Judge has no automatic legal right to be appointed as a permanent Judge. However, he has a *right to be considered* for appointment in preference to fresh appointees. Dropping of Justice S.N. Kumar was upheld as valid since there was a divergence of opinion between CJI Chandrachud and HC CJ Prakash Narain, giving the Central Government justification to choose between conflicting views.
5. **Transfer under Article 222:** Upheld the transfer of CJ K.B.N. Singh as being in the public interest and not punitive. The Law Minister's circular was held not to be coercive as it merely sought consent.

> *"The concept of independence of the judiciary is not a mere bar-room slogan. But consultation does not mean concurrence. It is impossible to hold that the opinion of the Chief Justice of India has primacy over the opinions of the other two constitutional functionaries. The power of appointment ultimately rests with the Central Government." — P.N. Bhagwati, J. (1981 Supp SCC 87)*

▸ Principle Evolved & Criticism:

S.P. Gupta established **Executive Supremacy** in judicial appointments. While it democratized access to justice through PIL and open governance, it led to immense political interference, supersessions, and delay in judicial appointments throughout the 1980s, creating the impetus for its eventual overruling in the *Second Judges Case (1993)*.

CASE #36 DU LL.B. PRESCRIBED AUTHORITY

Supreme Court Advocates-on-Record Association v. Union of India

(1993) 4 SCC 441 | AIR 1994 SC 268 | 9-Judge Constitution Bench · Coram: J.S. Verma (writing for majority), S. Ratnavel Pandian, A.M. Ahmadi, Kuldip Singh, P.K. Ray, B.P. Jeevan Reddy, S.P. Bharucha, M.M. Punchhi, and G.N. Ray, JJ.

▸ Factual Catalyst & Context:

In the decade following *S.P. Gupta (1981)*, the executive routinely disregarded recommendations of the Chief Justice of India. Long delays, judicial vacancies, and allegations of political packing plagued the higher judiciary. In *Subhash Sharma v. Union of India (1991) Supp (1) SCC 574*, a Three-Judge Bench observed that *S.P. Gupta* required reconsideration by a larger bench of nine judges to insulate the judiciary from political executive interference.

▸ Core Issues Framed:

1. Whether the majority judgment in *S.P. Gupta* declaring executive supremacy in judicial appointments was correct in law?
2. What is the true constitutional meaning of "consultation" under Articles 124(2) and 217(1)? Does the Chief Justice of India have primacy?
3. Whether the appointment of the CJI is governed strictly by the seniority convention?
4. What is the nature and scope of judicial review in matters of appointment and transfer?

Arguments of Petitioners (Bar & Advocates):

- **Basic Structure Violation:** Independence of the judiciary is an inviolable part of the Basic Structure (*Kesavananda Bharati*). Executive control over appointments destroys this independence.
- **Purposive Interpretation:** The phrase "consultation" in the context of judicial appointments cannot mean subordinate advice to the executive; it requires judicial primacy to ensure that appointments are based on merit, not political favour.
- **Constitutional Intent:** The Constitution intended the judiciary to assess legal acumen and character, matters on which the CJI is best equipped to judge.

Arguments of Respondent (Union of India):

- **Doctrine of Textualism:** The framers consciously selected "consultation" and rejected "concurrence". Reading "concurrence" creates an unconstitutional judicial veto.
- **Democratic Accountability:** In a constitutional democracy, the executive is responsible to Parliament and the electorate; transferring absolute appointing power to the judiciary creates a self-appointing oligarchy.
- **Stare Decisis:** *S.P. Gupta* was decided by a 7–Judge Bench and had governed appointments for over a decade.

▸ Landmark Holding of the 9-Judge Bench (7:2 Majority – J.S. Verma, J.):

1. **Overruling of S.P. Gupta:** The Court decisively overruled the majority opinion in *S.P. Gupta*, holding that executive supremacy in judicial appointments is contrary to the constitutional scheme and violates the Basic Structure.
2. **Primacy of the Chief Justice of India:** In the appointment of Judges to the Supreme Court and High Courts, and in the transfer of High Court Judges, the **opinion of the Chief Justice of India has PRIMACY**. No appointment can be made by the President unless it is in conformity with the opinion of the CJI.
3. **Invention of the "Collegium System":** The Court held that the opinion of the CJI is *not his individual opinion alone*, but a collegiate opinion formed in consultation with his senior-most colleagues. For Supreme Court appointments, CJI must consult his **two senior-most puisne judges**.
4. **Executive's Limited Power of Reconsideration:** If the executive has strong, cogent, and verifiable reasons against a recommended candidate (e.g., adverse background checks), it may return the recommendation to the CJI for reconsideration. However, if the CJI and the collegium **unanimously reiterate** the recommendation, the executive is *constitutionally bound to make the appointment*.
5. **Seniority Rule for CJI:** The appointment of the Chief Justice of India must strictly follow the rule of seniority – the senior-most sitting Judge of the Supreme Court must be appointed CJI, eliminating executive discretion and supersession.

6. **Dissent (A.M. Ahmadi & M.M. Punchhi, JJ.):** Dissenting, held that "consultation" cannot be rewritten as "concurrence" or "primacy". The word was chosen advisedly by the framers to avoid giving a veto to either organ.

> *"The role of the CJI cannot be reduced to that of a mere consultant whose opinion can be bypassed by the executive. The process of appointment of judges is a participatory consultative process, but the primacy must necessarily lie with the judiciary headed by the Chief Justice of India." — J.S. Verma, J. (writing for majority in AIR 1994 SC 268)*

▸ Principle Evolved:

Replaced Executive Supremacy with **Judicial Primacy**. Formulated the nascent Collegium System (CJI + 2 senior judges) and mandated the seniority convention for CJI appointment as an indispensable safeguard of judicial independence.

CASE #37 DU LL.B. PRESCRIBED AUTHORITY

In Re Special Reference No. 1 of 1998

(1998) 7 SCC 739 | AIR 1999 SC 1 | 9-Judge Constitution Bench (Advisory Jurisdiction) · Coram: S.P. Bharucha (author), M.K. Mukherjee, S.B. Majmudar, Sujata V. Manohar, G.T. Nanavati, S. Saghir Ahmad, K. Venkataswami, B.N. Kirpal, and G.B. Pattanaik, JJ.

▸ Factual Background & Presidential Reference under Article 143:

Following the *Second Judges Case (1993)*, serious practical controversies arose regarding the consultation process. In 1998, CJI M.M. Punchhi made recommendations to the Government for SC appointments without consulting his senior colleagues. The Union Government (through President K.R. Narayanan) was reluctant to accept recommendations made unilaterally without collegial consensus.

To resolve constitutional doubts without reopening the conflict, the President made a Reference under **Article 143(1)** formulating **nine specific questions** regarding the consultation process, the composition of the Collegium, the role of High Court conversant judges, judicial review of transfers, and the relevance of seniority.

▸ The Nine Questions Referred & Authoritative Answers of the 9-Judge Bench:

Q. No.	Presidential Question Referred	Authoritative Answer / Ruling of the 9-Judge Bench
Q. 1	Does "consultation with CJI" require consultation with a **plurality of Judges**, or does the sole individual opinion of CJI suffice?	**Plurality is Mandatory:** "Consultation with the CJI" requires consultation with a plurality of Judges. The sole individual opinion of the CJI does NOT constitute consultation within Articles 217(1) and 222(1).
Q. 2	Is the transfer of High Court Judges judicially reviewable?	**Strictly Limited Judicial Review:** Reviewable ONLY to the extent that the transfer recommendation was not made in consultation with the 4 senior-most SC judges and the Chief Justices of both transferor and transferee High Courts. The transferred judge alone can challenge.
Q. 3	What is the exact size of the Collegium for SC and HC appointments?	**Expanded Collegium:** • For **Supreme Court appointments:** CJI + **4 senior-most puisne Judges** of SC. • For **High Court appointments:** CJI + **2 senior-most puisne Judges** of SC. • For **High Court transfers:** CJI + **4 senior-most puisne Judges** of SC + views of both HC Chief Justices.
Q. 4	Can CJI act solely in individual capacity regarding adverse government material?	**No Unilateral Action:** The CJI cannot act in an individual capacity. Materials and adverse information conveyed by the Government must be placed before and evaluated by the Collegium.
Q. 5	Who qualifies as "conversant judges" for HC appointments?	Includes not only SC judges whose parent HC is the court concerned, but also judges who have occupied the office of Judge or CJ of that High Court on transfer.
Q. 6	Must "strong cogent reasons" be recorded for superseding senior HC judges for SC appointment?	"Strong cogent reasons" do not need to be recorded for each bypassed senior judge; what must be recorded is the **positive reason for recommending the candidate selected on merit**.
Q. 7 & 8	Must opinions of consulted judges be in writing and conveyed to the Government?	**Mandatory Written Opinions:** Views of all consulted judges must be in writing and conveyed to the Union Government along with the CJI's recommendation. The CJI is legally obliged to comply with these consultative norms.
Q. 9	Are recommendations made without complying with these norms binding on the Government?	**Non-Compliant Recommendations NOT BINDING:** Recommendations made by the CJI without complying with the collegium norms are **NOT BINDING** on the Government of India!

▸ Internal Consensus & Veto within the Collegium:

The Court ruled that the CJI must form recommendations based on consensus. If the majority of the Collegium disagrees with the CJI, the CJI cannot make the recommendation. Specifically: *"If two or more Judges of the Collegium give an adverse opinion regarding a candidate, the CJI shall not press the recommendation."*

▸ Principle Evolved:

The *Third Judges Case* institutionalized the **Full Collegium System** (CJI + 4 for SC appointments/transfers, CJI + 2 for HC appointments), converting the nascent Verma J. formula into a detailed, structured, rule-bound consultative code governing judicial appointments across India.

CASE #38 DU LL.B. PRESCRIBED AUTHORITY

Supreme Court Advocates-on-Record Association v. Union of India

(2016) 5 SCC 1 | AIR 2016 SC 117 | 5-Judge Constitution Bench · Coram: Jagdish Singh Khehar (author for majority), J. Chelameswar (dissenting), Madan B. Lokur, Kurian Joseph, and Adarsh Kumar Goel, JJ.

▸ Legislative Background & Constitutional Challenge:

To dismantle the opaque collegium system, Parliament unanimously passed the **Constitution (Ninety-Ninth Amendment) Act, 2014** and the **National Judicial Appointments Commission (NJAC) Act, 2014**. The amendment inserted Articles 124A, 124B, and 124C, replacing the collegium with a 6-member Commission comprising:

- (1) The Chief Justice of India (Chairperson, ex officio);
- (2) Two senior-most Judges of the Supreme Court (Members, ex officio);
- (3) The Union Minister in charge of Law and Justice (Member, ex officio);
- (4) Two "eminent persons" nominated by a committee consisting of the Prime Minister, the CJI, and the Leader of Opposition in the Lok Sabha. (Proviso: one eminent person must belong to SC/ST/OBC/Minorities or women).

The Section 6(6) Veto: Under Section 6(6) of the NJAC Act, the Commission could *not recommend* any person if any **two members** of the Commission disagreed with the recommendation. Writ petitions were filed by the SC AOR Association and senior jurists challenging the 99th Amendment and NJAC Act as destructive of the Basic Structure.

▸ **Core Constitutional Issues:**

1. Whether judicial primacy in appointments is an integral, non-negotiable component of the **Independence of the Judiciary** and part of the **Basic Structure**?
2. Whether the inclusion of the Union Law Minister and two "eminent persons" with veto power violates the independence of judiciary and separation of powers?
3. Whether the striking down of the 99th Amendment automatically **revives the Collegium System** (status quo ante)?

Arguments on Behalf of Petitioners (Fali Nariman, Anil Divan, Ram Jethmalani):

- **Executive is the Biggest Litigant:** The Union Government is the single largest litigant in superior courts. Giving the Law Minister a seat and veto power over appointments directly compromises judicial impartiality and independence.
- **Unqualified "Eminent Persons" with Veto:** Non-judicial persons with no legal qualifications could combine with the Law Minister to block any meritorious judicial nomination, neutralizing the judicial component.
- **Subversion of Basic Structure:** Judicial independence is impossible without judicial primacy in appointments. Articles 124A, 124B, and 124C subvert the institutional insulation established in *Second and Third Judges cases*.

Arguments on Behalf of Union of India (Attorney General Mukul Rohatgi):

- **Judges Appointing Judges is Alien to Democracy:** No major constitutional democracy in the world permits judges to select themselves without executive and democratic participation.
- **Checks and Balances:** Absolute judicial monopoly creates unaccountability, opacity, and nepotism. NJAC was enacted by unanimous parliamentary will and ratified by 20 state legislatures.
- **Judicial Independence ≠ Absolute Primacy:** Judicial independence pertains to fearless post-appointment adjudication, not exclusive control over recruitment.

▸ **Landmark Decision (4:1 Majority):**

1. **99th Amendment & NJAC Act Struck Down:** The Constitution Bench (4:1) declared both the Constitution (99th Amendment) Act, 2014 and the NJAC Act, 2014 **UNCONSTITUTIONAL AND VOID** in their entirety.
2. **Judicial Primacy is Part of the Basic Structure:** The majority (Khehar, Lokur, Kurian Joseph, Goel, JJ.) ruled that the *primacy of the judiciary* in the selection and appointment of judges is an essential component of the Independence of the Judiciary, which is part of the inviolable Basic Structure.
3. **Fatal Flaws of Article 124A:**
   - *Law Minister's Presence:* Violates separation of powers. A minister representing the biggest litigant sitting on the selection board compromises institutional independence.
   - *Eminent Persons & Section 6(6) Veto:* Two lay persons, without defined qualifications, armed with a veto power, could override the unanimous recommendation of the CJI and two senior-most SC judges.
4. **Automatic Revival of the Collegium System:** The Court rejected the Union's contention that striking down the amendment would create a constitutional vacuum. It held that the invalidation of an unconstitutional amendment automatically restores the **status quo ante** – the pre-amendment Collegium System sprang back into full operation.
5. **Concession of Flaws & MoP Reform:** The Court acknowledged criticisms of opacity in the collegium and held subsequent hearings to reform the **Memorandum of Procedure (MoP)** regarding eligibility criteria, transparency, a permanent secretariat, and complaints mechanism.
6. **Dissent of Justice J. Chelameswar:** Chelameswar J. vigorously dissented, holding that the Collegium system was opaque, lacked accountability, and fostered trade-offs. He held that checks and balances are fundamental to constitutionalism and the presence of the Law Minister and eminent persons did not destroy judicial independence.

> *"The sensitivity of selecting judges is so enormous, and the consequences of making a bad appointment so grave, that the primacy of the judiciary cannot be surrendered to a commission where the judicial component can be vetoed by the executive or outside nominees." — Jagdish Singh Khehar, J. (2016) 5 SCC 1*

▸ **Constitutional Significance:**

The Fourth Judges Case entrenched the **Collegium System** as a constitutional reality protected under the Basic Structure doctrine, solidifying India as the only major democracy where judges have the exclusive decisive power in appointing their peers.

CASE #39 DU LL.B. PRESCRIBED AUTHORITY

Shanti Bhushan v. Supreme Court of India through its Registrar

(2018) 8 SCC 396 | 2-Judge Bench · Coram: A.K. Sikri and Ashok Bhushan, JJ.

▸ **Context & Material Facts:**

In January 2018, four senior-most puisne judges of the Supreme Court (Justices J. Chelameswar, Ranjan Gogoi, Madan B. Lokur, and Kurian Joseph) held an unprecedented press conference, expressing grave concern that cases of far-reaching national consequence were being assigned arbitrarily to select junior benches by then CJI Dipak Misra. Soon thereafter, former Union Law Minister and Senior Advocate Shanti Bhushan filed a writ petition under Article 32.

The petitioner prayed for a declaration that the administrative power of the Chief Justice of India to allocate cases and constitute benches ("Master of the Roster") under Article 145 and Order VI Rule 1 of the Supreme Court Rules, 2013, should not be exercised by the CJI alone in his individual discretion, but by the **Collegium of five senior-most judges**, drawing an analogy to the interpretation of "CJI" in the *Second and Third Judges cases*.

▸ **Core Legal Issues:**

1. Whether the expression "Chief Justice of India" in the context of the administrative power of allocating cases and constituting benches means the CJI individually or the Collegium of senior judges?
2. Whether the power of the CJI as Master of the Roster is absolute and unguided, or subject to institutional collegial oversight?

Arguments on Behalf of Petitioner (Dushyant Dave & Shanti Bhushan):

- **Equal Judicial Authority:** In judicial capacity, all Supreme Court judges are co-equals; the CJI is merely *primus inter pares* (first among equals).
- **Erosion of Public Confidence:** Concentrating untrammeled administrative discretion in one individual creates the risk of bench-

Arguments on Behalf of Respondent (Attorney General K.K. Venugopal):

- **Administrative Impracticability:** Roster allocation requires day-to-day administrative dispatch. Involving five judges in daily roster allocation would create friction, delays, and institutional paralysis.
- **Specific Scope of Judges Cases:** The Collegium formula was strictly evolved for *appointments and transfers*, not for daily court administration.

hunting, forum shopping, and political manipulation of sensitive cases.
- **Harmonious Analogy:** Since "CJI" in Articles 124(2) and 217(1) was interpreted as the Collegium, the same democratic, collegiate principle must apply to roster allocation under Article 145.

- **Exclusive Roster Authority:** Under Order VI Rule 1 of Supreme Court Rules, 2013 and settled conventions, the CJI alone is the Master of the Roster.

▸ **Judgment & Holding of the Court:**

1. **CJI is the Sole Master of the Roster:** The Court decisively held that the Chief Justice of India is the individual administrative head of the Supreme Court and possesses the exclusive authority to allocate cases and constitute benches.
2. **Distinction between Judicial and Administrative Functions:**
   - *Judicially:* The CJI is **primus inter pares** (first among equals). A judgment of a bench headed by the CJI has no greater judicial authority than a bench of co-equal strength headed by any other puisne judge.
   - *Administratively:* The CJI occupies a pre-eminent, unique institutional position as the leader of the court. The expression "CJI" in Supreme Court Rules cannot be interpreted to mean the Collegium.
3. **Rejection of Collegial Roster:** Subdividing roster allocation among five judges would lead to chaotic administrative friction and compromise the functioning of the court.
4. **Presumption of Bona Fides & High Conventions:** The power must be exercised bona fide, in accordance with established traditions, subject expertise of judges, and sound administrative principles to maintain public confidence.

▸ **Principle Evolved:**

Reaffirmed the exclusive authority of the Chief Justice of India as the **Master of the Roster**, while cementing the vital constitutional distinction between judicial parity and administrative leadership.

CASE #40 DU LL.B. PRESCRIBED AUTHORITY

The National Judicial Appointments Commission (NJAC): Design, Working & Critique

99th Constitutional Amendment Act, 2014 & NJAC Act, 2014 | DU Case Material Excerpt (pp. 243-244)

▸ **Institutional Architecture & Legislative Background:**

Passed almost unanimously by both Houses of Parliament in August 2014 and ratified by 20 State Legislatures, the NJAC sought to dismantle the judicial monopoly over appointments established by the 1993 Second Judges verdict. It introduced a structural shift towards a broad-based, multi-stakeholder appointment mechanism modeled loosely on judicial commissions in the United Kingdom, Canada, and South Africa.

▸ **Structural Composition under Struck Down Article 124A:**

Component	Designation / Membership	Constitutional / Democratic Rationale
Chairperson	Chief Justice of India (ex officio)	Ensures institutional headship of the apex judiciary.
Judicial Members	Two senior-most Judges of the Supreme Court (ex officio)	Provides high-level judicial representation and professional evaluation.
Executive Member	Union Minister in charge of Law and Justice (ex officio)	Ensures democratic accountability to the elected representatives of the people.
Civil Society Members	Two "Eminent Persons" nominated by Committee (PM + CJI + Leader of Opposition/Single largest party)	Brings public perspective, diversity, and representation of marginalized sections (one member mandatorily SC/ST/OBC/Minority/Woman).

▸ **Fatal Statutory Flaws That Led to its Judicial Demise:**

- **The Section 6(6) Veto Trap:** Any two members could veto any candidate. Thus, the Law Minister and one eminent person could veto the unanimous choice of all three senior Supreme Court judges, completely eroding judicial primacy.
- **Vagueness of "Eminent Persons":** No legal, constitutional, or professional criteria were specified in the Constitution or the Act to define who qualified as an "eminent person".
- **Article 124C Blank Cheque:** Empowered Parliament to regulate the procedure for appointments through ordinary legislation or delegated rules, subordinating constitutional judicial selection to parliamentary majorities.

▸ **Current Stalemate & The Memorandum of Procedure (MoP):**

Following the invalidation of the NJAC, the Supreme Court directed the Central Government to finalize a revised **Memorandum of Procedure (MoP)** in consultation with the CJI. However, deep disagreements have persisted between the Executive and the Collegium over key clauses – specifically the Government's proposed *"National Security" clause* (enabling executive rejection on grounds of national security without disclosing reasons) and the establishment of a formal Search and Evaluation Committee.

CASE #41 DU LL.B. PRESCRIBED AUTHORITY

L. Chandra Kumar v. Union of India

(1997) 3 SCC 261 | AIR 1997 SC 1125 | 7-Judge Constitution Bench · Coram: A.M. Ahmadi, C.J., M.M. Punchhi, K. Ramaswamy, S.P. Bharucha, S. Saghir Ahmad, K. Venkataswami, and K.T. Thomas, JJ.

▸ **Historical Background & Material Facts:**

By the **Constitution (Forty-second Amendment) Act, 1976**, Parliament inserted **Part XIV-A** into the Constitution containing **Articles 323A and 323B**. These articles empowered Parliament and State Legislatures to establish administrative and subject-specific tribunals. Crucially, **Article 323A(2)(d)** and **Article 323B(3)(d)** enabled Parliament to *totally exclude the jurisdiction of all courts, except the Supreme Court under Article 136*.

Pursuant to Article 323A, Parliament enacted the **Administrative Tribunals Act, 1985**. Section 28 of this Act excluded the jurisdiction of all courts, including the writ jurisdiction of the High Courts under Articles 226/227. In *S.P. Sampath Kumar v. Union of India (1987) 1 SCC 124*, a 5-Judge Bench upheld Section 28, holding that Parliament could exclude High Court jurisdiction if an equally efficacious alternative institutional mechanism was provided.

However, subsequent developments demonstrated that Tribunals lacked judicial independence, were overburdened, and in *J.B. Chopra v. UOI (AIR 1987 SC 357)*, single administrative members were deciding constitutional validity of laws. A 7-Judge Bench was constituted to re-evaluate the constitutionality of Part XIV-A and the exclusion of judicial review.

▸ **Core Questions Framed by Chief Justice Ahmadi:**

1. Whether the power conferred upon Parliament/Legislatures by **Article 323A(2)(d)** and **Article 323B(3)(d)** to totally exclude the jurisdiction of the High Courts under Articles 226/227 and the Supreme Court under Article 32 violates the **Basic Structure** of the Constitution?
2. Whether Tribunals constituted under Articles 323A/323B possess the competence to test the **constitutional validity** of statutory provisions and rules?

3. Whether these Tribunals can be regarded as **effective substitutes** for the High Courts in discharging judicial review?
4. Whether Section 5(6) of the Administrative Tribunals Act, 1985 (allowing single-member benches) is constitutional?

▸ **Landmark Holdings of the 7-Judge Bench (Unanimous):**

1. **Judicial Review is Inviolable Basic Structure:** The Court unanimously held that the power of judicial review over legislative action vested in the High Courts under **Articles 226/227** and in the Supreme Court under **Article 32** is an integral and essential feature of the Constitution, constituting an **inviolable part of the Basic Structure**. It cannot be ousted even by a constitutional amendment!
2. **Exclusion Clauses Declared Unconstitutional:** Clause 2(d) of Article 323A, Clause 3(d) of Article 323B, and Section 28 of the Administrative Tribunals Act, 1985 (along with all similar exclusion clauses in other tribunal statutes), to the extent they excluded the jurisdiction of High Courts and Supreme Court, were struck down as **UNCONSTITUTIONAL AND VOID**.
3. **Tribunals are NOT Substitutes, but Supplemental Bodies:** Tribunals cannot act as full substitutes for the superior judiciary because their members lack the constitutional insulation, security of tenure, and independence enjoyed by High Court judges. Tribunals perform a purely *supplemental role*.
4. **Competence to Test Vires of Subordinate Rules:** Tribunals possess the competence to test the constitutional validity of statutory rules and subordinate legislation. However, they CANNOT question the validity of their own parent statute (e.g., CAT cannot decide the validity of the Administrative Tribunals Act, 1985).
5. **Tribunal as Court of First Instance & Division Bench High Court Review:**
   - The Tribunal will act as the **court of first instance** in respect of areas for which it is constituted. Litigants cannot bypass the Tribunal and rush directly to the High Court.
   - **ALL decisions of Tribunals are subject to judicial scrutiny before a DIVISION BENCH of the respective High Court under Articles 226/227.**
   - Direct appeal to the Supreme Court under Article 136 bypassing the High Court was firmly discouraged.
6. **Harmonious Construction of Section 5(6):** Upheld Section 5(6) by reading it down – if a question involving constitutional validity arises before a Single Member bench, it must be referred to a Division Bench consisting of at least two members, one of whom **must be a Judicial Member**.
7. **Independent Nodal Ministry:** Recommended that all tribunals be placed under a single independent nodal ministry (Ministry of Law) rather than parent ministries against whom they adjudicate.

> *"The power of judicial review over legislative action vested in the High Courts under Article 226 and in this Court under Article 32 is an integral and essential feature of the Constitution, constituting part of its basic structure. The constitutional safeguards ensuring the independence of the Judges of superior courts are not available to those who man tribunals... They can never be full substitutes for the superior judiciary." — A.M. Ahmadi, C.J. (1997) 3 SCC 261 at 301*

▸ **Jurisprudential Impact:**

Overruled *Sampath Kumar* on the exclusion of High Court writ jurisdiction. Re-established the High Court as the paramount constitutional sentinel in the state and established the mandatory **"Tribunal → HC Division Bench (Art. 226) → Supreme Court (Art. 136)"** hierarchy.

CASE #42 DU LL.B. PRESCRIBED AUTHORITY

Madras Bar Association v. Union of India

(2014) 10 SCC 1 | AIR 2015 SC 1571 | 5-Judge Constitution Bench · Coram: R.M. Lodha, C.J., J.S. Khehar (author for majority), J. Chelameswar, A.K. Sikri, and R.F. Nariman, JJ.

▸ **Legislative Background & Material Facts:**

Parliament enacted the **National Tax Tribunal Act, 2005 (NTT Act)** to establish the National Tax Tribunal (NTT). The NTT was established to divest High Courts of their jurisdiction to hear appeals on **substantial questions of law** arising from orders of the Income Tax Appellate Tribunal (ITAT) and Customs, Excise and Service Tax Appellate Tribunal (CESTAT). The NTT Act allowed non-judicial "technical members" (former civil servants/ accountants) to sit on NTT benches and adjudicate complex substantial questions of law, with appointment committees heavily dominated by executive nominees.

The Madras Bar Association challenged the NTT Act as violative of the Basic Structure – specifically the Independence of the Judiciary and Separation of Powers.

▸ **Core Constitutional Questions:**

1. Can Parliament transfer core judicial functions of the High Court – specifically the determination of **substantial questions of law** – to a quasi-judicial tribunal?
2. Can non-judicial "technical members" be empowered to adjudicate substantial questions of law?
3. Does the NTT Act violate the basic structure by compromising judicial independence and separation of powers?

▸ **Judgment & Holding:**

1. **NTT Act Struck Down as Unconstitutional:** The Constitution Bench unanimously struck down the National Tax Tribunal Act, 2005 in its entirety as unconstitutional and void.
2. **Core Judicial Powers Cannot be Transferred to Substandard Tribunals:** The Court ruled that while Parliament has legislative competence to create tribunals to supplement courts, it *cannot transfer core constitutional judicial powers historically exercised by High Courts* to tribunals unless the new forum possesses identical standards of independence, security of tenure, and judicial capability.
3. **Adjudication of Substantial Questions of Law is Exclusively Judicial:** Deciding "substantial questions of law" is an intrinsic judicial function. Non-judicial technical members (civil servants/accountants) lack judicial training and **cannot be permitted to adjudicate substantial questions of law**.
4. **Defective Selection Mechanism:** Selection committees where executive representatives hold parity or dominance over judicial representatives violate the independence of the judiciary.

▸ **Principle Evolved:**

Set definitive constitutional boundaries on tribunalisation: Core adjudicatory functions involving pure questions of law cannot be transferred from High Courts to executive-dominated tribunals lacking judicial character and independence.

CASE #43 DU LL.B. PRESCRIBED AUTHORITY

Mohd. Arif @ Ashfaq v. The Registrar, Supreme Court of India

(2014) 9 SCC 737 | AIR 2014 SC 3517 | 5-Judge Constitution Bench · Coram: R.M. Lodha, C.J., J.S. Khehar, J. Chelameswar (concurring), A.K. Sikri, and R.F. Nariman (author for majority), JJ.

▸ **Material Facts & Challenge:**

Mohd. Arif was convicted and sentenced to death for the sensational 2000 Red Fort attack. His regular appeal and SLP were dismissed by the Supreme Court. Under **Order XL Rule 3 of the Supreme Court Rules, 1966** (now Order XLVII of 2013 Rules), review petitions under Article 137 are ordinarily disposed of by *"circulation in chambers"* – meaning the judges consider the written case record in private chambers without any open-court oral hearing by counsel.

by Ankur R. Upadhyay

Arif's review petition was dismissed by circulation. He filed a writ petition under Article 32, joined by the People's Union for Democratic Rights (PUDR), arguing that where a person's life is at stake, the absolute denial of an oral hearing violates the right to procedural due process and fair trial under **Article 21** of the Constitution.

▸ **Core Constitutional Questions:**

1. Whether a condemned prisoner sentenced to death has a fundamental right under Article 21 to an **oral hearing in open court** of his review petition under Article 137?
2. Whether the Supreme Court Rules prescribing chamber disposal by circulation for review petitions are unconstitutional in capital cases?

▸ **Landmark Judgment & Holding (4:1 Majority – R.F. Nariman, J.):**

1. **Mandatory Open Court Oral Hearing in Capital Reviews:** The Constitution Bench held that in ALL cases where the death penalty has been awarded, review petitions under Article 137 **MUST be heard in OPEN COURT by a bench of at least THREE Judges**.
2. **Article 21 Primacy over Article 145 Rules:** While the Supreme Court has procedural rule-making power under Art. 145, procedural rules must bow down to the fundamental right to life and procedural fairness under Article 21 (*Maneka Gandhi doctrine*). Death is irrevocable and unique; an oral hearing affords counsel the last opportunity to persuade the court on mitigating factors and judicial errors that could save human life.
3. **Reasonable Time Limit:** To prevent misuse, the Court limited the duration of oral hearing in review petitions to a **maximum of 30 minutes**.
4. **Retrospective Operation:** The benefit of open-court review hearing was extended retrospectively to *all death row convicts* whose review petitions had previously been dismissed in chambers and who had not yet been executed.

> *"Death penalty is irreversible. A judicial error in such cases is irreparable. Article 21 demands that before a man is sent to the gallows, the procedure established by law must be just, fair and reasonable. An oral hearing in open court, even if limited to 30 minutes, is an indispensable requirement of procedural fairness." — Rohinton F. Nariman, J. (2014) 9 SCC 737*

▸ **Principle Evolved:**

Harmonized Article 137 review powers and Article 145 procedural rules with Article 21 procedural due process, creating an indelible human rights safeguard in Indian capital sentencing jurisprudence.

CASE #44 DU LL.B. PRESCRIBED AUTHORITY

Rupa Ashok Hurra v. Ashok Hurra & Another

(2002) 4 SCC 388 | AIR 2002 SC 1771 | 5-Judge Constitution Bench · Coram: S.P. Bharucha, C.J., Syed Shah Mohammed Quadri (author), U.C. Banerjee, S.N. Variava, and S.V. Patil, JJ.

▸ **Material Facts:**

In a bitter matrimonial dispute, a joint petition for mutual consent divorce was filed under Section 13B of the Hindu Marriage Act, 1955. Before the statutory 18–month period expired, the wife (Rupa Hurra) withdrew her consent. Despite the withdrawal, a Two-Judge Bench of the Supreme Court granted divorce decree under Article 142 on the ground of irretrievable breakdown of marriage. The wife's review petition under Article 137 was dismissed.

The wife then filed a **writ petition under Article 32** challenging the final Supreme Court judgment as a nullity, arguing it violated principles of natural justice and her fundamental rights. A 5–Judge Constitution Bench was convened to decide whether a final judgment of the Supreme Court could ever be reopened or challenged under Article 32.

▸ **Core Legal Questions:**

1. Whether an Article 32 writ petition is maintainable to challenge or set aside a final judgment or order rendered by the Supreme Court itself?
2. Whether the Supreme Court, to prevent abuse of its process and cure gross miscarriage of justice, has inherent power to reconsider its final judgment even after dismissal of a review petition?
3. What are the parameters, grounds, and procedural safeguards governing such a remedy?

▸ **Landmark Judgment & Holding (Unanimous):**

1. **Article 32 Cannot Lie Against Supreme Court Judgments:** Reaffirming *Naresh Shridhar Mirajkar v. State of Maharashtra (AIR 1967 SC 1)*, the Court held that a writ petition under Article 32 **cannot be maintained against a final judgment of the Supreme Court**. One bench of the Supreme Court cannot issue a writ to another bench; judicial orders of constitutional courts do not violate Part III rights for the purpose of writ jurisdiction.
2. **Invention of the "Curative Petition":** However, balancing the maxim *interest reipublicae ut sit finis litium* (it is in public interest that litigation must end) with the duty to prevent **manifest injustice**, the Court held that under its inherent plenary powers (Articles 137 and 142), it possesses the power to cure defects in its own final orders through a **"CURATIVE PETITION"**.
3. **Extremely Narrow Substantive Grounds:** A Curative Petition can ONLY be entertained on two strict grounds:
   - **(a) Violation of Principles of Natural Justice:** The petitioner was not served with notice or was not given a hearing before the order was passed.
   - **(b) Apparent Bias of the Judge:** The judge failed to disclose a conflict of interest, connection with the parties, or personal bias.
4. **Four-Tier Procedural Filters to Prevent Frivolous Petitions:**
   - *Filter 1:* The petition must aver that the grounds mentioned were raised in the review petition and that the review petition was dismissed by circulation.
   - *Filter 2:* **Senior Advocate Certificate:** Must be certified by a Senior Advocate with specific averments that the strict grounds laid down in *Rupa Hurra* are satisfied.
   - *Filter 3:* **Collegiate Chamber Screening:** Circulated first to a Bench of the **three senior-most Judges** of the Supreme Court AND the Judges who delivered the original judgment (if still available).
   - *Filter 4:* **Exemplary Costs:** If at any stage the petition is found frivolous or without merit, exemplary costs shall be imposed.

> *"The concern of the court for doing complete justice must be balanced with the need for finality of litigation. A curative petition is not a matter of course. It is an extraordinary remedy available only in cases of manifest injustice where the foundational principles of natural justice were breached or the adjudicator was biased." — Syed Shah Mohammed Quadri, J. (2002) 4 SCC 388*

▸ **Procedural Codification:**

Subsequently codified into **Order XLVIII of the Supreme Court Rules, 2013**. Serves as the ultimate, rarest-of-rare constitutional safety valve in Indian judicial hierarchy.

Ankur R. Upadhyay

CASE #45 DU LL.B. PRESCRIBED AUTHORITY

Zakarius Lakra & Others v. Union of India

(2005) 3 SCC 161 | 2-Judge Bench · Coram: Y.K. Sabharwal and P.P. Naolekar, JJ.

▸ Material Facts & Context:

Zakarius Lakra and co-convicts were awarded the death penalty for gruesome murders. Their appeals, review petitions under Article 137, and curative petitions under the *Rupa Ashok Hurra* doctrine had all been considered and dismissed by the Supreme Court. The President of India had also rejected their mercy petitions under Article 72.

Subsequently, human rights organizations and activists filed a fresh writ petition under Article 32 on behalf of the convicts, seeking to stay the execution of the death sentence and re-examine the trial evidence and sentence on grounds of alleged delays and procedural irregularities.

▸ Core Legal Issues:

1. Whether an Article 32 petition is maintainable to reopen criminal convictions and sentences after regular appeals, reviews, and curative petitions have been dismissed?
2. What is the scope of third-party locus standi under Article 32 in matters where the convict has already exhausted all constitutional remedies?

▸ Holding & Jurisprudential Rationale:

1. **Reaffirmation of Absolute Finality:** The Supreme Court dismissed the writ petition, holding that once regular appeals, reviews, and curative petitions are dismissed, the judicial verdict attains **irrevocable finality**. Litigants cannot repeatedly invoke Article 32 to reopen settled criminal convictions. Doing so amounts to gross abuse of the process of the court.
2. **Article 32 Cannot Act as a Second Appeal in Disguise:** The Court reiterated that Article 32 cannot be used as an endless appellate forum. No third party or activist can be permitted to derail execution by filing repetitive petitions challenging the merits of conviction.
3. **Narrow Exception for Supervening Events:** The Court clarified that the only post-curative ground maintainable under Article 32 is a challenge founded on **supervening circumstances** (such as inordinate, unexplained executive delay by the President/Governor in deciding mercy petitions causing dehumanizing agony, as later authoritatively settled in *Shatrughan Chauhan v. UOI (2014) 3 SCC 1*). In the absence of genuine supervening grounds, the court will not interfere.

▸ Principle Evolved:

Reinforced the doctrine of finality of judicial pronouncements post-*Rupa Hurra* and established that Article 32 cannot be transformed into an endless collateral challenge to reopen capital convictions, preserving institutional closure in the criminal justice system.

PYQ ARCHIVE // CH.06 **Previous Year Questions (DU LL.B. Examinations)**

Q.1 `Judicial Appointments Architecture (20 Marks) · Centenary Chance Exam (LB-301) Q.2` "Examine in detail the provisions of the Constitution of India regarding the appointment of Judges of the Supreme Court and High Courts with case laws." (20 Marks)

▸ **Refer website for detailed notes — makelaweasy.in · WhatsApp: +91 7021726891**

Q.2 `Constitutionality of Articles 323A(2)(d) & 323B(3)(b) (20 Marks) · December 2024 Exam (LB-301) Q.4` "Articles 323 A and 323 B were inserted in the Constitution of India through the Constitution (Forty-second amendment) Act 1976. Discuss the constitutionality of Article 323A (2)(d) and Article 323 B(3) (b). Answer in light of relevant constitutional law principles, legal provisions and judgments." (20 Marks)

Q.3 `Critical Evaluation of NJAC & Fourth Judges Case (20 Marks) · Standard DU LL.B. Question` "Critically examine the constitutional validity of the 99th Constitutional Amendment Act, 2014 and the National Judicial Appointments Commission (NJAC) Act, 2014 in light of Supreme Court Advocates-on-Record Association v. Union of India (2016). Did the Supreme Court prioritize judicial independence over democratic accountability?" (20 Marks)

Q.4 `Review (Art. 137) vs. Curative Petitions & Death Penalty Reviews (20 Marks) · DU LL.B. Semester Exam Core Question` "Explain the evolution, scope, and grounds of Curative Petitions as established in Rupa Ashok Hurra v. Ashok Hurra (2002). How does it differ from the power of Review under Article 137? Discuss how Mohd. Arif v. Registrar, Supreme Court (2014) modified review procedure in death penalty cases." (20 Marks)

Q.5 `The Master of the Roster Doctrine (15 Marks) · DU LL.B. Semester Exam Question` "'The Chief Justice of India is first among equals judicially, but Master of the Roster administratively.' Discuss the scope of the administrative powers of the CJI regarding bench constitution and allocation of matters in light of Shanti Bhushan v. Supreme Court of India (2018)." (15 Marks)

Q.6 `Writ Jurisdictions & Certiorari vs. Prohibition vs. Mandamus (20 Marks) · DU LL.B. Semester Exam Core Question` "Compare and contrast the writ jurisdiction of the Supreme Court under Article 32 with that of the High Courts under Article 226. Examine the scope, essential conditions, and landmark precedents for Certiorari, Prohibition, and Mandamus." (20 Marks)

Q.7 `Advisory Jurisdiction under Article 143 (15 Marks) · DU LL.B. Semester Exam Core Question` "Analyze the nature, scope, and legal effect of the Supreme Court's Advisory Jurisdiction under Article 143. Is the Supreme Court bound to answer every reference? Is the President bound by the Court's opinion?" (15 Marks)

MODULE 07 // TOPIC 6 (II) · WRIT DOCTRINES & PIL Cases #46–#50

Procedural Requirements & Judicial Innovations: Locus Standi, Laches, Res Judicata, PIL & Compensation

Articles 32, 142 & 226 · Epistolary Jurisdiction & Compensatory Jurisprudence

§1 · Judicial Activism, Overreach & Self-Restraint

Item (a) opens with a *pairing*: "Judicial Activism **and** overreach/self-restraint". The syllabus wants you to hold three concepts together — activism as the engine, self-restraint as the brakes, and "overreach" as the accusation made when the brakes fail (or when the driver leaves the road).

§ Judicial activism

Where the court **energises procedure or doctrine to reach a substantive injustice**: enlarging locus standi, treating a letter as a petition, appointing its own commissioners, awarding compensation, writing guidelines,

Overreach (the critique)

The charge that the court has crossed from *enforcing* law into *making* policy — occupying space the Constitution assigns to the elected branches. The DU material itself states the limit from the *inside*:

Self-restraint

The court's **voluntary disciplines**: comity with High Courts, insistence on ordinary remedies first, laches, res judicata, the "sufficient interest" filter, and refusing to act on political or pressure-group motives.

monitoring compliance. Its engine is Art 32 / Art 226 read with Art 142 ("complete justice").

DU exemplar: Bhagwati J.'s "**new jurisprudence**" demanding "**judicial statesmanship and high creative ability**" (S.P. Gupta, para 24).

> *"…the Court must not overstep the limits of its judicial function and trespass into areas reserved to the Executive and the Legislature."*

DU exemplar: Trilokchand — "This Court **puts itself in restraint** in the matter of petitions under Article 32 and this practice has now become **inveterate**." (Hidayatullah C.J.)

1.1 The doctrine in DU words — the two anchor quotes

For activism (why the court must act)

> *"[The] rule of law would be a hollow boast if the law courts were to deny relief to a person for his inability to stand the heavy costs of litigation." — courts "readily respond even to a letter" when it discloses public injury, acting pro bono publico; "procedure is but a handmaiden of justice."*

> *"…the new jurisprudence which the Court is evolving calls for judicial statesmanship and high creative ability…"*

For restraint (why the court must stop)

> *"The Court must not overstep the limits of its judicial function and trespass into areas reserved to the Executive and the Legislature. [There is a] vital distinction between locus standi and justiciability…"*

> *"…in rare cases, where the ordinary process of law appears to be inefficacious, that this Court interferes… extraordinary remedies should not take the place of ordinary remedies… This Court refrains from acting under Article 32 [where the party has already moved the High Court]. This constitutes a comity between the Supreme Court and the High Court."*

1.2 Activism vs restraint — the working checklist

Question	Activism column	Restraint column
Who may come?	Any member of the public for an indeterminate class; a letter is enough (Bandhua); lawyers themselves have "sufficient interest" (S.P. Gupta para 26).	Bona fide only — no busybody, no political motivation, no pressure-group games (S.P. Gupta para 24); private legal injury still needs personal standing (para 14).
When will it act?	Even post-limitation periods where the breach is ongoing; time spent pursuing remedies excuses delay (Trilokchand headnote).	Unexplained laches defeats the claim (Trilokchand); a stale claim is refused on public policy — *vigilantibus non dormientibus jura subveniunt*.
Against whom?	"State" broadly — executives, instrumentalities, and private enterprises doing hazardous/public-utility work (Bandhua; Oleum via Art 21).	Not into policy domains: courts will not order the "how" of executive policy (S.P. Gupta para 24 trespass test).
What then?	Full remedial inventiveness: directions, commissions, monitoring, guidelines, compensation (Rudul Sah, Oleum).	Only "appropriate" orders — the power is **judicial** by nature (Bandhua: "limited by its very nature… judicial power").
Second look?	Continuing mandamus keeps orders alive for years (compliance monitoring).	Res judicata closes the door after a merits decision (Daryao); alternative remedies must first be exhausted (Trilokchand).

Language discipline for exams: never write that Indian courts have a free-floating "activist mandate". The Constitution's scheme is **review, not governance**: the court enforces rights (Art 32 / 226), declares the law (Art 141) and does "complete justice" (Art 142) — while the doctrines in §§3–5 (laches, res judicata, exhaustion) are the court's own **self-imposed guardrails**. "Overreach" is the label critics attach when guardrails are skipped; the DU text answers with the **locus standi ≠ justiciability** distinction of para 24.

§2 · Locus Standi DU CASE MATERIAL — PRIMARY SOURCE

"Locus standi" = **the place (right) of standing** — who may address the court. The DU Case Material's Part-II core is the dedicated **"Locus Standi" passage of Bhagwati J. in** *S.P. Gupta v. Union of India*, **1981 Supp (1) SCC 87 (paras 13–26, DU Case Material pp. 177–185)**; it is reproduced as a full case-note in §9 and digested here article-by-article.

2.1 The traditional rule — and why it existed

> *"The traditional rule of locus standi is that only a person whose personal legal right or interest is infringed may maintain an action for redress… It is a rule of ancient vintage [from] the time when private law dominated the legal system…"*

Under the classical rule, the plaintiff must plead a **legal injury to himself** — not the public's. A taxpayer could not sue over public expenditure; a bystander could not sue over a polluted river. The injury had to be *special*, not general. That worked in a private-law world; in a constitutional democracy governed by Part III and Part IV it produced an absurdity: **the larger the wrong, the fewer the plaintiffs**.

2.2 Exceptions the court had already recognised (para 15)

Exception	What it allows	DU-cited authority
Ratepayer / taxpayer	A person contributing to a public fund may challenge its illegal application — his own money is concerned.	K. Ramadas Shenoy AIR 1974 SC 2177; Varadarajan AIR 1973 Mad 55
Participant in the decision-making process	One whose inputs a statute/authority were bound to consider may complain when the process was bypassed.	Queen v. Bowman [1898 1 QB 663]
Statutory special interest	A person to whom a statute itself gives a right or duty touching the subject-matter.	Jasbhai Motibhai Desai AIR 1976 SC 578

2.3 The disability rule — another person litigates for you (para 16)

- **Minor / unsound mind** — the next friend sues: Order XXXII CPC .
- **Detenu** — habeas corpus may be moved by *another*: the prisoner often cannot reach the court (hence the "letter" jurisprudence).
- **Prisoner** — the court has entertained prisoners' **letter-petitions** directly.
- **Minority shareholder** — may sue for wrongs to the company where majority is complicit.

2.4 The breakthrough — public injury & the relaxed rule (paras 17–19)

> *"[A] member of the public acting bona fide and having sufficient interest may move the High Court under Art 226 or the Supreme Court under Art 32 complaining of a wrong to an indeterminate class… [the courts] would readily respond even to a letter addressed to them, acting pro bono public[o]… procedure is but a handmaiden of justice… the petition must be bona fide — not for personal gain or private profit or political motivation or other oblique motives…"*

Public injury vs private injury (paras 18–19)

- **Private injury**: hurts *me* — traditional standing suffices.
- **Public injury**: hurts an *indefinite class* or the community — pollution of air/water,noxious-gas emissions, cruelty to prisoners, bonded labour. The public at large cannot assemble as plaintiffs; if the court insists on the classical rule, **the wrong goes unredressed** because no single victim is identifiable.
- The law must be "a device of organised social action" — standing rules are handmaidens, not masters, of that aim.

Deterrence & prudence (para 17 tail)

- **Bona fide filter:** no personal gain, private profit, political motivation or oblique purpose.
- **Prudential preference:** courts prefer cases where the affected class can be **determinate** (even while permitting indeterminate-class petitions) — a note of restraint embedded in the relaxation itself.

2.5 Who protects the public? The AG problem & the PIL definition (para 20)

Traditionally the **Attorney General (Union) / Advocate General (State)** sues for public wrongs under **ss. 91–92, CPC** — but both are *chosen by the political branches*, so public remedies could stall at the pleasure of government. Bhagwati J.: standing rules must therefore be **liberalised** — courts themselves must let citizens step into that role. Hence the definition carried in the DU notes:

> *PIL = "litigation undertaken for the purpose of redressing a public injury, enforcing a public duty, protecting social, collective, 'diffused' rights and interests." The trigger is "sufficient interest", which the court keeps deliberately discretionary — "no strait-jacket formula."*

2.6 The internal limits — overreach guard (paras 24–25)

> *"…the Court must not overstep the limits of its judicial function and trespass into areas reserved to the Executive and the Legislature." There is a "vital distinction between locus standi and justiciability" — relaxing who may sue does not create subject-matter jurisdiction over political questions. Pressure groups must not use the courts as instruments of conflict, and PIL must not become the vehicle of a "secondary public injury" — a private grievance cosmetised as public. The passage concedes the danger: courts must be alert to motive (para 24) and confine themselves to bona fide, rights-based claims (para 25).*

2.7 The application — lawyers may sue, "priests in the temple of justice" (para 26)

> *A group of Bombay lawyers (led by Iqbal Chagla) moved to enforce duties owed to the public: their concern was "deeper than that of a busybody" — such petitioners "cannot be told off at the gates" (Krishna Iyer J. in Fertiliser Corp. Kamgar Union AIR 1981 SC 344). Lawyers are "priests in the temple of justice"; their locus standi is the widest among ordinary citizens.*

§3 · Laches (unreasonable, unexplained delay)

> **Laches** = such delay, unexplained and unexcused, that the claim has become stale and it would be inequitable to entertain it. Unlike limitation it is **not a statute** — it is the court's equitable refusal, policed by the maxim *vigilantibus non dormientibus jura subveniunt* ("the law aids the vigilant, not those who sleep"). Syllabus case 47 (*Trilokchand*) is the fountainhead.

3.1 The puzzle: no Limitation Act, yet delay kills

Settled (all five judges in Trilokchand agreed)

- **The Limitation Act, 1963 does not directly apply** to Art 32/226 proceedings — there is no prescribed period.
- A legislative attempt to impose a short period would itself be questionable under Art 13(2) (it could extinguish a fundamental right).
- Time spent pursuing representations/appeals to authorities is ordinarily a good explanation for delay.

But the Court's own rules do the work

- **Analogy:** where the writ remedy mirrors a suit remedy limited by statute, the court "adopts the statute as its own rule of procedure" and measures delay by that period (Bachawat J.).
- **Public policy:** stale claims are refused even absent a statutory bar; only an *extinguished right* (prescription, s.27 Limitation Act) leaves nothing to enforce; an extinguished *remedy* still permits a public-policy refusal.

3.2 Trilokchand's five-judge split

Judge	On laches under Art 32	Result for the petitioners
Bachawat J. (majority)	Art 32 power must not ignore "limitation, res judicata and the like"; analogy of Limitation Acts applies on public policy; extraordinary remedies are not for recovering money that a suit could not recover (time-barred).	**Petition dismissed** — ~10-year delay; claim stale; though **not** barred by res judicata (High Court had dismissed the earlier petition in limine, i.e., not on merits).
Mitter J. (majority)	Concurs — stale claim; analogy of limitation governs.	
Hidayatullah C.J. (majority)	Self-restraint: "extraordinary remedies should not take the place of ordinary remedies"; comity with the High Court; but time pursuing remedies explains delay.	
Sikri J. (dissent)	Stale-claim doctrine may apply only after **extreme** delay — yardstick ≈ **one year from discovery** of the right; petitioners came within six months of discovering their mistake (via Kantilal Babulal).	Would have **allowed** the Art 32 petition.
Hegde J. (dissent)	"A relief asked for under Article 32 **cannot be refused on the ground of laches**"; Limitation Act irrelevant; "law reports do not show a single instance" of refusal on delay; laches is proper only under the discretionary Art 226. (Warning: importing laches would "pull down from the high pedestal now occupied by the fundamental rights".)	

Citation: Trilokchand Motichand v. H.B. Munshi (1969) 1 SCC 110; AIR 1970 SC 898; [1969] 2 SCR 824 — Constitution Bench, decided 22-11-1968; dismissed 3:2.

3.3 Interaction with res judicata & exhaustion (the Daryao filter)

Delay and bars interlock: a High Court that refuses on **laches** or **alternative-remedy** grounds has *not* decided the merits — so its order generally **cannot be pleaded as res judicata** against a later Art 32 petition (unless the facts it found are themselves relevant under Art 32). Conversely, delay that is **explained** by pursuing remedies is excused (Trilokchand headnote). Daryao draws this line; Trilokchand applies it.

3.4 The modern restatement (2026): a flexible rule of practice

In Mizo Chief Council v. Union of India (2026; Pardiwala & Mahadevan JJ.), reviewing the law from *Trilokchand* onwards, the Supreme Court held:

- Laches in Art 32 proceedings is "a **flexible rule of practice** anchored in judicial discretion, **not a rigid rule of law**";
- "The operative test is not one of **'unreasonable delay'** but of **'unexplained delay'**" — the *adequacy of the explanation* is decisive;
- Two filters: would entertaining the petition **disturb settled matters/third-party rights**, and has the delay been **satisfactorily explained**;
- The State "cannot be permitted to benefit from its own lethargy by **weaponising the doctrine of laches**" where the delay is partly its own doing (indecision, false assurances);
- Still threshold-strict: the petitioner must prove **a fundamental right and its actual or threatened breach**.

PETITION FAILED — not on laches, but because no FR breach was proved (land compensation/privy-purse claim, notification of 1955, petition filed 2014).

Traps: (i) "Laches = limitation" — no; limitation is statutory, laches is discretionary. (ii) "No limitation applies, so delay never matters" — Trilokchand's majority rejected that; Hegde's dissent was the exception. (iii) Saying a laches-dismissal bars a fresh Art 32 petition — **Daryao says it does not** (no merits decision). (iv) Forgetting the plaintiff's own duty to explain: the modern test is **unexplained** delay.

§4 · Res Judicata (claim-preclusion across the writ court)

Res judicata — a thing adjudicated is treated as the truth (*res iudicata pro veritate habitur*): no person shall be vexed twice for the same cause (*nemo debet bis vexari pro una eademque causa*). Statutorily it is **s. 11, CPC**; constitutionally the question is whether it fences in the "heartbeat" remedy of Art 32. Syllabus case 46 (*Daryao*) answers: **yes — with conditions**.

Section 11 CPC — the elements (inline)

No court shall try any suit or issue in which the matter **directly and substantially in issue** has been directly and substantially in issue—(i) in a **former suit** between the same parties (or their litigating under the **same title**); (ii) in a court **competent** to try the subsequent suit; (iii) where the matter was **finally decided** in the former suit. "Suit" is read widely (any litigation, incl. writs) once the twin pillars — **same parties + same title + same matter finally decided on merits** — exist. Two maxims travel with it: *public interest in finality of litigation*, and *a person should not be tried twice for the same cause* (Daryao's rationale).

4.1 Daryao's four propositions — the headnote framework (verbatim structure)

#	How the High Court disposed of the Art 226 petition	Effect on a later Art 32 petition (same parties, same facts, same relief)
1	**Dismissed ON MERITS** — "no fundamental right is proved, or its contravention is not established, or is shown to be constitutionally justified" (speaking order)	**BARRED by res judicata.** The SC will not re-hear it under Art 32.
2	**Dismissed on laches** or on the ground of an **alternative remedy**	**NOT barred** — except where the *facts found* by the HC are themselves relevant even under Art 32.
3	**Dismissed in limine with an order**	Bar depends on the **nature of the order** (was anything actually decided?).
4	**Dismissed in limine without a speaking order**, or **withdrawn**	**NO bar** — nothing was tried and decided; unsafe to presume a merits decision.

4.4 The converse direction: 226 → suit

State of U.P. v. Nawab Hussain (1984) 2 SCC 149: a writ petition dismissed **because an ordinary suit was an equally efficacious remedy** did **not** bar the subsequent suit under s.11 CPC — nothing was tried and decided on merits. The same case confirms the general proposition that a **decision on merits under Art 226 has the same preclusive force** as a suit — the doctrine cuts both ways.

Traps: (i) "Res judicata never applies to Art 32" — Daryao overruled that folklore. (ii) "Any dismissal bars" — only a **merits** dismissal with a speaking order. (iii) Confusing **res judicata** (preclusion by decision) with **estoppel** (preclusion by conduct) — Daryao stresses the difference. (iv) Forgetting it flows **226 → 32** *and* (on merits) **32 → 32**, and that a laches/alternative-remedy dismissal does not preclude.

§5 · Exhaustion of Alternative Remedies

The doctrine of **self-help first**: where an efficacious alternative remedy exists — suit, appeal, revision, statutory tribunal, departmental channel — the writ court will ordinarily **decline to interfere**. It is a doctrine of **comity and complementary jurisdiction**, not of extinguishment (its refusal normally carries **no res judicata** effect — §4).

5.1 The rule and its constitutional flavouring

Core statements (Trilokchand)

- "In **rare cases**, where the ordinary process of law appears **inefficacious**, does this Court interfere even where other remedies are available."
- "**Extraordinary remedies should not take the place of ordinary remedies.**"
- The SC refrains where the party has **already moved the HC** for the same relief, and where a **better remedy** lies in the High Court, "which can go into the controversy **more comprehensively**" (affidavits, evidence, cross-examination) — "**comity between the Supreme Court and the High Court.**"
- This self-restraint "has now become **inveterate**" (Hidayatullah C.J.).

Why the rule exists

- **Division of labour:** the writ remedy is residual — "court of first resort" only where no other door opens.
- **Factual advantages:** ordinary forums can record evidence; writ courts act on affidavits.
- **Delay-explanation link:** time spent pursuing the alternative remedy is ordinarily a good explanation for delay in filing the writ (Trilokchand) — exhaustion *helps* your laches profile.
- **No forfeiture:** refusal on this ground is not a merits decision → no res judicata (Daryao pt.2; *Nawab Hussain*).

5.2 Exceptions — when the court will not insist

Exception	Reason	Illustration
No efficacious remedy exists (or it is illusory/ delayed)	Exhaustion is required only of *equally efficacious* alternatives; a hopeless or barred remedy need not be pursued.	Trilokchand — court interferes only in "rare cases… inefficacious" ordinary process
Fundamental-right / constitutional question	The Art 32 remedy is itself a FR; courts do not casually condition it on first-round skirmishes.	Daryao — "citizens have ordinarily the right to invoke Art 32" once breach shown
Public interest + indigence (PIL)	Where affected persons "by reason of poverty or disability… cannot approach a court", procedural rules bend.	Oleum (compensation applications of Delhi Legal Aid & Advice Board / Delhi Bar Association treated as maintainable); Bandhua (letter petition)
Pending/likely multiplicity; suppression; urgency	Where going channel-by-channel would defeat the right (eviction imminent, continuing hazard).	Vishaka-type interim directions; Oleum safety conditions during pendency
Discretionary waiver by the court	Exhaustion is a rule of convenience, not jurisdiction: the court may in its discretion hear a stale/parallel claim where demand for justice is high.	Trilokchand headnote — "existence of other ordinary remedy" as an *instance of self-restraint*, not a bar

Interplay in one line: exhaustion governs *order of forums*, laches governs *time*, res judicata governs *repeat litigation after a merits decision* — and a refusal grounded in the first two never triggers the third.

§6 · Public Interest Litigation & the Concept of Pro Bono Publico

PIL is the **institutional form** of relaxed locus standi: litigation "undertaken for redressing a public injury, enforcing a public duty, protecting social, collective, 'diffused' rights" (DU, para 20). Its operating motto is the DU phrase — the courts act **pro bono publico**: **for the public good**, not for any party's private gain.

Concept

A suit or petition where the **cause is the public's**, the remedy is **class-wide or community-wide**, and standing rests on **sufficient interest** rather than personal injury. The litigant may be an NGO, a lawyer, a journalist, an activist — or no litigant at all (suo motu).

Pro bono publico

Latin: **"for the public good"**. In the DU passage it is the label for the court's willingness to act on a **mere letter** disclosing public injury — justice untethered from fee, formality and filing-fee logic. Closely allied: "**procedure is but a handmaiden of justice**".

§ Constitutional anchors

Art 32 / 226 (forum), Art 21 (life/ dignity content), Art 39A (equal justice & free legal aid), Art 41-43A + 48A / 51A(g) (welfare & environment duties), Art 142 (complete justice), Art 141 (binding declaration).

6.1 The PIL toolbox — procedural innovations

Tool	How it works	Landmark use
Letter jurisdiction (epistolary)	A letter to a judge/Chief Justice is registered as a writ petition; no court fee, no formal verification in the classical sense.	Bandhua Mukti Morcha — 25-02-1982 letter became the Art 32 petition
Suo motu cognizance	The court acts on press reports, films, letters from prisoners, or its own knowledge.	Hussainara Khatoon (1979) — mass release of under-trials
Amicus curiae	Court appoints a friend of the court to represent an absent/vulnerable class.	Environmental & custodial PILs (regularly)
Fact-finding commissions	Retired judges/advocates/experts investigate on the ground; reports become evidence — the court steps outside the adversarial model because "the oppressed cannot afford legal aid".	Bandhua — Ashok Srivastava & Ashok Panda appointed Commissioners (26-02-1982)
Continuing mandamus / monitoring	Directions remain under the court's supervision for years; compliance affidavits & periodic reports.	Vineet Narain (CBI monitoring); Bandhua follow-ups (1984 → 1991)
Guidelines / legislative-filling orders	Court writes interim rules where the legislature/executive failed (until law catches up).	Vishaka (harassment); D.K. Basu (arrest procedure)
Consent conditions & security	Industry permitted to run subject to inspections, deposits, undertakings — enforced by the court itself.	M.C. Mehta (Oleum) — CPCB monitoring, ₹20 lakh deposit + ₹15 lakh bank guarantee

6.2 The admission filters — PIL is liberal, not boundless

From the DU text (paras 17, 20, 24-25)

- **Bona fide** — not for personal gain, private profit, political motivation or oblique purpose (para 17);
- **Sufficient interest** — discretionary, no strait-jacket (para 20);
- **No pressure-group weaponisation** — courts must not become instruments of sectional conflict (para 24);
- **No "secondary public injury"** — private grievances cannot be repackaged (para 25);
- **Justiciability intact** — relaxed standing never opens political questions reserved to the other organs (para 24).

Applied in later case law

- Art 32 power "limited by its very nature" — it is **judicial** power (Bandhua, Bhagwati J.);
- Court will not entertain petitions with "misleading and inaccurate statements" (Trilokchand);
- Threshold burden: prove a **fundamental right and its actual/ threatened breach** (Mizo Chief Council);
- Empirical filter: unexplained decades-old delay defeats even a well-standing petitioner (§3).

6.3 PIL vs traditional litigation

Dimension	Traditional suit	PIL
Injury	Personal legal injury	Public / class / diffused injury
Standing	Direct affected party	Sufficient interest; NGO, lawyer, next friend, letter, suo motu
Procedure	Pleadings, evidence, cross-examination	Affidavits, commissions, reports, monitoring — "procedure is handmaiden"

Dimension	Traditional suit	PIL
Forum entry	Court fee, verification, limitation	No fee in letter petitions; limitation flexible (but laches policed)
Relief	Private remedy (damages, declaration)	Directions, guidelines, compensation, rehabilitation, monitoring
Pitfall	—	Politically motivated or proxy-litigation (filtered by paras 17/24)

> *"[Courts] would readily respond even to a letter addressed to them, acting pro bono publico… procedure is but a handmaiden of justice."*

§7 · Power to Issue Appropriate Orders & Directions

Item (b) is the **remedial jurisdiction**: what the court may actually *do* after the access doctrines of item (a) admit the case. The DU Case Material carries no separate excerpt for item (b), so this section is built on the **verbatim constitutional text** VERBATIM plus the syllabus cases' application. Remember the DU sentence: **"procedure is but a handmaiden of justice"** — and the countervailing one from *Bandhua*: the power, though of "widest amplitude", "is limited by its very nature, that it is **judicial** power."

Reading 32(1)–(4)

- **32(1)** — the *right to move* is itself a fundamental right (this is why Daryao says citizens are "ordinarily entitled" to relief; and why Trilokchand's Hegde J. called it non-discretionary).
- **32(2)** — the engine of item (b): three species — **directions, orders, writs** — "whichever may be appropriate". "Appropriate" is the self-restraint word: relief must fit the breach.
- **32(3)** — residual empowerment of other courts by Parliament; note also Art 139 : Parliament may confer on the SC power to issue writs *for other purposes* beyond 32(2).
- **32(4)** — suspension only as the Constitution itself provides (e.g., Arts 352–360 mechanics; after the 44th Amendment, Arts 20 & 21 can never be suspended).

Why "directions or orders or writs" matters

- The list is **expansive, not exhaustive** — the Court has issued *continuing* directions, monitoring regimes, guidelines, commissions, consent terms and money awards under it.
- **Writs** are named "in the nature of" the five classical forms — Indian courts issue them with adapted, flexible scope (e.g., habeas for bonded labour detention).
- **32(2) is jurisdictional; 32(1) is enforceable against the State machinery itself** — K.S. Puttaswamy-style reading of the remedy as substantive.

Dimension	Art 32 (Supreme Court)	Art 226 (High Courts)
Scope of subject-matter	Enforcement of **Part III rights only** ("rights conferred by this Part").	Part III rights **+ "any other purpose"** — any legal right/public law duty (wide "other purposes" jurisdiction).
Who can be addressed	Against any person/authority violating Part III (incl. private parties, e.g., industrialists in Art 21 cases).	"Any person or authority, including in appropriate cases, any Government."
Nature	**Guaranteed right** to move (32(1)) — "the heart and soul" (Kaswan sense: portal of fundamental rights).	**Discretionary** equitable jurisdiction (laches, parity, alternative remedy are native tools).
Territory	Whole of India (court sits at Delhi; original writ runs nationwide).	Territory of its jurisdiction, extended by 226(2) where the cause of action arises wholly/partly.
Overlap	Parallel — 226(4) saves 32(2); Daryao/Trilokchand police the overlap with res judicata & comity.	Same five writs + directions/orders; "Notwithstanding anything in article 32" opens 226(1).
Interim orders	Discretionary stay/injunction inherent.	226(3): ex-parte interim orders without copies/hearing lapse if vacatur application not decided in **2 weeks**.

7.1 The menu of "appropriate orders and directions"

Kind of order	Function	Syllabus / landmark illustration
Habeas corpus	Produce the detained person; test legality of custody.	**Rudul Sah** — release ordered; then compensation (case 49)
Mandamus (+ continuing mandamus)	Command a public body to perform statutory/ constitutional duty; keep it under supervision.	**Bandhua** — identify, release, rehabilitate; quarterly compliance
Prohibition / Certiorari	Stop or quash excess-of-jurisdiction proceedings.	Classical administrative-law use (Trilokchand's HC round involved certiorari-type relief)
Quo warranto	Test authority to hold a public office.	Public office PILs
Declarations	Declare law/rights (Art 141 gives them pan-India force).	Daryao declared the res-judicata conditions
Directions to the State (policy-adjacent, but enforceable)	Implement statutes, frame schemes, submit affidavits.	**Bandhua**: enforcement of the Bonded Labour System (Abolition) Act 1976 + Mines Act 1952 + Workmen's Compensation Act 1923
Commissions / commissioners	Court-supervised fact-finding where parties cannot prove.	**Bandhua** — Commissioners appointed 26-02-1982
Consent terms, conditions, securities	Regulate hazardous operations pending decision: inspections, undertakings, deposits, bank guarantees.	**Oleum** — 11 safety conditions; ₹20 lakh deposit + ₹15 lakh bank guarantee; CPCB monitoring
Guidelines / gap-filling rules	Bind authorities until legislation arrives (constitutional basic-structure concerns noted elsewhere).	Vishaka; D.K. Basu
Compensation (money)	Public-law reparation for FR violation — see §8.	**Rudul Sah**; **Oleum**
Costs / contempt	Enforcement teeth: Art 129/215 courts of record; Art 142(2) contempt power.	Monitoring cases

by Ankur R. Upadhyay

Guardrails restated (Bandhua's own words): "Article 32 confers widest amplitude of power… no express language limiting or circumscribing that power. **Yet, the power is limited by its very nature, that it is judicial power.**" Add Trilokchand's self-restraint practice and §3–§5 doctrines, and you have the constitutional answer to "judicial overreach": **plenary remedy, disciplined jurisdiction.**

§8 · Power to Award Compensation

Can a court enforcing a *right* award *money*? Until **Rudul Sah (1983)** the orthodox answer was no — release was the writ's terminal point. Rudul Sah made compensation the second limb of an effective Art 32 remedy; **Oleum (1987)** then extended the compensatory logic to *private* hazardous enterprises through **absolute liability**. These are syllabus cases 49 and 50.

§ Rudul Sah — the founding formula (verbatim)

"Article 21 would be **denuded of its significant content** if the power of this Court were limited to passing orders of release from illegal detention. One of the telling ways in which the violation of that right can reasonably be prevented and due compliance with the mandate of Article 21 secured, is to **mulct its violators in the payment of monetary compensation**."

— Rudul Sah v. State of Bihar, AIR 1983 SC 1086 (Chandrachud C.J.)

8.1 The constitutional logic of the award

Right ⇔ Remedy symmetry

Art 32(2) says "directions or orders" without excluding money; if the "heart and soul" article cannot award a repair, it would be a right without a remedy for the poorest victims.

Deterrence function

Compensation is the only language the violator understands: it makes violation *costly* for the State/enterprise and future-proof for citizens — "palliative" justice (Rudul Sah).

Reparation, not bounty

Public-law compensation = **reparation for breach of a constitutional duty**; distinct from tort *damages* (which remain claimable in a civil suit — Rudul Sah expressly kept that door open).

8.2 Compensation toolkit — heads, standards, interplay

Head / mode	Standard	Authority
Interim compensation	Paid forthwith while the claim matures; often within weeks.	**Rudul Sah** — ₹30,000 in addition to ₹5,000 already paid, within 2 weeks
Compensation without filing-fee/formality	Poor victims' applications entertained as PIL.	Oleum — Delhi Legal Aid & Advice Board / Delhi Bar Association applications held maintainable under Art 32
Enterprise-scale (deterrent) compensation	Quantum correlated to the **size and prosperity** of the enterprise ("deep pockets"); no-fault.	**Oleum** — absolute-liability rule (see 8.3)
Custodial/public-authority reparation	State pays for injury caused by its agents.	Line continued in Nilabati Behera (1993) — compensation under Arts 32/226 is a public-law remedy distinct from private-law damages
Non-cash "compensatory" relief	Rehabilitation, medical care, wages, housing, monitoring — where money alone cannot cure.	**Bandhua** — release + rehabilitation directions under the Bonded Labour Act 1976
Residuum	A constitutional award does **not** bar a suit for larger damages; court may award more on fuller material.	**Rudul Sah** itself (liberty to sue preserved)

8.3 From fault to no-fault: the Oleum absolute-liability rule

"Where an enterprise is engaged in a hazardous or dangerous activity and harm results to anyone on account of an accident in the operation of such hazardous or inherently dangerous activity, the enterprise is strictly and absolutely liable to compensate all those who are affected by the accident and such liability is not subject to any of the exceptions which operate vis-à-vis the tortious principle of strict liability under the rule in Rylands v. Fletcher."

Feature	Strict liability — Rylands v. Fletcher (1868, England)	Absolute liability — Oleum (India, 1987)
Trigger	Non-natural use of land + escape of a dangerous thing	Any **hazardous or inherently dangerous activity**
Exceptions	Act of God, act of stranger, plaintiff's own fault, consent, statutory authority	**None** — no exception whatsoever
Damages	Compensatory	**Correlated to the magnitude & prosperity of the enterprise** (deterrent)
Rationale	19th-century common law	Enterprise must absorb the social cost of the risk it creates; Art 21 dignity & environment; post-Bhopal context
Proof path	Plaintiff proves escape & non-natural use	Harm from hazardous activity → enterprise liable; duty is "absolute and non-delegable" to the community

Exam spine for item (b): (1) *Text* — Art 32(2)/226(1) permit "directions or orders or writs"; Art 142 completes justice. (2) *Money as a direction* — Rudul Sah: releasing the victim while ignoring 14 years of unlawful detention would "denude Article 21". (3) *Enterprise liability* — Oleum: absolute, exceptionless, size-scaled. (4) *Discipline* — "appropriate" relief only; judicial in nature; filtered by laches/res judicata/exhaustion.

Prescribed Landmark Case Laws — Detailed Analysis

CASES #46–#50

CASE #46 — DU LL.B. PRESCRIBED AUTHORITY

Daryao v. State of U.P.

AIR 1961 SC 1457; (1962) 1 SCR 574 · decided 27-03-1961 · Gajendragadkar C.J. ·

Facts

The petitioners (in a dispute over land/property against the State of U.P. and others) first moved the **Allahabad High Court under Art 226**. The High Court heard the matter and **dismissed the petition on merits** — by a speaking order — holding that no fundamental right of the petitioners had been proved to be infringed, or that the alleged contravention was constitutionally justified. Undeterred, on **14 March 1956** the petitioners filed a **petition in the Supreme Court under Art 32**, raising precisely the same grounds and seeking the same or similar writs. The respondents raised a preliminary objection: the claim was barred by **res judicata**. The Court noted that the question of res judicata had earlier been left open (Fazl Ali J. had "reserved opinion" whether a 32 petition lies after a 226 dismissal) — Daryao was the occasion to settle it.

Issues

1. Whether a petition under Art 32 is barred when the same party has already obtained an adverse **on-merits decision of the High Court under Art 226** on the same facts and reliefs. **2.** Whether the doctrine of res judicata (s.11 CPC / public-policy maxims) is at all applicable to fundamental-rights petitions — i.e., whether Art 32 immunity defeats it. **3.** Whether Art 32 confers only a discretionary power (as Art 226 does), such that the earlier forum's competence objection has force.

Arguments

Petitioner: (i) Res judicata is a technical rule akin to **estoppel** and irrelevant to enforcement of fundamental rights; (ii) Art 32(1) is itself a fundamental right — applying a procedural bar shrinks it unconstitutionally; (iii) the competence test of s.11 fails because the High Court trying under Art 226 is not the court that would try under Art 32, and the reliefs differ; (iv) in England successive habeas corpus petitions are entertained — dismissal of one never bars the next; (v) the High Court judgment is not the "same" adjudication for an Art 32 purpose.

Respondents: (i) Art 32 guarantees only an "appropriate proceeding", not an original hearing; after a 226 verdict the proper route was Art 136; (ii) finality of litigation rests on **public policy** — a person shall not be vexed twice for the same cause; (iii) Raj Lakshmi Dasi v. Banamali Sen shows res judicata can operate even where the first court could not have tried the second matter — identity of jurisdiction is not essential; (iv) the High Court's jurisdiction under 226 is **substantially the same** as the Supreme Court's under 32 — same parties, same cause of action, same character of relief.

Decision

- **Dismissed.** The Art 32 petition is **barred by res judicata** because the Allahabad High Court had decided the identical matter on merits.
- **Four-point test adopted** (as in §4.1): merits dismissal → barred; laches/alternative-remedy dismissal → generally **not** barred (except where facts found are relevant under Art 32); in limine with order → depends on the order's nature; in limine without a speaking order or withdrawn → **no bar**.
- **Rejected the petitioner's doctrinal case:** res judicata "rests on maxims… taken from Roman law" and is not technical estoppel; the s.11 competence test is **substantially satisfied**; the habeas-corpus analogy was distinguished ("no analogy"); Art 32 is **not** a mere discretionary power like Art 226 — "citizens have ordinarily the right to invoke Art 32".
- **Confirmed reach:** the rule "can be invoked even against a petition filed under Art 32" — including where the earlier decision was of the Supreme Court itself in a prior Art 32 round.

Principle

Rule to write in the exam

"**A final on-merits decision of the High Court under Art 226 is res judicata against a subsequent Art 32 petition by the same party on the same facts and reliefs** — the public interest in finality and the maxim against twice-vexation are not suspended by the fundamental-rights character of the remedy. But **only a speaking merits decision binds**: dismissals for laches, want of prosecution, alternative remedy, or in limine without reasons leave the Art 32 door open." → **connects:** §4 (res judicata), §3 (laches no-bar), §5 (exhaustion no-bar).

CASE #47 DU LL.B. PRESCRIBED AUTHORITY

Trilokchand Motichand v. H.B. Munshi

(1969) 1 SCC 110; AIR 1970 SC 898; [1969] 2 SCR 824 · decided 22-11-1968 · Constitution Bench (5 Judges), Hidayatullah C.J. · no DU excerpt

Facts

The petitioners were Bombay traders from whom **sales tax was collected under the Bombay Sales Tax Act, 1953**; a refund of **₹26,563.50** was withheld/forfeited because they did not satisfy the statutory condition of passing the tax on to their customers (the "passed-on" condition). In **1958** they challenged the levy/condition in the **Bombay High Court under Art 226**, arguing ultra vires and infringement of fundamental rights — the petition was **dismissed in limine** without adverting to those contentions. Years later, the Supreme Court's decision in Kantilal Babulal (discovered 29-09-1967) appeared to vindicate their position. On **9 February 1968** — roughly a decade after the payments and five years after the 226 dismissal — they filed an **Art 32 petition** claiming refund as money paid "under a mistake of law or coercion" under **s. 72, Indian Contract Act, 1872**.

Issues

1. Whether the petition was barred by **res judicata** given the earlier High Court disposal. **2.** Whether an Art 32 petition — for which **no period of limitation** is prescribed — can be refused on grounds of **delay/laches**, and whether the Limitation Act or its *analogies* apply. **3.** Whether the power under Art 32 is **discretionary** (as under Art 226) or a matter of right.

Arguments

For the petitioners: Art 32 is a guaranteed right; no limitation statute applies directly or indirectly; the Court's power under Art 32 is not discretionary; Hegde J. — "a relief asked for under Article 32 cannot be refused on the ground of laches"; law reports show no instance of refusal on delay; importing laches would "pull down from the high pedestal now occupied by the fundamental rights"; the earlier dismissal was in limine (no merits) so no res judicata; Sikri J. — even a stale-claim doctrine needs *extreme* delay: yardstick ≈ one year from *discovery* of the right, and they moved within six months of *Kantilal Babulal*; time pursuing remedies explains delay.

For the State/respondent (and the majority): the writ under Art 32 issues as a matter of course on breach — but "this does not mean that in giving relief the Court must ignore and trample under foot all laws of procedure — evidence, limitation, res judicata and the like"; where the writ remedy corresponds to a suit remedy limited by statute, the Court "adopts the statute as its own rule of procedure"; statutes of limitation rest on public policy (*vigilantibus non dormientibus jura subveniunt*); the extraordinary remedies of Arts 32/226 "are not intended to enable a claimant to recover monies the recovery of which by suit is barred by limitation"; a petition will not be entertained containing "misleading and inaccurate statements"; comity — "extraordinary remedies should not take the place of ordinary remedies".

Decision

- **Res judicata — NO (Full Court).** The High Court had dismissed in limine without merits; applying Daryao (points 3-4), there was no bar — "the expression [res judicata] is somewhat inapt and unfortunate", but the principle applies on public-policy grounds driven by the **parallel jurisdiction** of the two courts (comity).
- **Laches — YES (majority; Sikri and Hegde JJ. dissenting).** The Limitation Act does *not* directly apply, but by analogy/public policy the Court treats the analogous period as the measure of a permissible claim; a ~10-year-old claim for money recoverable by suit (now time-barred) is stale. **Petition dismissed.**
- **Discretion/character of Art 32:** majority treated the jurisdiction as accompanied by discretionary self-restraints — hence the famous headnote: instances of **self-restraint** = existence of other ordinary remedy, delay, comity with the High Court, refusal of fresh grounds after an adverse 226 round.

- **Delay-explanation rule:** time spent in appeals/representations to authorities "may ordinarily be taken as a good explanation for the delay".

Principle

Rule to write in the exam

"**The right to move under Art 32 is guaranteed, but the remedy is not immune from equitable self-discipline:** the Court may refuse relief for **unexplained delay measured by the analogy of limitation**, for the existence of an **efficacious alternative remedy**, or out of **comity** to a parallel forum — while an in-limine, non-speaking High Court order never bars a fresh Art 32 petition." This single case teaches **laches (§3), exhaustion (§5), the non-merits rule of res judicata (§4), and judicial self-restraint (§1)**.

CASE #48 DU LL.B. PRESCRIBED AUTHORITY

Bandhua Mukti Morcha v. Union of India

(1984) 3 SCC 161; AIR 1984 SC 802 · decided 16-12-1983 · Bhagwati J., R.S. Pathak & A.N. Sen JJ. · no DU excerpt

Facts

Bandhua Mukti Morcha — an organisation campaigning against bonded labour — addressed a **letter dated 25-02-1982** to Justice P.N. Bhagwati alleging that hundreds of migrant labourers were working in the **stone quarries and stone-crushers of Faridabad district, Haryana**, under "inhuman and intolerable" conditions: hazardous dust, non-payment of wages, no drinking water, no medical care, rampant accidents, and workers **not allowed to leave** until "advances" were settled. The Supreme Court **treated the letter as a writ petition under Art 32** and (on 26-02-1982) appointed **two advocates — Ashok Srivastava and Ashok Panda — as Commissioners** to investigate. Their reports (later reinforced by two further Commissioners) and worker affidavits (24-08-1982) confirmed forced labour: e.g., of ~250 persons in straw jhuggies at Lakarpur, 100 from Bilaspur and 150 from Allahabad, many "forcibly kept by the contractor". The State of Haryana and mine-lessees denied everything.

Issues

1. Whether a **letter** can be entertained as a writ petition, and whether an NGO like BMM has *locus standi* to litigate for workers who cannot approach the court (PIL). **2.** Whether the Supreme Court may appoint **commissions** to ascertain facts in a PIL (inherent power?). **3.** Whether, on a showing of **forced labour**, the labourer must be **presumed** a bonded labourer within the Bonded Labour System (Abolition) Act, 1976, and who must rebut. **4.** What relief Art 32/21/23 permits — release alone, or **rehabilitation** and statutory welfare enforcement.

Arguments

Petitioner (BMM): the letter discloses violation of workers' fundamental rights; indigent, migrant, possibly detained workers cannot themselves move the Court — exactly the public-injury situation of S.P. Gupta paras 17-20; forced labour is prohibited by Art 23; life with dignity (Art 21) requires water, health, wages; the State's constitutional obligation extends to ensuring lessees/contractors observe labour-welfare laws.

Respondents — ASG (for the Union/State) & lessee's counsel: (i) even if the letter's averments were true, **no fundamental right of the petitioners** or of the workers was infringed — no locus; (ii) worker affidavits are untested — **no cross-examination** of the deponents, so no reliable proof; (iii) definitionally, a bonded labourer must have incurred a **bonded debt** — nothing shows an "advance or economic consideration"; there may be forced labourers, but not "bonded" labourers under the Act; (iv) State of Haryana: there is no bonded labour in these quarries (an assertion the material contradicted).

Decision

- **Letter entertained; preliminary objections overruled.** Art 32 permits "appropriate proceedings"; Art 32/226 lay down no prescribed procedure; where victims are indigent and in bondage, PIL enlarges locus standi — refusal would defeat the constitutional mandate ("procedure is a handmaiden").
- **Commission power inherent in Art 32.** The traditional adversarial model is unsuited to vulnerable groups; commissioners' reports supply prima facie material the court may act on.
- **Burden shifted:** "**Whenever it is shown that a labourer is made to provide forced labour, the Court would raise a presumption that he is required to do so in consideration of an advance or other economic consideration… and he is therefore a bonded labourer**." Rebuttable only by **satisfactory material** from the employer/State — which was absent.
- **Relief package (mandatory directions)** to the Union, State of Haryana and quarry owners: **identify, release and rehabilitate** bonded labourers; wages, medical facilities, drinking water, sanitation, safety (dust control, protective gear), schooling; strict enforcement of the **Bonded Labour System (Abolition) Act 1976**, Mines Act 1952, Workmen's Compensation Act 1923 and allied welfare laws — with continuing supervision (later follow-up orders in 1991 on implementation failure).
- Art 21 read with Arts 39(c), 41, 42 (Directive Principles) requires more than release — **rehabilitation** is part of the right to life; non-implementation itself is a constitutional failure.

Principle

Rule to write in the exam

"**In PIL the court may reshape procedure to reach substance:** a letter = petition; standing = public interest; facts = through its own commissioners; burden on the custodian of power to disprove bondage; and relief that *rehabilitates*, not merely releases. Bandhua is S.P. Gupta's doctrine operationalised — locus standi relaxed (paras 17-20), limits respected (it decided rights, not policy — para 24), remedy of 'widest amplitude' yet 'judicial' in nature."

CASE #49 DU LL.B. PRESCRIBED AUTHORITY

Rudul Sah v. State of Bihar

AIR 1983 SC 1086; (1983) 4 SCC 141 · decided 01-08-1983 · Chandrachud C.J., A.N. Sen & R.B. Misra JJ. · no DU excerpt

Facts

Rudul Sah was arrested on the charge of murdering his wife. On **3 June 1968** the Sessions Court at Muzaffarpur **acquitted** him — yet he **remained in jail for over fourteen years**, finally released on **16 October 1982**. The State's explanations were shifting and evidence-free: a jailer's affidavit said the Additional Sessions Judge had ordered that he be detained "till further orders" as a person of "unsound mind", but there was **no medical record, no diagnosis, no treatment proof, and no order authorising post-acquittal detention**; eventually the State conceded administrative lapses. His family moved the Supreme Court under **Art 32 (habeas corpus)**, seeking release (soon infructuous), **State-funded medical treatment, rehabilitation, and compensation** for 14 years of unlawful imprisonment.

Issues

1. Whether continued detention after acquittal violated Art 21 (procedure established by law). **2.** Whether, in a habeas/Art 32 proceeding, the Court can go beyond ordering release and **award monetary compensation** for the FR violation — and if so, on what footing (palliative? reparation? deterrent?). **3.** Whether the plea of insanity (unsupported) could justify the detention.

Arguments

Petitioner: 14 years' post-acquittal imprisonment is an absolute violation of Arts 21 and 32; mere release cannot undo the harm — lost liberty, mental agony, stigma, destitution; the Court must have power to compensate, otherwise Art 32 delivers liberty without justice; sought medical costs and rehabilitation funds.

State of Bihar: the detention was pursuant to the Additional Sessions Judge's order (produce only on government/IG-Prisons orders); Rudul Sah was of "unsound mind" and was kept for treatment in the jail hospital; the Court's jurisdiction under Art 21/32 is limited to ordering release from unlawful detention — compensation is outside the writ's province (and belongs, if anywhere, to a civil claim).

Decision

- **Detention wholly unjustified.** "The State's response was ruthless and had no factual basis"; even a genuinely mentally ill person retains legal rights in trial — insanity cannot licence post-acquittal imprisonment without procedure.
- **Compensation awarded for the first time under Art 32:** the Court directed the State of Bihar to pay **₹30,000 as interim compensation within two weeks, in addition to ₹5,000 already paid** (₹35,000 total).
- **The formula:** "Article 21 would be **denuded of its significant content** if the power of this Court were limited to passing orders of release from illegal detention. One of the telling ways in which the violation of that right can reasonably be prevented and due compliance with the mandate of Article 21 secured, is to **mulct its violators in the payment of monetary compensation**."
- **Scope preserved:** the award is **interim/palliative**; it does **not** bar Rudul Sah from filing a separate civil suit against the State and its officers for full damages.

Principle

Rule to write in the exam

"**Constitutional compensation:** where the State breaches Art 21, the Art 32 court's remedy includes money — release without reparation is an incomplete remedy. Compensation here performs three functions at once: **palliative** (rebuild the victim's life), **deterrent** (price future violations), and **declaratory** (State liability for agents' lawlessness). It is a **public-law** award, distinct from — and not a bar to — private-law damages; quantum may be enhanced on fuller material."

CASE #50 DU LL.B. PRESCRIBED AUTHORITY

M.C. Mehta v. Union of India — the Oleum Gas Leak Case

AIR 1987 SC 1086 · judgment 20-12-1986 (reported 1987) · Constitution Bench, Bhagwati C.J. · no DU excerpt

Facts

Shriram Foods and Fertilizer Industries (SFFI) — a unit of Delhi Cloth Mills Ltd. — sat in **Kirti Nagar, Delhi**, amid a population of lakhs, manufacturing caustic soda, chlorine, sulphuric acid and oleum (fuming sulphuric acid). Environmental lawyer **M.C. Mehta** had filed a PIL under **Arts 21 and 32** seeking **closing/relocation** of the caustic-chlorine and sulphuric-acid plants to safer sites. While the petition was pending, on **4 December 1985 oleum gas leaked** — an advocate practicing at Tis Hazari courts **died**, many workers and residents were hospitalised; a **second, smaller leak followed on 6 December**. The District Magistrate acted under **s. 133 CrPC** (order dated 6–12–1985) directing the unit to cease handling dangerous substances. The Supreme Court, managing the crisis through **interim consent conditions** (eleven conditions on CPCB monitoring, safety board, protective gear, alarm systems, personal undertakings of the DCM Chairman, a **₹20 lakh deposit + ₹15 lakh bank guarantee** for compensation claims, on reports of expert committees including Manmohan Singh and Nilay Choudhary), referred the constitutional questions to a larger bench. Applications for compensation were made by the **Delhi Legal Aid & Advice Board** and the **Delhi Bar Association** on behalf of victims.

Issues

1. Whether **compensation claims are maintainable under Art 32** (the original petition had not pleaded compensation; new applicants were not parties). **2.** Whether Art 21 can be enforced against a **private enterprise** — including the Art 12 "other authority" question and the effect of governmental consents/licences/grants. **3.** Whether the English rule in *Rylands v. Fletcher* (strict liability with exceptions) suffices for hazardous industries in India, or a new principle is required. **4.** Whether permanent closure should be ordered, or regulated operation with conditions — balancing life, livelihood and development.

Arguments

Petitioner / applicants: the leaks infringed the right to life (Art 21 includes right to a pollution-free environment) of an unidentifiable class — PIL standing and letter-style flexibility apply; victims are poor and cannot litigate individually — compensation applications must be entertained; expert committee opinion: risk can be *reduced* by safety measures but not *eliminated* — **relocation is the only long-term solution**; enterprises in inherently dangerous trades must answer for harm regardless of care taken; the Court should direct closure/relocation and award compensation.

Respondents: *Shriram:* (i) no compensation prayer in the original petition, and the new applicants (Delhi Legal Aid Board, Bar Association) were not parties; (ii) Shriram is a private company outside Art 12 — Art 21 cannot run against it; (iii) permanent closure would idly displace ~4,000 workers and cripple an essential-goods plant; liability, if any, must follow *Rylands* with its exceptions. *State:* interim safety conditions (the eleven-condition regime) can mitigate the risk, so blanket closure is unnecessary.

Decision

- **Compensation maintainable.** Applications by the Delhi Legal Aid & Advice Board and Delhi Bar Association "cannot be thrown out" — they enforce the Art 21 right of persons who "by reason of poverty or disability… cannot approach a Court of law"; Art 32 procedure flexes for them.
- **Art 21 reaches the hazardous enterprise:** the Court examined Art 12 ("other authority") dimensions and the State-regulated, licensed, consented and subsidised character of the enterprise; an undertaking engaged in inherently dangerous activity owes "an **absolute and non-delegable duty to the community**" — highest safety standards, and liability for harm.
- **New rule — absolute liability (formulation):** "Where an enterprise is engaged in a hazardous or dangerous activity and harm results… the enterprise is **strictly and absolutely liable**… **not subject to any of the exceptions**… under the rule in *Rylands v. Fletcher*." No act of God, stranger, victim's fault, consent or statutory authority. Quantum: "**larger and more prosperous the enterprise, greater the compensation**" (deterrence/deep pockets); "compensation is the social cost" of the activity.

- **Orders and directions:** industry **not permanently closed** (balance with livelihoods/national production) but regulated by the consent-condition regime, continuous CPCB inspection, safety boards, personal undertakings, deposit and bank guarantee for victims; the Court considered and favoured setting up **environmental courts** (expert, time-bound remedy) as a systemic direction.
- **Right content:** Art 21 includes the right to live in a clean, healthy, pollution-free environment — anchoring environmental PIL.

Principle

Rule to write in the exam

"**Three propositions:** (1) *Forum* — Art 32 compensation applications on behalf of an unidentifiable, indigent class are maintainable as PIL; (2) *Right* — Art 21 embraces a pollution-free environment and binds even private hazardous enterprises through the State's regulatory weave; (3) *Remedy* — absolute, exceptionless, size-scaled liability, enforced not by shutting industry down but by **appropriate orders and directions** — conditions, monitoring, security, undertaking — under continuing judicial supervision. This is item (b) in one case: orders, directions, *and* compensation."

PYQ ARCHIVE // CH.07 **Previous Year Questions (DU LL.B. Examinations)**

Q.1 December 2024 Examination · Q6(c) · 10 marks · – "Write short notes on any two of the following: … (c) Doctrine of locus standi"
Write a short note on the Doctrine of locus standi. (10 marks — DU LL.B. III Semester, Dec 2024)

▸ Refer website for detailed notes — makelaweasy.in · WhatsApp: +91 7021726891

Q.2 December 2024 Examination · Q6(b) · 10 marks · – companion question to item (a)'s "overreach/self-restraint" Write a short note on the Theory of Separation of Powers. (10 marks — DU LL.B. III Semester, Dec 2024 — adjacent to "Judicial Activism and overreach/self-restraint")

PART III // MODULES 08 TO 10 · PRESCRIBED CASES #51 TO #71

LEGISLATIVE RELATIONS, TRADE FREEDOM & EMERGENCY PROVISIONS

MODULE 08 // TOPIC 7 · LEGISLATIVE RELATIONS Cases #51–#65

Distribution of Legislative Powers: Territorial Nexus, Pith & Substance, Colourable Legislation, Residuary Power & Repugnancy

Part XI (Chapter I) · Articles 245–255 · Seventh Schedule (Lists I, II & III)

§1 The Architecture: Part XI & the Seventh Schedule

Lineage: Government of India Act 1935 → Constitution

- **s. 100 GoIA** (three lists; s.100(1) "notwithstanding" federal supremacy) → **Art 246**. DU's cases 55, 57, 62 read the two together; Hoechst: "Our Constitution was not written on a clean slate … the Government of India Act, 1935 … still remains the framework."
- **s. 104 GoIA** — **no residuary power at all** (Joint Committee Report Vol. I, para 56: "profound cleavage of opinion" on allocation). **Innovation of our Constitution: residuary power to Parliament (Art 248 + Entry 97)** — *H.S. Dhillon*.
- **s. 107 GoIA** (repugnancy + Governor-General's assent) → **Art 254** (Zaverbhai: Art 254(2) is "in substance a reproduction" — *with* the proviso enlarging Parliament's power to **repeal/amend** assented State laws, which s.107 did not confer).
- **s. 213 GoIA** (Governor-General's reference) → the machinery of *C.P. & Berar*. **s. 142A**, Entry numbering shifts: Federal List entries 45/48 → today's Lists I/II (DU prints these cross-references in the DU Case Material).

The Seventh Schedule — how the three lists are built

List I — Union List (97 entries)
Defence, armed forces, atomic energy, foreign affairs, treaties (53), C&AG, Supreme Court/ High Courts (109/111), elections, RBI, inter-State trade (41/42), railways, posts, aviation, broadcasting (31), **education coordination & standards (66)**, institutions of national importance (63–65), **taxes: income (82), excise (84), customs (85), capital value of assets (86), estate duty (87), succession (88), taxes on goods & services (92A)** … and **Entry 97 — "any other matter not enumerated …"** (with residuary tax power).

List II — State List (66 entries)
Public order (1), police (2), local government (5), **public health & sanitation (6)**, education incl. universities subject to Entries 63–66 I & 25 III (11), agriculture, land, forests, fisheries, **money-lending/money-lenders & trade within the State (30)**, secular tombs/religious endowments? (no — charities is List III 28), land revenue, **lands & buildings taxes (49)**, **agricultural income-tax (46)**, **sale/purchase of goods (54)**, motor vehicles (196), **entertainment/lotteries (62)**, fees (96 residuary-ish).

List III — Concurrent List (47 entries)
Criminal law/procedure (1–3), preventive detention (3), **contract (7)**, transfer of property (18), marriage & divorce (19), **charities & religious endowments (28)**, trusts (29), **negotiable instruments (6)**…, education incl. vocational training (25), **industrial & labour disputes (23)**, **trade & commerce in / production & distribution of essential commodities (33)**, price control of foodstuffs (34), **compensation principles for acquisition (42)**, census… *and note: no general taxing entry — only "fees … other than court-fees" (96 area).*

Golden rule about the lists (from H.S. Dhillon para 22 & Mar Appraem Kuri para 16): "**The function of the entries/lists is not to confer powers; they merely demarcate the legislative field.**" The power itself comes from **Art 246** (read with Arts 245/248). Corollaries you must quote: (i) entries are to be read in their **widest sense** and as a machinery of government, not in a narrow or pedantic spirit (C.P. & Berar; Hoechst para 72); (ii) each entry must be read **as a whole** — an entry is "the whole entry", not its phrase plus its provisos (Dhillon para 20: Entry 9, List I is "preventive detention for reasons connected with defence, foreign affairs or the security of India" — a different matter from Entry 3, List III); (iii) enumeration is **exhaustive** — nothing is left to implication except through Art 248's deliberate residue.

§2 Article 245 — Extent of Laws & the Doctrine of Territorial Nexus item (a)

§ Article 245 (verbatim — Constitution of India (2020))

245. Extent of laws made by Parliament and by the Legislatures of States.—(1) Subject to the provisions of this Constitution, Parliament may make laws for the **whole or any part of the territory of India**, and the Legislature of a State may make laws for the **whole or any part of the State**.

(2) **No law made by Parliament shall be deemed to be invalid on the ground that it would have extraterritorial operation.**

Reading clause (1): two legislatures, two territories, one proviso

Workings

- **"Subject to the provisions of this Constitution"** — territorial extent is only the *first* gate; Part III, the lists (Arts 246/248), Art 254 etc. still apply. G.V.K.: Art 245(1)'s subject is "the whole or any part of the territory of India", object is to empower *Parliament*; the linking word is the preposition **"for"** — Concise O.E.D. senses ("in the interest of, to the benefit of, in defence of … in respect of") — which is why Parliament legislates **for India's benefit only**.
- **Parliament:** whole or any part of India — a State legislature: whole or any part of **the State** — plus Art 246(4)'s special allowance for non-State territories (§3).
- **Clause (2) is a shield, not a sword:** it removes one *ground of invalidation* ("extraterritorial operation") for laws Parliament has already validly made under clause (1). G.V.K. rejects the Attorney-General's claim that 245(2) is an *independent source* of legislative power: "make laws" (legislature) — "operation" (executive) — "invalidate" (judiciary) are three different functions; clause (2) simply narrows judicial review by that one ground. Expressio unius: if power to legislate "for any territory" were hidden in clause (2), the words "for the whole or any part of the territory of India" in clause (1) would be surplusage.
- **Art 1(3)(c) completes the picture:** territories acquired become part of India; only then may Parliament legislate *for* that territory (G.V.K. paras 98–100, citing *Re Berubari*). **Art 260** is the only express provision for *foreign* territories (agreements with foreign governments).

What the DU Case Material stresses

- **Charusila (53)** quotes Art 245(1) and (2) verbatim in the parties' arguments and then **applies the nexus doctrine to uphold a State law** whose effects reached Calcutta property.
- **G.V.K. (54)** is a full **Constitution Bench–style exposition** on the outer limit of Parliament's own power: no legislating for foreign territory without Indian nexus, and laws must be **for the benefit of India**.
- Du cross-references the nexus test to income-tax, sales-tax and gambling-tax lines of cases — **51 Tata Iron** (sales tax) and **52 R.M.D.C.** (gambling).

The Doctrine of Territorial Nexus

A law made *for* a territory may *operate* beyond it. The doctrine polices **State** legislatures (Parliament having Art 245(2)): a State law with extraterritorial *operation* is saved only if a **sufficient territorial connection** exists between the State and the person/property/transaction regulated — and the liability imposed is **pertinent to that connection**.

The two-element test — as stated in DU's own Charusila excerpt (p. 256)

"This Court has applied the doctrine of territorial connection or nexus to income tax legislation, sales tax legislation and also to legislation imposing a tax on gambling. In Tata Iron & Steel Co. Ltd. v. State of Bihar [AIR 1958 SC 452] the earlier cases were reviewed and it was pointed out that sufficiency of the territorial connection involved a consideration of two elements, namely, (a) the connection must be real and not illusory and (b) the liability sought to be imposed must be pertinent to that connection." — S.K. Das J. in *State of Bihar v. Charusila Dasi*.

And on Tata Iron's own caveat: *"It is not necessary for us … to lay down any broad proposition as to whether the theory of nexus, as a principle of legislation is applicable to all kinds of legislation … no apparent reason to confine its application to income tax legislation but … extended it to sales tax and to tax on gambling."*

The test, step by step

1. **Is there a connection** between the taxing/regulating State and the subject? Candidates: presence of goods at the time of the agreement; manufacture/production in the State; situs of the trust/property/institution; the activity (gambling) occurring within the State; residence/operation of trustees within the State.
2. **Is it real and not illusory?** (rational basis, not a fiction on paper)
3. **Is the liability pertinent to that connection?** (the tax/regulation must relate to the connected activity — not an unrelated obligation piggy-backing on a thin link)
4. **Both satisfied → operation outside the State does not invalidate the law** (no "extraterritoriality" strike-down). One fails → the law fails *as applied*.

Modern gloss (G.V.K. para 125): no quantitative "sufficiency/significance" thresholds for Parliament — "real and not illusory or fanciful" is enough; whether a given law shows the real connection is "a mixed matter of facts and of law."

Two rules students confuse

- **Art 245(2) (Parliament):** ground-level protection — a central law is *never* struck down merely for extraterritorial operation; but per G.V.K., Parliament still must have competence under (1) (nexus with India; benefit of India). A wholly foreign-territory law = ultra vires *for want of power*, not "extraterritorial".
- **Nexus doctrine (States):** a *justification* — the State proves its connection so that operation outside its borders stands. Also applied to central legislation's situs questions (e.g., *Bengal Immunity*) but classically to State taxes.

§3 Article 246 — Subject-matter of Laws & the Position of Union Territories item (b)

§ Article 246 (verbatim)

246. Subject-matter of laws made by Parliament and by the Legislatures of States.—(1) **Notwithstanding anything in clauses (2) and (3)**, Parliament has **exclusive** power to make laws with respect to any of the matters enumerated in **List I** (Union List).

(2) **Notwithstanding anything in clause (3)**, Parliament, and, **subject to clause (1)**, the Legislature of any State also, have power to make laws with respect to any of the matters enumerated in **List III** (Concurrent List).

(3) **Subject to clauses (1) and (2)**, the Legislature of any State has **exclusive** power to make laws for such State or any part thereof with respect to any of the matters enumerated in **List II** (State List).

(4) Parliament has power to make laws with respect to **any matter for any part of the territory of India not included in a State** notwithstanding that such matter is a matter enumerated in the State List.

The non-obstante ladder (how supremacy is built into syntax)

- **246(1): "Notwithstanding … (2) and (3)"** — federal supremacy for List I. Hoechst para 41: these words lay down *the principle of federal*

"Law with respect to" — the width of each field

- Art 246 speaks of laws **"with respect to"** a matter — **Mar Appraem Kuri headnote (C): this is distinct from a law merely "affecting" a**

supremacy: in case of **inevitable conflict**, Union power (List I) prevails over States (Lists II & III); overlapping Lists III/II → III prevails. **But the non-obstante operates only if reconciliation proves impossible** — "as a matter of last resort" (C.P. & Berar's "witness to imperfections …" rule applied to Art 246(1) in Hoechst para 49).

- **246(2): "Notwithstanding … (3)" + "subject to (1)"** — both may legislate List III, State subject to Union.
- **246(3): "Subject to (1) and (2)"** — State's exclusive field, carved down by the Union fields. Gujarat Univ.: the words "subject to" in a List II entry (there Item 11 "subject to Items 63–66 of List I and 25 of List III") mean that **to the extent of the restriction, power is taken away** from the State (quoting *Hingir Rampur*) — even if Parliament never exercises its power.
- **Hoechst's three essentials (para 38):** (1) List I exclusive to Parliament; (2) List II exclusive to States *subject to* (1) — irreconcilable conflict → Parliament's power supersedes *pro tanto*; (3) List III concurrent.

subject-matter. "With respect to" covers the field *in pith and substance*, together with all **ancillary/incidental** matters fairly comprehended (G. Chawla: "the power to legislate on a topic of legislation carries with it the power to legislate on an ancillary matter which can be said to be reasonably included in the power given").

- **Entries demarcate; Art 246 confers** (Mar Appraem (A); Dhillon para 22; Hoechst para 74 — entries are "fields", not powers; taxation is a distinct competence and cannot be deduced from a general entry as ancillary power).
- **Priority when lists "come in conflict"** (Prafulla via Hoechst para 52): List I > List III > List II — *but* "the priority of the Federal legislature would not prevent the Provincial Legislature from dealing with any matter within List II though it may incidentally affect any item in List I."

Position of Union Territories under Art 246

(1) Textual route — Art 246(4)

Parliament may legislate on **any matter — including State-List matters — for any part of the territory of India "not included in a State"**. Every UT (Andaman & Nicobar Islands, Lakshadweep, Chandigarh, Dadra & Nagar Haveli and Daman & Diu, Puducherry, Delhi, J&K after 2019) is territory **not included in a State** — so Parliament's power over UTs extends across all three lists. Historically this clause carried the **Part C States** of the First Schedule (pre-1956), governed with their elected assemblies by the **Government of Part C States Act, 1951** — the very statute whose limits were in issue in **G. Chawla (case 58)**: s. 21 let the Ajmer Assembly legislate on Lists II & III "Subject to the provisions of this Act", while s. 21(2) preserved Parliament's constitutional power — and the Supreme Court then applied Art 246(4)'s predecessor constitutional route.

(2) Legislature route — Arts 239A, 240

For **Puducherry and Delhi**, Art 239A creates a legislature "as if it were a State", with Council of Ministers + responsible government — but Parliament retains plenary power: under Art 246(4) (not in a State) **Parliament may also make laws on List II matters for the UT**, and Art 240 lets Parliament/President make regulations for other UTs. Where both Parliament and the UT legislature may legislate, **Parliament's law prevails** — the UT scheme is "subject to" Parliament (the Union-Territory relationship is not the quasi-federal State relationship of Art 246(3)).

Delhi-specific overlay: NCT of Delhi Act 1991 + *Government of NCT of Delhi v. UOI* (2018) 9 SCC 1 — "services" lie with the Union (Entry 41 read with Lists I/II), an Art 246–field question in itself.

(3) Exam formula

"Position of UTs" = (i) UTs are not States → Art 246(3)'s exclusive State power does **not** apply to them; (ii) Parliament legislates for them under **Art 246(4) over all lists**; (iii) where a UT has a legislature under Art 239A, that legislature exercises State-like powers **subject to** Parliament's overriding competence; (iv) President/Parliament regulate others via Art 240; (v) during President's Rule in a UT, the Lt. Governor exercises that law-making role (Art 239AA(7)(b) for Delhi). **Cite G. Chawla** for the classic judicial application.

Do not say "UT legislatures derive List II power from Art 246(3)". Art 246(3) is for States. The UT power flows from **Art 239A read with Art 246(4)** — and remains Parliament-overridable. Also remember **Art 246A**: GST is a special concurrent taxing power notwithstanding Arts 246 and 254 (101st Amendment).

§4 Interpretation of Legislative Lists — Plenary & Ancillary Power · Non Obstante · Harmonious Construction item (c)

Plenary power

"After the dictum of Lord Selborne in Queen v. Burah [(1878) 3 App Cas 889], oft-quoted and applied, it must be held as settled that the legislatures in our Country possess plenary powers of legislation. This is so even after the division of legislative powers, subject to this that the supremacy of the legislatures is confined to the topics mentioned as Entries in the lists." — **G. Chawla, para 8 (DU p. 301)**. Within its entry (and ancillary matters), the legislature is sovereign: it chooses policy, breadth, retrospection, penalties; courts do not sit in appeal over expediency (C.P. & Berar: "it is not for the Court to express, or indeed to entertain, any opinion on the expediency").

Ancillary / incidental power

"The power to legislate on a topic … carries with it the power to legislate on an **ancillary matter** which can be said to be reasonably included in the power given" (G. Chawla para 8; Hoechst paras 53, 62). DU's own applications: education-power includes **medium of instruction** (Gujarat Univ.); money-lending power includes limiting **promissory-note** defences (Prafulla); entertainment-tax power includes **car admission** to a drive-in (Drive-in); compensation power includes taking estate-management buildings as **appurtenances** (Gajapati para 25). Subsidiary propositions: a **general power shall not be read to nullify a particular power** in the same enactment (Citizens Insurance / Bank of Toronto line, quoted in C.P. & Berar and Hoechst para 50); **taxing power is not ancillary** — it is a distinct head-group (Hoechst paras 74–76).

▸ Non obstante clause

"**Notwithstanding …**" words make a provision override conflicting provisions — *but only after reconciliation fails*. Gwyer C.J. in **C.P. & Berar**: if the two powers can be read together, do so; "*If indeed such a reconciliation should prove impossible, then, and only then, will the non obstante clause operate … for the clause ought to be regarded as a last resource, a witness to the imperfections of human expression and the fallibility of legal draftsmanship.*" Non-obstante clauses in this topic: Art 246(1) & (2) (federal supremacy), Art 248, Art 249(1), Art 250(1), Art 253, Art 252? (no — 252 is consent-based), Entry-wise "notwithstanding" savings (e.g., G. Chawla's s. 21(2)), ECA s. 6 (via Harishankar Bagla: "by-pass … does not necessarily amount to repeal").

Doctrine of Harmonious Construction — statement

The four steps (C.P. & Berar as completed by Hoechst para 41 and Gujarat Univ. para 23)

1. Where two entries **seem** to conflict, read **both together**, in their **broad and liberal** sense, without giving a narrow/restricted sense to either — first ask whether they can be **reconciled** to avoid a conflict of jurisdiction.
2. **Interpret or modify the language of one entry by the other** — give to the Union entry a meaning "which, if less wide than it might in another context bear, is yet one that can properly be given to it", and equally to the State entry a meaning it can properly bear; **assign common territory to one or the other** by construing one more restrictedly (e.g., excise = production-stage only; sales tax = thereafter).
3. **General power vs particular power:** "a general power ought not to be so construed as to make a nullity of a particular power conferred by the same Act and operating in the same field" (Bank of Toronto v. Lambe; Citizens Insurance; approved C.P. & Berar & Hoechst).
4. **Only if reconciliation is impossible** does the non-obstante/"subject to" clause make the Union power prevail (and in a truly irreconcilable overlap → Art 246(1) supremacy). Apparent overlap + pith-and-substance showing one list = no conflict at all.

§5 Doctrine of Pith and Substance item (c) core

§ Statement of the doctrine — Gwyer C.J. in Subramanyam Chettiar (1940 FCR 188, 201), approved by the Privy Council in Prafulla Kumar and quoted verbatim in DU's G. Chawla (p. 301) and Hoechst (pp. 350–351)

"It must inevitably happen from time to time that legislation, though purporting to deal with a subject in one list, touches also upon a subject in another list, and the different provisions of the enactment may be so closely intertwined that blind adherence to a strictly verbal interpretation would result in a large number of statutes being declared invalid because the Legislature enacting them may appear to have legislated in a forbidden sphere. Hence the rule which has been evolved by the Judicial Committee whereby the impugned statute is examined to ascertain its 'pith and substance' or its 'true nature and character', for the purpose of determining whether it is legislation with respect to matters in this list or in that."

The test in operation

1. **Ignore the label/preamble/nomenclature.** Examine the whole enactment — its object, scope and effect (Drive-in para 6; Gajapati: "the substance of the Act that is material and not merely the form").
2. **Ask: what is the law's pith and substance — its true nature and character?** Attribute it to the list where *that* subject really lies (Prafulla's three questions).
3. **If substantially within its own list → VALID**, even if it **incidentally** trenches on a rival list (Prafulla para 43: the Act "is not void either in whole or in part"; Hoechst para 53: incidental encroachment does not affect competence).
4. **Degree of invasion matters only as evidence** of true character: "the question is not, has it trespassed more or less, but is the trespass … such as to show that the pith and substance … is not money-lending but promissory notes or banking?" (Prafulla para 38, Lord Porter — quoted in Hoechst para 52).
5. **If truly outside its lists → void** (entirely, or the offending part if severable — "to the extent of the repugnancy" logic).

Where it plugs into the scheme

- **Threshold gate** for legislative competence — asked **before** repugnancy: "No question of conflict between the two Lists will arise if the impugned legislation, by the application of the doctrine of 'pith and substance', appears to fall exclusively under one list" (Hoechst para 41).
- **Also governs the repugnancy enquiry itself** when the two laws are under different entries — **Vijay Kr Sharma (64)**: "Not to apply the theory of pith and substance when the repugnancy between the two statutes is to be considered under Art 254 … would be illogical."
- **Three questions from Prafulla (para 30):** (1) Does the Act deal in pith and substance with X? (2) If so, is it valid though it incidentally trenches on reserved matters? (3) Once pith and substance is determined, is the *extent* of invasion material? (Answers: yes; yes; only as evidence of true character.)
- **Why three lists don't break it** (Prafulla paras 34–37): "It is not possible to make so clean a cut between the powers of the various legislatures: they are bound to overlap from time to time … **much beneficent legislation would be stifled at birth**." The hierarchy (I > III > II on conflict) answers "priority *in what respect*" — not incidentally affecting matters, but true character attribution.

Mnemonic — the P&S syllogism: *"Name ≠ nature; substance governs; incidental trenching is forgiven; degree is evidence, not a test; one list only must win — ask which list the Act, in substance, belongs to."*

§6 Doctrine of Colourable Exercise of Legislative Power item (c) core

§ The doctrine — in the DU Case Material's own words (Gajapati paras 9–12, pp. 313–315)

- "The doctrine of colourable legislation **does not involve any question of bona fides or mala fides on the part of the legislature**. The whole doctrine resolves itself into the question of **competency** of a particular legislature to enact a particular law."
- "Whether a statute is constitutional or not is thus **always a question of power**". With a limited/qualified jurisdiction, transgression of constitutional limits "may be patent, manifest or direct, [but] it may also be **disguised, covert and indirect** — it is to this latter class … that the expression 'colourable legislation' has been applied."
- "Although apparently a legislature … purported to act within the limits of its powers, yet **in substance and in reality it transgressed these powers**, the transgression being veiled by what appears, on proper examination, to be a mere pretence or disguise." (Duff J. in *AG for Ontario v. Reciprocal Insurers* [1924 AC 328, 337]: "Where the law making authority is of a limited or qualified character it may be necessary to examine with some strictness **the substance of the legislation** …")
- "It is the **substance of the Act that is material and not merely the form** … the form in which the law is clothed would not save it from condemnation. The legislature cannot violate the constitutional prohibitions by employing an indirect method." Courts may examine effect/object/purpose/design — "but these are only relevant for the purpose of ascertaining the **true character and substance** … and not for finding out the motives."
- Lefroy: even if the legislature **avows on the face of the Act** an intent to legislate on a subject beyond its jurisdiction, "yet if the enacting clauses … bring the legislation within its powers, the Act cannot be considered ultra vires" (Canadian Constitution, p. 75).
- **The maxim (para 18): the doctrine is based on "you cannot do indirectly what you cannot do directly."**

When (and when not) a law is colourable

× COLOURABLE (invalid)	+ NOT COLOURABLE (valid)
Real object lies **beyond the legislature's powers** — reserved to another legislature, or barred by a constitutional limitation/prohibition (Frs 31/19/14 etc.)	Real object is **within competence** even if its *motive* is collateral/unjust/inequitable — "the question of motive does not arise at all"
Using a permitted entry as a **pretence** to encroach on the forbidden field (*Union Colliery v. Bryden* — coal-mines regulation used to exclude Chinese aliens; *Re Insurance Act of Canada* — "aliens" guise for provincial insurance)	Legislature competently achieves indirectly what it could do directly — no invalidity ("if competent directly, disguised form cannot make the Act invalid": Gajapati para 18)
Provisions rest on **something non-existent / unrelated to facts** dressed as a constitutional head (Kameshwar Singh: Bihar Act s. 23(f)'s fictitious "works for benefit of raiyats" deduction; s. 4(b) taking half of arrears = not a "principle of compensation" under Entry 42)	Quantum/adequacy/justice of a benefit given under a valid head — beyond judicial competence (esp. with Art 31(4)/31A protections)

Comparative anchors quoted in Gajapati: *AG Alberta v. AG Canada* (Lord Maugham: "It is not competent either for the Dominion or a Province under the guise, or the pretence, or in the form of an exercise of its own powers to carry out an object which is beyond its powers and a trespass on the exclusive power of the other"); *Cunningham v. Tomeyhomma*; *Moran* (colourable discrimination under Art-96-style financial-assistance power); *Kameshwar Singh* [1952 SCR 889].

Pith and substance vs colourable — do not merge them. P&S asks: "*Which list does this law really belong to?*" (a labelling/attribution exercise; incidental trespass forgiven). Colourable asks: "*Is this law a pretence for something the legislature may not do at all?*" (a competency exercise; nothing forgives a real-object-ultra-vires). A law can fail both ways; a law with an ugly motive but a competent real object fails **neither** (Gajapati's Orissa agricultural income-tax).

§7 Residuary Power of Legislation — Article 248 item (d)

§ Article 248 (verbatim) & Entry 97, List I

248. Residuary powers of legislation.—(1) [Subject to article 246A,] Parliament has **exclusive power to make any law with respect to any matter not enumerated in the Concurrent List or State List**.

(2) Such power **shall include the power of making any law imposing a tax not mentioned in either of those Lists**.

Entry 97, List I: "Any other matter not enumerated in List II or List III …" (incl. residuary taxes — the textual companion of Art 248).

The Art 248 test (H.S. Dhillon para 21 — "widest possible terms")

"The only question to be asked is: **Is the matter sought to be legislated or included in List II or in List III or is the tax sought to be levied mentioned in List II or in List III? No question has to be asked about List I.** If the answer is in the negative, then it follows that Parliament has power to make laws with respect to that matter or tax." Corollaries from the case:

- **"The function of the entries/lists is not to confer powers; they merely demarcate the legislative field."** (para 22)
- Words of exclusion inside List I entries (e.g., "exclusive of agricultural land" in Entry 86; "other than agricultural income" in Entry 82) **do not cut down Art 248/Entry 97** — "the content of the residuary power does not change with its conferment on Parliament" (para 19); "any other matter" in Entry 97 refers to the **topics of Entries 1–96 read as wholes**, not to phrases excluded from them (para 20–21).
- No principle permits reading a proviso into Art 248 — "We simply have not the power to add a proviso like this" (para 24).
- Parliament may **combine** powers under specified entries with Entry 97/Art 248 (Aeronautics in Canada) — "Residuary power is as much power as the power conferred under Article 246" (paras 87, 90–91).

History & structure

- **GoIA 1935 gave the residue to NOBODY** — s. 104's deadlock reflected "profound cleavage of opinion" (Joint Committee Report Vol. I, para 56) — Dhillon paras 15–17. Our Constitution's innovation: exclusive residue to Parliament (Ambedkar in CA: entry "to allay the fears of the Provinces and … the Indian States"; Canadian precedent of enumerating centre powers despite a residue).
- **CA debates reproduced in DU (paras 35–44):** Sardar Hukam Singh (delete "other" — Lists II/III exhaustively cover the field); Naziruddin Ahmed ("Entries 1–90 would be rendered unnecessary … List I was inserted by way of afterthought"); Shibban Lal Saksena (residue "will strengthen the Centre"); **Dr Ambedkar** (entry defines "the limit or scope of List I"; equivalent formulation would be "Anything not included in List II or III shall be deemed to fall in List I"; Canadian Constitution also enumerates despite residue); T.T. Krishnamachari ("vesting of the residuary power is only a matter of academic significance" given exhaustive enumeration; the one unenumerated tax he foresaw = **capital levy on agricultural land** — precisely what later reached the Court in Dhillon!).
- **Two-route structure:** Art 248 (substantive residuary power) + Entry 97 (textual companion); Art 246A (GST carve-out) now qualifies Art 248(1).

§8 Parliament's Power to Legislate in the State List — the Lawful Gateways item (e)

List II is "exclusive" — but the Constitution itself opens six doors (plus two emergency doors). Each has a **trigger, procedure, duration and exit**; learn them as a table, and you can answer any item-(e) question.

Gateway	Trigger & procedure	Scope	Duration & exit	Key points
Art 246(4)	Self-executing — power "for any part of the territory of India **not included in a State**"	**Any matter**, incl. whole State List — for UTs/ non-State territories	Permanent (territory remains)	Position of UTs (§3); Parliament + UT legislature (239A) both legislate; G. Chawla lineage
Art 247	Parliament may by law provide for **establishment of additional courts**	Only for better administration of **laws made by Parliament or existing laws w.r.t. Union List**	As the law provides	"Notwithstanding anything in this Chapter" — even though courts/ justice entries sit partly in State field (Entry 11 II, Entry 17 III for HC/ordinary courts)
Art 249	**Rajya Sabha resolution** supported by **not less than ⅔ of members present and voting** — "necessary or expedient in the national interest"	The **specified State-List matter(s)** in the resolution; Parliament may then legislate for whole/part of India	**≤ 1 year**; renewable year after year by like resolution	Art 249(3): such a law **ceases to have effect 6 months** after the resolution ceases (except things done/ omitted). Never used in practice (instrument of political consensus)
Art 250	**Proclamation of Emergency (Art 352)** in operation	**Entire State List** — "Parliament shall … have power to make laws"	While proclamation operates; law **ceases 6 months after** it ceases (Art 250(2)), except past acts	Art 251: State power not restricted as such, but a State law **repugnant** to such a Central law is **inoperative** so long as the Central law continues (Art 251 — a distinct repugnancy rule, not Art 254)
Art 252	**Resolutions of all Houses** of the Legislatures of **two or more States** requesting Parliament to legislate	The requested matter(s) — as if it were in the Concurrent List for those States	Until amended/repealed by Parliament in like manner; **States cannot amend/ repeal**	Other States may adopt later by resolution (incl. through split/new States — e.g., multiplication of State Electricity Boards legislation); classic: State Electricity Boards Act, 1948; In re Kerala Education Bill
Art 253	**"Notwithstanding anything in the foregoing provisions of this Chapter"** — implementing a **treaty/agreement/ convention or decision of an international conference**	**Any law for the whole or any part of India** — overrides the entire distribution (incl. State List)	Permanent until changed	Breadth read purposively in *Kuldip Nayar* (territory/boundary agreements implementable); Delhi laws example: Carpet etc. UNESCO conventions. Highest textual override clause of the Chapter
Art 352 + 250	Proclamation of national emergency	Whole State List (via Art 250)	Life of proclamation + 6 months	The "national emergency gateway" — syllabus pairs 352 with item (e) precisely because 352 is Art 250's trigger

Gateway	Trigger & procedure	Scope	Duration & exit	Key points
Art 356 (+ 357)	Proclamation on **failure of constitutional machinery in a State**; Art 356(1)(b) vests the **powers of the Legislature of the State** (and (a) functions of the Government) in the President; Art 357 lets Parliament/President exercise **State-List power** while in force	State's entire legislative field exercisable by Parliament (both Houses jointly per Art 356(1)(b)) / President	Art 356(4): ceases at expiry of **2 months from Lok Sabha reassembly** unless approved by resolution (Art 356(5): max 3 years with 6-monthly resolutions)	This is why syllabus lists 356 here: **President's Rule = the temporary transfer of the State List to Parliament**. Safeguards/judicial review = PYQ §10 (Dec-2024 Q2; Centenary Q7)

How they interlock

- **Art 251** is the only "repugnancy" clause for 249/250 laws — Parliament's emergency law **continues to prevail only while it continues in force** (contrast with Art 254's voidness language).
- **Art 254 vs Art 251:** 254 = conflict on *concurrent* field (permanent structure); 251 = conflict between State law and Parliament's *249/250* laws (temporary field-entry).
- **Art 255:** missing recommendation/sanction (e.g., President's recommendation for a bill involving consolidated-fund expenditure, or Governor's sanction) is a **matter of procedure only** — not fatal if assent given by the competent authority.

Diagram — entering List II

Ordinary day: States own List II (246(3)).
Consensus: Rajya Sabha ⅔ → 249 (1 yr, renewable) · Emergency: 352 → 250 (until + 6 mo) · States ask: 252 · World asks: 253.
Always: UTs → 246(4) · Courts for Union laws → 247 · Residue → 248.
Breakdown: 356(1)(b) + 357 → Parliament holds the State's pen until Parliament approves (356(4)-(5)).

Memory hook for item (e): *"46-4 is UTs, 47 is courts, 49 is the Rajya Sabha's ⅔, 50 is emergency, 52 is consent, 53 is treaties; and 352 & 356 are the two headlights — national emergency and President's Rule."*

§9 Doctrine of Repugnancy — Article 254 item (f)

§ Article 254 (verbatim)

254. Inconsistency between laws made by Parliament and laws made by the Legislatures of States.—(1) If any provision of a law made by the Legislature of a State is **repugnant** to any provision of a law made by Parliament **which Parliament is competent to enact**, or to any provision of an existing law with respect to any of the matters enumerated in the Concurrent List, **the law made by Parliament, whether passed before or after the law made by the State Legislature, or, as the case may be, the existing law, shall prevail and the law of the State Legislature shall, to the extent of the repugnancy, be void**.

(2) Where a law made by the Legislature of a State with respect to any of the matters enumerated in the Concurrent List conflicts with any provision of a law made by Parliament … **and the law made by Parliament has been reserved for the consideration of the President and has received the assent of the President**, the law so passed by Parliament shall prevail and that of the State Legislature shall **to the extent of the repugnancy be void**.

Explanation — the expression "law made by Parliament …" in cl (2) **includes an Act of Parliament previously passed**. [Art 255: defects of procedure — recommendation/sanction — not fatal. The pre-Constitution model was **s. 107(2), GoIA 1935**, quoted in Zaverbhai: a reserved-and-assented Provincial law would prevail over an earlier Dominion law/existing law — "but nevertheless, the Dominion Legislature may at any time enact further legislation with respect to the same matter."]

The repugnancy algorithm

1. **Gate 1 — subject-matter:** is the field really **Concurrent** (List III)? Apply **pith and substance** first (Hoechst para 41: "No question of conflict between the two Lists will arise if the impugned legislation, by the application of the doctrine of 'pith and substance', appears to fall exclusively under one list"). A conflict between laws of **different** lists is **not** an Art 254 matter at all (Hoechst: List-II-vs-Union-list clash → the intruding law is simply ultra vires; Vijay Kr Sharma (64) applies pith & substance even to 254 enquiries across different Concurrent entries).
2. **Gate 2 — real conflict:** does the State law actually conflict? The **"irreconcilable / cannot both stand"** test: overlap + harmonious coexistence possible → both valid (Hoechst; Zaverbhai para 8: if later legislation deals with distinct though cognate matters, 254 has no application).
3. **Gate 3 — priority:** irreconcilable conflict on the **same matter** → **Parliament prevails regardless of chronology** (254(1) expressly covers laws "whether passed before or after"; Zaverbhai: implied-replenishment logic applies to 254(2)) — to the extent of the repugnancy the State law is void.
4. **Gate 4 — assent route (254(2)):** a State law on the Concurrent field prevailing over a pre-existing Central law requires **reservation + President's assent**; the proviso to 254(2) meanwhile lets Parliament **add to, amend, vary or repeal** the State law at any time (Zaverbhai para 7 — **a power GoIA s. 107(2) did not confer**: under *AG Ontario v. AG Dominion* (1896) AC 348 the Dominion could override but not directly repeal a provincial statute).
5. **Interpretive guides:** presumption against implied repeal + presumption of harmony; **non obstante = last resort** (C.P. & Berar, adopted Hoechst para 45); "same matter" = penalty altered **in degree not kind** (Zaverbhai; Smith v. Benabo (1937) 1 KB 518); extend both as far as possible before declaring conflict (via Zaverbhai para 15 / Hoechst).

What counts as "same matter"? three lines of authority

Test	Content & case
Same subject-matter; degree not kind	Zaverbhai (62): punishment re-described by a later Central code on the same subject, altered only in degree → earlier State provision superseded; *"when the punishment or penalty is altered in degree but not in kind, the later provision would be considered as superseding the earlier one"*
Same subject + irreconcilable operation	A.S. Krishna line (Hoechst para 42): (1) both deal with the **same subject**; (2) their **operation** on it is inconsistent so they cannot coexist → the later/inferior law void
Pith & substance + dominance	Vijay Kr Sharma (64): even across different Concurrent entries (Entry 35 vs Entry 42), decide by pith & substance + dominant intention — "not to apply [it] … would be illogical"; Mar Appraem (65): if one law "completely covers the field", the other yields

Nicholas 3 tests via Tika Ramji (Hoechst para 54): same subject + inconsistent provisions; impossibility of obedience in substance; reconciliation not implied unless conflict is irreconcilable (Mitter J. in Tarlochand: an impossibility of obedience arises when one law requires and another forbids the same act).

Exam-critical nuances: (i) **Art 254(1) vs (2):** (1) needs no assent, reaches any law "Parliament is competent to enact" + existing Central laws, and any State law (chronology irrelevant); (2) is the **assent-based safe harbour** letting a *State* law on the concurrent field displace an earlier Central law — plus Parliament's express-repeal proviso. (ii) **Scope debate (Dec-2024 Q3(a)):** is 254(1) confined to conflicts **within the Concurrent List** (Hoechst: A.S. Krishna conditions; different-list clashes are ultra vires, not repugnancy) or does "competent to enact" swallow conflicts across different lists?

— model answer in §10. (iii) **Taxation:** Lists II 45–63 generally treated as segregated from Lists I & III — List-II/List-III tax overlap → ultra vires (provincial), not a 254 question (Hoechst para 66).

Prescribed Landmark Case Laws — Detailed Analysis

CASES #51–#65

CASE #51 DU LL.B. PRESCRIBED AUTHORITY

Tata Iron & Steel Co. Ltd. v. State of Bihar — AIR 1958 SC 452

Doctrine: territorial nexus extended to sales tax · Bench: S.R. Das C.J., T.L. Venkatarama Ayyar, S.K. Das, A.K. Sarkar and Vivian Bose JJ. · decided 19-02-1958 · DU cross-ref: quoted in Charusila DU pp. 255–256

Facts

TISCO manufactured iron and steel at **Jamshedpur (Bihar)** and sold to buyers all over India, dispatching goods on its own railway receipts (TISCO as consignee, freight paid by it; receipts sent to branches/banks to be released on payment). Under the **Bihar Sales Tax Act, 1947 (Bihar Act 19 of 1947), s. 4(1) read with s. 2(g)** and the **second proviso inserted by the Bihar (Amendment) Act 6 of 1949**, the Sales Tax Officer **disallowed TISCO's deductions** for sales made/ goods delivered & consumed outside Bihar and **added the sales-tax realisations of ₹13,66,496 (first period) and ₹22,37,919 (second period)** to the taxable turnover — assessing TISCO to ₹15,31,374–5–9 and ₹28,30,458–6–9 respectively. The Commissioner of Sales Tax (Chota Nagpur) dismissed TISCO's appeals; the Patna High Court upheld the Act's validity but framed references (including on whether tax collected from customers as such formed part of the taxable turnover). The matter reached the Supreme Court.

Issues

1. Is the levy a **tax on sale of goods** (Entry 48, List II, GoIA 1935 ≡ Entry 54, Seventh Schedule) — or, in substance, an **excise duty** on production which the Province could not impose?
2. Does the **theory of territorial connection/nexus apply to sales-tax legislation** at all? (Attorney-General relied on *Bengal Immunity* having left the question open; nexus cases so far were income-tax cases.)
3. If it applies, is there a **sufficient nexus** where goods are manufactured/present in Bihar but the sale is completed and property passes outside Bihar?
4. Does the **retrospective** reach of the 1949 proviso destroy the tax's character or exceed competence? Do the claimed **deductions** (including railway freight) have to be allowed?

Arguments — TISCO (appellant)

- The sales were **inter-State**: goods delivered and consumed outside Bihar; property passed outside; therefore Bihar's territorial power does not reach them — *"It has no power to tax extra territorially, therefore it can only tax sales that occur in the State itself."*
- Nexus theory **cannot be disaggregated** across the "components" of a sale: the power is to tax **the sale** — locate the sale, and if it is not in Bihar, Bihar cannot tax it (this became Bose J.'s dissent).
- The levy is really **excise** on manufacture (producers' first sale), beyond provincial power; the nexus is "illusory", not real; retrospective application destroys the indirect nature of the tax, converting it into a direct tax on the dealer.
- Collection-of-tax-by-dealer amounts etc. should be excluded from the turnover; freight deductions allowed.

Arguments — State of Bihar (respondent)

- Goods **originated, were manufactured and were present in Bihar** at the time of the contract; agreements of sale were executed around Bihar operations; the **second proviso merely located ("deemed") such sales in Bihar** — it did not enlarge the definition of "sale".
- Nexus is **real**: manufacture/presence in the State + realisation of price through Bihar-based machinery; liability (tax on sale) is **pertinent** to that connection. A province may tax sales having territorial nexus even if property ultimately passes elsewhere (sale situs fiction well accepted in State practice).
- First sale by the manufacturer is taxed **qua seller, not qua manufacturer** — hence sales tax, not excise. Multiple-taxation argument answered by Art 286/central legislation possibilities.

Decision (majority; Bose J. dissenting)

1. **It is a sales tax.** Liability arises on "sale", not on production; the proviso does not enlarge "sale" but, on the facts specified, **locates the sale in Bihar**.
2. **Nexus theory applies to sales tax** — *"it is too late in the day to contend that the theory of nexus does not apply to sales tax legislation at all"*; examination of this Court's decisions clearly recognises it (relying on the first-sale/explanation line, e.g., *Poppatlal Shah*-line cases).
3. **Sufficient nexus exists** on two independent footings: **(a) presence of the goods in Bihar at the date of the agreement for sale**, and **(b) manufacture/production of the goods in Bihar** — even though property passed and delivery occurred outside.
4. Retrospective operation of the amendment **valid**; does not alter the tax's character. Costs against TISCO; appeals dismissed.
5. **Dissolution — Vivian Bose J.:** a tax on a sale cannot be split into ingredients; *"the power to tax is limited to the sale … Supreme Court shall determine where a sale is situated and once that is determined it cannot be situated anywhere else. If it does not happen to be in your territory you cannot tax it."* He warned of **multiple taxation** by several States — a concern that led Parliament to the **Central Sales Tax Act, 1956**.

Principle

(1) Territorial nexus is a general principle of legislation, not confined to income-tax — it governs sales-tax laws too. (2) The sufficiency of connection has **two elements: the connection must be real and not illusory, and the liability must be pertinent to that connection** (formulation quoted by the Supreme Court itself in *Charusila*, DU p. 256 — the anchor statement for syllabus item (a)). (3) Manufacture in, or presence of goods at, the taxing State supplies that connection. (4) A State law's operation outside its borders does not, of itself, violate Art 245.

CASE #52 DU LL.B. PRESCRIBED AUTHORITY

State of Bombay v. R. M. D. Chamarbaugwala — AIR 1957 SC 699; [1957] SCR 874

Doctrine: territorial nexus upheld for gambling-tax; gambling = res extra commercium · Bench: decided 09-04-1957 (S.R. Das C.J. leading) · DU cross-ref: applied in Charusila DU pp. 256–257 (and see companion "R.M.D. Chamarbaugwala v. Union of India", SCR 930, for the presumption-of-validity rule)

Facts

R.M.D. Chamarbaugwala (first respondent) was managing director of a company (**Star Publications Ltd.**) incorporated in **Mysore State**, which ran a giant crossword-style **prize competition — the "R.M.D.C. Cross-words" — through a weekly newspaper printed and published at Bangalore**. Entries and entry fees flowed in from all over India, **including from Bombay**, where agents collected fees and the gambling activity (answering/ pooling entries) occurred. The **Bombay Lotteries and Prize Competitions Control and Tax Act, 1948** regulated such competitions; the **Bombay**

Lotteries and Prize Competition Control and Tax (Amendment) Act, 1952 (Act XXX of 1952) widened the definition of "prize competition" in s. 2(1)(d) to include competitions run through newspapers **printed and published outside the State** and inserted **s. 12A**, levying a tax on the promoters calculated on sums collected through Bombay. The promoters moved the Bombay High Court under Art 226: the Act, as applied to them, was *ultra vires* (extra-territorial), and violated **Art 19(1)(g)** and **Art 301**; the tax was also attacked as a tax on their *trade* (Entry 60) rather than gambling (Entry 62), and as offending Arts 276(2)/304(b). The High Court (Court of Appeal) partly protected them; the State appealed to the Supreme Court.

Issues

1. Are the prize competitions of a **gambling nature** (Entry 34) or protected **trade/business** (Entry 26/60)? Is s. 12A a tax on **betting & gambling (Entry 62)** or a tax on trade?
2. Does the State legislature have competence to apply the Act to competitions conducted via a **newspaper printed/published outside Bombay** — i.e., is there a **sufficient territorial nexus** (Art 245/246)?
3. If they are gambling: do **Art 19(1)(g)** and **Art 301** protect the business? (And consequently, do Arts 304(b)/276(2) sanction questions arise?)

Arguments — State of Bombay (appellant)

- The competitions, judged by the statutory definition and the actual schemes, were **gambling** — chance substantially predominated; gambling is outside "trade, commerce or intercourse" (*res extra commercium*), hence no Art 19(1)(g)/301 protection at all.
- Entries **34 and 62, List II** (betting & gambling; taxes on luxuries/entertainment/betting/gambling) squarely cover regulation + tax; s. 12A is levied **on gambling** — a percentage of entry fees remitted **from Bombay** — collected through promoters merely as a convenient mode (the promoter is not taxed qua trade).
- **Territorial nexus:** Bombay is where **entries are solicited, fees collected and the gambling undertaken**; wide circulation + agents + remittances give a real connection (the exact point DU records: activities "which the gambler is ordinarily expected to undertake" took place mostly, if not entirely, in Bombay).
- Corporation with Indian-citizen shareholders has no freestanding right wider than the activity's status.

Arguments — Respondents/promoters (upholders of the High Court view)

- The competitions demanded **skill, knowledge and judgment** — a bona fide business, not gambling; hence protected u/Art 19(1)(g); corporation (citizen shareholders) entitled to fundamental rights.
- The State's law **cannot reach beyond its borders**: the paper was printed/published outside; regulating out-of-State business = extra-territorial legislation violating Art 245; s. 12A is a tax on *their trade* (Entry 60), not gambling; restrictions unreasonable under Art 19(6); Art 301 free inter-State trade; Art 304(b) requires previous sanction of the President for discriminatory trade laws (not obtained); Art 276(2) bar on certain fees; windfall-levy argument (net profit only ~5%).

Decision

1. **Validity tested on three planes** (the Court's own scheme): **(i) legislative competence** — real nature of the levy is a **tax on gambling** under Entries 34/62, List II; "on ultimate analysis it is a tax on each entry fee received from each individual competitor who remits it from the State of Bombay"; collection from promoters ≠ incidence on promoters; **(ii) territorial nexus** — *"There is sufficient territorial nexus to entitle the State Legislature [to] collect the tax from the petitioners who carry on the prize competitions through the medium of a newspaper printed and published outside the State of Bombay."* The connection = Bombay participation, fee-flows, agents, and the gambling consummated in Bombay — real and pertinent; **(iii) constitutional limitations** — gambling is not "trade, commerce or intercourse"; therefore **no Art 19(1)(g) and no Art 301 protection** (and the Art 304(b)/276(2) objections fall with it).
2. **Competitions held gambling in nature** where chance predominates over skill; the Act's regulatory and taxing provisions applied to them were within competence.
3. **Appeal allowed** — High Court's order set aside; petition dismissed with costs throughout.

Principle

(1) A State may validly regulate and tax activity that is consummated within its borders even though organised, printed and published outside — given a **sufficient territorial nexus** (entries solicited + fees remitted + participation within the State). This is the gambling-tax limb of the nexus doctrine, expressly relied upon by the Supreme Court in **Charusila (DU p. 257): "all the activities which the gambler is ordinarily expected to undertake" took place mostly, if not entirely, in Bombay → sufficient territorial nexus → law not bad for extra-territoriality.** (2) **Gambling is res extra commercium** — not trade, hence outside Arts 19(1)(g)/301. (3) The **real nature** of a tax (not who remits it) decides the entry.

CASE #53 DU LL.B. PRESCRIBED AUTHORITY

State of Bihar v. Charusila Dasi — AIR 1959 SC 1002

[Doctrine of Territorial Nexus - Extra-territorial operation of a State legislation] · Bench: S.R. Das C.J. and S.K. Das, P.B. Gajendragadkar, K.N. Wanchoo, M. Hidayatullah JJ. (judgment by S.K. Das J.)

Facts (from the DU excerpt)

The **Srimati Charusila Trust** was created by a trust deed of **11 March 1938** by Srimati Charusila Dasi, widow of Akshaya Kumar Ghose, residing at **Charu Niwas, Deoghar (district Santhal Perganas, Bihar)**. Trust properties: **Schedule B** — three bighas+ of land at Mohalla Karanibad, Deoghar (on which a twin temple "jugal mandir" and Nat Mandir were built); **Schedule C** — Charu Niwas, Deoghar; **Schedule D** — **several houses and land in Calcutta, aggregate value ≈ ₹8,50,000**. Annual income of all properties ≈ ₹87,839. Objects: install and worship the deity Iswar Srigopal and the image of her spiritual preceptor Sri Sri Balanand Brahmachari; fund daily puja/festivals (≤ ₹13,600 + ₹4,500 p.a.); and run the **Akshaya Kumar Female Hospital** for Hindu females with an outdoor dispensary for all, at ₹12,000 p.a. (temples built and deities installed; hospital not yet built). Five trustees including herself.

On **27-10-1952** the Superintendent, Bihar State Board of Religious Trusts, Patna, issued notice under **s. 59 of the Bihar Hindu Religious Trusts Act, 1950 (Bihar 1 of 1951)** demanding a return; she replied the trust was **private, for a family idol**, so the Act did not apply. The Board disagreed; on 5-2-1953 the President proposed to assess a **fee under s. 70**. She moved the **Patna High Court under Art 226** (6-4-1953): (a) private trust → Act inapplicable; (b) Act ultra vires as violating Art 19. The High Court (5-10-1953) held the trust **wholly private**, quashed the s. 59/s. 70 proceedings (certiorari) and prohibited the Board (prohibition). The State + Board appealed on an Art 133 certificate.

Issues (the DU excerpt's two questions, para 6)

1. On a true construction of the 1938 deed, is the Charusila Trust a **private endowment for a family idol** (as the High Court found) — so that the Act does not apply?
2. If **not** (i.e., it is a public religious trust): **does s. 3 of the Act validly apply to trust properties situated outside Bihar** (the Calcutta houses) — or is that extra-territorial legislation beyond the Bihar Legislature's power under Arts 245/246?

Arguments — for the respondent (Charusila) on the nexus point

- **Text of Arts 245-246:** Parliament may make laws for the whole/any part of India; a State Legislature for the whole/any part of the State; Art 245(2) saves only *Parliament's* laws from the extraterritoriality ground — by implication a **State** law may not operate extra-territorially.

- **Art 246 distribution**: State exclusive in List II, concurrent in List III; Item 28 List III = "Charities and charitable institutions, charitable and religious endowments and religious institutions." The Bihar legislature, acting under that Item, **had no power to make a law operating outside Bihar**; only Parliament could legislate for institutions with property in several States.
- **Alternative:** even if the Act applies where any part of the property is in Bihar (s. 3), its provisions **cannot be applied to the Calcutta properties** — such application would be ultra vires.

Arguments / approach — State (and the Court's working of them)

- **Construction first:** read s. 1(2) ("extends to the whole of the State of Bihar") + s. 3 + the Preamble ("better administration of Hindu religious trusts in the State of Bihar and protection of properties appertaining to such trusts") — the Act applies only where **(a) the trust/institution is in Bihar AND (b) some part of its property is in Bihar**. Presumption that the legislature did not exceed jurisdiction; a sovereign legislature's Act must, if possible, be given an operative interpretation (*In re Hindu Women's Rights to Property Act*; *Re Special Reference u/s 213*; *R.M.D. Chamarbaugwala v. UOI*, SCR 930).
- **In personam control:** the Act operates by controlling the **trustees in Bihar** — beneficiaries' rights are enforceable only where the trust is situate or the trustees reside. "The trust being situate in Bihar the State has legislative power over it and also over its trustees or their servants and agents who must be in Bihar."
- **Integrated whole:** temples in Bihar, hospital to be in Bihar for the Bihar public → enough territorial connection; the institution and its appurtenant property "form one integrated whole"; liability on trustees necessarily affects trust property → **liability pertinent to connection**.
- **Relied on:** *Tata Iron* two-element test; *State of Bombay v. R.M.D. Chamarbaugwala* (gambling nexus) — "We do not see any reason why the principles … should not be followed in the present case."

Decision

1. The **appeal is allowed**; the High Court's judgment (5–10–1953) set aside; Charusila's petition dismissed with costs — i.e., the trust is **not** held to be a private endowment (it is a public religious trust within the Act's definitional scheme, per the connected appeals of the same date: Act does not apply to private endowments; here the conditions for application are satisfied).
2. **Section 3, correctly construed, imposes the two cumulative conditions** (institution in Bihar + some property in Bihar) — the Act therefore has **no extra-territorial application** as construed.
3. **On the Calcutta properties:** valid — the religious endowment is in Bihar, trustees function there, the connection is real; liability on trustees pertinent; "*If therefore any liability is imposed on the trustees, such liability must affect the trust property.*" Following *Tata Iron* and *R.M.D.C.*: **"the Act applies and the provisions of the Act cannot be struck down on the ground of extra-territoriality."**
4. A related Art 32 petition (Bombay Public Trusts Act applied to a Banaras math) did not decide the point — the Attorney-General disclaimed extraterritorial application (para 16).

Principle

(1) Territorial nexus for State legislation: where the institution/trust and its trustees are in the State, the State may legislate about appurtenant property situated elsewhere — control exercised *in personam* on trustees within the State, plus the "integrated whole" of trust and property, supplies a real connection pertinent to the liability. **(2) Two-element test** (via Tata Iron): connection real, not illusory; liability pertinent to it. **(3) Construction saves competence:** read the enactment with its preamble and extension clause so as to exclude extra-territorial operation (presumption of constitutional validity). **(4)** Comparative/foreign authority (Dicey) on situs of trusts may be used to fix the connection.

CASE #54 DU LL.B. PRESCRIBED AUTHORITY

G.V.K. Industries Ltd. & Anr. v. Income Tax Officer & Anr. — (2011) 4 SCC 36

Bench: S.H. Kapadia C.J. and B. Sudershan Reddy, K.S.P. Radhakrishnan, S.S. Nijjar, Swatantra Kumar JJ. (judgment by B. Sudershan Reddy J.)

Facts (DU excerpt, "Factual Background")

The appellant company filed a writ petition in the **Andhra Pradesh High Court** against an order of the Income Tax Officers deciding it liable to **withhold tax on monies paid to a foreign company** under **s. 9(1)(i) or s. 9(1)(vii)(b) of the Income-tax Act, 1961** (tax on payments deemed to accrue/receive outside India). It also challenged the **vires of s. 9(1)(vii)(b)** for want of legislative competence and violation of **Art 14**. The High Court held s. 9(1)(i) inapplicable on the facts but upheld s. 9(1)(vii)(b) — its validity **and** its applicability — relying mainly on the ratio of the three-Judge Bench decision in *Electronics Corporation of India Ltd. v. CIT*, **1989 Supp (2) SCC 642 ("ECIL")**. The company appealed.

The DU extract is the constitutional court's grand exposition: the judgment first surveys what legislative competence means in a federation (paras 1–6), then frames **two questions** on the outer limits of Art 245(1), interprets the words of Art 245 textually, structurally (Arts 1, 2, 51, 246, 260) and historically (Draft cl. 179), and answers them. (The appeal was ultimately ordered to be listed before an appropriate Bench for disposal of the tax dispute — para 128.)

Issues (framed by the Court, para 6 — DU pp. 259–260)

1. Is Parliament **constitutionally restricted** from enacting legislation with respect to **extra-territorial aspects or causes that have no (expected) impact/effect/consequence on** (a) India or any part, or (b) interests, welfare, well-being or security of inhabitants/Indians?
2. Does Parliament have power to legislate **"for" any territory other than India or any part of it**?

The Court contrasted two dichotomous positions: the ECIL-line **territorial-nexus restriction** (in three strengths — strict "India-only"; "significant/sufficient impact"; "some impact") vs the Attorney-General's **sovereign-legislature** thesis (Parliament may legislate "for" any territory; courts cannot strike down extra-territorial laws even if unrelated or detrimental to India).

Arguments — Attorney-General (for Parliament's absolute sovereignty)

- Parliament is a **"sovereign legislature" with full power to make extra-territorial laws"**; courts lack power to declare such laws invalid on the ground of extra-territorial *effect* — even where the law concerns aspects with **no nexus with India**, is not intended to benefit India, or may even be detrimental to India.
- **Art 245(2) as an independent source** of power: Draft cl. 179 was split into 179(1)/(2) → if Parliament expressly may make laws having extra-territorial *operation*, it may make extra-territorial *laws* ("effect" being wider than "operation").
- Relied on: *British Columbia Electric Ry. v. King*, [1946] AC 527; *Governor-General in Council v. Raleigh Investment Co.*; *Wallace Brothers v. CIT*; *A.H. Wadia v. CIT*; *Shrikant Karulkar Bhalchandra v. Gujarat*; *State of A.P. v. NTPC*.

Arguments — the Court's reasoning against those propositions (DU paras 20–127)

- **ECIL approved**: "*unless such nexus exists Parliament will have no competence … The provocation for the law must be found within India itself … It is inconceivable that a law should be made by Parliament which has no relationship with anything in India.*" The distinction between **making** laws and **operation** of laws is valid and correctly relates clauses (1) and (2).
- **Text:** "for" (preposition) = in the interest of/benefit of (Concise O.E.D.); legislating for a territory = acting as trustee of *that* people — "*the Parliament belongs only to India*"; two limitations: all powers must be exercised **for the benefit of India**; extra-territorial aspects without Indian nexus are outside Art 245(1). Art 51 (DPSG) gives interpretive support (peace, just relations = interests of India).

- **Structural:** "make laws" (clause 1) — "made" + "extra-territorial operation" (clause 2) — "invalidate" (judiciary): clause (2) is **only a one-ground exception** to judicial review, not a power-grant; reading it as an independent source would make clause (1)'s "for … territory of India" surplusage — **expressio unius est exclusio alterius**. An a-priori, strained inference expanding legislative power beyond judicial scrutiny "would be contrary to the basic structure".
- **Wider structural analysis:** Art 246(4) speaks of power "for any part of the territory of India not included in a State" — legislative powers are visualised as "for" Indian territory; **Art 260** is the only provision dealing with foreign territories; Arts 1(3)(c) + 2 + *Re Berubari*: acquired territory becomes part of India first, only then may Parliament legislate for it.
- **On quantum:** no *a priori* quantitative tests ("sufficiency", "significance") may be imposed — **"All that would be required would be that the connection to India be real or expected to be real, and not illusory or fanciful"** (para 125); whether a law shows the connection is "a mixed matter of facts and of law" (para 126). If Parliament posits a higher degree of relationship, courts enforce that as a matter of that law, not the Constitution.

Decision (answers to the two questions)

1. **Q1: YES** — Parliament is restricted: it may legislate about extra-territorial aspects **only when they have, or are expected to have, some impact on/effect in/consequences for** India, its parts, inhabitants or Indians. Laws on wholly unrelated foreign aspects = **ultra vires** (laws made "for" a foreign territory).
2. **Q2: NO** — Parliament may not make laws "for" any territory other than India or part of it (unless part of India under Arts 1-2).
3. The appeal was directed to be **listed before an appropriate Bench** for disposal (para 128) — i.e., the Constitution Bench answered the constitutional questions and remanded the tax litigation.

Principle

Art 245(1) confers power "for" India — with a built-in nexus/benefit limit: (1) Parliament may regulate genuinely extraterritorial aspects only if they have a **real (not illusory/fanciful) connection with India**, and the law's core purpose must be **benefit to India**; (2) Art 245(2) removes only the "extraterritorial-operation" ground of attack from otherwise competent laws — it is not a freestanding competence; (3) make/operate/invalidate are distinct functions of legislature/executive/judiciary; (4) no quantitative sufficiency thresholds; mixed question of law and facts. **For States, the same real-not-illusory standard appears as the first element of the Tata Iron-Charusila nexus test.**

CASE #55 DU LL.B. PRESCRIBED AUTHORITY

In Re: C.P. & Berar Sales of Motor Spirit & Lubricants Taxation Act, 1938 — AIR 1939 FC 1

[Doctrine of Harmonious Construction] · Federal Court · Sir Maurice Gwyer C.J., Sir Shah Sulaiman and M.R. Jayakar JJ. · Opinion of Gwyer C.J. (whole Court) · Reference by the Governor-General u/s 213, Government of India Act, 1935

Facts (DU excerpt pp. 271-273)

The **Central Provinces and Berar Sales of Motor Spirit and Lubricants Taxation Act, 1938** imposed by s. 3(1) **a 5% tax on retail sales of motor spirit and lubricants** ("retail dealer", "retail sale" defined in s. 2). Motor spirit was already subject to central **excise duty under the Motor Spirit (Duties) Act, 1917**. The **Special Reference** asked: "*Is the … Act, or any of the provisions thereof, … ultra vires the Legislature of the Central Provinces and Berar?*" Competing entries under the GoIA 1935: **Entry (45), Federal List — "Duties of excise on tobacco and other goods manufactured or produced in India"** vs **Entry (48), Provincial List — "Taxes on the sale of goods and on advertisements"**. **Government of India:** the tax, so far as it falls on Indian-origin goods, is an excise duty → intrusion into the exclusively Federal field; and even if otherwise intra vires, the **non obstante in s. 100(1)** ("Notwithstanding anything in sub-ss (2) and (3)") makes federal power prevail on overlap; s. 100(3) is itself "subject to the two preceding sub-sections". **Provincial Government:** the tax falls within Entry 48, exclusively provincial; the entries are mutually exclusive — no overlap. Common ground: if s. 3(1) falls, the whole Act falls (it is the machinery of the charging section).

Issue

Whether a provincial retail sales tax on motor spirit/lubricants (Entry 48) is **repugnant to/overlapping with** the federal power of excise on Indian-manufactured goods (Entry 45) — and, if the entries are capable of overlapping, which legislature's power prevails under the non obstante clauses.

Three possible solutions framed by Gwyer C.J.: (1) provincial entry covers, federal does not → tax valid; (2) federal covers, provincial does not → tax invalid; (3) tax falls in **both** → real overlap → invalid by reason of the non obstante clause.

Arguments — Government of India

- An excise duty may be imposed **at any stage from production to consumption** (Blackstone onwards) → federal power reaches retail stage → Entry 45 catches the provincial levy; s. 100(1)'s "notwithstanding" decides any overlap for the Centre.
- Absent provincial field: turnover/sales taxes since the war have made provinces rich; the Centre must protect Entry 45's exclusivity; s. 297-type discrimination arguments also raised.

Arguments — Provincial Government

- "Taxes on the sale of goods" in its **ordinary and natural sense** covers a retail sales tax exactly — "it might indeed be difficult to find a more exact or appropriate formula" (Advocate-General's challenge: what would be left to provinces under the Centre's reading? only "commonly known turnover taxes").
- Entries mutually exclusive; read both together; "sales tax"/"turnover tax" have no settled meaning, so Parliament's chosen words must be given their plain import.

Decision (Gwyer C.J., for the whole Court)

1. **Constitutional canons first (DU pp. 272-273):** a Constitution "is not to be construed in any narrow and pedantic sense" (Lord Wright in *James v. Commonwealth*); "it is a Constitution, a mechanism under which laws are to be made and not a mere Act which declares what the law is to be" (Higgins J., *AG NSW v. Brewery Employees' Union*); "a broad and liberal spirit should inspire" the interpreter — but no stretching or perverting language to supply omissions; a Constitution is "a living and organic thing … construed *ut res magis valeat quam pereat*"; foreign federal decisions are persuasive only — "in the last analysis the decision must depend on the words of the Constitution which the Court is interpreting".
2. **The reconciliation:** it is **impossible to read "taxes on the sale of goods" as only turnover taxes**; so read **"duties of excise" restrictively — as power to tax at the stage of or in connection with manufacture/production**, extending no further. Result: **mutually exclusive spheres, no overlap** — Centre taxes before goods "become part of the general stock of the Province"; Province taxes thereafter.
3. **Only if reconciliation fails** may the non obstante clause operate — "*a last resource, a witness to the imperfections of human expression and the fallibility of legal draftsmanship*". Federal supremacy is **not** the first tool.
4. **Support:** ordinary meaning of the provincial entry; **Bank of Toronto v. Lambe** (general power not construed to nullify a particular power; literal meaning of Dominion powers sometimes restricted "to afford scope for powers … given exclusively to the Provincial Legislatures"); Isaacs J. in *Commonwealth Oil Refineries* (a licence/tax merely on sale, unconnected with production, is outside "excise duties"); Indian legislative practice — all central excises (motor spirit, kerosene, silver, sugar, matches, iron & steel) were **payable by the manufacturer/**

producer on issue from the place of manufacture; Devolution Rules 1920; the "it would exclude provinces from an immense field" reductio; White Paper (Cmd. 4268) & Joint Select Committee history. Rejected: the "provincial autonomy requires every intendment in our favour" argument — the Court will not weigh Centre vs Province importance.

5. **Answer:** the C.P. & Berar Act is **NOT ultra vires** — reported to the Governor-General accordingly (whole Court agreeing).

Principle

The doctrine of harmonious construction: where two legislative entries (or two powers) apparently conflict, the Court must (i) read them together, (ii) construe/modify the language of each by the other so as to **allocate mutually exclusive fields**, and (iii) apply the non obstante/ supremacy clause **only as a last resource** when reconciliation is impossible. *"It is a fundamental assumption that the legislative powers of the Centre and Provinces could not have been intended to be in conflict with one another, and therefore we must read them together and interpret or modify the language in which one is expressed by the language of the other."* — reaffirmed word-for-word by the Supreme Court in **Hoechst para 45**.

CASE #56 DU LL.B. PRESCRIBED AUTHORITY

Gujarat University v. Krishna Ranganath Mudholkar — AIR 1963 SC 703

Bench: B.P. Sinha C.J. and S.J. Imam, K. Subba Rao, K.N. Wanchoo, J.C. Shah, N. Rajagopala Ayyangar JJ. (judgment by J.C. Shah J.) · DU note: "Entry 11, List II referred to in this case is presently entry 25 of List III" (as to vocational training) – the education entries are List II Entry 11 / List I Entries 63-66 / List III Entry 25

Facts (DU excerpt pp. 284–287)

Shrikant (son of Krishna Ranganath Mudholkar) passed the SSC (March 1960) studying in **Marathi**; joined **St. Xavier's College, Ahmedabad (University of Gujarat)** First Year Arts in the **English-medium** section; on completing I.A. (March 1961) sought admission to Intermediate Arts classes **in the English medium**. The Principal refused without University sanction, citing the **Gujarat University Act, 1949** and **Statutes 207, 208, 209** (framed by the Senate in 1954, amended 1961): **Statute 207** made **Gujarati the medium of instruction and examination** (English continuing ≤ 10 years, Hindi optional for non-Gujaratis); **Statute 208** phased English out from June 1955/1956 course-wise; **209** listed examinations. The Registrar's circular (22–6–1961) allowed English only to certain students; Shrikant (SSC in Marathi) did not qualify. The **Gujarat University (Amendment) Act 4 of 1961** extended English beyond ten years (proviso to s. 4(27)) and inserted **s. 38-A** (penalty — affiliation withdrawn for contravention of media-of-instruction rules).

Krishna Mudholkar, for himself and minor Shrikant, moved the **Gujarat High Court**: declare ss. 4(27), 18(i)(xiv), 38-A of the 1949 Act and Statutes 207–209 void/inoperative; restrain the University/Vice-Chancellor; mandamus to admit Shrikant to the English-medium I.A. class. **High Court issued the writs**; University and State appealed to the SC on fitness certificates.

Issues (DU p. 284)

1. Under the Gujarat University Act, 1949 (as amended), is it open to the University to prescribe **Gujarati or Hindi or both as the exclusive medium of instruction and examination** in affiliated colleges?
2. Does legislation authorising the University to impose such media **infringe Entry 66, List I** — "coordination and determination of standards in institutions for higher education or research and scientific and technical institutions"?

Arguments — University / State of Gujarat

- Power expressly conferred by diverse clauses of **s. 4** (esp. s. 4(27)) exercised by the Senate u/s 18(xiv); Statutes 207–209 lawfully promulgated; in any event, a corporation controlling higher education has such power **necessarily implied**.
- Medium of instruction falls within **Item 11, List II** ("education including Universities …") — a State subject; "education" is of wide import; the State may prescribe regional/federal language media; Statement of Objects & Reasons (empower University to adopt Gujarati, English for ten years) shows legislative intent.
- Even if Entry 66 overlaps, Union power arises only when it actually coordinates standards; no Union legislation on the point.

Arguments — Mudholkar (respondent)

- No provision authorises an **exclusive** medium — s. 4(27) and the Senate's power do not carry it; **St. Xavier's** had English as its historic medium; students' rights under Arts 19(1)(g)/29?
- **Entry 66, List I** covers coordination/determination of higher-education standards — medium of instruction in universities directly bears on standards; making an exclusive regional medium compulsory in affiliated colleges **impinges the Union field**; Item 11 List II is expressly **"subject to"** Entries 63–66 List I.

Decision (Shah J.)

1. **No power to impose an exclusive medium.** Neither the 1949 Act nor Act 4 of 1961 conferred on the University power to prescribe Gujarati/ Hindi as exclusive media; the Senate's statute-making must lie within the contours of the University's statutory powers. **Statements of Objects and Reasons are historical material only — ignored in interpretation** (para 18). So far, HC correct.
2. **Legislative-entry analysis (the heart for item (c)):**
   - Pre-Constitution provincial power under GoIA Item 17 List II was **plenary** over education; under the Constitution, **Item 11 List II** gives States "education including Universities **subject to** Items 63, 64, 65, 66 of List I and 25 of List III".
   - **"Subject to" = power taken away** to the extent of the restriction (Hingir Rampur) — whether or not Parliament has legislated. Items 63–66 are **carved out** of education; on those matters power lies exclusively with Parliament.
   - **Harmonious construction of Item 11 (II) and Item 66 (I):** *"The two entries undoubtedly overlap: but to the extent of overlapping, the power conferred by Item 66 List I must prevail over the power of the State under Item 11 List II."* A contrary reading would produce the "startling result" that the State controls medium of instruction even in **national institutions** on which it has no other power.
   - **Medium of instruction is not a distinct head** — it "falls within Item 11 as a necessary incident of the power to legislate on education; it also falls within Items 63 to 66"; as an incident of Entry 66 it is deemed included there and excluded from Item 11 List II.
   - State may prescribe syllabi/courses + medium as an incident — **but Union has an overriding power** where medium/syllabi "impair standards … or render coordination … impossible or even difficult"; **validity judged by pith and substance** — whether the State law "impinges on the field reserved for the Union under Entry 66", "but not upon the existence of some definite Union legislation". If Union legislates → **Art 254(1) paramountcy**; even without Union legislation, a State law trenching on the Union field is invalid (exclusive lists).
   - **Entry 66 is wide:** "coordination" = harmonising for concerted action, not mere evaluation; power is **absolute and unconditional**, includes preventing/removing disparities; not conditioned on an existing emergency of standards. Where absence of textbooks/journal/ teachers/incapacity to understand in the mandated medium would **lower standards**, such legislation "necessarily falls within Item 66" (paras 25–26).
   - **Act 4 of 1961** (extending the traditional English medium beyond ten years) is **not** invalid — continuing the pre-existing all-India medium cannot lower standards; no Entry 66 encroachment (para 29).

- **Result:** HC's order **confirming invalidity of Statutes 207 & 209** (insofar as they impose Gujarati/Hindi as exclusive medium) **and the enforcing circulars — CONFIRMED**; appeal of University/State to that extent fails; Act 4/1961 amendment upheld.

Principle

(1) Harmonious construction of "subject to" entries: where a List II entry is expressly "subject to" List I entries, the overlap belongs to Parliament — the State power is restricted to the residue; the entries must be read together, with the Union entry prevailing to the extent of the overlap (no non-obstante needed). **(2) Ancillary matters:** medium of instruction is not a freestanding entry — it travels with whichever head the impugned law's pith and substance touches (education = State; standards coordination = Union). **(3) The Union's field is not dormant:** non-legislation by Parliament does not enlarge State power; State law is tested for **real** impingement on Entry 66, not on the existence of a Union statute. **(4) Interpretive canons:** Objects & Reasons excluded; plenary power within a head; "statutes stand or fall with the section containing the essence of the legislation".

CASE #57 DU LL.B. PRESCRIBED AUTHORITY

Prafulla Kumar Mukherjee v. Bank of Commerce Ltd., Khulna — AIR 1947 PC 60

[Doctrine of Pith and Substance] · Judicial Committee of the Privy Council: Lord Wright, Lord Porter, Lord Uthwatt, Sir Madhavan Nair, Sir John Beaumont (judgment by Lord Porter)

Facts (DU excerpt pp. 293–294)

The Bengal Money-lenders Act, 1940 was challenged. Its **s. 30** provided: *"Notwithstanding anything contained in any law for the time being in force, or any agreement … (1) No borrower shall be liable to pay after the commencement of this Act … more than a limited sum in respect of principal and interest or more than a certain percentage of the sum advanced by way of interest"* — **retrospective**, usable as a **defence** to a moneylender's suit or by the borrower in a fresh suit. Relevant GoIA 1935 powers: **s. 100(1)–(4)** (quoted in DU — Federal List prevails "notwithstanding"; Provincial List "subject to"); **Federal List: Entry 28 (cheques, bills of exchange, promissory notes …), Entry 33 (corporations incl. banking), Entry 38 (banking — conduct of banking business)**; **Provincial List: Entry 27 (trade and commerce within the Province; money-lending and money-lenders)**. [DU cross-reference: Entries 28/33/38 List I ≡ now Entries 46/43/45 List I; Provincial Entry 27 ≡ now Entry 30 List II.] The **respondents (moneylenders-bankers)** argued the loans were secured by **promissory notes** and involved **banking** — exclusively federal fields — so the Act was wholly void (or void as to such loans). The Act had the **assent of the Governor-General**; the **Negotiable Instruments Act, 1881** (an "existing Indian law", not a federal statute) was the alleged repugnant law. The Indian High Courts had upheld the Act; the Federal Court (1944 FCR 126) had held it "a clear interference" with federal entries insofar as it dealt with them, but **not totally void**; the Privy Council now decided the appeal.

The three questions (DU para 30)

1. **Does the Act deal, in pith and substance, with money-lending?**
2. **If it does, is it valid though it incidentally trenches upon matters reserved for the Federal Legislature?**
3. **Once pith and substance is money-lending, is the extent to which the federal field is invaded a material matter?**

Arguments — appellants (upholding the Bengal Act)

- **Head 1:** power to legislate on money-lending "necessarily imports the power to affect the lender's rights against the borrower upon a promissory note given in the course of a money-lending transaction"; read the Constitution as a whole — **Item 27 (Particular/Provincial) is an exception from the general Item 28 (Federal)**.
- **Head 2 (the pith-and-substance head):** the Act is **in pith and substance an Act with respect to money-lenders and money-lending** and is not rendered void in whole or part because it incidentally touches matters outside the authorised field.
- **Head 3:** on true construction, federal Entry 28 covers only the **negotiability** aspect of instruments, not their contractual aspect — that is "contract" (List III Entry 10); interest on promissory notes = contract. Hence no true conflict with the Negotiable Instruments Act; and by s. 107(2) (assent of Governor-General), the Bengal Act prevails over the existing Indian law (Negotiable Instruments Act).

Arguments — respondents (striking the Act down)

- The GoIA differs from BNA/Australian Acts: three exhaustive lists with a **strict hierarchy** — s. 100: Federal List over Concurrent over Provincial; "the Provincial Legislature **has not** power" re List I — **however incidental** the interference. "No question could arise as to pith and substance"; the prohibition is absolute.
- No "exception by particularity": a matter in List I cannot be whittled by a more particular List II item; "money-lending" is no more particular than "bills of exchange, promissory notes…"; if money-lending = contract, still the federal existing law prevails (subject to s. 107(2) argument).

Decision (Lord Porter, for the Board)

1. **Q1 — YES.** "All the Courts in India have held that the transactions … are **in pith and substance money-lending transactions** and their Lordships are of the same opinion. **To take promissory note as security for a loan is the common practice of money-lenders**; if a legislature cannot limit the liability of a borrower in respect of a promissory note … it cannot in any real sense deal with money-lending. All the lender would have to do … would be to continue his normal practice of taking the security of a promissory note … **In truth … the substance is money-lending and the promissory note is but the instrument for securing the loan.**" Banking similarly answered — supported by the Act's exemption of scheduled/notified banks.
2. **Q2 — YES, valid.** The respondents' "strict hierarchy / no pith-and-substance" argument **rejected**: *"To take such a view is to simplify unduly the task of distinguishing between the powers of divided jurisdictions. It is not possible to make so clean a cut between the powers of the various legislatures: they are bound to overlap from time to time."* The British Parliament knew the BNA/Australian experience — overlap is unavoidable; Gwyer C.J.'s passage (1940 FCR 188, 201) is quoted with approval as describing the rule's foundation; it applies **to Indian as well as Dominion legislation**. "The overlapping of subject-matter is **not avoided by substituting three lists for two**, or even by arranging for a hierarchy of jurisdictions. Subjects must still overlap, and where they do the question must be asked what in pith and substance is the effect of the enactment … If these questions could not be asked, **much beneficent legislation would be stifled at birth**."
3. **Q3 — extent is evidential only.** Invasion degree matters "not … because the validity of an Act can be determined by discriminating between degrees of invasion, but **for the purpose of determining what is the pith and substance**" — "the question is not, *has it trespassed more or less*, but is the trespass … such as to show that the pith and substance … is not money-lending but promissory notes or banking? Once that question is determined the Act falls on one or the other side of the line."
4. **Priority of the lists re-explained:** List I > III > II "where they come in conflict" — but priority means **not** to prevent the Province dealing with List II matters that incidentally affect List I; attribute each Act by true character.
5. **Result:** the Bengal Money-lenders Act "**is not void either in whole or in part as being ultra vires the Provincial Legislature**"; appeal allowed; no opinion on the negotiability-vs-contract point or Ordinance XI of 1945. (No need to decide whether federal "promissory notes" is confined to negotiability — the Act is valid **because** its pith and substance is money-lending.)

Principle

The foundational statement of pith and substance: (1) In a federation of enumerated lists, overlap is inevitable; the impugned statute is examined for its **pith and substance / true nature and character** to decide the list it belongs to. (2) A statute **substantially** within the enacting legislature's field is valid despite incidental trenching on a reserved field. (3) The **extent** of trespass is relevant only to detect when the true character has actually changed. (4) The list-hierarchy decides *conflicts*, not *incidental effects*. (5) Reading a particular entry as an exception from a general rival entry is disfavoured — reconcile by substance instead.

CASE #58 DU LL.B. PRESCRIBED AUTHORITY

State of Rajasthan v. G. Chawla — AIR 1959 SC 544

Bench: S.R. Das C.J. and S.K. Das, P.B. Gajendragadkar, K.N. Wanchoo, M. Hidayatullah JJ. (judgment by M. Hidayatullah J.) · Loudspeaker case — pith & substance in action

Facts (DU excerpt pp. 300–301)

The **Ajmer Legislative Assembly** enacted the **Ajmer (Sound Amplifiers Control) Act, 1952 (Ajmer III of 1953)**, assented to by the President on 9–3–1953. After reorganisation, the **State of Rajasthan** was substituted as appellant. The respondents were **prosecuted under s. 3** for breaching two permit conditions for using sound amplifiers on 15–16 May 1954: amplifiers audible **beyond 30 yards** (condition 1) and placed **higher than 6 feet** (condition 2) — they had been operating amplifiers for a **Sammelan** under permission. On a reference u/s 432 CrPC, the **Judicial Commissioner of Ajmer** held: the pith and substance of the Act fell within **Entry 31, Union List** (post and telegraphs; telephones, wireless, broadcasting and other like forms of communication), **not Entry 6, State List** (public health and sanitation, hospitals and dispensaries) as the State claimed; and the Act exceeded the Assembly's powers u/s 21 of the **Government of Part C States Act, 1951** — hence unconstitutional (certificate under Art 132 → SC appeal). The JC's attention had **not** been drawn to **Entry 1, State List — "Public order …"**.

Statutory framework quoted in DU: **Art 246(4)** (then: Parliament may make laws for any part of India not included in Part A or B of the First Schedule notwithstanding State-List matters) and **s. 21, Govt of Part C States Act**: "(1) *Subject to the provisions of this Act*, the Legislative Assembly of a State may undertake laws for the whole or any part of the State with respect to any of the matters enumerated in the State List or the Concurrent List …; (2) Nothing in sub-section (1) shall derogate from the power conferred on Parliament …". Competence of the Ajmer Assembly was therefore confined to the two non-Union lists: *"If … the subject-matter of the Act falls substantially within an Entry in the Union list, the Act must be declared to be unconstitutional, but it is otherwise if it falls substantially within the other two lists, since prima facie there is no question of repugnancy to a Central statute or of an 'occupied field'."*

Issue

In pith and substance, is the Ajmer (Sound Amplifiers Control) Act a law with respect to **Union Entry 31** (broadcasting/communication) or with respect to **State Entry 6 (public health), read with Entry 1 (public order)** — and is the Act within the State legislature's competence?

Arguments — State of Rajasthan (appellant)

- The Act's **end and purpose** is control of the **use** of amplifiers in the interests of **health and tranquillity** — squarely Entry 6 (and Entry 1) of the State List; amplifiers are used as nuisance-producing instruments (noise near hospitals, schools, offices, habitations), which public health demands regulating.
- Plenary power (Queen v. Burah); entries are *enumeratio simplex* of broad categories which occasionally overlap; pith-and-substance test applies with the ancillary-power corollary; slight transgression upon a rival list is permissible.
- Union counsel's rival reading (amplifiers = instruments of broadcasting → Entry 31) confuses the **thing** with the **use**: manufacture/licensing of amplifiers, control of ownership/possession, regulation of trade in them = Entry 31 matters; controlling their use to the detriment of tranquillity, health and comfort = Entry 6 matter.
- Relied on Umrigar for Entry 1 (alone or combined with Entry 6). No Union enactment occupies Entry 31's field as to ownership/use-regulation — so **no repugnancy, no "occupied field"**.

Arguments — against (the Judicial Commissioner's view, which the appeal reverses)

- Amplifiers are "instruments of broadcasting and even of communication"; the Act regulates them; therefore its pith and substance lies in **Union Entry 31** — the State legislature (confined to Lists II/III by s. 21 + Art 246(4) structure) had no power; Act unconstitutional.

Decision

1. **Plenary power settled**: citing Lord Selborne in *Queen v. Burah* — legislatures possess plenary powers even after distribution, confined to their entries; entries "though meant to be mutually exclusive are sometimes not really so. They occasionally overlap, and are to be regarded as *enumeratio simplex* of broad categories." Pith-and-substance + slight-transgression rule (Gwyer C.J. in Chettiar, approved in Prafulla) laid down in terms.
2. **Ancillary-power doctrine stated**: "the power to legislate on a topic of legislation carries with it the power to legislate on an **ancillary matter** which can be said to be reasonably included in the power given."
3. **Pith and substance = State:** the gist of the prohibition is the **"use"** of an external sound amplifier (not a licensed wireless component) without written sanction/conditions — *"The pith and substance of the impugned Act is the control of the use of amplifiers in the interests of health and also tranquillity, and thus falls substantially (if not wholly) within the powers conferred to preserve, regulate and promote them and does not so fall within the entry in the Union list, even though the amplifier … is an apparatus for broadcasting or communication."*
4. **Use vs thing distinction**: manufacture/licensing/ownership/possession/trade in amplifiers (Union) ≠ control of use causing nuisance (State: Entry 6, conceivably Entry 1). *"The end and purpose of the legislation furnishes the key to connect it with the State List."* Not an argument that leaving other loud noises uncontrolled defeats the Act.
5. **No occupied field:** no Union enactment under Entry 31 burdened ownership/possession of amplifiers with such regulation — "no question of repugnancy or of an occupied field".
6. **Result:** JC's order set aside; **appeal allowed; the Act declared intra vires in all its parts**; no retrial (matter 4 years old; State stated it did not propose to prosecute).

Principle

Pith and substance decides lists by legislative purpose, not by the instrument regulated: a law about an object that *belongs* to a Union field is nevertheless a State law when its true nature is regulating **use** for a State-List purpose (health/tranquillity/public order). Plus three standing rules: (i) plenary power within entries (Burah); (ii) entries = broad categories, occasionally overlapping (*enumeratio simplex*); (iii) ancillary matters ride with the head; (iv) absence of a covering Central law means no repugnancy/occupied-field objection. **This case is the model answer to any "loudspeaker/amplifier vs broadcasting entry" problem.**

by Ankur R. Upadhyay

CASE #59 DU LL.B. PRESCRIBED AUTHORITY

State of Karnataka v. Drive-in Enterprises — (2001) 4 SCC 60

Bench: V.N. Khare and Ruma Pal JJ. (judgment by V.N. Khare J.)

Facts (DU excerpt pp. 304–305)

The respondent owned a **drive-in theatre** on the outskirts of Bangalore — open-air premises where viewers watch films **sitting in motor cars** (plus a small auditorium for others paying ₹3). "Drive-in-cinema" defined by **Rule 111-A, Karnataka Cinemas (Regulation) Rules, 1971** (framed u/s 19 of the Karnataka Cinemas (Regulation) Act, 1964; capacity ≤ 1,000 cars). Under the **Karnataka Entertainments Tax Act, 1958**: s. 2(a) "admission"; s. 2(e) "entertainment" (incl. cinematography shows); s. 2(i) "payment for admission"; **s. 3 = charging section — 70% entertainment tax on each payment for admission**; s. 6 mode of payment. A car-owner paid the proprietor an extra ₹2 to take his car inside. The State levied **entertainment tax on the admission of cars** — challenged; the **Single Judge and then the Division Bench of the Karnataka High Court** struck the levy down as "not on a person entertained (i.e. car/motor vehicle)" → ultra vires. The Legislature then amended the Act by **Act 3 of 1985**, inserting **s. 2(i)(v): "any payment for admission of a motor vehicle into the auditorium of a cinema known as drive-in-theatre"**, with consequent amendments to ss. 4–A and 6. The re-challenged levy was again struck down by the High Court (writ u/Art 226) — sub-clause (v) held beyond State legislative competence. State's appeal to the SC.

Issue (DU para 5)

Is the State Legislature competent — under **Entry 62, List II** ("taxes on luxuries and entertainments, amusements, betting and gambling") — to levy entertainment tax on **the admission of cars/motor vehicles** into a drive-in theatre?

Arguments — State of Karnataka (appellant)

- **In pith and substance the levy is on the person entertained**, not on admission of cars; after the 1985 amendment (s. 2(i)(v) + ss. 4–A, 6) the charge is squarely on "payment for admission" to entertainment; the State is "fully competent to impose such a levy".

Arguments — Drive-in Enterprises (respondent)

- Drive-in is a **distinct category** of cinema; the car's entry is **incidental and part of the concept** of a drive-in; the film is the same as in any theatre.
- The incidence of an "entertainment tax" is on **entertainment**, i.e., on **persons entertained** — State Legislatures can levy such tax **on human beings and not on any inanimate object**; a car is not a person entertained → levy beyond competence (Entry 62).

Decision

1. **Test stated (para 6):** where vires are challenged, the Court ascertains the **true nature and character of the enactment** — examine the whole enactment, its object, scope and effect; if it substantially falls on a matter assigned to the legislature, it is valid **even though the nomenclature suggests otherwise**. "**The nomenclature of a levy is not conclusive** for determining its true character … the real nature of levy [is what matters] … its pith and substance."
2. **Authority-spray (DU paras 6–10):** *Goodyear India v. Haryana* (nomenclature of Act not conclusive); *R.R. Engineering v. Zila Parishad, Bareilly* ("the measure of the tax is not a true test of the nature of the tax" — income as yardstick ≠ income tax); *Kerala SEB v. Indian Aluminium* ("If in pith and substance a legislation falls within one list … some portion … incidentally trenches upon … another list, the Act as a whole would be valid"); *Governor-General in Council v. Province of Madras* (AIR 1945 PC 98) — "its real nature, its 'pith and substance' … a tax on the sale of goods"; *(Morris) Leventhal v. David Jones* (bridge tax upheld as land tax); *Raza Buland Sugar v. Municipal Board, Rampur* (water tax = levy on land and building).
3. **Application:** Entry 62 covers taxes on luxuries/entertainment; incidence on entertainment, and "entertainment necessarily implies the persons entertained". But **the car does not go in by itself** — "It is driven inside the theatre by the person entertained … the person entertained carries his car inside … in order to have better quality of entertainment"; the levy varies with the comfort/luxury enjoyed (car-sitter vs squatter). **Real nature: a levy on the person entertained — on entertainment, not on the vehicle.** "Whatever be the nomenclature of levy, in substance, the levy under heading 'admission of vehicle' is a levy on entertainment … **'entertainment' is wide enough to comprehend … the luxury or comfort with which a person entertains himself.** Once … there is a nexus between the legislative competence and subject of taxation, the levy is justified and valid."
4. **Result:** s. 2(i)(v) **within** Entry 62; **appeal allowed** — HC judgment set aside; writ petition dismissed; levy valid.

Principle

Nomenclature is not the test — pith and substance is: the true nature of a levy, not its label ("admission of vehicles") or its measure (cars), decides competence; a tax valid in substance under its entry survives any misleading caption, and measures/yardsticks do not change the tax's character (Drive-in; R.R. Engineering; Goodyear). **Contrast with colourable legislation (60):** there the *label* is a disguise for a subject *outside* competence — here the label was merely inaccurate, the substance inside competence. Also illustrates **ancillary reasoning**: car-admission is an inseparable incident of drive-in entertainment.

CASE #60 DU LL.B. PRESCRIBED AUTHORITY

K.C. Gajapati Narayan Deo v. State of Orissa — AIR 1953 SC 375

Bench: M. Patanjali Sastri C.J. and B.K. Mukherjea, S.R. Das, Ghulam Hasan, N.H. Bhagwati JJ. (judgment by B.K. Mukherjea J.) · Six appeals from Art 226 petitions against the Orissa Estates Abolition Act, 1952

Facts (DU excerpt pp. 309–313)

Six appeals by **permanently-settled estate proprietors in Orissa** against the **Orissa Estates Abolition Act, 1952** (introduced 17-1-1950, passed 28-9-1951, President's assent 23-1-1952 → protected by Arts 31(4)/31(A), though not in the Ninth Schedule). The Act follows the Bihar/UP/M.P. pattern: abolish zamindari/intermediary interests (s. 2(g) "estate", "intermediary" definitions; s. 3 vesting notification; s. 4 surrender agreements; s. 5 consequences — lands, forests, tanks, fisheries, bazars etc. vest absolutely in the State free of incumbrances; s. 6–7 homestead/agricultural retention), with **compensation = a number of years' purchase of net annual income** — gross asset (rents+cesses) minus deductions (land revenue, agricultural income-tax, chowkidari/municipal taxes on estate buildings, management costs, other income-tax) payable in **30 annual instalments** (s. 37), State option to pay lump sum.

The **colourable attack** centred on the **Orissa Agricultural Income Tax (Second Amendment) Act, 1950**: the original amendment bill (sponsored by Chief Minister H.K. Mahtab, who favoured "suitable compensation") was published 8-1-1950 — **five days after the Estates Abolition Bill** (3-1-1950) — raising the top rate from 3 annas to 4 annas in the rupee and the top slab from ₹30,000 to ₹20,000; it was dropped, then a **revised bill** (22-7-1950, under Mahtab's successor, "a champion of abolition … with little or no compensation") became law on 10-8-1950 with the top rate at **12 annas 6 pies in the rupee** for slabs above ₹15,000 — ostensibly to finance development schemes. Since s. 27(1)(b) of the Abolition Act makes **agricultural income-tax deductible** in computing net income (hence compensation), appellants said the tax law was a device to deflate compensation — a **fraud on the Constitution**, relying on the majority in *State of Bihar v. Maharaja Kameshwar Singh* [1952 SCR 889] (Bihar Land Reforms Act ss. 4(b), 23(f) held colourable/unconstitutional). Other heads: Madras Estates Land (Orissa Amendment) Act 1947 (ss. 168-A, 177(2)

rent-settlement/retrospection — improper delegation/Art 14 — left open with consent); vesting of buildings (appurtenances) and private lands; s. 37 instalments (attack as colourable). At the High Court, Narasimham J. separately recorded **suspicion that the 1950 amending Act was a colourable device**, yet concurred in dismissal — "whenever there is any doubt regarding the constitutionality of an enactment, the doubt should always go in favour of the legislature". Certificates under Arts 132/133 + s. 110 CPC → appeals.

Issues

1. Is the **Orissa Agricultural Income Tax (Amendment) Act, 1950** a **colourable piece of legislation** — ostensibly taxation (Entry 46, List II), in reality a device to reduce compensation (Entry 42, List III) — and therefore void (in whole or as affecting the abolition scheme)?
2. Was the Court entitled to investigate the **motives** (synchronisation with the ministry change, the statement of objects) in asking that question?
3. Are the **buildings/private lands vesting** and **s. 37 mode of payment** of compensation valid (and is inadequacy of compensation justiciable given Arts 31(4)/31A)?

Arguments — appellants (estate owners)

- The 1950 Act "is not a bona fide taxation statute at all, but is a colourable piece of legislation, the real object of which is to reduce, by artificial means, the net income of the intermediaries" — the objects-reason claim (development finance) "wholly untrue" since those principally hit were the intermediaries whose class was about to be abolished; synchronised with the change of Chief Ministry; separate statute vs embedding in the Abolition Act "should not make any difference in principle"; **Kameshwar Singh** is the sheet-anchor (two Bihar provisions struck as colourable under Entry 42 + Art 31(1) "without authority of law").
- Buildings need not be "parts of the land" under Indian law; private lands of temporary tenants vest with no compensation for the tenant-interest; s. 37's 30 instalments negate compensation.

Arguments — State / Attorney-General

- The amendment is **plainly agricultural income-tax legislation** within **Entry 46, List II** — a head the State undeniably possessed; "unjust or inequitable" rates do not affect competence; agricultural income-tax is a **pre-existing, relevant deduction** (collected under the amended Act in the following year), unlike the Bihar "non-existent" items.
- Motive irrelevant: if the ulterior end lies within the legislature's power, no colourable exercise; the attack on the 1947 rent-amendment machinery (delegation/Art 14) is **not a ground against the Abolition Act** — objections can be raised when gross assets are computed; both sides agreed to leave them open.
- Buildings = appurtenances of the estate → ancillary to acquisition, within Art 31(2)/(4); s. 37 = "form and manner" under Entry 42 squarely; inadequacy barred by Art 31(4) ("passed by such Legislature" includes passage **with amendments** — the Bill was pending at commencement and duly assented).

Decision

1. **Doctrine expounded (para 9) and applied:** competency not motive; substance over form; disguise may be "covert and indirect". **But the doctrine's premise is a power that lacks:** "it would be a colourable legislation **only if** it is shown that the real object is not attainable to it by reason of any constitutional limitation or that it lies within the exclusive field of another legislature."
2. **1950 Amendment NOT colourable:** it is agricultural income-tax legislation in **form and substance** under Entry 46 List II; rates may be unjust/inequitable — "but that does not affect the competency of the legislature"; **unlike the Bihar case, not "based on something which was unrelated to facts and did not exist at all"** — the tax was an existing liability when the 1952 Act commenced. Assuming an intent to inflate deductions: since **Entry 42 permits any principle of compensation** (restrictions only via Art 31(2)/(4)), inflated/deflated deductions "do not affect the constitutionality"; the High Court judge pursuing "what actually the motives were" followed "a wrong line of enquiry".
3. **Kameshwar Singh distinguished:** there ss. 23(f)/4(b) purported to be compensation "principles" while resting on **fictitious items wholly unrelated to facts** (no definable pre-existing liability for raiyat-benefit works; taking half of arrears "taking the half without any return") — a colourable use of Entry 42 + Art 31(1) violation. No such fiction here.
4. **Other heads:** buildings — appurtenant to the estate, valuation as part of estate OK; inadequacy no objection (Art 31(4)); private lands — entire proprietor's interest acquired, compensation via net-income basis (Raja Suriya Pal Singh); Art 31(4): "passed by such Legislature" = **passed with or without amendments** in Art 107 procedure; **s. 37 (30 instalments) squarely Entry 42** — "form and manner"; not a negation of compensation. (Madras Amendment delegation/Art 14 points left open with consent.)
5. **Result: all points fail; appeals dismissed** (exceptions kept open earlier).

Principle

Colourable legislation = using an appearance of competence as a pretence for an object that is, in substance, beyond the legislature's power — governed by the maxim **"you cannot do indirectly what you cannot do directly."** (1) It is a question of **power, not good faith**; motive is irrelevant both ways — collateral motive does not invalidate a competent law, and honest avowal cannot validate an incompetent one. (2) **Substance and real object** decide (Reciprocal Insurers; Lefroy). (3) **Not colourable** when the real object, however unworthy, lies within the legislature's own competence — *Gajapati's own facts prove it*. (4) Degree of injustice in compensation cannot be litigated where Art 31(4)/Entry 42 apply.

CASE #61 DU LL.B. PRESCRIBED AUTHORITY

Union of India v. H.S. Dhillon — (1971) 2 SCC 779

[Residuary Power of Legislation] · Bench of 7: S.M. Sikri C.J., J.M. Shelat, G.K. Mitter, A.N. Ray, I.D. Dua, S.C. Roy, D.G. Palekar JJ. (opinion by S.M. Sikri C.J.)

Facts (DU excerpt pp. 324–325)

Section 24 of the Finance Act, 1969 amended the **Wealth-tax Act, 1957** so as to **include the capital value of agricultural land** in "net wealth" (s. 2(c) "assets" = property of every description; s. 2(m) "net wealth"; s. 3 charging). The **Punjab & Haryana High Court (Civil Writ 2291/1970, five Judges)**: **four Judges** held the amendment **beyond Parliament's competence** (Pandit J. dissenting — intra vires), and further held the levy was **not a law on Entry 49, List II** (taxes on lands and buildings); the Court issued a direction that the Wealth-tax Act as amended (agricultural land in net wealth) was ultra vires. Union of India appealed. Background entries: **Entry 86 List I** — taxes on capital value of assets of individuals/companies **"exclusive of agricultural land"**; **Entry 49 List II** — taxes on lands and buildings; **Entry 97 List I + Art 248** — residue; also exclusions in Entries 82 (agricultural income), 84 (alcoholic liquor/opium excise), 87 (agricultural land from estate duty), 88 (agricultural land from succession duty).

Issues (framed at paras 10–11)

1. Is the impugned amendment a law with respect to **Entry 49, List II** (i.e., inside the State field)?
2. If not, is it **beyond Parliament's competence** — or valid under **Entry 86 read with Entry 97 / Entry 97 by itself, read with Art 248**, notwithstanding "exclusive of agricultural land" in Entry 86?

Methodology adopted: "the best way … is to ask ourselves two questions: first is the impugned Act legislation with respect to Entry 49, List II and secondly if it is not, is it beyond the legislative competence of Parliament." (Setalvad's "first test List II" vs Palkhivala's objection that no such test appears in 20 years of this Court's decisions and that the Canadian-origin test is inapposite.)

Arguments — Union of India (Setalvad, appellant)

- Test validity of a central statute by first asking whether it is a law on any List II entry (incl. Entry 49); if not — no further question on State power — it "must necessarily fall within the legislative competence of Parliament under **Entry 86 read with Entry 97 or Entry 97 by itself read with Art 248**".
- "Exclusive of agricultural land" in Entry 86 cannot cut down Entry 97 or Art 248 — exclusions from List I entries are not prohibitions on Parliament.

Arguments — respondent & interveners (Palkhivala)

- The Constitution's scheme gives States **exclusive** power over agricultural land, agricultural income and taxes thereon; the specific exclusion of agricultural land from Entry 86 **was intended to keep it out of Entry 97 and Art 248 as well** — "exclusive of agricultural land" is a **word of prohibition**; "any other matter" cannot include matters specifically excluded from Entries 1–96 (excluded matters listed: Entries 82/84/86/87/88).
- The High Court was wrong that the tax falls under Entry 49 List II (it should have been so held, helping the respondent's cause).
- The "first test List II" methodology is a Canadian import unsuited to our Constitution.

Decision (Sikri C.J.)

1. **Q1: NOT Entry 49.** Approving Sudhir Chand Nawa (AIR 1969 SC 59) and reading Buckingham & Carnatic correctly: Entry 86 tax = on **aggregate capital value** (aggregation, debts deducted, no definable relation to any component); Entry 49 tax = on **units** of lands/buildings (three requisites, para 74: tax on units as such; not on totality; unconcerned with division of interests) — "not a personal tax but a tax on property". Wealth-tax's basic concept differs entirely → fields do not overlap. **Caution (para 83):** if a Central Act's *real effect* were to impose an Entry 49 tax, it "may be bad as encroaching upon the domain of State Legislatures".
2. **Q2: VALID under the residue.** The scheme gives residuary powers to Parliament "beyond any dispute" (Art 248 + Entry 97); GoIA's no-residue contrast noted. **Exclusions in Entries 82/84/87/88 map onto specific List II entries (46/51/48/47) — but capital value of agricultural land matches no List II entry**, so design cannot be inferred to keep it from Entry 97: "**The content of the residuary power does not change with its conferment on Parliament**" (para 19); "It would be arbitrary to say that it does not fall within Entry 97" (para 20).
3. **Whole-entry reading:** "the matter in Entry 86 … is the whole entry" (illustrations: Entry 9 List I vs Entry 3 List III preventive detention; Entry 82's "other than agricultural income" is not a separate matter). Art 246(1)+Entries 1–96 confer **positive** power — not intended as debarments from other constitutional powers (para 21).
4. **Interpretive guide:** "the only safe guide … is the language employed, interpreted not narrowly but fairly in the light of the broad and high purposes of the Constitution, but without doing violence to the language" (para 32) — rejects the "was this tax known to the framers?" test (TTK's capital-levy remark notwithstanding).
5. **CA debates used affirmatively** (paras 33–44): Ambedkar's "limit or scope of List I" + "all that is not in Lists II/III falls in List I" equivalence; enumeration = to allay provincial/Princely-State fears + Canadian convention (paras 41, 67: three lists make List II easier to construe).
6. **Canadian test accepted** (paras 48, 66–67): lists exhaustive; scheme "essentially the same"; "**if a Central Act is challenged as being beyond the legislative competence of Parliament, it is enough to enquire if it is a law with respect to matters or taxes enumerated in List II. If it is not, no further question arises.**" Part III limitations are of a different character — "they have nothing to do with legislative competence" (para 47).
7. **Even the original Wealth-tax Act** likely fell wholly under **Entry 97** (not Entry 86) (para 86); powers under specified entries may be **combined** with Entry 97/Art 248 (para 87, citing *In re Regulation and Control of Aeronautics in Canada*); "**Residuary power is as much power as the power conferred under Article 246**" (para 90).
8. **Result: the impugned Act is VALID; appeal allowed; HC judgment set aside; writ dismissed, no order as to costs.**

Principle

(1) Residuary power is Parliament's by Art 248/Entry 97 — tested by a single negative question: is the matter/tax in List II or List III? If no, Parliament may legislate (the lists demarcate; they do not confer). (2) **Words of exclusion inside List I entries do not withhold a topic from the residue** — the entry is read as a whole; "the content of the residuary power does not change with its conferment". (3) The validity of a Central Act challenged as incompetent is decided by asking only whether it invades List II (Canada-style exhaustive-list test, constitutionally orthodox here). (4) Entry 49 vs Entry 86: unit-based property tax vs aggregated capital-value tax — different basic concepts, no overlap. (5) Parliamentary powers under specified entries can be supplemented by the residuary power.

CASE #62 DU LL.B. PRESCRIBED AUTHORITY

Zaverbhai Amaidas v. State of Bombay — AIR 1954 SC 752

[Doctrine of Repugnancy] · Bench: M.C. Mahajan C.J., B.J. Mukherjea, V. Bose, B. Jagannadhadas and T.L. Venkatarama Ayyar JJ. · Opinion of T.L. Venkatarama Ayyar J. (as extracted in DU) · Appeal from Bombay HC under Art 132(1) certificate

Facts (DU excerpt pp. 336–339)

An appeal against the Bombay High Court's dismissal of a revision petition against the appellant's conviction under **s. 7 of the Essential Supplies (Temporary Powers) Act, 24 of 1946** (Central). **Charge:** on 6 April 1951, Zaverbhai transported **15 maunds of juwar** from his village Khanjroli to Mandvi **without a permit**, contravening **s. 5(1) of the Bombay Food Grains (Regulation of Movement and Sale) Order, 1949**. The **Resident First Class Magistrate, Bardoli** found him guilty — imprisonment till the rising of the Court + fine of ₹500; affirmed in appeal by the Sessions Judge, Surat.

Revision point: the appellant argued the Magistrate had **no jurisdiction** — under **s. 2 of Bombay Act 36 of 1947** the offence was punishable up to **7 years**, and by the Second Schedule CrPC only a Sessions Court could try it. **State's answer:** after Central amendments in 1948, 1949 and finally the **recast s. 7 by Central Act 52 of 1950**, Bombay Act 36 of 1947 had become **inoperative**; the governing Act was Act 52 of 1950 under which the maximum was **3 years** → the Magistrate had jurisdiction. **High Court:** Bavdekar J. — the amendments did not trench on Bombay Act 36 of 1947, which remained unaffected; Chainani J. — both Acts related to the **same subject-matter** and Act 52 of 1950 (later Central law) prevailed under Art 254(2). On difference under s. 429 CrPC, **Chagla C.J.** agreed with Chainani J. — repugnancy between s. 7 (Act 52/1950) and s. 2 (Bombay Act 36/1947), former prevailing → revision dismissed. Certificate under Art 132(1) → Supreme Court. **Single point:** is the contravention punishable under s. 2 of Bombay Act 36 of 1947 (trial illegal) or under s. 7 of the ESP Act as amended by Act 52 of 1950 (trial and conviction perfectly legal)?

Issue (DU para 8)

Whether the Central amendments of 1948, 1949 and 1950 are **"further legislation"** within s. 107(2) GoIA / **"a law with respect to the same matter"** within Art 254(2) — so that s. 2 of Bombay Act 36 of 1947 (avowedly repugnant to s. 7(1) of the 1946 Act) is void as against the recast s. 7; and whether the appellant's contention (subject exclusively in the Provincial List → s. 107(2)/254(2), which apply only to Concurrent-matter conflicts, inapplicable) can succeed.

Arguments — appellant (State-side facts narrated; contentions at paras 5, 12)

- **(Bavdekar J.'s line, urged in revision):** "enhanced penalty" under Act 36 of 1947 is a **matter different from mere "punishment"** under the ESP Act — so the subject-matter of Act 36/1947 remained untouched by Act 52/1950 except re possession exceeding twice the prescribed quantity; repugnancy not established on that footing.
- **Provincial-List argument (para 12):** the subject-matter of Act 36 of 1947 lay **exclusively in the Provincial List**, so s. 107(2) and Art 254(2) — which apply only to Concurrent-List subjects — had no application; and there was **no express repeal** of the Bombay Act by Act 52 of 1950.

Arguments — State of Bombay (respondent)

- There was "further legislation by the Central Legislature in 1948, in 1949 and again in 1950" (para 5) → s. 2 of Act 36 of 1947 became inoperative; the governing enactment is Act 52 of 1950; maximum sentence 3 years → the Resident First Class Magistrate had jurisdiction; conviction legal.

Decision (Venkatarama Ayyar J.)

1. **Art 254(2) traced (paras 6–7):** the 1948–49 amendments came under GoIA s. 107(2); Act 52 of 1950 came after the Constitution, governed by Art 254(2) (text quoted: State law on Concurrent List + reserved + President's assent → prevails; proviso preserves Parliament's power to enact at any time any law with respect to the same matter "including a law adding to, amending, varying or repealing" the State law). "In substance a reproduction of s. 107(2)" with the concluding portion as a proviso **plus additions**. Under *AG for Ontario v. AG for the Dominion* **[(1896) AC 348]** (Lord Watson), a competent Dominion law overrides provincial law covering the same field, but the Dominion had **no power to repeal a provincial statute directly** — the s. 107(2) position. **"By the proviso to Article 254(2), the Constitution has enlarged the powers of Parliament"** — it may now add to, amend, vary or repeal a State Concurrent-field law. Even **without express repeal**, "the State law will be void under that provision if it conflicts with a later 'law with respect to the same matter'" enacted by Parliament.
2. **The "same matter" test (para 8):** "The important thing … is whether the legislation is 'in respect of the same matter'. **If the later legislation deals not with the matters which formed the subject of the earlier legislation but with other and distinct matters though of a cognate and allied character, then Article 254(2) will have no application.**" Principle: where both Centre and Province legislate covering the **same ground**, both competent → **the Centre's law prevails**.
3. **Application (paras 9–10):** Bombay Act 36 of 1947's preamble = "to provide for the **enhancement of penalties** for contravention of orders made under the [ESP Act, 1946]". Act 52 of 1950's new s. 7 is "a **comprehensive code covering the entire field of punishment for offences under the Act, graded according to the commodities and the character of the offence**" (textiles ≤ 3 yrs + fine + forfeiture; foodstuffs ≤ 3 yrs + fine unless fine alone meets justice + forfeiture; proviso: possession of foodgrains **exceeding twice the maximum prescribed → up to 7 years + fine not less than 20 times the value + forfeiture** of the excess, Explanation exempting ≤ 5 maunds over; other essential commodities ≤ 3 yrs; s. 7(4) non-compliance ≤ 3 yrs). "**The subject of enhanced punishment that is dealt with in Act 36 of 1947 is also comprised in Act 52 of 1950**, the same being limited to the case of hoarding of foodgrains" → agreement with Chagla C.J. and Chainani J.: **Act 52 of 1950 is legislation in respect of the same matter as Act 36 of 1947**.
4. **Bavdekar J.'s error (para 10):** "The question of punishment for contravention of orders … both under Act 36 of 1947 and under Act 52 of 1950 **constitutes a single subject-matter and cannot be split up**". On this rests the construction rule: **"when the punishment or penalty is altered in degree but not in kind, the later provision would be considered as superseding the earlier one"**. Goddard J. in **Smith v. Benabo [(1937) 1 KB 518]**: "if a later statute again describes an offence created by a previous one, and imposes a different punishment, or varies the procedure, the earlier statute is repealed by the later" (Michell v. Brown, per Lord Campbell).
5. **254(1) vs 254(2) (para 11):** under Art 254(1) "no question of repeal arises"; "but the principle on which the rule of **implied repeal** rests — namely, that if the subject-matter of the later legislation is identical with that of the earlier, so that they cannot both stand together, then the earlier is repealed by the later enactment — **will be equally applicable** to a question under Article 254(2) whether the further legislation by Parliament is in respect of the same matter."
6. **Held: s. 2 of Bombay Act 36 of 1947 cannot prevail against s. 7 of the ESP Act as amended by Act 52 of 1950.**
7. **Provincial-List point rejected (para 12):** Act 36 of 1947 itself proceeded "on the basis that the subject-matter is in the Concurrent List"; the point had been raised and rejected by the Bombay High Court judges; and in the Art 132(1) leave application "the only ground that was put forward as involving a substantial question as to the interpretation of the Constitution was whether the Bombay Act 36 of 1947 was repugnant and void under Article 254" — **declined to permit the new point**.
8. **Result (para 13): the appeal fails and is dismissed** — Magistrate's jurisdiction and conviction lawful.

Principle

(1) Art 254 "same matter" test: it is the subject-matter, not the phraseology, that matters — where a later Central law re-describes the same offence-subject and alters the penalty **only in degree, not in kind**, it supersedes the earlier State provision (Smith v. Benabo), and the implied-repeal principle of "cannot both stand" informs 254(2) even though 254(1) involves no repeal. **(2) Distinguished matters escape 254:** later legislation on distinct though cognate matters does not touch the State law. **(3) Proviso to 254(2) enlarged Parliament** beyond GoIA s. 107(2): express addition/amendment/variance/repeal of State concurrent laws now lies in Parliament's power — "enlarged the powers of Parliament." **(4) Procedure:** grounds outside the Art 132(1) certificate/leave stage are not entertained.

CASE #63 DU LL.B. PRESCRIBED AUTHORITY

Hoechst Pharmaceuticals Ltd. v. State of Bihar — (1983) 4 SCC 45

[Doctrine of Repugnancy - Article 254] · Bench: A.P. Sen, E.S. Venkataramiah and R.B. Misra JJ. · Opinion of A.P. Sen J. · Appeals from Patna HC (Arts 14, 19(1)(g), 246, 254 & Art 286 challenges to the Bihar Finance Act, 1981)

Facts (DU excerpt pp. 342–345)

The Bihar Finance Act, 1981: **s. 5(1)** — every dealer whose **gross turnover in a year exceeds ₹5 lakhs** shall pay, **in addition to the tax payable under the Part**, a **surcharge up to 10% of the total tax** as fixed by notification. **s. 5(3)** — *"Notwithstanding anything to the contrary contained in this Part, no dealer mentioned in sub-section (1), who is liable to pay surcharge, shall be entitled to collect the amount of this surcharge."*

The parties: Hoechst Pharmaceuticals Ltd and Glaxo Laboratories (India) Ltd — Companies Act, 1956 companies manufacturing and selling medicines/life-saving drugs throughout India including Bihar; branch/sales depot at Patna registered as dealer u/s 14 of the Act; sales via wholesale distributors/stockists → retailers → consumers. **~94% of their sales were at controlled prices exclusive of local taxes** under the **Drugs (Prices Control) Order, 1979**, issued u/s 3(1) of the **Essential Commodities Act, 1955**; exceeding controlled prices was prohibited; the control orders allowed the manufacturer to pass tax liability on; printed price-lists (retail price inclusive of excise duty) and contracts provided "sales tax and local taxes will be charged wherever applicable".

High Court's findings (then under challenge): following **S. Kodar v. State of Kerala** (AIR 1974 SC 2272) — the surcharge is **in reality an additional tax on the aggregate of annual sales** (Entry 54, List II); a uniform 10% on the turnover-₹5-lakh class is **not discriminatory** (Art 14); banning collection of the surcharge is **not an unreasonable restriction** under Art 19(1)(g) (it is "not an essential characteristic of a sales tax that the seller must have the right to pass it on"; classification rests on capacity to pay); and there was **no irreconcilable conflict between s. 5(3) and Paragraph 21 of the DPCO** —

both are capable of being obeyed. The appellants also failed before the HC on **s. 6 ECA** (occupied-field) and **Art 286** arguments but renewed them in the SC.

Issues (DU para 3, 36)

1. **Occupied field:** is price fixation of essential commodities/drugs an **occupied field** of Central control orders u/s 3(1) ECA (with s. 6's non obstante), so that s. 5(3) of the Bihar Finance Act trenches on Parliament's field and is void — or at least repugnant to Paragraph 21 of the DPCO under Art 254(1)?
2. **Scope of Art 254(1):** does "a law made by Parliament **which Parliament is competent to enact**" include laws under **List I** (e.g., ECA under Entry 33 List III / price-control orders), making List-II-vs-Central-list conflicts repugnancy questions?
3. **Subsidiary:** whether gross turnover for s. 5(1) may include inter-State/external/import-export transactions barred by Art 286 (and whether Entry 54 taxation supports s. 5(3)'s no-collection rule).

Arguments — appellants (manufacturers)

- **Occupied field (para 3):** price fixation of essential commodities, drugs and formulations is occupied by control orders issued from time to time under s. 3(1) ECA (which permit passing tax liability on) → State legislature had **no competence** to enact s. 5(3); alternatively, if s. 5(3) covers sales of centrally-priced essential commodities, there is **repugnancy** with the control orders which under **s. 6 ECA** prevail ("notwithstanding any other law inconsistent therewith").
- **Harishankar Bagla route (paras 29–30):** s. 6's non obstante gives Paragraph 21 overriding effect — s. 5(3) is "by-passed". **Purpose point:** control orders exist for the **manufacturer's** benefit (reasonable return argument: paras 25, 33 — bulk-drug prices allow "reasonable return on net worth" for efficient manufacturers); no-return undermines them.
- **Textual 254(1) point (para 64):** "competent to enact" is *prima facie* wide enough to cover any Parliament law (Union List included) — so a valid ECA + DPCO triggers 254(1) against the State law.
- **Art 286 (para 3):** turnover computation including inter-State/external sales is outside State taxing purview.

Arguments — respondents (State of Bihar)

- **Kodar line (paras 10–13):** the surcharge is a sales tax under Entry 54, List II — classification by turnover valid; pass-on not an essential feature; s. 5(3) itself relatable to Entry 54 (**fairly conceded by both sides, para 13**).
- **Competence + ancillary power (para 28):** "a surcharge partakes of the nature of sales tax"; a legislature competent to levy the tax may select the class of dealers and prohibit collection of the surcharge — an ancillary provision within its own entry.
- **No conflict on facts (paras 30–31):** formulators are governed by **Paragraph 24** (price to wholesaler inclusive of sales tax), not Paragraph 21 → no conflict at all; and even under Paragraph 21, the dealer may pass on sales tax and additional sales tax — s. 5(3) only blocks the **surcharge**, which cuts into the **dealer's profit** while retail/controlled prices remain unchanged (consumer protected).
- **Purpose (paras 32–33):** control orders serve **consumers** — equitable distribution and fair prices under scarcity; no entitlement to reasonable return (Shree Meenakshi Mills, AIR 1974 SC 366 — Ray C.J.).
- **Tax segregation (paras 73–76):** the Constitution separates taxing power — List II Entries 45–63 taxes, List I Entries 82–92A taxes, List III has **no tax entry** (fees only) → a Union/Concurrent general-subject law cannot intrude into Entry 54 by "ancillary" tax power; **taxing power cannot be deduced from a general entry**.

Decision (A.P. Sen J.)

1. **Art 246 architecture (paras 37–43):** validity is decided by **pith and substance — is s. 5(3) relatable to Entry 54, List II? — not by repugnancy**. The three essentials of Art 246 (List I exclusive; List II exclusive *subject to* (1) with Parliament prevailing only on **irreconcilable** conflict *pro tanto*; List III concurrent). Art 246 adopts s. 100, GoIA 1935 with immaterial alterations — "our Constitution was not written on a clean slate"; GoIA-era principles apply.
2. **Reconciliation first (para 41):** federal supremacy under the non obstante of Art 246(1) "cannot be **resorted to unless there is an 'irreconcilable' conflict"**; read both entries together in broad sense → attempt fair reconciliation (Union language may be given a meaning "less wide than it might in another context bear, yet one that can properly be given", and equally for State entries) → **"The non-obstante clause in Article 246(1) must operate only if such reconciliation should prove impossible"**; and **"no question of conflict … will arise if the impugned legislation, by … 'pith and substance', appears to fall exclusively under one list, and the encroachment … is only incidental."**
3. **Authority chain (paras 45–53):** Gwyer C.J. in C.P. & Berar (read together; "not how … theoretically capable of being construed, but how they are to be construed here and now"; non obstante as **"last resource, a witness to the imperfections of human expression"**); Earl Loreburn in AG Ontario [1912 AC 571]; Gwyer in Chettiar (pith-and-substance passage); **Citizens Insurance** (general power shall not nullify a particular power); Lord Simonds in *GG in Council v. Province of Madras* ("not the name of the tax but its real nature, its pith and substance"); Boddu Paidanna; **Prafulla** (degree of invasion immaterial except as evidence; List I > III > II only "where they come in conflict"); corollary: **incidental encroachment does not affect competence** (paras 53, 57, 62 — within competence to legislate matters "necessarily incidental to effective legislation … on a subject expressly enumerated in List II").
4. **Harishankar Bagla distinguished (paras 29–31):** s. 6 ECA merely **by-passes** inconsistent laws during the order's continuance — "by-passing … does not necessarily amount to repeal"; and here the by-pass never engages because **formulators are governed by Paragraph 24** (prices inclusive of sales tax) — **"There being no conflict between sub-section (3) of Section 5 … and Paragraph 24 …, the question of non obstante clause to Section 6 … coming into play does not arise."** Even on Paragraph 21: dealer may pass on sales tax/additional sales tax; s. 5(3) only disallows the surcharge → dealer's profit absorbs it; no clash (paras 31–33).
5. **Price-control purpose (paras 32–33):** orders u/s 3(1) target **consumers** (equitable distribution, availability at fair prices); no right to a reasonable return unless the statutory scheme says so — Shree Meenakshi Mills followed.
6. **Art 254(1) confined to the Concurrent List (paras 64–70):** the text is *prima facie* susceptible of the wider reading, **"but if Article 254(1) is read as a whole, it will be seen that it is expressly made subject to clause (2) which makes reference to repugnancy in the field of Concurrent List — in other words, if clause (2) is to be the guide …, the repugnancy between Union and State law must be taken to refer only to the Concurrent field."** Settled: "with respect to … the Concurrent List" qualifies **both** limbs of 254(1); repugnancy arises "only when both the legislatures are competent to legislate in the same field". **A.S. Krishna two conditions** (Venkatarama Ayyar J. on s. 107(1)): (1) both laws in respect of a Concurrent-List matter; (2) repugnant → only then void to the extent. **Consequence:** "Article 254(1) has **no application to cases of repugnancy due to overlapping found between List II on the one hand and Lists I and III on the other**" — such a State law is **ultra vires** (Art 246(1) non obstante + "subject to" in 246(3)) — it fails "not because of repugnance … but due to want of legislative competence."
7. **Nicholas/Tika Ramji tests noted (para 66):** (1) actual terms; (2) State law inoperative because the Central law is intended a complete exhaustive code; (3) both seek to exercise power over the same subject-matter — accepted in Ch. Tika Ramji (AIR 1956 SC 676).
8. **Art 254 structure (para 67):** 254(1) = Union law prevails in concurrent field regardless of time; 254(2) = President-assented State law prevails **only to the extent of inconsistency, in that State**, over an **earlier** Union law; proviso lets Parliament repeal/amend directly or by a repugnant "same matter" law — State law becomes void when the later Parliament law is made, **even without express repeal**; repugnancy = direct conflict **or** same-field coexistence where both cannot stand.
9. **Application (paras 72–76):** Entry 54 power is **plenary** including ancillary provisions (s. 5(3) fairly conceded within Entry 54); projecting Parliament's Entry 33 power into Entry 54 would read Entry 54 as "taxes on sale … **other than essential commodities**" — no warrant; Entry 54 is subject only to Entry 92A List I. **Taxation segregated:** List II Entries 1–44 general / 45–63 taxes; List I 1–81 general / 82–92A taxes; List III has no tax entry — "**in our Constitution, a conflict of the taxing power of the Union and of the States cannot arise**"; entries = fields, powers come

from Art 246; tax power cannot be deduced from a general entry as ancillary power. Final holding: **the two laws operate on two separate and distinct fields and both are capable of being obeyed — no clash, repugnancy does not arise**.

10. **Result:** surcharge, no-collection rule and the challenged Bihar Finance Act provisions **upheld**; the appeals failed and were dismissed.

Principle

(1) Sequencing: pith and substance FIRST (is the State law within its own entry?) — only then repugnancy; and Art 254(1) is **confined to same-field conflicts on Concurrent-List subjects** (A.S. Krishna's two conditions; clause (2) as the interpretive guide); List-II-vs-I/III overlaps are resolved by Art 246 supremacy → ultra vires, not repugnancy. **(2) Reconciliation before supremacy:** the non obstante of Art 246(1) operates only on irreconcilable conflict — last resort. **(3) Taxation is segregated** — no ancillary tax power from general entries; Union general-subject laws cannot intrude into Entry 54. **(4) Non obstante by-pass ≠ repeal** (Harishankar Bagla) and never engages without real conflict (Paragraph 24 vs 21). **(5) 254(2):** President's assent makes the State law prevail only in that State and only to the extent of inconsistency; Parliament's proviso power reverses it — express or implied.

CASE #64 DU LL.B. PRESCRIBED AUTHORITY

Vijay Kr Sharma v. State of Karnataka — (1990) 2 SCC 562; AIR 1990 SC 2072

W.P. Nos. 723, 238, 170, 759 & 1120 of 1989, decided 27-2-1990 ("Not Printed" in SCC; headnote reproduced) · Per · Sawant J. · (R. Misra J. concurring) · K. Ramaswamy J. dissenting

Facts

The Karnataka Contract Carriages (Acquisition) Act, 1976 (Karnataka Act 21 of 1976) nationalised contract-carriage services in the State: **s. 14** froze private operation — it barred any person from applying for, and any officer/authority from entertaining or granting, an application for a permit to run a contract carriage (except for the State undertaking), while **s. 20** provided the **scheme** machinery by which routes/areas could be reserved for the **State Road Transport Undertaking to the exclusion of private operators**. The Act had received the **President's assent**. The **Motor Vehicles Act, 1988 (Act 59 of 1988)**, which came into force in 1989, enacted a liberalised permit regime — **s. 73** (application for contract-carriage permit), **s. 74** (grant of contract-carriage permits — the Regional Transport Authority "**shall not ordinarily refuse** to grant" an applied-for permit), and **s. 80** (procedure; s. 80(2), 80(3) exceptions) — plus **s. 98**, which gave **Chapter VI (special provisions relating to State Transport Undertakings)** effect **notwithstanding anything inconsistent therewith contained in Chapter V or any other law** (the old counterpart of s. 68B of the Motor Vehicles Act, 1939).

Private transport operators (Vijay Kr Sharma and others) challenged **ss. 14 and 20 of the Karnataka Act** before the Supreme Court: (i) as **repugnant** to ss. 73, 74 and 80 of the MVA 1988 and therefore void under Art 254(1); and/or (ii) as **impliedly repealed** by the later Central enactment.

Issues

1. Are ss. 14 and 20 of the Karnataka Act repugnant to ss. 74/80(2) (and 73/74/80) of the MVA 1988 — do the two statutes occupy the **same field** so that one cannot stand with the other (Art 254(1); implied repeal)?
2. **Method:** can the doctrine of **pith and substance** be applied to determine repugnancy where the two laws are under **different entries of the Concurrent List** (Entry 42 — acquisition — vs Entry 35 — mechanically propelled vehicles/their regulation)?

Arguments — petitioners (operators), as met by the Court

- The MVA 1988 confers a **right to apply** for, and duty on the RTA to ordinarily grant, contract-carriage permits (ss. 74 r/w 80(2)); the Karnataka Act **negates and freezes that very right** — an absolute embargo. The two sets of provisions, applied to the same applicants and the same permits, produce **conflicting results in the same occupied field** → irreconcilable → State law void (the dissent accepts this reasoning).
- Parliament's later, comprehensive legislation on the same field (permits for contract carriages) impliedly repeals the earlier State embargo.

Arguments — State of Karnataka (upholding the 1976 Act)

- **Different dominant purposes:** the Karnataka Act is **acquisition/nationalisation** legislation (Entry 42, Concurrent List + Art 31, implementing Arts 39(b) & (c) — ending abuse of contract services, better public transport, preventing concentration of wealth); the MVA is **regulation** of motor-vehicle operation (Entry 35, Concurrent List). Different subject-matters → Art 254 never engaged.
- **Ancillary:** ss. 14/20 are ancillary to acquisition (who may hold the acquired field); ss. 74/80 are general permit provisions — both stand together.
- **Internal MVA answer:** s. 98 (like s. 68B of the 1939 Act) lets Chapter VI's State-undertaking scheme provisions override Chapter V — so where a scheme notifies nationalisation, ss. 74/80 do not apply; the MVA **itself envisages denial of permits to private operators** → no genuine conflict. (Also: the old MVA ss. 51/57 corresponded to ss. 74/80, yet the President still assented to the 1976 Act.)

Decision

1. **Per Sawant J. (majority): first test — same subject-matter?** "Whenever repugnancy … is alleged, what has to be first examined is whether the two legislations cover or relate to the **same subject-matter**. The test … is the usual one, namely, to find out the **dominant intention**" (pith and substance). If dominant intentions differ → different subject-matters; mere reference to allied/cognate matters — even **partial coverage of the same area in a different context** — does not produce Art 254 repugnancy; the legislation must be "**substantially on the same subject**" and "cover the entire field covered by the other".
2. **Pith and substance is not displaced by Art 254:** "**Not to apply the theory of pith and substance when the repugnancy … is to be considered under Art. 254 … would be illogical**" — the doctrine first validates competence (encroachment review), then answers whether the State law, "though otherwise constitutionally valid, has lost its validity because Parliament has made a legislation with a conflicting provision on allegedly the same matter"; if it resolves Union-State list conflicts by dominant purpose, "there is no reason why the repugnancy between … two legislations under different entries in the same List, viz. the Concurrent List should not be resolved by … the same touchstone".
3. **Application:** Karnataka Act = **Entry 42 (acquisition) read with Art 31** for Arts 39(b),(c); MVA = **Entry 35** (regulation of motor vehicles). Objects "materially different" → "the provisions of Article 254 do not come into play". The permit embargo in ss. 14/20 is **ancillary to acquisition/nationalisation**; ss. 74/80 are general regulation; "both these statutes can stand together". **Presumption against implied repeal:** Parliament enacted the 1988 Act "knowing fully well the existence of the earlier statute and yet it did not expressly repeal it → … no need to repeal". And s. 98/Chapter VI proves the MVA contemplates nationalised exclusion — no irreconcilable clash.
4. **Per R. Misra J. (concurring):** the MVA "does not purport to make any provision in regard to **acquisition** of contract-carriage permits which formed the dominant theme … of the State Act"; ss. 73/74 do not say **who** may apply; s. 80 is liberalised, but s. 20's ancillary exclusion "does not directly run counter"; excluding a class of applicants is not covered by the 1988 provisions → no direct inconsistency → no invitation to Art 254(1).
5. **Per K. Ramaswamy J. (dissenting):** entries "merely demarcate" fields; **the entry used is not decisive** — Arts 246(2)/254 give Parliament paramountcy in the concurrent field. The MVA liberalises and confers the permit-application right while the Karnataka Act freezes and negates it — "the existence of two sets of provisions … is sufficient to produce conflicting results … in the same occupied field"; "operational incompatibility and irreconcilability" → **ss. 14(1) & 20(3) void** as against ss. 73, 74, 80. Special-prevails-over-general cannot save a void law (voidity obliterates ab initio); the State's route is **re-enactment with Presidential assent under Art 254(2)**.

6. **Result: majority upheld ss. 14 & 20 of the Karnataka Act — no repugnancy, no implied repeal; petitions rejected.**

Principle

(1) Repugnancy has a pith-and-substance threshold: before Art 254 is invoked, ask whether the two laws are **substantially on the same subject**, judged by **dominant intention** — across different Concurrent entries too; partial, incidental or cognate overlap is not enough; the State law must occupy the **entire field** of the Central law. **(2) Different dominant purposes = no conflict** (acquisition/nationalisation vs regulation here). **(3) Ancillary provisions ride with their head** (s. 20 scheme = acquisition machinery; permit provisions = regulation). **(4) Express non-repeal by a knowing Parliament** strengthens the presumption against implied repeal; check the Central Act's own override clauses (MVA s. 98) before finding clash. **(5) Dissent's counter-rule:** in the concurrent field the entry chosen is not decisive; genuine operational incompatibility voids the State law — with Art 254(2) re-enactment as the cure.

CASE #65 DU LL.B. PRESCRIBED AUTHORITY

State of Kerala v. Mar Appraem Kuri Company Ltd. — (2012) 7 SCC 106

C.A. Nos. 6660 with 6661-6681 of 2005 & connected matters, decided 8-5-2012 · Constitution Bench · [Art 254 — repugnancy: making vs commencement; implied repeal]

Facts

Chits (chitties) — informal savings-credit devices — are **special contracts**: both the **Kerala Chitties Act, 1975 (Kerala Act 23 of 1975)** and the **Chit Funds Act, 1982 (Central Act 40 of 1982)** are enacted under **Entry 7, List III (Contracts)**. The Central Act received the **President's assent on 19-8-1982** (law-making process complete); s. 1(2) extended it to the whole of India (except J&K), while **s. 1(3)** left **commencement** to notification — **never notified in Kerala**. Its architecture showed occupation of the field: **s. 3** — provisions have effect **notwithstanding anything to the contrary in any other law**; **s. 90** — repeal of State chit legislation (s. 90(1)); intent to be a **complete code**.

On **29-7-2002**, the **Kerala Finance Act (Act 7 of 2002)** inserted **s. 4(1A)** into the Kerala Chitties Act, 1975, extending it to chitties registered **outside** Kerala where ≥ 20% of subscribers usually resided in Kerala. Private chitty firms (Mar Appraem Kuri Co. Ltd. and others) challenged **s. 4(1A) as void under Art 254(1)** for repugnancy with the 1982 Central Act. The **Single Judge** held that, absent a s. 1(3) notification bringing the Central Act into force in Kerala and absent s. 89 rules, the Kerala Chitties Act had **not** been repealed; the **High Court** on comparison found "several … inconsistent and hostile provisions" and held the State law void from 19-8-1982 with s. 4(1A) ineffective — the **State of Kerala** appealed.

Provision-comparison (recorded by the Court): "discount" defined differently (s. 2(g) Central vs s. 2(4) Kerala); s. 8 Central minimum capital & reserve-fund requirements have **no Kerala counterpart**; dual sanction/registration (State sanction + registration under the Central Act) — a foreman registered under the Central Act would be subjected to inconsistent Kerala provisions.

Issues (as framed)

1. **(i) Does "making" of the law or its "commencement" bring about repugnancy under Art 254(1)?** (Must repugnancy "exist in fact", not by mere possibility — Tika Ramji?)
2. **(ii) Effect in law of the repeal:** does non-enforcement of the Central Act in Kerala create a **legislative vacuum**; was the State legislature competent to enact s. 4(1A) in 2002; and what survives of the Kerala Act?

Arguments — State of Kerala / supporting chit firms (appellants)

- "Made" in Art 254 identifies **which** legislature made the law; the declaration of repugnancy is **conditional on operation**; the question of repugnancy arises only after enforcement/commencement — and the Central Act has **never been extended to Kerala** (s. 1(3) notification absent; s. 89 rules unframed).
- Repugnancy "must exist in fact and not depend on mere possibility" (Tika Ramji); mere enactment of a Central law on a List III subject cannot immediately void **all** State enactments — else a **total legislative vacuum**; "if any provision …" and "to the extent of the repugnancy" in Art 254(1) militate against wholesale voiding.

Arguments — private chitty firms (respondents)

- Commencement is irrelevant: "**law made**" (used seven times in Art 254) refers to **enactment**; there is no mention of commencement anywhere in the Article; repugnancy arose on **19-8-1982** when the President assented.
- Parliament intended a **complete code** occupying Entry 7 entirely (s. 3 non obstante + s. 90 repeal manifest the intent); conditional-commencement reading would let a State **bypass Parliament's will**; both laws being under the **same entry**, 254(1) squarely applies; and actual **inconsistent/hostile** provisions exist (so Tika Ramji's "in fact" test is satisfied).

Decision (headnote A-H; conclusions in para 28)

1. **Thresholds restated (para 16):** legislative power is conferred by **Art 245**, not by the entries — "**entries only demarcate legislative fields**"; federal supremacy under Art 246(1) operates only on an "**irreconcilable**", "**real**" conflict — the non obstante "operates only if reconciliation is impossible"; "**law with respect to**" ≠ "law affecting a subject-matter".
2. **Making, not commencement (paras 17-19, 28):** the verb "made/make" in Arts 245, 246, 250, 257 is **deliberate** — supremacy attaches to the **making** of law. "Broadly speaking, law making is exclusively the function of the Legislatures"; the legislative process is complete when the Bill passes both Houses and receives the President's/Governor's assent (Arts 111/200); postponement of enforcement = conditional legislation — "**no part of the legislative function is left unexercised**". The enforcement argument "stands demolished" by the definitions of "laws in force" (Arts 13(3)(b), 372(3) Expl.) and "existing law" (Art 366(10)) — laws "in force" include laws **never in operation**. Throughout Art 254 the emphasis is on making, not commencement. → **Repugnancy arises on the making of the law, not its commencement** (approving the rule in Pt. Rishikesh).
3. **Occupation of the field (para 19):** Parliament's intention to make the 1982 Act "a **complete code**" and occupy Entry 7 entirely is manifested by s. 3 (notwithstanding clause) and s. 90 (repeal of State legislation). Consequently, though unenforced in Kerala, the **State legislature stood divested** of power to enact s. 4(1A) on 29-7-2002 — **save and except under Art 254(2)**; without the President's assent, **s. 4(1A) is void**. The State "was bound to keep in mind" the existing Central law when amending in 2002.
4. **Proviso to 254(2) (para 28):** even an assented State law cannot tie Parliament — it may "add to, amend, vary or repeal" it **as soon as it is made** — Parliament need not wait for the State law to commence.
5. **Voiding + implied repeal (headnote F-G):** two independent tests both satisfied — (a) **actual irreconcilable inconsistencies** (the provision-comparison) and (b) **intent to cover the entire field** → the Acts "cannot stand together"; therefore the **Kerala Chitties Act, 1975 became void under Art 254(1) on 19-8-1982** and "stood **impliedly repealed**" (reinforced by express s. 90(1) of the Central Act).
6. **No legislative vacuum (paras 25-26, 28):** by Art 367, the **General Clauses Act s. 6 applies to the repeal** — s. 6(b) preserves **previous operation**, s. 6(c) preserves **rights, privileges, obligations and liabilities** acquired/incurred under the Kerala Act; and **ss. 85(a) and 90(2)** of the Central Act continue the Kerala Act's application to **chits in operation** on the date of commencement (once notified) — transactions between 19-8-1982 and commencement stand protected. Hence "**there would be no legislative vacuum**" — the State's reductio rejected.

7. **Two routes of repugnancy (headnote H, para 17):** (1) legislations in their **allotted spheres** overlap and conflict → Parliament predominates **by virtue of the non obstante clause in Art 246(1)**; (2) both laws on **Concurrent-List** matters in conflict → **Art 254(1)**. In both situations the Parliamentary legislation predominates.
8. **Result: appeal of the State dismissed — s. 4(1A) void; Kerala Chitties Act, 1975 void/impliedly repealed from 19-8-1982 (subject to GCA s. 6 and ss. 85(a)/90(2) savings).**

Principle
(1) Timing: Art 254 repugnancy is tested at the **making** of the Central law (assent + gazette), never at its **commencement** — conditional/deferred commencement leaves no legislative function unexercised; "laws in force" definitions foreclose the enforcement argument. **(2) Occupation:** a Central Act that is a **complete code** with a notwithstanding clause (s. 3) and a repeal clause (s. 90) manifests intent to cover the whole field — the State legislature is then **denuded**, and any later State law on the matter is void **unless saved by Art 254(2) assent**. **(3) Implied repeal + no vacuum:** void State law ⇒ implied repeal, but GCA s. 6 (via Art 367) + ss. 85(a)/90(2) preserve accrued rights and pending chits — existence of savings defeats the "legislative vacuum" objection. **(4) Structure:** the two predomination routes — allotted-sphere conflicts via Art 246(1); concurrent-field conflicts via Art 254(1); and entries at all times only **demarcate** (Art 245 confers).

PYQ ARCHIVE // CH.08 Previous Year Questions (DU LL.B. Examinations)

Q.1 § Dec-2024 · Q3(a) · 10 marks " 'It does not appear to be a sound proposition to confine Article 254(1) only to the situation where the Central-State laws fall in the Concurrent List rather than when they fall in different Lists and yet are inconsistent to some extent.' Do you agree with this statement? Explain your answer with help of relevant legal provisions and judgments. "

▸ **Refer website for detailed notes — makelaweasy.in · WhatsApp: +91 7021726891**

Q.2 § Dec-2024 · Q3(b) · 10 marks — " Write a short note on the doctrine of colourable legislation. "

Q.3 § Dec-2024 · Q2 · 20 marks (item (e)) — Republic of Dakshin (asymmetric federalism): party A loses Kailash in 2023 → revokes Kailash's special privilege by constitutional amendment (Jan 2024) → civil protests → 1-2-2024 Art 356 proclamation ("failure of constitutional machinery") → State of Kailash challenges in the SC. " Argue on behalf of the State of Kailash. Your arguments must discuss the jurisprudence of federalism, Article 356, as well as the extent and limits of judicial review. " (laws in pari materia with India)

Q.4 § Centenary · Q7 · 20 marks (item (e)) — Safuards against the misuse of Article 356 (question as per earlier transcription of the centenary paper; image of that page not in file).

Q.5 § Centenary · Q8(c) · short note — Doctrine of colourable legislation.

MODULE 09 // TOPIC 8 · TRADE & COMMERCE Cases #66-#68

Freedom of Trade, Commerce and Intercourse: Fiscal Measures, Compensatory Tax Reset & State Monopoly

Part XIII · Articles 301-307 · Articles 19(1)(g) & 19(6)(ii)

§1 Art 301 · Concept & Scope of the Freedom syllabus: "Concept of trade and commerce; scope of freedom..."

Art 301 is the *negative image* of Partition: the framers had just watched custom-posts and permits shatter a subcontinent, and Part XIII is the pledge that India would remain **one economic territory**.

Article 301 — Freedom of trade, commerce and intercourse. "Subject to the other provisions of this Part, trade, commerce and intercourse throughout the territory of India shall be free."

1.1 The three words of the guarantee

Trade & Commerce
Buying, selling, manufacture, transport, hiring — the **business of exchange**. In Krishnan-era doctrine the Court even distinguishes the *essential attributes* of trade from mere incidents (hours, lights, load-size) — laws governing incidents "regulate" trade rather than restrict it.

Intercourse
The widest word: **movement and communication of persons, goods, and even ideas** across the territory — migration, passage, transit. "Intercourse" is what turns a trade guarantee into a **national-market** guarantee (*Atiabari*: freedom of "movement").

Throughout the territory of India
Horizontal, not vertical: it binds every legislature (Union, State, local) territorially — no part of India may be fenced off from another. It protects *inter-State AND intra-State* flow (both are "throughout the territory").

1.2 "Subject to the other provisions of this Part" — freedom with valves

Art 301 opens with "Subject to", which means the guarantee is **always read together with Arts 302-305**. Jindal (2017) put it plainly: *"Freedom of trade, commerce and intercourse in terms of Article 301 is not absolute but is subject to the provisions of Part XIII."* The architecture works as a cascade:

1.3 What does "free" mean? Two tempting wrong answers

x Not "free from regulation"
G.K. Krishnan (Mathew J): *"The word 'free' does not mean freedom from regulation."* Laws laying down **rules of proper conduct** for the activity — traffic rules, hours, weight, safety — are **regulations** that *facilitate* trade, not barriers. The line: does the law touch the **essential attributes** of the transaction (movement/sale), or merely its **incidents**?

x Not "free from taxation" either
Jindal (2017) proposition 1: *"The word 'Free' used in Article 301 does not mean 'free from taxation'"* — taxes simpliciter lie outside Part XIII. Only a **discriminatory** tax (hostile, protectionist sense) is an "impediment" under Art 301 (prop. 2, 8). The State's sovereign tax power is limited only by **express** constitutional limits (prop. on Art 245/246/265 read with 304(a)).

Scope check — Art 301 vs Art 19(1)(g): Art 19(1)(g) protects the *individual's* business against *unreasonable* restrictions; Art 301 protects the *flow of trade itself* (movement, intercourse) against *any* restriction not authorized by Part XIII's valves — no "reasonableness" gateway except where 304(b) demands it. A law can be perfectly reasonable under 19(6) yet still violate Art 301 (no valve invoked), and vice-versa. *G.K. Krishnan* had to satisfy **both** routes (301/304(b) *and* 19(1)(g)) because the challenge was pleaded on both.

§2 Fiscal Measures · Direct & Immediate Restrictions · Regulatory & Compensatory Taxes syllabus: "fiscal measures; direct and immediate restrictions; regulatory measures; compensatory taxes"

This is the *battleground* of Topic 8 — half a century of case-law on one question: **when does a State levy become a "restriction" on free trade?** The exam wants the four labels, the tests, and who invented/killed each one.

Fiscal measures

Any **exaction by the State in its taxing power** — sales tax, entry tax, vehicle tax, octroi, surcharges. Two distinct complaints arise: (i) the *burden* itself impedes movement (triggering 301/304(b)), or (ii) the burden *discriminates* against out-State goods (triggering 304(a)). Jindal resolved (i): a non-discriminatory tax never triggers 301; (ii) is the only live fiscal question — tested **solely** under 304(a).

▸ Direct and immediate restrictions

Atiabari's test (1961): does the impugned measure operate *"directly and immediately on trade or its movement"*? Only such restrictions fall within Art 301 — remote/indirect burdens do not. Designed to save Assam's goods-carry tax, it instead created the "only movement-based taxes are caught" doctrine — and, ironically, threatened every State's Entry-56 levies (Krishnan's critique).

2.2 Fiscal measure → which gate? (the post-Jindal map)

Automobile Transport (Rajasthan) (7 JJ, 1962) — the compensatory creed, as quoted in DU Mahavir material: "Regulatory measures or measures imposing compensatory taxes for the use of trading facilities do not come within the ambit of Article 301 and… need not comply with the requirements of Article 304(b)." — now overruled to that extent (Jindal 2017, prop. 5–6).

§3 The Doctrine's Rise & Fall · 1961–2017 flow of all three cases through time

If you learn this timeline, every question on "compensatory taxes" or "direct and immediate restrictions" answers itself — the examiners are really asking: **which era's rule applies?**

1961 — Atiabari Tea Co. v. Assam (4:1; Sinha CJ dissenting). Assam Taxation (on Goods carried by Roads & Inland Waterways) Act, 1954 struck. **Test born:** only restrictions "directly and immediately" operating on trade's movement fall in Art 301. Sinha CJ: taxation simpliciter ≠ Art 301 restriction; Shah J: Art 301 freedom is in "widest amplitude".
1962/63 — Automobile Transport (Rajasthan) (7 JJ, 4:3). Rajasthan Motor Vehicles Taxation Act upheld. **Compensatory theory created:** taxes for use of trading facilities = outside Art 301, need not satisfy 304(b). "Working test": is the trader paying "patently much more" than facilities cost?
1974/75 — G.K. Krishnan v. Tamil Nadu (case 66). Contract-carriage tax ₹30→₹100/seat/quarter upheld: compensatory on facts (road spend ₹19.51 cr > receipts ₹16.38 cr); motive irrelevant; Art 14 classification valid. Also sowed doubt: Mathew J questioned whether 304(b) even covers non-discriminatory taxes.
1980s–90s — Sales-tax line: Nataraja Mudaliar, H. Anraj, Indian Cement, Weston, Video Electronics (3 JJ) — 304(a) policing of *rate discrimination*: total local exemptions void (*Anraj*); varying inter-State rates bad (*Indian Cement*); but **limited-period, class-specific new-unit incentives upheld** (*Video Electronics*) — the exception *Mahavir* later polices.
1996 — Shree Mahavir Oil Mills (case 67) (2 JJ). J&K's blanket SRO exemption for local small-scale units while out-State makers paid 8% = "hostile discrimination" void vs Arts 301 + 304(a); Art 14 route rejected; relief moulded under Art 142 (effective 1-4-1997).
1995/96 — Bhagatram & Bihar Chamber of Commerce (3 JJ) stretch the theory: compensatory need only "some connection" with facilities, direct or indirect — even incidental public benefit suffices. Chaos in entry-tax litigation follows.
2003 — Jindal Stripe (2 JJ) refers the Atiabari-vs-Bhagatram conflict; **2006 — Jindal(2) (5 JJ)**: overrules Bhagatram + Bihar Chamber; re-affirms Atiabari/Automobile direct-and-immediate + working test.
2009–10 — Jaiprakash (2 JJ) frames 10 questions; Jindal(2010) (5 JJ) refers Atiabari/Automobile for reconsideration, noting the doubt "as early as 1975 in G.K. Krishnan".
2016/17 — Jindal Stainless (case 68) (9 JJ, 7:2). Compensatory theory rejected as juristically baseless; Atiabari, Automobile & Jindal(2) overruled to that extent; non-discriminatory taxes outside Art 301; entry-tax laws of 14+ States revived; answers referred back to regular benches.

§4 Arts 302–303 · Parliament's Power to Restrict syllabus: "restrictions… power of Parliament"

Parliament sits at the **top** of the restriction hierarchy: it may restrict freely in public interest — but even Parliament may not play favourites between States, unless the goods are scarce.

Article 302 — Power of Parliament to impose restrictions… "Parliament may by law impose such restrictions on the freedom of trade, commerce or intercourse between one State and another or within any part of the territory of India as may be required in the public interest."

Article 303 — Restrictions on the legislative powers of the Union and of the States…
(1) "Notwithstanding anything in article 302, neither Parliament nor the Legislature of a State shall have power to make any law giving, or authorising the giving of, any preference to one State over another, or making, or authorising the making of, any discrimination between one State and another, by virtue of any entry relating to trade and commerce in any of the Lists in the Seventh Schedule."
(2) "Nothing in clause (1) shall prevent Parliament from making any law giving, or authorising the giving of, any preference or making, or authorising the making of, any discrimination if it is declared by such law that it is necessary to do so for the purpose of dealing with a situation arising from scarcity of goods in any part of the territory of India."

302 — the public-interest valve (Parliament only)

- **Only Parliament** gets this free-restriction power — no matching State power (States go through 304).
- Covers both **inter-State AND intra-State** trade ("between one State and another or within any part of the territory of India").
- **"by law"** — legislation only, not executive order; standard = **public interest** (no express "reasonableness" word — contrast 304(b)).
- Jindal (para 67): 301+302 together = "the absolute character of the freedom… is lost by reason of Article 302 itself empowering Parliament to impose such restrictions".

303 — the anti-preference rule (+ scarcity key)

- **303(1):** notwithstanding 302, **neither Parliament nor a State** may legislate **preference/discrimination between States** "by virtue of any entry relating to trade and commerce" in the Seventh Schedule — this is the constitutional ban on "buy-Bharat-first" style legislation.
- **303(2):** the **only** exception — Parliament may, if the **law itself declares** that it is necessary to deal with a **situation arising from scarcity of goods** in any part of India (e.g. famine-time allocation laws: think the Essential Commodities framework during shortages).
- Jindal (para 68) conjoint reading: "while the Parliament may impose restrictions in public interest under Article 302, the restriction so imposed shall not be in the nature of giving preference… except when the law declares that scarcity… necessitates such preference or discrimination."
- Note **303 binds States too** — a State cannot prefer its own goods via a "trade and commerce" entry either (feeds directly into 304(a) litigation).

§5 Art 304 · State Legislatures — Tax & Restrict Among States syllabus: "restrictions among states… power of… state legislatures"

Art 304 is where 90% of Part XIII litigation lives: every sales-tax, entry-tax, exemption-SRO and permit-ban case runs through its two **disjunctive** clauses.

Article 304 — Restrictions on trade, commerce and intercourse among States. "Notwithstanding anything in article 301 or article 303, the Legislature of a State may by law—
(a) impose on goods imported from other States [or the Union territories] any tax to which similar goods manufactured or produced in that State are subject, so, however, as not to discriminate between goods so imported and goods so manufactured or produced; and
(b) impose such reasonable restrictions on the freedom of trade, commerce or intercourse with or within that State as may be required in the public interest:
Provided that no Bill or amendment for the purposes of clause (b) shall be introduced or moved in the Legislature of a State without the previous sanction of the President."

5.1 Anatomy of the two clauses

304(a) — the EQUAL-TAX clause (no sanction needed)

- Empowerment with two express conditions (Jindal para 69): **(i)** similar local goods must be taxed too ("tax you may — but tax your own too"); **(ii)** no discrimination between imported and local goods.
- Covers goods "imported from other States **or the Union territories**" (7th Amdt 1956).
- Jindal: this clause "exhausts the universe" of State taxing limits vis-à-vis Part XIII; **hostile/protectionist** discrimination only — differentiation (incentives, set-offs) survives (props 8–9).
- **No Presidential sanction under 304(a)** — sanction machinery belongs only to clause (b) (Jindal prop 3 + para 70).
- **Test for a violating levy: Mahavir** — total/local-only exemptions + outside-goods rates = void vs 301+304(a); relief moulded, no refunds, prospective cut-off.

304(b) — the REASONABLE-RESTRICTION clause (President at the gate)

- **Non-fiscal restrictions only** post-Jindal (licensing bans, route bans, entry bans, stock limits…).
- Triple test: **(1) by law** (not executive order — *Indian Cement*, per DU Mahavir); **(2) reasonable** + **required in public interest**; **(3) proviso: previous sanction of the President** *before the Bill is introduced or moved* (Art 255 deems a Governor's recommendation/existing Presidential recommendation as the required recommendation; Mahavir reads 304(b) "with Article 255").
- Non-obstante opening: "Notwithstanding anything in article 301 **or article 303**" — a 304(b)-compliant State restriction overrides both the freedom (301) and the preference ban (303) — **but not 304(a)**: Jindal prop 4 says a 304(a) breach can never be cured by 304(b) compliance.
- Classic invalidity pattern: discriminatory notifications issued *under executive power* without law/sanction (Indian Cement route); classic validity: permit/ban laws for public order or road safety with sanction.

5.3 Parliament vs State — side by side (favourite table question)

Dimension	Parliament — Arts 302 & 303	State Legislature — Art 304
Source of power to restrict	Art 302: "may by law impose… as may be required in the **public interest**"	Art 304(b): "may by law impose such **reasonable** restrictions… as may be required in the public interest" — **plus** proviso: **previous sanction of the President** before introduction
Power to tax for the restriction	Taxing entries via Lists I/III generally; 302 is about restrictions (taxes go through 301 per post-Jindal map only if discriminatory)	Art 304(a): tax imported goods **equal** to similar local goods; no discrimination; **no sanction needed**; taxes ≠ restrictions (Jindal)
Preference between States	Forbidden by 303(1) even under 302 — unless 303(2) **scarcity declaration**	Forbidden by 303(1); 304's non-obstante covers 301/303 for (b)-compliant laws — but a discriminatory tax still fails 304(a)
Kind of measure	Any restriction, public interest standard (no express "reasonableness")	(b): non-fiscal, reasonable, public interest, by law; (a): fiscal, non-discriminatory
Classic exam authority	Atiabari (Art 301 vs Assam's goods-carry tax); scarcity laws under 303(2)	Mahavir (304(a) hostility); Jindal (disjunctive reading + props); Indian Cement (304(b) needs a law)

§6 Arts 305–307 · Savings & State Monopoly syllabus: "state monopoly (Articles 301-307)"

The last valve: **Art 305** keeps pre-Constitution law and State-monopoly machinery alive despite 301/303; **306** is a fossil; **307** is Parliament's unused enforcement pen.

Article 305 — Saving of existing laws and laws providing for State monopolies. "Nothing in articles 301 and 303 shall affect the provisions of any existing law except in so far as the President may by order otherwise direct; and nothing in article 301 shall affect the operation of any law made before the commencement of the Constitution (Fourth Amendment) Act, 1955, in so far as it relates to, or prevent Parliament or the Legislature of a State from making any law relating to, any such matter as is referred to in sub-clause (ii) of clause (6) of article 19."

Article 306 (original: "Power of certain States in Part B of the First Schedule to impose restrictions on trade and commerce") — Omitted by the Constitution (Seventh Amendment) Act, 1956, s. 29 & Sch. (w.e.f. 1-11-1956). Part B States ceased to exist as a class — the provision went with them. Exam one-liner: "Art 306 is spent — a relic of the integrated States reorganisation."

Article 307 — Appointment of authority for carrying out the purposes of articles 301 to 304. "Parliament may by law appoint such authority as it considers appropriate for carrying out the purposes of articles 301, 302, 303 and 304, and confer on the authority so appointed such powers and such duties as it thinks necessary."

Ankur R. Upadhyay

6.1 How the monopoly valve works

§ "Existing law"
Laws in force when the Constitution began (26–1–1950) — saved against 301/303 **unless the President by order directs otherwise** (the classic subject of Presidential "otherwise-direct" orders under Art 305 first limb).

State monopoly = Art 19(6)(ii)
The 1955 Fourth Amendment inserted Art 19(6)(ii): the right to practise a profession/trade/business **does not prevent the State from carrying on any trade** (i.e., a State monopoly). Art 305's second limb says 301 won't touch laws relating to that matter — **monopoly statutes are free of the free-trade guarantee**.

Where you see it
State liquor monopolies (TASMAC-style retail in TN/Kerala models; state liquor vend acts), certain States' wine/spirit wholesaling, older salt/excise monopolies — all defended via 305 + 19(6)(ii); validity still judged under **Art 14 & 19(6) reasonableness**, not Art 301.

Art 307 in practice: Parliament has never appointed a general "free trade authority" under Art 307 — enforcement of 301–304 has remained entirely **judicial** (Arts 226/32 → Supreme Court references). But the power remains live: a Parliament could, e.g., create a cross-State trade facilitation authority with investigatory teeth under Art 307. Exam line: "*307 is an unused but residually potent enforcement provision — the Constitution anticipated an administrative referee for Part XIII and settled for the courts instead.*"

Prescribed Landmark Case Laws — Detailed Analysis

CASES #66–#68

CASE #66 DU LL.B. PRESCRIBED AUTHORITY

G.K. Krishnan etc. v. State of Tamil Nadu & Anr. etc.

(1975) 1 SCC 375 = AIR 1975 SC 583 = 1975 SCR (2) 715 · decided 12-11-1974 · Bench: · A.N. Ray CJ, K.K. Mathew & A. Alagiriswami JJ · judgment by · Mathew J ·

§ Facts

The **Madras Motor Vehicles Taxation Act, 1931** (Act 3 of 1931) was enacted to abolish tolls in the Presidency of Madras and motor-vehicle levies of local bodies. **S. 4(1)** empowers the State Government, *by notification in the official gazette*, to levy "a tax on every motor vehicle using any public road"; s. 4(2) requires the notification to specify rates and quarter, **not exceeding the maxima in Schedule II** (amendable by rules under s. 17, laid on the Assembly's table). Schedule II entry 4(iii) covers stage carriages, entry 4(iv) contract carriages.

Chronology of the levy:

- Original rate **₹10 per seat per quarter** → raised to **₹30** when regional transport authorities began issuing permits.
- **G.O.Ms. 923–Home, 19–4–1969:** ₹30 → **₹50** w.e.f. 1–7–1969. Avowed object: "to avoid unhealthy competition between omnibuses and regular stage carriage buses and to put down the misuse of omnibuses". Challenged (WP 1412/1969 etc.).
- Pending those writs, **G.O.Ms. 434–Home, 27–2–1970:** ₹50 → **₹100** w.e.f. 1–9–1970 — same avowed object; more writs.
- **Madras HC common judgment 29–1–1971:** quashed both notifications as *"a device to eliminate the operation of contract carriages"* and not an exercise of the power of taxation → rate reverted to ₹30. Appeals to the SC followed.
- Meanwhile **G.O. No. 2044–Home, 20–9–1971:** again ₹30 → **₹100 per seat per quarter** w.e.f. 1–7–1971 — **the notification under challenge** (leading WP 253/1973; CAs 2415/1972 & 128–132/1973 from the HC's 14–2–1972 orders).

The lead petitioner owned a **54–passenger omnibus** with a contract-carriage permit (16–5–1968), paying ₹30/seat/quarter. **Counter-affidavit of the State:** in 1970–71 the Government spent **₹19.51 crores** on maintenance *and construction* of roads (excluding grants to local bodies; "road costs" incl. traffic-control devices, safety measures, improvements, enforcement staff) while vehicle-tax receipts were only **₹16.38 crores**. Reasons for taxing contract carriages higher: they run **more miles** (no fixed route/schedule — free to ply any road, certified-fit or not, day or night, unlimited miles), cause greater wear (higher speeds → higher impact stresses), carry more load, and pay **no surcharge** — whereas stage carriages run fixed routes/times, are capped (rule: 250 miles), must use certified roads, and their owners also pay a **surcharge of 10 paise per rupee of fare** (compounding ₹25/seat/quarter) under the **Tamil Nadu Motor Vehicles (Taxation of Passengers and Goods) Act, 1952**. Under the **Motor Vehicles Act, 1939**: "contract carriage" = s. 2(3) (whole-vehicle hire, no picking up en route), "stage carriage" = s. 2(29) (separate fares); permits governed by ss. 42, 46–51; fares by s. 43; speed by s. 71.

§ Issues

1. Is the notification a **colourable device** — not bona fide taxation but a means to eliminate competition between omnibuses (contract carriages) and Government-run stage carriages?
2. Is the levy a **restriction on the freedom of trade, commerce and intercourse under Art 301** — neither compensatory nor regulatory — and therefore invalid because it is an executive notification, not "law" made with the **previous sanction of the President under Art 304(b)**?
3. Is the enhanced rate **confiscatory/excessive** — an unreasonable restriction under **Art 19(1)(g)** read with 19(6)?
4. Does the **higher rate on contract carriages vs stage carriages** violate **Art 14** — are they similarly situated for vehicle-taxation purposes (road use)?

Arguments

For the petitioners/appellants (S.V. Gupte, K.S. Ramamurthi, A.T.M. Sampath, A.K. Sen, K. Doraiswamy etc.):

- **Colourable device:** the notification "was not a measure of taxation but a device to eliminate the competition of omnibuses with stage carriages run by Government" — the stated object of G.Os. 923 and 434 was exactly that; motive betrays a pretence.
- **Art 301 route:** the tax is *neither compensatory nor regulatory*, hence a "restriction" on free trade; since it is issued under *delegated* power (s. 4), it is not a "law made by the legislature", and the President's previous sanction could never have been obtained for it → it cannot be saved by **Art 304(b)** → void.
- **Art 19(1)(g):** the rate (₹100/seat/quarter) is *confiscatory* — an unreasonable restriction on the right to carry on business.
- **Art 14:** (Gupte) stage and contract carriages "are similarly situated with respect to the purpose of vehicle taxation, namely, the use of the road" — taxing one higher has "no reasonable relation to the purpose of the Act" → manifestly discriminatory.

For the State of Tamil Nadu (S. Govind Swaminathan, Adv. Gen., A.V. Rangam, A. Subhashini):

- **Power, not motive:** s. 4 expressly authorises the levy; a legislature competent to pass the Act + Government competent to notify = no colourable exercise, even if competition-elimination was the true purpose ("If an authority has power to impose a tax, the fact that it gave a wrong reason… would not derogate from the validity of the tax").
- **Compensatory facts:** road expenditure (₹19.51 cr) exceeds vehicle-tax receipts (₹16.38 cr); "working test" of *Automobile* satisfied — traders get facilities, pay not "patently much more"; rough approximation suffices; no separate fund needed.
- **Classification is factual:** contract carriages run more miles on any road at any time → greater wear; stage carriages are route/time/mileage-capped and pay surcharge — reasonable relation to road-usage; presumption of validity in taxing statutes; mileage data lies with the operators, who placed *nothing* on record.

Decision (Mathew J for the Court)

(i) Colourable device — rejected [para 9]. "As the State Legislature was competent to pass the Act and as the Government is authorised under s. 4 to levy the tax, the question of the motive with which the tax was imposed is immaterial… there can be no plea of a colourable exercise of power to tax if the Government had power to impose the tax, and the fact that the imposition of the tax was for the purpose of eliminating competition would not detract from its validity."

(ii) Art 301/304(b) — the doctrinal core. The Court reviewed the line of authority itself:

- **Atiabari (1961) (4:1):** restrictions "directly and immediately" restricting/impeding the free flow or movement of trade fall within Art 301 — taxes "may and do amount to restrictions, but… only such taxes as directly and immediately restrict trade" are caught; Sinha CJ dissented ("taxation simpliciter… not within Article 301"); Shah J read Art 301 in the "widest amplitude". Krishnan's critique: the test "had great adverse effect upon the financial autonomy of states" — an Entry-56 List II road-tax would be bad, rendering the entry "otiose".
- **Automobile Transport (7 JJ, 4:3) practically overruled that insofar as** a State may tax to raise money to maintain roads without Art 304(b) sanction; per *Khelbari Tea (1964) 5 SCR 975*, *Automobile* affirmed *Atiabari* "with a clarification that regulatory measures or measures imposing compensatory tax do not come within… Article 301 and… need not comply with… Article 304(b)". *"In whatever way one may choose to put it, the effect of the majority decision in the Automobile Case is that a compensatory tax is not a restriction upon the movement part of trade and commerce."*
- **Textual scheme:** Art 301 = general limitation on all legislative power; Art 302 = Parliament's public-interest restriction power; Art 303(1) = preference/discrimination ban; *"Each of the clauses of Article 304 operates as a proviso to Articles 301 and 303"* — 304(a) puts imported goods "on a par" with local goods in State taxation; 304(b) = State analogue of 302 but with **reasonableness** additionally.
- **"Free" ≠ freedom from regulation.** Distinction between laws interfering with the freedom to carry out trade-activities and laws imposing "rules of proper conduct" (regulation). "Regulations like rules of traffic **facilitate** freedom of trade and commerce whereas restrictions **impede** that freedom." Toll/road-tax collections "do not operate as barriers". **Held: the notification's tax is compensatory in character and therefore does not restrict Art 301 freedom** — need not comply with 304(b) [per *Automobile*].

Compensatory test applied: compensatory tax = charge for "nature and extent of the use made of the roads" (mileage/ton-mileage type), proceeds devoted to upkeep, no substantial interference with movement; no burden "beyond a proper recompense for the actual use"; users owe "a special contribution… over and above their general contribution as taxpayers". Working test (*Automobile*): are traders having the use of facilities "and not paying patently much more than what is required for providing the facilities"? "Rough approximation, rather than mathematical accuracy is all that is required" (Aristotle: precision "just so far as the nature of the subject admits"). Road-cost figures (19.51 > 16.38) pass it; even excluding capital cost of new roads, receipts wouldn't cover old-road maintenance; even the Rajasthan HC's figures in *Automobile* showed tax ≈ 50% of road costs. Supporting authorities: *Armstrong v State of Victoria* (99 CLR 28) and *Commonwealth Freighters v Sneddon* (102 CLR 280) on upkeep-vs-capital (Court: cannot say capital expenditure actually entered the levy); US: *Interstate Transit v Lindsey* (283 US 183), *Capital Greyhound Lines v Brice* (339 US 542), *Morf v Bingaman*, *Aero Mayflower* (result-based review, proper purpose + discretion); *Freightlines v NSW* [1968 AC 625] (charge to adversely affect trade = restriction).

(iii) The famous dictum (later vindicated by Jindal!): *"Whether the restrictions visualized by Article 304(b) would include the levy of a non-discriminatory tax is a matter on which there is scope for difference of opinion. Article 304(a) prohibits only imposition of a discriminatory tax… Article 304 itself makes a distinction between tax and restriction."* A discriminatory tax against outside goods "is not a tax simpliciter but a barrier". Taxing powers of Union and States are "separate and mutually exclusive" — "it is rather strange that power to tax given to States… should depend upon the goodwill of the Union executive"; a contrary reading would make intra-State sales tax bad without Presidential sanction. *"It is unnecessary to pursue the matter further, as we think the tax imposed by the notification is compensatory in character…"*

(iv) Art 19(1)(g): no material to show the levy confiscatory; "a tax which is compensatory cannot operate as an unreasonable restriction… for, the very idea of a compensatory tax is service more or less commensurate with the tax levied. No citizen has a right to engage in trade or business without paying for the special services he receives from the State."

(v) Art 14: presumption that a classification — especially in a taxing statute — is valid; challenger bears the burden (*Amalgamated Tea Estates*, *Murthy Match Works*). Art 14 offends "only if the classification rests on grounds wholly irrelevant to the achievement of the objective"; a statutory discrimination stands "if a state of facts may reasonably be conceived… to justify it" (*McGowan v Maryland*). Following **State of Gujarat v. Ambica Mills** ("courts have only the power to destroy, not to reconstruct"; judicial self-restraint in tax/economic regulation) and **San Antonio School District v. Rodriguez** (Stewart J: courts "lack both the expertise and the familiarity with local problems" for raising revenue; no tax scheme "free of all discriminatory impact"), and *Carmichael v. Southern Coal & Coke* (local-conditions rationale): contract carriages' freedom to run more miles was known only to the operators — State's inference that they ran more miles "cannot be said to be a purely speculative assessment"; petitioners, holding the data, placed none. **Classification reasonable → enhanced rate not hit by Art 14.**

Disposition: *"We dismiss the writ petitions and appeals without any order as to costs."*

Principle

Ratio — and its shelf life

1. A levy that is **compensatory** (charge for trading facilities ≈ cost of the facility) or **regulatory** is **not a "restriction" under Art 301** and need not satisfy Art 304(b) — following *Automobile*. SUPERSEDED — the compensatory-tax theory was **rejected in Jindal (2017), prop. 5–6**; do not cite this as current law.

2. Motive is irrelevant to colourable-exercise objections against a tax where both the statute and the notification are within power — a wrong reason does not invalidate a competent levy (also bolsters Mahavir's later point: laudable objects don't cure discriminatory rates, and vice-versa).

3. In Art 14 challenges to taxing classifications: **presumption of validity + burden on the challenger**; local-conditions-based classifications get judicial deference.

4. Hidden gift to the future: the Court's hesitation to treat non-discriminatory taxes as 304(b) restrictions prefigures **Jindal's holding that 304(a) is the only express fiscal limitation in Part XIII** — a great "judicial development" point for a 20-marker.

CASE #67 DU LL.B. PRESCRIBED AUTHORITY

Shree Mahavir Oil Mills & Anr. v. State of Jammu & Kashmir & Ors.

1996 (11) SCC 39 · Bench: · B.P. Jeevan Reddy & Suhas C Sen JJ · judgment by · B.P. Jeevan Reddy J · (all facts/arguments/ratio below from the DU material, DU Case Material pp. 357-367)

§ Facts

Setting. "The State of Jammu and Kashmir seeks to encourage and promote the industrialisation of the State — like every other State in the country" (para 2, DU). Edible oil manufacture was the chosen vehicle. The appellant = a manufacturer of edible oil **outside** J&K, selling in the State.

The impugned SROs (the whole case is about two notification-streams):

- **SRO 93, dated 7-3-1991** — issued under **s. 5 of the J&K General Sales Tax Act, 1962**: **total exemption** from sales tax on goods manufactured by **local small-scale units** (investment ceiling raised from ₹10 lakh to ₹30 lakh) — for **five years**, extendable by five more (i.e., potentially a decade), covering virtually every local edible-oil unit.
- **Edible oil's own rate:** shifted from **Schedule D (4%) to Schedule C (8%)** — first by **SRO 213/1993** (later rescinded), then by **SRO 124/1994**. Result: **out-State makers of edible oil: 8%; local units: nil (exempt)**.
- **Procedural history:** Himachal Pradesh traders (out-State sellers facing the 8% + nil-local asymmetry) moved the HP High Court; the **Single Judge** and then the **Division Bench** dismissed their writs — the Division Bench relying on **Video Electronics v. State of Punjab (1990) 3 SCC 87 (3 JJ)**. The out-State manufacturers appealed to the Supreme Court (Salve leading).

§ Issues

1. Does the **blanket, total tax exemption to all local small-scale edible-oil units** while out-State makers pay 8% violate **Art 301** (freedom of trade) and **Art 304(a)** (no discrimination against imported goods by taxation)?
2. Can such a discrimination be upheld as a **classification under Art 14** (promoting local industry = laudable object)?
3. Does **Video Electronics** (limited-period new-unit incentives upheld) protect these SROs? Did out-State makers **acquiesce** (no protest at the earlier 4% rate; rising turnover)?
4. What **relief** is appropriate — straight striking-down, or moulding (dates, refunds) under Art 142?

Arguments

For the appellants (out-State edible-oil makers) — Mr Harish Salve:

- The SRO scheme is classic hostile discrimination under **Art 304(a)**: local goods "nil", imported goods 8% — "so, however, as not to discriminate" is flatly breached; also offends the **Art 301** guarantee of free trade throughout the territory.
- **States cannot erect fiscal barriers** — Part XIII exists precisely to keep India one economic unit; the only constitutional route for a State to impose differential fiscal burdens is the **President's-assent machinery of Art 304(b)** (and 304(a)'s equality command) — neither was complied with.
- **Video Electronics is distinguishable**: that case upheld incentives for a *specified class* of *new* units for a *limited period*; here the exemption is **total and unconditional** for the whole local industry (old and new), indefinitely renewable (5+5 years).

For the State of J&K / HP respondents — Mr Verma (as recorded in DU):

- **Video Electronics applies directly**: limited-period exemptions to promote infant industry were upheld there — the same industrialisation logic governs SRO 93.
- **Art 14 classification is read into Art 304(a)**: "discrimination" means *unreasonable* differentiation; a classification fostering investment and employment in a backward State is reasonable, not hostile.
- **No prejudice / acquiescence:** out-State makers did not protest when the rate was merely 4%; their **turnover in the State kept rising** — they accepted the field with the tax.
- **Laudable object:** industrialisation and small-scale promotion of a disturbed, backward State — courts should not strike down fiscal policy enacted in furtherance of Art 39-type goals.

Decision

The Part XIII scheme (para 8 — the DU exam's favourite paragraph):

- **Art 301** makes trade free "subject to the other provisions of this Part" — and among them **Art 304(a) is the taxes valve**: a State "*may impose on goods imported from other States any tax to which similar goods manufactured or produced in that State are subject, so, however, as not to discriminate*".
- 304(a) is the **negative aspect** — "tax you may… but do not discriminate"; a "**ringing declaration against tax/fiscal barriers**". The Court observed that 304(a) is arguably **"not really an exception [to Art 301]… but a restatement of a facet of 301"**.
- **Art 304(b)** (reasonable restrictions, public interest + proviso's previous Presidential sanction, read with Art 255) is the positive valve; **Art 302** = Parliament's public-interest valve; **303** = no inter-State preference (scarcity exception). Underlying theme: **oneness of the territory**.

Case-law survey in the DU excerpt: Atiabari ("Does the impugned restriction operate directly or immediately on trade or its movement?" — flow of trade "smooth and unhampered"); **Automobile Transport** (7 JJ 4:3 — regulatory/compensatory measures outside 301/304(b)); **Mehtab Majid** (higher tax on imported hides = discriminatory → struck); **N.K. Nataraja Mudaliar** (CST s. 3 violation of 301 saved by 302; s. 2A rates ≠ 303(1); 304(a) inapplicable there; Shah J's flow-of-trade observations didn't help the State); **H. Anraj (1986) 1 SCC 414** (Tamil Nadu's own-lottery exemption = unfavourable discriminatory tax → struck); **Indian Cement (1988) 1 SCC 743** (challenge UPHELD: (i) 304(b) restrictions need a **law**, not executive orders; (ii) varying inter-State sales-tax rates = local preference bad under Part XIII); **Weston Electroniks** (lower rate for local electronics = discriminatory); **Video Electronics (3 JJ)** (UP new-units limited-period exemption + Punjab's 1% for specified electronic goods upheld — pro-industry observations on industries in "limping or infancy", relied on by the State); **W.B. Hosiery**; comparative: **West Lynn Creamery** (Australia) and **Bacchus Imports** (US Commerce Clause) against protectionism.

Ratio (para 25): Art 304(a) prohibits discrimination only by way of taxation — States remain free to promote local industry by *any* means **except discriminatory tax rates**: *"It matters not how this discrimination is brought about"* — form is irrelevant; the **Video Electronics exception** survives only within its limits: **specified/new industries + limited period + conditions**.

Answers to the defences:

- **Art 14 rejected:** "*Art 14 speaks of equality; Art 301 speaks of freedom and Art 304(a) speaks of uniform taxation*" — Part XIII's own text governs; you cannot smuggle a reasonableness/classification gateway into a flat non-discrimination command.
- **No acquiescence:** one cannot acquiesce in a constitutional right; the earlier 4% common rate proves nothing.
- **Turnover immaterial:** rising sales do not legalise a discriminatory fiscal structure.
- **Laudable object:** industrialisation is commendable, but the Constitution prescribes the machinery (304(a)/304(b)) — good ends through wrong machinery still fail.

Holding: blanket exemption to **ALL** local small-scale edible-oil units (with out-State makers at 8%, even for ten years) is **violative of Arts 301 and 304(a)**.

Relief (paras 26–27, moulded under Art 142): declaration of invalidity with two accommodations: **(a) no refunds** to the appellants (who had paid at the applicable rate); **(b) invalidity effective from 1-4-1997** — the notifications remain operative till 31-3-1997, giving the State time to restructure. **"Appeal allowed in these terms."**

Principle

Ratio of Mahavir

A State may subsidise, incentivise and promote local industry by every means — except by taxing outside goods more than its own. Art 304(a) strikes discriminatory taxation irrespective of motive, object or label; total/broad local exemptions paired with rates on imported goods

= hostile discrimination void vs Arts 301 + 304(a); *Video Electronics* saves only **class-specific, limited-period, conditional** incentives; Art 14 "reasonableness" is no gateway to Part XIII; relief may be moulded (prospective dates, no refunds) under Art 142.

How Jindal reads Mahavir: in *Jindal* (para 130–134, DU p. 378) the majority relies on **Mahavir** for the **total-and-unconditional** exemption being the vice, and distinguishes it through *Video Electronics* — "discrimination" in 304(a) involves an element of **"intentional and unfavorable bias"**; mere differentiation ≠ discrimination. Mahavir remains good law — it is the live test for exemption/notification challenges (e.g. State industrial-policy SROs).

CASE #68 DU LL.B. PRESCRIBED AUTHORITY

Jindal Stainless Ltd. & Anr. v. State of Haryana & Ors.

(2017) 12 SCC 1 · Constitution Bench answering a 9-Judge reference, pronounced 11-11-2016 · Majority: · T.S. Thakur CJ · (for himself, · A.K. Sikri · & · A.M. Khanwilkar · JJ) with separate concurring judgments of · S.A. Bobde, Shiva Kirti Singh, N.V. Ramana & R. Banumathi JJ ·; · Dissent: Dr D.Y. Chandrachud & Ashok Bhushan JJ – 7:2 · (ORDER + paras 1–11, 66–72, 79, 126–143 per DU pp. 368–391)

§ Facts & procedural history (the longest runway in Indian tax law)

- **The levies:** at least **14 States**, using **Entry 52, List II** (taxes on the entry of goods into a local area), enacted laws taxing "entry of goods into local areas comprising the States". Assessors challenged them in High Courts under **Arts 301, 304(a)** and for want of **Presidential sanction under 304(b)**.
- **Haryana:** WP 8700/2000 (P&H HC) challenged the **Haryana Local Development Act, 2000**. A Division Bench **dismissed** it — the levy was *compensatory*, hence outside Art 301 — relying on **Atiabari** (AIR 1961 SC 232), **Automobile** (AIR 1962 SC 1406), **Bhagatram Rajeev Kumar** ((1995 Supp [1] SCC 673) and **Bihar Chamber of Commerce** ((1996) 9 SCC 136).
- **2003 — Jindal Stripe (2 JJ) refers:** apparent conflict between pre-1995 law (*Atiabari/Automobile*: compensatory ≈ commensurate with cost of facility) and *Bhagatram/Bihar Chamber* ("some connection", direct or indirect, even incidental public benefit suffices) — "the parameters of this judicial concept are **blurred**" → Constitution Bench under Art 145(3) ((2003) 8 SCC 60).
- **2006 — Jindal Stainless (2) (5 JJ) ((2006) 7 SCC 241):** overrules *Bhagatram* + *Bihar Chamber*; the *Automobile* working test is incompatible with "some connection"; *Atiabari*'s "direct and immediate effect" + *Automobile*'s compensatory test "will continue to apply" (para 53). Remand: HCs must decide compensatory-ness on data.
- **After remand:** High Courts held the levies **neither compensatory nor** passed with **304(b)** procedure. States appealed. The appeals went to a 2–Judge Bench (Pasayat & Kapadia JJ) → **Jaiprakash Associates (2009) 7 SCC 339** framed **ten questions** (assessees argued entry levies are "essentially fees"; transport cases differ from entry-of-goods cases) → **Jindal (2010) 4 SCC 595 (5 JJ)** referred **Atiabari and Automobile themselves** for reconsideration, noting the doubt existed "as early as in the year 1975 in **G.K. Krishnan** v. State of Tamil Nadu (1975) 1 SCC 375".
- **Before the 9-Judge Bench:** counsel reframed everything into **four questions** (below). **Mr Harish Salve** (with Arvind Datar, Laxmi Kumaran, Ravindra Shrivastava, N. Venkataraman) led for the assessees: the **compensatory-tax theory "had no legal basis or constitutional sanction and was neither acceptable nor workable"** — States had taken "umbrage" under it, self-certifying levies as compensatory to dodge Art 301. The **States** — also unhappy with *Atiabari/Automobile* — wanted them revisited "to restore and protect the sovereign power of legislation of the States and the Federal character of our polity". **Net: general consensus that the compensatory theory deserves rejection** — "except a feeble attempt made by some Counsel".

§ Issues — the four reframed questions (verbatim, DU p. 371)

Q1. Can the levy of a **non-discriminatory tax** *per se* constitute an infraction of Art 301?
Q2. If yes, can a **compensatory** tax also fall foul of Art 301?
Q3. What are the tests for determining whether a tax is **compensatory**?
Q4. Are the States' **entry taxes** violative of Art 301 — and must they be tested under **both 304(a) and 304(b)**?

Arguments

Assessees / traders (Salve, Datar, Kumaran, Shrivastava, Venkataraman):

- Compensatory-tax theory = judicial invention with **no constitutional sanction**; unworkable in practice (who decides the "facility cost"?), routinely self-certified by States — neither acceptable nor workable.
- Taxes on entry into a local area are direct impediments to inter-State movement → at minimum they fail **304(a)** (discrimination) **and** 304(b) (no Presidential sanction) — both tests must apply.
- **Incentives/exemptions for local goods** are "one form of insidious discrimination" — relying on **Mahavir** (total local exemption while outsiders paid 8% was void).
- Traditional position: taxes "may and do amount to restrictions" (Atiabari majority framing) — Part XIII was meant to prevent fiscal barriers between erstwhile princely States.

States (14+ party States):

- Equally attack *Atiabari* & *Automobile*: the compensatory theory is bereft of legal basis — **revisit** them to protect **State sovereign taxing power** and the federal design (taxation = "attribute of sovereignty"; limitations must be *express*).
- Art 304(a) itself **presupposes and permits** a tax on imported goods — "the legislature of a State may by law impose…" is an empowerment, not a restriction; source = Arts 245–246 + Entry 52 List II.
- **Equalisation defence** (para 141): exemptions, adjustments or credits designed to make the *fall of fiscal burden* equal on local and outside goods are not hostile discrimination.
- Entry levies are for local-area development — incidental benefit to traders suffices (the old *Bhagatram* logic, even while disowning the label).

Decision — the ten propositions (ORDER, DU pp. 368–369)

By majority (7:2), the reference is answered as follows:

1. **Taxes simpliciter are not within Part XIII. The word 'Free' in Art 301 does not mean "free from taxation".**
2. **Only discriminatory taxes are prohibited by Art 304(a)** — a non-discriminatory tax is no infraction of Art 301.
3. **Clauses (a) and (b) of Art 304 must be read DISJUNCTIVELY.**
4. **A levy violating 304(a) CANNOT be saved even if 304(b)/its proviso is fully satisfied.**
5. **The compensatory tax theory (Automobile, modified in Jindal (2)) has no juristic basis — REJECTED.**
6. **Atiabari, Automobile and Jindal (2), and all judgments following them, are overruled to that extent.**
7. **An entry tax is permissible although similar goods are not produced within the taxing State.**
8. **Art 304(a) "frowns upon discrimination (of a hostile nature in the protectionist sense) and not on mere differentiation"** — therefore incentives, set-offs etc. granted to a specified class of dealers for a limited period, in a **non-hostile** fashion to develop economically backward areas, do NOT violate 304(a) (applicability to the batch's levies left to regular benches).

9. **States may design fiscal legislation so that the tax burden on goods imported from other States and goods produced within the State falls EQUALLY** — no 304(a) breach (again, application left to regular benches).
10. **Left open:** whether the entire State can be notified as a "local area"; and whether entry tax may be levied on goods entering India from another country.

Reasoning spine (paras 66–79):

- With the compensatory theory gone, only two historic views compete: **Gajendragadkar J's** (Atiabari majority — direct & immediate) vs **B.P. Sinha CJ's** (Atiabari dissent — *taxation simpliciter is not within Art 301*). **Sinha CJ wins.**
- **301**: plain reading — freedom "subject to" Part XIII, not absolute. **302**: Parliament may restrict in public interest → absolute character lost. **303(1)**: notwithstanding 302, no Parliament/State law may give *preference* or *discrimination* between States via any Seventh-Schedule trade entry; **303(2)**: unless the law declares it necessary for **scarcity of goods**.
- **304 (para 69):** does 304(a) treat taxes as restrictions so every levy falls foul of 301? **"The answer… is in the negative."** 304(a) specifically *recognises* the State's power to tax imported goods; "may by law impose" is not a restriction — but the power has **two express conditions**: (i) similar local goods must also be taxed; (ii) no discrimination between imported and local. "Levy of taxes on import of goods from other States is not by itself an impediment under… Article 301."
- **304 disjunctive (para 70):** (a) and (b) are "two distinct subjects… independent of each other" — a tax alone, a restriction alone, or both, are all permitted; "'and' can mean 'or' as well as 'and'"; taxes are not restrictions except discriminatory ones, so **304(b) applies to non-fiscal restrictions only** → "**for levy of taxes prior Presidential sanction… will be wholly unnecessary**" (proviso confined to clause (b) bills).
- **Para 72 — the nine-point summary** (verbatim structure): 301 not absolute → 302 Parliament's public-interest power → but no inter-State preference (303) → unless scarcity declaration (303(2)) → 304(a) recognises State tax power (Arts 245–246) → conditioned on similar-local-taxation + no discrimination → 304(a) "exhausts the universe" of State taxing limits → **only a discriminatory import-tax "works as an impediment… within the meaning of Article 301"** → 304(b) reasonableness does not comprehend taxes ("taxes are presumed to be both reasonable and in public interest").
- **Para 79 — sovereignty of the tax power:** a Constitutionally vested taxing power may be controlled only by **specific constitutional limitations**; the only one here is 304(a) → non-discriminatory entry taxes are free to be levied (Arts 245–246 + Entry 52 List II undisputed).
- **Intra-State discrimination argument rejected** ("more in despair than substantial"): Part XIII contained no bar on intra-State discriminatory taxation because the framers targeted **princely-State fiscal barriers** (Constituent Assembly Debates) — intra-State cases are judged **case-to-case on Art 14**.
- **Q1 answered NEGATIVE (para 126):** "a non-discriminatory tax does not per se constitute a restriction" under 301 → **Atiabari overruled (and with it Automobile's tax-as-restriction premise); Jindal (2) (2006) overruled**. Q2 & Q3 do not arise (paras 127–128).
- **Q4 (paras 129–141):** entry taxes are tested **only under 304(a)** — 304(b) "does not deal with taxes as restrictions… restrictions referred to in Article 304(b) are non-fiscal in nature"; fail 304(a) → struck "even if it had gone through the process stipulated by Article 304(b)" — *"what is constitutionally impermissible in terms of Article 304(a) cannot be validated… through the medium of Article 304(b)"*. On incentives: **Mahavir distinguished** (total & unconditional exemption vice; Video Electronics = specific class + limited period; 304(a) discrimination carries an element of **"intentional and unfavorable bias"**, per Video Electronics); **para 141: equalising exemptions/set-offs/credits are acceptable** if their intent is to equalise the fall of fiscal burden — actual operation left to regular benches.
- **Para 143:** reference answered; matters to regular benches for expeditious disposal in light of the above.

The dissent (Chandrachud & Bhushan JJ —): defended the compensatory-tax doctrine as constitutionally grounded — judicially evolved in *Automobile* to exclude regulatory measures and facility-reimbursement levies from Part XIII, withstood decades of application, and could not be discarded by a later Bench "prejudic[ing] the interest of the parties"; they would have retained Atiabari's direct-and-immediate test and the compensatory exception.

Principle

Ratio of Jindal (2017) — write these five lines in any answer citing it
1. Art 301 freedom ≠ freedom from tax; taxes simpliciter lie outside Part XIII; only **discriminatory** taxes are "impediments" (via 304(a)).
2. 304(a) and 304(b) are disjunctive: taxes → 304(a) alone; non-fiscal restrictions → 304(b) alone (+ Presidential sanction for bills).
3. 304(a) is a hard floor: procedural compliance of 304(b) can never cure a 304(a) discrimination.
4. Compensatory-tax theory is dead — Atiabari (to the extent taxes = restrictions), Automobile (compensatory exception) and Jindal (2) 2006 overruled; constitutional limitations on the sovereign tax power must be express.
5. Hostile, protectionist discrimination ≠ differentiation: class-specific, limited-period incentives and genuine equalising measures survive (304(a) "frowns upon" hostile bias only) — the Mahavir/Video Electronics line, now constitutionalised as the majority test.

Aftermath (context for 20-markers): the judgment revived entry-tax enactments across States (e.g. West Bengal's entry-tax law, previously struck on compensatory grounds, survived because "the foundation… no longer exists in law"); pending batch matters went to regular benches for 304(a) compliance under propositions 8–9. It remains the **last great word** on Arts 301–307 — and the endpoint of the DU syllabus arc *Krishnan → Mahavir → Jindal*.

PYQ ARCHIVE // CH.09 Previous Year Questions (DU LL.B. Examinations)

Q.1 · December 2024 · Q6(a) · 10 marks · – Short note on any two of: (a) "Freedom of Trade, Commerce and Intercourse" (b) Separation of Powers (c) locus standi Freedom of Trade, Commerce and Intercourse — write a short note (10 marks).

▸ Refer website for detailed notes — makelaweasy.in · WhatsApp: +91 7021726891

Q.2 · Centenary paper · Q6 · on Article 301 Article 301 — scope of the freedom and the restrictions on it. NOTE ON SOURCING The centenary paper's Q6 page is a scan without a text layer — the exact wording could not be recovered. This is an honest paraphrase covering what is confirmed from the transcription: the scope of Art 301 and the restrictions permitted by Part XIII. Answer-plan below covers both dimensions fully, so either framing of the original question is served.

MODULE 10 // TOPIC 9 · EMERGENCY PROVISIONS Cases #69-#71

Emergency Provisions: National Emergency, Union Directions, President's Rule & Financial Emergency

Part XVIII · Articles 352, 355-360 · Articles 256-257 & 365

§1 The Emergency Architecture — Part XVIII & its satellites

National Emergency

Art 352 — war / external aggression / armed rebellion (earlier "internal disturbance")
Effect engines: Art 353 (Union executive + legislative expansion) · **358** (Art 19 automatically, only war/external aggression) · **359** (other rights by Presidential order; never Arts 20, 21) · 357 (laws for States) · 250 (Parliament legislates on State List).

State Emergency (President's Rule)

Arts 356–357 — failure of constitutional machinery in a State.
Triggered by: Governor's report *or otherwise*; Art 365 (non-compliance with Union directions = deemed failure); Art 355 backdrop.
Effects: assume State functions · Parliament exercises State legislature · suspension/"suspended animation" · 357 saving for laws.

Financial Emergency

Art 360 — financial stability or credit of India threatened.
Effects: directions on canons of financial propriety · reduce salaries (State staff; all Union staff *including SC/HC Judges*) · reserve Money Bills · two-month approval.
Never invoked in India.

How the pieces link (the sentence to memorise)

1. **Art 355**: it is *the duty of the Union* to protect every State against external aggression and internal disturbance and to ensure constitutional government in every State.
2. **Arts 256–257**: standing executive power of the Union to give directions (compliance with Union laws; no impediment to Union executive power; national/military communications; protection of railways — extra costs reimbursed).
3. **Art 365**: if a State fails to comply with *any* such direction, "it shall be lawful for the President to hold that a situation has arisen in which the Government of the State cannot be carried on in accordance with the provisions of this Constitution" — i.e. the **deemed gateway to Art 356**.
4. **Art 356**: the proclamation — assume functions, declare State legislative powers exercisable by Parliament, make incidental provisions (never touching High Courts), subject to two-month/six-month/three-year clocks.
5. **Art 352**: the national-level override, which then *expands* Union power further (353), can lift Art 19 (358) and suspend court-enforcement of other rights (359).
6. **Art 360**: the financial valve — parallel machinery, never used.

Why the text reads the way it does — amendment history in brief

- **38th Amdt (1975)** — Emergency-era tightening: retrospective insertions into Arts 352, 356 (old cl. (5)) and 359 (new cl. (1A)) and 360 (old cl. (5)) — ins. and omitted within four years.
- **42nd Amdt (1976, w.e.f. 3-1-1977)** — "The Emergency Constitution": partial-proclamation powers in 352(1), Art 353 proviso, 356 one-year clauses, 357(2), 358 proviso, 359 provisos.
- **44th Amdt (1978, w.e.f. 20-6-1979)** — the great repair: **"internal disturbances" → "armed rebellion"**; Art 352(3) Cabinet-in-writing; approval/disapproval machinery; **Arts 20–21 carved out of Art 359(1)**; Art 358 confined to war/external-aggression emergencies and made recital-based; Art 360(2) approval; Art 356's one-year gate with Electoral Commission certificate.
- **Punjab cluster**: 59th (359A, 1988) · 63rd (omits 359A & the Punjab proviso, 1989) · 64th (re-inserts Punjab proviso, 1990) · 67th & 68th (11-5-1987 Punjab Proclamation: three years → five years).

§2 Article 352 — Proclamation of Emergency (war · external aggression · armed rebellion)

Art 352(1) (as amended — key words bracketed). "If the President is satisfied that a grave emergency exists whereby the security of India or of any part of the territory thereof is threatened, whether by war or external aggression or **[armed rebellion]**, he may, by Proclamation, make a declaration to that effect **[in respect of the whole of India or of such part of the territory thereof as may be specified in the Proclamation]**." **Explanation**: a Proclamation "may be made before the actual occurrence of war or of any such aggression or rebellion, if the President is satisfied that there is imminent danger thereof."bracketed words: 42nd Amdt s.48 (whole/part) & 44th Amdt s.37 (armed rebellion)

Procedure clauses (all post-1978)

- **(2)** may be varied/revoked by subsequent Proclamation.
- **(3) — the 44th Amdt's master-key:** no Proclamation (or variation) unless **the decision of the Union Cabinet** "that such a Proclamation may be issued **has been communicated to him in writing**".
- **(4)** laid before each House; **ceases to operate at one month** unless approved by resolutions of both Houses (with the Lok-Sabha-dissolved proviso → 30 days after reconstitution).
- **(5)** once approved, ceases after **six months**; renewable six months at a time by both Houses' resolutions — **never beyond six months if Lok Sabha dissolved** (same 30-day rule).
- **(6)** approving/resolving House needs **majority of total membership + ⅔ of members present and voting** (double special majority).
- **(7)** President *shall* revoke if the Lok Sabha passes a disapproving resolution.
- **(8)** notice by **one-tenth members** → special sitting **within 14 days** to consider disapproval.
- **(9)** power to issue *different Proclamations on different grounds* (e.g. war in one region, rebellion in another), even simultaneously.

§ Grounds: the three words and how they got there

- **Original 1950:** "war or external aggression or internal disturbance".
- **26-10-1962:** first Proclamation — Chinese attack on the NEFA; Art 19 suspended via Art 358; Art 359 order covering Arts 14, 21, 22 (Defence of India Ordinance link). *1971:* 3-12-1971 (Indo-Pak war); *1975:* 25-6-1975 ("internal disturbance") — both revoked on 21-3-1977.
- **Controversy → cure:** the 1975 declaration on the vague ground of "internal disturbance" (used alongside preventive detentions, censorship, and the Art 359 order) directly produced the **44th Amdt: "internal disturbances" substituted by "armed rebellion"** (s.37, w.e.f. 20-6-1979). Today's text thus demands an objective, externalisable ground; an internal-law-and-order collapse *per se* is the subject-matter of Arts 355-356, not Art 352.
- **Partial emergencies:** valid only since the 42nd Amdt — a Proclamation may cover a specified part of India (the original text allowed only a whole-of-India declaration).
- **Explanation (44th Amdt):** prospective declarations permitted — imminent danger.

Exam-grade details

- **Art 366(18)** defines "Proclamation of Emergency" as one under 352(1) — so Arts 358/359/250/253(?) keys are read distributively: 358's trigger is narrower than the definition.
- **1975 → 1978 causation:** the 38th Amdt (retrospective cl. (5)-type insertions, protected orders) was swept away by the 44th Amdt's

What Art 352 does — the effect machinery (clause-by-clause)

Art	Effect while Proclamation operates
353	(a) Union executive power extends to **directing any State as to the manner of exercising its executive power**; (b) Parliament may legislate on **State List** matters (also via Art 250). Proviso (42nd Amdt): for a *part-only* Proclamation, both extend even outside the affected area if security is threatened by activities in the affected part.
354	President may order adaptation of financial provisions (e.g., distribution of revenues) for the financial year in which the Proclamation ceases; every such order laid before Parliament.
357	Parliament may confer State-legislature law-making power on the President; President may authorise expenditure from the State Consolidated Fund when Lok Sabha not in session; saved laws outlast the Proclamation.
358	**Art 19 automatically out of the way** — but *only* for war/external-aggression Proclamations (44th Amdt), and only for laws with a recital linking them to the Proclamation.
359	By Presidential order, court-enforcement of specified rights (never Arts 20, 21) suspended; laws abridging them protected if recital-based; territorial extension rules.
250	Standing power of Parliament to legislate on State List during Proclamation (law lapses 6 months after Proclamation ends, to the extent it exceeded competence).

procedural gates; the *most-cited constitutional turning point* is the substitution of "internal disturbance" with "armed rebellion".

- **The double lock after one year (Art 356(5)-style gate for States) has no Art 352 counterpart** — instead Art 352's continuance is open-ended as long as Parliament keeps approving every six months, which is why the *political* off-ramps (352(7)–(8)) were added.
- **Art 352 vs Art 356:** 352 = whole/part of India, security-of-India threshold, rights-suspension engines; 356 = one State, constitutional-machinery threshold, no rights suspension (358/359 do not apply to State Emergencies — a classic trap).

§3 Articles 358 & 359 — Suspending rights during an Emergency

Art 358 — suspension of Art 19 (automatic, external-only)

> **358(1):** "While a Proclamation of Emergency **[declaring that the security of India … is threatened by war or by external aggression]** is in operation, nothing in Article 19 shall restrict the power of the State … to make any law or to take any executive action which the State would but for Part III be competent to make or to take", but such law **ceases to have effect when the Proclamation ceases**, except as to things already done. **Proviso (42nd Amdt):** for a part-only Proclamation, extended to unaffected States if their security is threatened by activities in the affected part. **358(2) (44th Amdt):** protection only for laws **containing a recital** that they relate to the Proclamation — otherwise Art 19 remains a shield.

- **Scope:** only Art 19; **trigger:** only war or external-aggression Proclamations — **not** armed-rebellion emergencies (44th Amdt, s.39: words substituted for "while a Proclamation of Emergency is in operation"; cl. (1) renumbering).
- **Operation:** automatic — no separate order; suspension runs with the Proclamation; both right *and* remedy gone; legislature/executive may act freely on declared emergencies (e.g., censorship laws in 1962/1971/1975).
- **1975 instance:** Art 19 was switched off for the entire emergency (1975–77), enabling the MISA detentions and press censorship that the 44th Amdt thereafter disciplined.

Art 359 — suspension of enforcement of other rights (order-based)

> **359(1):** "Where a Proclamation of Emergency is in operation, the President may by order declare that **the right to move any court for the enforcement of such of the rights conferred by Part III (except Articles 20 and 21)** as may be mentioned in the order and all proceedings pending in any court … shall remain suspended for the period during which the Proclamation is in force or for such shorter period as may be specified in the order." **(1A)** the named rights do not restrict State law-making/executive action (recital-based laws protected; lapse on order's end). **(1B)** recital requirement. **(2)** whole or part of India (extension rules). **(3)** laid before each House.

- **Scope:** any Part III right named in the order — but **never Arts 20 and 21** (the 44th Amdt's immutable core: protection in respect of conviction; life & personal liberty); **trigger:** any Proclamation (internal or external); **operation:** needs a Presidential order; **what is suspended:** only the *remedy* (right to move court) — the right itself continues, and violations remain actionable after the order lapses.
- **Art 359A** (Application of Part XVIII to Punjab) was inserted by the **59th Amdt, 1988** (with a two-year sunset), omitted by the **63rd Amdt, 1989** (w.e.f. 6-1-1990) — a reminder that the emergency machinery itself has been made state-specific in the past.

§ Case-law on the suspension machinery

- **Makhan Singh Tuli v. State of Punjab, AIR 1964 SC 381** — cleaned the lines: Art 358 suspends Art 19 wholesale when the emergency is in force; Art 359 suspends only the *enforcement* of the rights named in the order; courts must look to the **substance** of a detention order, not its form, so that a detention cannot survive merely because another statute's route was used.
- **ADM Jabalpur v. Shivkant Shukla (1976) 2 SCC 521** — during the 1975 Emergency, the majority (five Judges, overruling the wider protection) held that after an Art 359 order there was **no right to move any court** — even to contest detention under Art 21; **H.R. Khanna J dissented** (life cannot be taken without process), a dissent later vindicated. The Union's 1975 order under Art 359 named **Arts 14, 21 and 22**.
- **44th Amdt (1978)** — the structural reply: Art 359(1) rewritten to exclude Arts 20 and 21; Art 21 given "due process" footing by cl. (2); 358 narrowed to war/external aggression + recital discipline.
- **Union of India v. K.S. Puttaswamy (2017) 10 SCC 1** — reads the post-44th Art 21 as a substantive guarantee; during the pandemic-era discussions the settled position is that no Art 359 order can ever touch Arts 20–21.

Common exam traps

- **Trap 1:** "Art 358 applies to armed-rebellion emergencies." — **No.** Since the 44th Amdt it applies only to war/external-aggression Proclamations (Art 358(1) as substituted).
- **Trap 2:** "During President's Rule under Art 356, Art 19 is automatically suspended." — **No.** Arts 358/359 are engines of Art 352 only.
- **Trap 3:** "A 359 order abolishes the right." — **No:** only the right to move court + pending proceedings; the right revives and old violations become justiciable again.
- **Trap 4:** "Arts 20–21 can be suspended in a genuine war." — **No:** the 44th Amdt made them untouchable, full stop.
- **Trap 5:** recital: a law without the emergency-recital gets **no** 358/359(1A) protection — it is tested on ordinary grounds.

§4 Articles 355, 256, 257 & 365 — The Union's directions machinery

Art 355 — Duty of the Union to protect States. "It shall be the duty of the Union to protect every State against external aggression and internal disturbance and to ensure that the Government of every State is carried on in accordance with the provisions of this Constitution."

Art 256 — Obligation of States and the Union. "The executive power of every State shall be so exercised as to ensure compliance with the laws made by Parliament and any existing laws which apply in that State, and the executive power of the Union shall extend to the giving of such directions to a State as may appear to the Government of India to be necessary for that purpose."

Art 257 — Control of the Union over States in certain cases. (1) State executive power shall not "impede or prejudice" the Union's executive power — with reciprocal direction power. (2) Directions as to construction/maintenance of means of communication "declared … to be of national or military importance" (Parliament may declare highways/waterways; Union retains its naval/military/air-force works functions). (3) Directions as to measures for the protection of the railways within the State. (4) **Extra costs reimbursed:** excess expenditure caused by (2)/(3) directions paid by Government of India — agreed sum or, failing agreement, **an arbitrator appointed by the Chief Justice of India**.

Art 365 — Effect of failure to comply with directions. "Where any State has failed to comply with, or to give effect to, any directions given in the exercise of the executive power of the Union under any of the provisions of this Constitution, **it shall be lawful for the President to hold that a situation has arisen in which the Government of the State cannot be carried on in accordance with the provisions of this Constitution**."

Art 355 — two limbs

Jeevan Reddy J in *S.R. Bommai* DU excerpt +: Art 355 is "**both a responsibility and a power**" — (i) protect against external aggression *and internal disturbance*; (ii) ensure constitutional government in every State. It is the constitutional hinge on which Arts 256–257 directions and Art 356 action hang, and it **runs to the Union's protection of States, not their punishment** — a point exploited for the Kailash PYQ (§9).

§ Arts 256–257 — what the directions cover

Compliance with Union laws (256) · non-impediment of Union executive functions (257(1)) · national/military communications (257(2)) · protection of railways (257(3)) · cost-sharing with CJI-arbitration backstop (257(4)). Related: **Art 255** — recommendation/sanction requirements treated as procedural; **Art 258** — Union may entrust its functions to a State with consent; **Art 258A** — State may entrust functions to the Union; **Art 257A** — armed-forces deployment to assist a State, **omitted by the 44th Amdt** (w.e.f. 20-6-1979), now handled by consent/statute (e.g., AFSPA, 1958 in notified areas).

▸ Art 365 — the hinge

Non-compliance with **any** direction (constitutional or statutory Union law) lets the President **hold** — i.e., formally conclude — that Art 356's trigger exists. It converts an executive default into "failure of constitutional machinery" *without needing a new fact-finding exercise*; but as *Rameshwar Prasad* insists, whatever route supplies the satisfaction, the **material must still be objective and reviewable** (case 71).

Real-world directions in operation

- **Art 256:** Union directions for implementation of central schemes/ laws — e.g., directions under the *Essential Commodities* framework, election-law compliance, census enumeration, or Calcutta-style all-India services coordination; failure of a State to implement a valid Union law is the classic 365 fact-pattern.
- **Art 257(2):** national highways/"means of communication of national or military importance" — the NHAI/border-roads pattern; costs beyond normal State duties reimbursed under 257(4), CJI-appointed arbitrator if no agreement.
- **Art 257(3):** railway protection measures — e.g., deployment of State police for rail-property security during agitations.
- **Art 355 in action:** Union armed assistance to States has historically moved on request/consent (257A now omitted) or under statute (Armed Forces (Special Powers) Act, 1958 in notified areas; deployment during communal crises upon State invitation).
- **Converse protection:** Art 355 also underpins Union intervention when a State cannot maintain order — but post-*Bommai*, protective duty ≠ licence to dislodge an elected government without material (case 70).

Non-compliance → what exactly happens?

1. Direction issued in exercise of Union executive power under **any provision of the Constitution** (256, 257, 258, 353 during an Art 352 emergency, statutory powers etc.).
2. State "fails to comply with, or to give effect to" it — omission suffices, no contumacy required.
3. President **may hold** (discretionary formulation but advice-bound post-*74(1)*) that Art 356's situation has arisen → proclamation path opens.
4. **But**: *Rameshwar* para 96/122 — the **burden of proving the existence of the situation rests on the Union** (s. 106 of the Evidence Act); a bare holding with no objective material is "ipse dixit" and is struck down.
5. Safeguard interlocks: two-month approval clock (356(3)); no dissolution-as-of-right; review under *Bommai* parameters (§8).

§5 Articles 356–357 — President's Rule in the States

Art 356(1). "If the President, **on receipt of a report from the Governor** of a State **or otherwise**, **is satisfied** that a situation has arisen in which the Government of the State cannot be carried on in accordance with the provisions of this Constitution, the President may by Proclamation—
(a) assume to himself all or any of the functions of the Government of the State and all or any of the powers vested in or exercisable by the Governor or any body or authority in the State other than the Legislature of the State;
(b) declare that the powers of the Legislature of the State shall be exercisable by or under the authority of Parliament; and
(c) make such incidental and consequential provisions … including provisions for suspending in whole or in part the operation of any provisions of this Constitution relating to any body or authority in the State:
Provided that nothing in this clause authorises the President to assume any powers vested in or exercisable by a **High Court**, or to suspend its constitutional protections.

(2) revocable/variable by subsequent Proclamation. **(3)** laid before both Houses; ceases in **two months** unless approved by both Houses (Lok-Sabha-dissolved proviso → 30 days after reconstitution). **(4)** once approved, ceases after **six months**; renewable by continuance resolutions — **never beyond three years** (Punjab proviso: the 11-5-1987 Proclamation's ceiling was written as **five years** by the 67th/68th Amdts). **(5) Beyond one year, continuance resolution cannot be passed unless** (a) an **Art 352 Proclamation is in operation** for the whole/part of that State, **and** (b) the **Election Commission certifies** that continuing is necessary because of **difficulties in holding general elections** to that Assembly (Punjab proviso via 64th Amdt). **No-dissolution-before-approval (Bommai holding, on the scheme of (3)):** irreversible steps — notably dissolution of the Assembly — only after both Houses approve; until then the House may be suspended (Sarkaria & Punchhi recommend codifying this by amendment).

Grounds — what "cannot be carried on in accordance with the Constitution" covers

- **Art 365 route:** non-compliance with Union directions (any constitutional provision) — deemed failure.
- **Governor's report of loss of majority:** defections/horse-trading — but only if tested or untestable (floor test first: 70, 71).
- **Breakdown of law & order** rendering the State government unable to function per the Constitution (classic instances: PM's assassination riots 1984?, Punjab 1980s, UP 1991–2?) — must be evidenced.
- **Policies violating the basic structure:** *Bommai* — a State government pursuing anti-secular/anti-socialist policies can be a valid 356 ground (part of the disposition; DU excerpt supplies the federalism frame).
- **NOT grounds: mal-administration** of a majority government ("remedy … lies elsewhere and not in Article 356(1)" — *Rameshwar* para 158) · political disagreement with policies · mere "instability" without evidence · preventing a party from staking a claim (*Rameshwar* para 140: extraneous) · anticipatory dissolutions on assumed future illegality (paras 141–143).
- **Sarkaria Commission's touchstone** (quoted in DU *Rameshwar*): use Art 356 as a **last resort**, for the purpose contemplated by the Constitution, and resume normalcy as soon as possible; explore **all** alternatives — including a minority government enjoying confidence — before reporting failure (*Rameshwar* para 120; also the **Five-member Committee of Governors appointed after the November 1970 Conference of Governors**, DU-quoted).

Limitations & parliamentary control (the clockwork)

Gate	Rule
Approval	Two months; both Houses; else lapses (356(3))
First continuance	Six months from **date of issue** (44th Amdt restored this from the 42nd Amdt's one-year drafting)
Renewals	Six months at a time by both Houses' resolutions; hard cap **3 years**
After 1 year	**Art 352 emergency in operation + ECI certificate** on election difficulties (356(5)) — the sharpest post-1975 limit
During 2-month window	No **irreversible** action — dissolution only after approval: the majority in *Bommai* held the President may dissolve only after Art 356(3) ratification (until then: suspended animation); Sarkaria/Punchhi propose amending the text to say so expressly
Revocation	President may revoke (356(2)); lapses on non-approval automatically
Art 357	Parliament may legislate State matters; President may authorise State-fund expenditure; saved laws survive cessation
High Courts	Expressly outside proclamation's reach (proviso to 356(1)(c))
Judicial review	Unanimously affirmed in *Bommai*; applied in *Rameshwar* (§8)

Sabharwal CJ's four Points in *Rameshwar* DU +: (1) [question not reproduced in the DU excerpt] · (2) whether the 23-5-2005 Proclamation dissolving the Bihar Assembly is illegal/unconstitutional · (3) whether status quo ante as on 7-3-2005 or 4-3-2005 must be directed · (4) **scope of Art 361 immunity of the Governor**.

Art 357 — exercising legislative power during President's Rule

- **357(1)(a):** Parliament may confer on the **President** the State Legislature's law-making power (and permit delegation by the President).
- **357(1)(b):** such laws may confer powers/impose duties on the Union or its officers.
- **357(1)(c):** President may authorise expenditure from the **State Consolidated Fund** when the Lok Sabha is not in session, pending parliamentary sanction.
- **357(2) (42nd Amdt drafting):** laws made under 357 that Parliament/President could not otherwise make **continue in force after the Proclamation ceases**, until altered/repealed by the competent Legislature — the saving that protected hundreds of Ordinance-era State laws (compare *Krishna Kumar Singh* on lapse of Ordinances).
- **Contrast with Art 356(1)(b):** the Proclamation itself makes State legislative powers "exercisable by or under the authority of Parliament"; Art 357 is the machinery clause for actually legislating/delegating/spending.

Grounds — linked provisions worth quoting in answers

- **Art 164(2)** — collective responsibility of the Council of Ministers to the Assembly: why the *floor* is the constitutionally ordained test (*Bommai*; *Nabam Rabia*).
- **Art 174/163** — Governor's summoning/proroguing/dissolving powers are **aid-and-advice-bound** when a government enjoys confidence (*Nabam Rabia*, DU excerpt +).
- **Art 159** — Governor's oath: preserve, protect and defend the Constitution — invoked in *Rameshwar* para 156 against Raj Bhavan overreach.
- **Art 361** — immunity of President/Governor: does not bar review of the *material* on which the report rests; suits against the Government remain open (proviso to 361(1)) — framed as Point 4 in *Rameshwar*.
- **Art 74(2)** — bar on inquiring into the aid-and-advice of Ministers: held in *Bommai* **not to bar examination of the factual material** the advice was based on (Sawant J, quoted in DU *Rameshwar* para 95): "the courts can always probe into the factual existence of material … but not the wisdom or reasonableness of the advice".
- **10th Schedule** — Speaker's turf, not the Governor's: disqualification questions are for the Speaker (judicial power), and were an impermissible ground for recommending dissolution (*Rameshwar* paras 155–159).

§6 Article 360 — Financial Emergency (never invoked)

Art 360(1). "If the President is satisfied that a situation has arisen whereby the **financial stability or credit of India or of any part of the territory thereof is threatened**, he may by Proclamation make a declaration to that effect." **(2)** may be revoked/varied; laid before both Houses; **ceases at two months** unless approved by both Houses (Lok-Sabha-dissolved proviso → 30 days after reconstitution). **(3)** Executive authority of the Union extends to directions to any State "to observe such **canons of financial propriety** as may be specified" and other directions the President deems necessary/adequate. **(4)** Notwithstanding anything in the Constitution, directions may include **(i)** reducing salaries/allowances of persons serving in connection with the affairs of a **State**; **(ii)** requiring all **Money Bills and Art 207 Bills** to be reserved for the President's consideration after State Legislature passage; and **(b)** the President may direct reduction of salaries/allowances of persons serving the **Union — including Judges of the Supreme Court and the High Courts**. history: old cl. (5) inserted retrospectively by 38th Amdt 1975 and omitted by 44th Amdt 1978; cl. (2) as printed substituted by 44th Amdt

Procedure

No separate "Cabinet in writing" clause (unlike 352(3)) but Art 74(1) aid-and-advice applies; **two-month approval** by both Houses like Art 356(3); **no six-month continuance machinery is written into 360** — the text relies on the approval + ordinary politics; revocation by subsequent Proclamation. (Contrast: no three-

Effect toolkit

(1) Directions to States on financial propriety. (2) Cut State-employee salaries. (3) Reservation of State Money Bills/207 Bills for President. (4) Cut **all Union salaries — including SC & HC Judges' salaries** (the most-discussed clause; the 44th Amdt retained it while removing the old retrospective cl. (5)). (5) By implication,

Never used — but keep ready

No Art 360 Proclamation has ever been issued in India. Near-misses to cite as context: the **1991 balance-of-payments crisis** (forex reserves for ~2 weeks of imports; solved by pledging gold, liberalisation and IMF assistance — *not* by emergency powers); repeated fiscal-deficit warnings (FRBM framework, 2003+).

year cap text, no ECI-certificate gate — one reason scholars call 360 the "unfinished" emergency clause.)

intensified Centre-State fiscal coordination and IMF/parliamentary management of the crisis.

Candidates often conflate it with Art 356 — mark the difference: 360 attacks **fiscal** stability of India, 356 attacks **constitutional** governance of a State.

Structural reading for exams. Arts 352 (national), 356 (State) and 360 (financial) form a ladder of severity with shrinking thresholds: security of India → constitutional machinery of a State → financial stability/credit of India. Each has its own approval clock (one month / two months / two months), but only 352 has disapproval-resolutions (352(7)–(8)); only 356 has the three-year cap + ECI gate; only 360 can touch judicial salaries' quantum — and only 352/359 can touch rights. **The examiner's favourite one-liner:** "Financial Emergency has remained a dead letter — drafted, detailed, dormant."

§8 The Judicial-Review Matrix for Art 356 · Commissions · Timeline

Syllabus item (c) asks for **Grounds · Limitations · Parliamentary Control · Judicial Review**. §5 covered grounds/limitations/parliamentary control as text; this section compresses the **case-law overlay** into the matrices an examiner can tick off — plus the institutional (extra-judicial) safeguards.

§ Grounds on which a proclamation falls (settled list)

1. **Mala fide** — improper purpose or personal bias (Rajasthan; Rameshwar para 118: "canons of propriety … undue haste … smacked of mala fides").
2. **Wholly extraneous / irrelevant grounds** — e.g., punishing realignment, preventing a claim, mal-administration, Tenth-Schedule speculation (Rameshwar paras 140–159).
3. **Absence of material / ipse dixit** — "mere ipse dixit, suspicion, whims and fancies" (para 136).
4. **Unverified facts / unascertained sources** — no interviews, conflicting letters, unknown inputs (paras 123–124).
5. **Refusal of a feasible floor test** without written reasons (para 119; Bommai).
6. **Failure to explore alternatives** — minority government available (para 120; Sarkaria/1970 Governors' Committee).
7. **Breach of Art 356(1) proviso or procedure** — touching High Courts; non-approval within clocks; dissolving before Art 356(3) approval — irreversible-acts rule of Bommai.
8. **Basic-structure violation by the Union's own use** — e.g., using Art 356 to dismantle federalism (Kailash-type argument, §9).

Limits of review (so the answer is balanced): no appeal against the choice between dismissal and fresh elections (Rajasthan); **sufficiency** of material not questioned — only its **legitimacy** (quoted from Sawant J's Bommai opinion in DU Rameshwar paras 121–122: "sufficiency of material cannot be questioned, the legitimacy of inference … is certainly open to judicial review"); no probing of ministerial advice under Art 74(2) — but the factual bedrock is examinable (para 95).

Safeguard	Source	Operative rule
Two-month lapse	Art 356(3)	No parliamentary approval → Proclamation dies; consequences unwind
Six-month votes / 3-year cap	Art 356(4)	Each continuance needs both Houses
One-year gate	Art 356(5)	Beyond a year: Art 352 emergency **and** ECI certificate of election difficulty
No dissolution before approval	*Bommai* majority (scheme of 356(3))	Irreversible acts only after ratification; else suspended animation; non-approval → assembly "springs back to life"
Floor test first	Bommai; Rameshwar para 119; Nabam Rabia	Majority is proved on the floor, never in Raj Bhavan
Material scrutiny + burden	Bommai; Rameshwar paras 120–136	Relevant, bona fide, verified material; Union bears s.106 burden
Exploration duty	Sarkaria; Governors' Committee 1970 (DU para 120)	Last resort; consider minority govt; written reasons if no floor test
Governor as neutral	Rameshwar paras 155–159; Nabam Rabia	No Ombudsman role; no Tenth-Schedule assumptions; aid-&-advice-bound
44th Amdt procedure	Arts 352(3), 356 clocks	Written Cabinet decision; approval machinery; hard time gates
Review itself	Bommai (unanimous); Rameshwar para 148	Proclamation justiciable even after Art 356(3) approval; nine-judge law binding

Sarkaria Commission (1983)

Centre–State relations reference. On Art 356 (quoted in DU Rameshwar): use as **last resort**; apply only where constitutional machinery genuinely cannot be carried on; the Governor should give the incumbent CM an opportunity and probe alternatives; resume normalcy ASAP; **never dissolve the Assembly merely to suspend it** — keep it in suspended animation where elections are avoidable. DU para 120

Vohra Committee (1993) & anti-defection

Report on criminalisation of politics — background to why "horse-trading" fears are real, yet *Rameshwar* insists they must be **evidenced**, not assumed. Tenth Schedule machinery: Speaker decides disqualification (Kihoto Hollohan, DU para 86); the Governor may not pre-judge it (para 155).

§ Punchhi Commission (2007–10)

Successor commission: reiterated a **proviso-based** approach — Art 356 invocation should ideally require Assembly suspension (not dissolution), gubernatorial reasons recorded, and possibly an amendment so that the Governor's report be sent to the President *through* the Council of Ministers. Useful "reform" paragraph for Centenary Q7 (§9).

by Ankur R. Upadhyay

also quotes the **Five-member Committee of Governors** appointed after the New Delhi Conference of Governors, **November 1970**, recommending installation of any government that can enjoy confidence — even a minority one.

Prescribed Landmark Case Laws — Detailed Analysis

CASES #69-#71

CASE #69 DU LL.B. PRESCRIBED AUTHORITY

State of Rajasthan v. Union of India — (1977) 3 SCC 592 · AIR 1977 SC 1361

Bench (7 Judges): · M. Hameedullah Beg C.J., Y.V. Chandrachud, S. Murtaza Fazl Ali, P.N. Bhagwati, P.K. Goswami, N.L. Untwalia and A.C. Gupta JJ. · Order 29-4-1977, reasons 6-5-1977 · Constitutional Bench, Original Suits 1-6 of 1977 + Writ Petitions 67-69 of 1977 ·.

Facts. The Janata Party swept the March 1977 Lok Sabha elections, defeating the Congress across the country. On **18-4-1977**, the Union Home Minister, Shri Charan Singh, addressed letters to the Chief Ministers of the **six Congress-ruled States — Rajasthan, Madhya Pradesh, Punjab, Bihar, Himachal Pradesh and Orissa (Odisha)** — advising them to dissolve their Legislative Assemblies and seek a fresh mandate; the Union indicated that if the advice was not followed, action under **Art 356** (and, implicitly, Art 365 — non-compliance with directions) might follow. The six States filed **suits under Art 131** (plus connected writ petitions) seeking declarations that such an invocation would be unconstitutional and mala fide and **injunctions** restraining recourse to Art 356 on that sole ground.

Issues. (1) Is the President's satisfaction under Art 356 **justiciable** — and if so, how far (the then Art 356(5), inserted retrospectively by the 38th Amdt, 1975, was invoked in the debate)? (2) Does mere defeat of the ruling party in a Lok Sabha election constitute a "situation" warranting Art 356? (3) Is dissolution permissible **without prior ratification** by both Houses under Art 356(3)? (4) Was the letter "mala fide" — used to threaten? (5) Are the Art 131 suits (and the prayers for anticipatory injunctions) maintainable?

Arguments — Petitioner States. Art 356(3) makes parliamentary approval integral; dissolving assemblies on the strength of a single electoral defeat is political vendetta, not constitutional failure; the threat was "deceptive" and exercised for a purpose foreign to the power (mala fide); the Court should grant an injunction against a threatened illegal act; Art 131 disputes about the composition/tenure of State governments lie within the original jurisdiction.

Arguments — Union of India. The letter is mere "advice" — no Proclamation exists, hence no cause of action; whether a situation warrants Art 356 is **subjective and non-justiciable** (Art 365 non-compliance → Art 356 is the statutory route); Art 74(2) shields the advice; Art 131 requires a legal right of the *State as an entity*, not of a transient Ministry; in any case the exercise of Art 356 cannot be condemned unless it breaches constitutional conditions.

Decision. All suits and petitions **dismissed**; no injunction. The Court held: (i) the satisfaction is **subjective** but **not absolutely immune** — it may be challenged on the grounds that it is **mala fide**, or based on **wholly extraneous and irrelevant grounds** (or with no material at all) — the **"narrow, minimal area" of review** later so described in DU *Rameshwar Prasad* para 149; (ii) Art 356 carries a **preventive and curative** purpose — restoring constitutional government, not merely reacting to collapse; (iii) a President's decision taken on advice cannot be condemned merely because the choice between continuing a government and going to the electorate is politically motivated — *the letter's grounds had a "clear nexus" with Art 356*; (iv) **Art 356(3) approval is not a condition precedent** to exercise of Art 356(1) power (Beg C.J.: clause (3) "does not touch actions taken, proceedings completed, consequences ensued and orders executed"), and 356(1)(b) itself necessarily implies power to dissolve; (v) the Art 131/anticipatory-injunction route was unavailable.

Principle. "The President's satisfaction is subjective, reviewable only on the narrow grounds of mala fide/extraneous/no material — and the Federal Court of India will not sit in appeal over political satisfaction." This minimal-review doctrine governed for sixteen years until *S.R. Bommai extended* it to material-scrutiny, floor-test and burden-of-proof standards (DU *Rameshwar* paras 98, 149).

DU-sourced quotations from this judgment — as printed in the DU Case Material inside the S.R. Bommai excerpt (para 20), Beg C.J.:
"A conspectus of the provisions of our Constitution will indicate that, whatever appearance of a federal structure our Constitution may have, its operations are certainly, judged both by the contents of power which a number of its provisions carry with them and the use that has been made of them, more unitary than federal."

"In a sense, therefore, the Indian Union is federal. But, the extent of federalism in it is largely watered down by the needs of progress and development of a country which has to be nationally integrated, politically and economically coordinated, and socially, intellectually and spiritually uplifted…"

"If then our Constitution creates a Central Government which is 'amphibian', in the sense that it can move either on the federal or unitary plane, according to the needs of the situation and circumstances of a case, the question which we are driven back to consider is whether an assessment of the 'situation' … are matters for the Union Government itself or for this Court to consider and determine."

These passages are the classic citation for "federalism under strain" and reappear in DU's Bommai excerpt; the DU Rameshwar excerpt adds the doctrinal epitaph: the "narrow minimal area of judicial review … advocated in State of Rajasthan case is no longer the law of the land in view of its extension in Bommai case" (para 149).

CASE #70 DU LL.B. PRESCRIBED AUTHORITY

S.R. Bommai v. Union of India — (1994) 3 SCC 1

· Bench (9 Judges) — full composition in DU: · S. Ratnavel Pandian, A.M. Ahmadi, Kuldip Singh, J.S. Verma, P.B. Sawant, K. Ramaswamy, S.C. Agrawal, Yogeshwar Dayal and B.P. Jeevan Reddy JJ. · judgment pronounced 11-3-1994 · (petition filed 1989 — five years) · six separate opinions · (DU Rameshwar para 104) · scope as bracketed in DU: · "President's Rule in States under Article 356 – grounds and scope of judicial review" ·.

Cross-Reference: For the multi-State factual background and party contentions in S.R. Bommai v. Union of India, see Module 01 · Case #02; this entry focuses specifically on the nine-judge Bench's Article 356 judicial-review holdings.

Issues (as DU frames them, plus the reported framing). (I) Whether Art 356 power can be exercised on the materials here and what the constitutional limits are; (II) the meaning of the expression "a situation has arisen in which the Government of the State cannot be carried on in accordance with the provisions of the Constitution"; (III) **what is the effect of Article 355** on Arts 356/256/257 (DU's bracketed scope: grounds and scope of judicial review); (IV) is the President's satisfaction — and the Governor's report behind it — amenable to judicial review; (V) can a government be dismissed/dissolved without a floor test; (VI) do violations of the basic structure (e.g., governmental policies offending secularism) justify Art 356?

Decision (disposition — DU excerpt stops before the operative portions). On **11-3-1994** the nine Judges delivered **six opinions**. **Unanimously:** a proclamation under Art 356 is **subject to judicial review**; the constitutional validity of the Governor's report and the satisfaction built on it can be examined. **By the majority:** the proclamations in **Karnataka, Meghalaya and Nagaland were unconstitutional**; the proclamations in **Madhya Pradesh, Rajasthan and Himachal Pradesh were valid** — DU *Rameshwar* confirms both limbs: "the majority has declared invalid the dissolution of Assemblies of Karnataka and Nagaland and held as valid the dissolution of the Assemblies of Madhya Pradesh, Rajasthan and Himachal Pradesh" (para 139; compare para 104 listing six States with Karnataka, Nagaland and Meghalaya among the invalidations, and para 154 summarising "Karnataka and Nagaland … bad and not … Madhya Pradesh, Rajasthan and Himachal Pradesh"). **Relief:** the Karnataka Proclamation was declared void, but by judgment-date elections had already installed a fresh House (same for Meghalaya/Nagaland), so relief was largely declaratory — the Court nevertheless laid down the **restitution principle**: if a proclamation is invalidated, a dismissed ministry revives and a dissolved assembly is restored where feasible (reported at para 377 of Jeevan Reddy J's opinion, discussed in DU *Rameshwar* para 147).

Principles (the nine-judge package). (1) **Federalism, democracy, secularism and socialism are basic features**; Art 356 power is *de jure* the President's but *de facto* the Council of Ministers' — conditioned, not absolute. (2) **Art 355 is "both a responsibility and a power"** (Jeevan Reddy J, DU +) — it protects States; it does not license their punishment. (3) **The floor of the House is the constitutionally ordained forum** to test majority — "the assessment of the strength of the Ministry is not a matter of private opinion of any individual, be he the Governor or the President" (DU *Rameshwar* para 119 quoting the majority). (4) **Review extends to the material**: courts may ask whether the report is based on relevant material, is bona fide, and was duly verified (DU *Rameshwar* para 135); Art 74(2) bars probing advice's wisdom — not the factual existence of material (DU para 95). (5) **Burden on the Union** (s. 106 Evidence Act) — DU para 96/para 122. (6) **Satisfaction ≠ ipse dixit**: "The drastic and extreme action under Article 356 cannot be justified on mere ipse dixit, suspicion, whims and fancies of the Governor. This Court cannot remain a silent spectator watching the subversion of the Constitution" (DU *Rameshwar* para 136). (7) A proclamation may be struck down **even after parliamentary approval**; invalidity is *ab initio*. (8) Minority governments are permissible; defection law is the Speaker's, not the Governor's; mal-administration is not a 356 ground.

Key DU-sourced passages on scope & federalism:
Ahmadi J. (conspectus, DU paras 19-20): after cataloguing Arts 275/282/368 controls, "These limitations taken together indicate that the Constitution of India cannot be said to be truly federal in character as understood by lawyers in the United States of America" — followed by Beg C.J.'s "more unitary than federal"/"amphibian" passages quoted from State of Rajasthan.

Ahmadi J. also quoted Beg C.J. in State of Karnataka v. Union of India, AIR 1978 SC 68 on the "three tier system of Government" — Union at the apex, States within their exclusive/concurrent spheres, local government beneath — "pragmatic federalism".

Sawant J. (for himself and Kuldip Singh J., DU): the States are "neither satellites nor agents" of the Centre; analysed the constitutional catalogue of federal features, the 44th Amdt's redesign, Ambedkar's Constituent Assembly speech, and held that the review of a 356 proclamation, while not an appeal, extends to whether the conditions precedent were satisfied and whether the material supports the conclusion.

Ramaswamy J. (DU): on Union directions read with Arts 339, 344, 346, 347, 353, 358, 360, 365 and 371-C(2) and Arts 256 & 258-A — a map of Union primacy — yet concluded within the federal balance, citing Shamsher Singh on constitutional functionaries acting per the Constitution.

Jeevan Reddy J. (DU): Art 355 is "both a responsibility and a power" — Union must protect the State and ensure constitutional government; federalism and the federal balance are among the Constitution's principles that emergency action must respect.

Via DU Rameshwar paras 95, 119, 125, 136, 147: 356 "emergency power but not absolute"; floor test "the constitutionally ordained forum"; review parameters = relevant material + bona fides + verification = "the ratio decidendi of the majority opinion of Bommai case" (para 125); Jeevan Reddy J's para 377 rejects the "legislative character" defence of proclamations.

CASE #71 DU LL.B. PRESCRIBED AUTHORITY

Rameshwar Prasad v. Union of India — (2006) 2 SCC 1

· Bench (5 Judges) — DU: · Y.K. Sabharwal C.J. and K.G. Balakrishnan, B.N. Agrawal, Ashok Bhan and Arijit Pasayat JJ. · scope as bracketed in DU: · "Can dissolution of Assembly under Article 356(1) of the Constitution of India be ordered to prevent the staking of claim by a political party on the ground that the majority was obtained by illegal means." · interim brief order · 7-10-2005 ·; judgment reported (2006) 2 SCC 1.

Facts (DU). The Bihar Assembly (243 members; majority = 122) completed its term on **6-3-2005**. February 2005 elections produced a hung House: **NDA (BJP+JD(U)) 92 · RJD 75 · LJP 29 · Congress 10 · CPI(ML) 7 · SP 4 · NCP 3 · BSP 2 · Independents 17 · Others 9**. Smt. Rabri Devi resigned (28-2-2005); letters followed: LJP (Paswan) — supporting neither RJD nor BJP; BJP claimed 92 + 10-12 independents "not to allow the RJD to form a Government"; SP, CPI(ML) neutral; RJD staked a claim on 5-3-2005 — but even RJD + all 17 independents = 108 < 122; NDA + 10 independents = 102 < 122; six independents' claim lacked authorisation. The Governor (in his **report of 6-3-2005**) recorded that he had "explored all possibilities" and no party/group could claim majority → **Notification GSR 162(E) dated 7-3-2005**: Art 356 Proclamation, Assembly kept in **suspended animation** (approved by the Lok Sabha on 19-3-2005 and the Rajya Sabha on 21-3-2005 — DU).

Post-November-2005 elections again returned no combination at 122. On **21-5-2005** the Governor reported that **17-18 LJP MLAs were "moving towards" the JD(U)**, that allurements were being offered and that a claim would "distort the verdict of the people"; a **joint letter of the RJD-LJP leadership (22-5-2005, late evening)** followed. The Union forwarded the material to the President — **who was in Moscow**: papers despatched at 11 p.m. on 22-5-2005, presidential action in the early IST hours of 23-5-2005 (01:52 / 03:50), and the **Proclamation/notification dissolving the Assembly at 14:30 IST on 23-5-2005 — before the newly elected House had met even once**. Parliament approved it (LS/RS, March 2005 sittings had approved the first Proclamation; the second approval followed under Art 356(3)). Writ petitions before the Patna H.C. failed; the Supreme Court passed an interim order on **7-10-2005** declaring the 23-5-2005 Proclamation unconstitutional while **declining status quo ante**, with reasons and final relief in the judgment.
Issues (Sabharwal C.J.'s four Points, DU). Point 1 — [question not reproduced in the DU excerpt]. **Point 2** — "Whether the proclamation dated 23rd May, 2005 dissolving the Assembly of Bihar is illegal and unconstitutional?" (para 40: "This point is the heart of the matter"). **Point 3** — if so, "is it necessary to direct status quo ante as on 7th March, 2005 or 4th March, 2005?" **Point 4** — "What is the scope of Article 361 granting immunity to the Governor?" (the DU excerpt reproduces the question; the discussion of this Point does not appear in the excerpt — settled law outside the excerpt: the immunity is personal to the Governor; the *material* and acts remain reviewable, and suits against the Government stay open under the proviso to Art 361(1)).

Arguments — Union (AG, Solicitor General, ASG — DU paras 136-148, 155). (i) The **Governor's report itself is the material**; it is not permissible in judicial review to go into the material behind the report or whether it was verified. (ii) The situation is full of "imponderables, nuances, implications and intricacies" — there are **no judicially manageable standards**; courts must keep hands off (para 137). (iii) **Installation ≠ removal**: *Bommai* concerned removal after a floor test, so its parameters do not apply (para 144). (iv) Art 356 power is **preventive and/or curative** — denying government to a group that would cobble a majority by illegality is within it (para 145). (v) The power is **legislative in character**; mala fides/extraneous grounds cannot be attributed to legislative acts (para 146). (vi) Jeevan Reddy J.'s para 377 in *Bommai* "requires re-look" in light of earlier decisions (para 148). (vii) Anticipating the Tenth Schedule problem: even a two-thirds LJP-JD(U) merger would be defection-tainted — dissolution prevents the violation (para 155).

Arguments — petitioners (and the Court's own catalogue of *Bommai* ratio). The case is "squarely covered against the Government" by *Bommai*'s ratio (para 125); there can be no presumption of allurement merely because MLAs change political alignment (para 125); minority governments are normal (para 125); the report was unverified opinion — no interviews, conflicting retraction letters, unknown sources of "horse-trading" information (para 124); the proper course was a **floor test** (CM offered it) or, failing that, written reasons for not holding one (para 119); the Governor had to explore whether **any other Ministry** could be formed, even a minority one enjoying confidence (para 120); the burden of proving the situation is on the Union (s. 106 Evidence Act, paras 96, 122).

Decision (DU). para 161: "For all the aforesaid reasons, the Proclamation dated 23rd May, 2005 is held to be unconstitutional." The Court held: the "satisfaction" rested solely on the Governor's reports — his own opinion on unascertained material, not objective material (paras 120, 123); the Governor "threw all canons of propriety to the wind", acted with "undue haste" that "clearly smacked of mala fides", and the Proclamation "equally suffered from mala fides" (para 118); "The drastic and extreme action under Article 356 cannot be justified on mere ipse dixit, suspicion, whims and fancies of the Governor … This Court … is the sentinel on the qui vive" — the Governor "may be [the] main player, but [the] Council of Ministers should have verified facts" before treating the report "as a gospel truth"; indeed "the Governor … misled the Council of Ministers" (para 136). Preventing a party from staking a claim was the **extraneous** main ground (para 149); assuming Tenth Schedule disqualifications was impermissible — defection power belongs to the Speaker (judicial power), not the Governor (paras 155, 158–159); "**the Governor is not an autocratic political Ombudsman**" and "the ground of mal administration by a State Government enjoying majority is not available for invoking power under Article 356 … the remedy for corruption or similar ills lies elsewhere" (para 158). **Point 3 / relief (para 162):** status quo ante **declined** — "larger public interest, … ground realities and taking a pragmatic view": the Election Commission had completed four-phase preparations, nominations/scrutiny/withdrawal for Phase 1 were over, polling was fixed for 18–10–2005, huge expenditure had been incurred, and it was "fit not to put the State in another spell of uncertainty" — relief moulded to let the elections run, "with the fond hope that the electorate may again not give fractured verdict … the Indian electorate possessing utmost intelligence".

Principles. (1) A 356 proclamation must rest on **objective, verified, germane material** — a Governor's unverified report is "ipse dixit" and void. (2) **Floor test first**: where majority is doubted, the House alone may decide; refusing/omitting it without written reasons is fatal (para 119). (3) **Exploration duty**: before reporting failure, the Governor must explore *all* alternatives — including a minority government commanding confidence (para 120; Five-member Committee of Governors, 1970; Sarkaria). (4) **Extraneous-purpose doctrine**: dissolving to prevent a party from staking a claim (or to pre-empt "improper" realignments) is outside Art 356 (paras 140–143) — "even if preventive, [the] power cannot be abused" (para 145). (5) **Mal-administration, defection-speculation and Tenth Schedule fears are not 356 grounds**; Speaker/defence-of-constitution remedies lie elsewhere (paras 156, 158). (6) **Parliamentary approval does not cure** an invalid proclamation; review extends to the material even after Art 356(3) ratification (paras 147–148, following *Bommai*). (7) **Relief is moulded pragmatically**: declaration of unconstitutionality can coexist with refusal of status quo ante once elections are mid-stream (para 162). (8) *Bommai* parameters are **binding** — nine-judge law, not to be re-opened (para 148).

Three DU lines worth reproducing verbatim in an exam.
"…in all cases where the support to the Ministry is claimed to have been withdrawn by some Legislators, the proper course for testing the strength of the Ministry is holding the test on the floor of the House. That alone is the constitutionally ordained forum for seeking openly and objectively the claims and counter-claims…" (para 119)

"Thus, it is open to the Court, in exercise of judicial review, to examine the question whether the Governor's report is based upon relevant material or not; whether it is made bona fide or not; and whether the facts have been duly verified or not. The absence of these factors resulted in the majority declaring the dissolution of State Legislatures of Karnataka and Nagaland as invalid." (para 135)

"The narrow minimal area of judicial review as advocated in State of Rajasthan case is no longer the law of the land in view of its extension in Bommai case…" (para 149)

PYQ ARCHIVE // CH.10 Previous Year Questions (DU LL.B. Examinations)

Q.1 DECEMBER 2024 · Q2 · 20 marks The Republic of Dakshin (Dakshin), is a federal polity. The State of Kailash (Kailash) is one of the 23 provinces of the Republic of Dakshin. For the longest time political party 'A' formed both the Union government in Dakshin and the State Government in Kailash. However, in 2023, political party 'B' won the provincial elections in Kailash and formed the state government therein. The principle of asymmetric federalism imbues the Constitution of the Republic of Dakshin. In light of this principle, the State of Kailash has been given special privileges under the Constitution of the Republic of Dakshin. In January 2024, the political party A decided to revoke the special privilege conferred on Kailash through a constitutional amendment. This led to non-violent civil protests in Kailash. On February 1, 2024, the President of Dakshin issued a proclamation under Article 356 of the Constitution of the Republic of Dakshin on the ground that there was a failure of constitutional machinery in Kailash. This action of the Union government was challenged before the Supreme Court of India by the State of Kailash. The laws of Dakshin are in pari materia with the Constitution of India. In light of the aforementioned facts, argue on behalf of the State of Kailash. Your arguments must discuss the jurisprudence of federalism, Article 356, as well as the extent and limits of judicial review. (20)

▸ **Refer website for detailed notes — makelaweasy.in · WhatsApp: +91 7021726891**

Q.2 CENTENARY CHANCE EXAMINATION · Q7 (item (e)) · 20 marks Article 356 — safeguards against misuse and judicial pronouncements.